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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL and REGULAR MEETINGS

March 24, 2026

WEBVTT

1
00:04:34.720 --> 00:04:35.729
Boardroom: How about now?

2
00:04:36.160 --> 00:04:40.170
Boardroom: Is that any better? I know, but I'm also… It might be a…

3
00:04:40.310 --> 00:04:41.510
Boardroom: I think it was a Zoom thing.

4
00:04:42.960 --> 00:04:46.090
Boardroom: Give us a minute, I just want to make sure folks can hear you. Thank you.

5
00:05:08.530 --> 00:05:24.230
Boardroom: You want to try? Yep. How is that? Is that better? I don't know. I'm having other people tell me. If it's not working, I can't… I can hear you fine. I can sing a song, just let you know. Okay, working now. Okay. Awesome. Very good, thank you. Okay, so…

6
00:05:24.230 --> 00:05:40.399
Boardroom: Speaking to the COVID time, what we learned from that period is that we can't pause or slow our hiring efforts, and expect to recover from that pause quickly. To make meaningful progress against attrition, we have to continuously recruit, maintain.

7
00:05:40.400 --> 00:05:57.310
Boardroom: our hiring pipeline and stay competitive in the regional market. Ultimately, full staffing across sworn, dispatch, and CSO positions is critical. It ensures that we can maintain service levels, support employee wellness and job satisfaction, and also better control our overtime costs.

8
00:05:57.460 --> 00:06:11.829
Boardroom: So looking at our calls for service, we responded to just over 60,000 calls for service last year, which is a slight decrease of about

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2% from the year before. And the most important number here is the 911 calls.

9
00:06:12.000 --> 00:06:17.950
Boardroom: 16,255, which is up 6% and the highest in several years.

10
00:06:18.620 --> 00:06:34.760
Boardroom: These are our most urgent calls, the ones that demand immediate response, and that increase combined with our staffing picture is why efficiency and smart deployment matter so much. Non-emergency calls dropped about 5%, and officer-initiated contacts were down slightly.

11
00:06:34.760 --> 00:06:39.329
Boardroom: As well, but the upward trend in emergency calls is something that we're watching closely.

12
00:06:40.040 --> 00:06:51.119
Boardroom: And then looking at our workload, per officer, this is one of the more encouraging data points in the report. For the first time in several years, the average call

13
00:06:51.240 --> 00:07:10.290
Boardroom: per officer per shift is trending downward. It was a peak of 6.3 in 2023, and just, 6% in 2025. And that didn't happen by accident. The… there are 3 programs driving the improvement. First is the Patrol CSO program.

14
00:07:10.410 --> 00:07:24.370
Boardroom: And this program embeds non-sworn community service officers into our patrol teams, and they handle nonviolent emergency calls for service, and those calls previously pulled our sworn officers away from their higher priority work.

15
00:07:24.560 --> 00:07:34.290
Boardroom: A second is in our bike unit, which maintained response coverage in District 4, and that's where we see our highest call volume area and…

16
00:07:34.550 --> 00:07:38.939
Boardroom: They, that work supported, not pulling officers from other beats.

17
00:07:39.130 --> 00:07:52.299

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Boardroom: And then third, our Flex team, which conducted targeted data-driven operations, they proactively addressed repeat offenders and patterns of crime, and we're reducing the number of calls that cycle back to patrol with them.

18
00:07:52.720 --> 00:08:09.260
Boardroom: And here's why this matters. When calls per officer go down, it means that officers have more time to respond thoughtfully and effectively to each incident. It reduces the fatigue that they feel, improves decision making, and allows for better problem solving, instead of just going to call-to-call reactively.

19
00:08:09.750 --> 00:08:17.200
Boardroom: It also directly supports officer wellness and sustainability, while improving the quality of service the community receives.

20
00:08:17.420 --> 00:08:30.100
Boardroom: So I also want to note that our Priority 1 median response time was 7 minutes, and that meets our or exceeds regional benchmarks. Even with our current staffing constraints, we're getting to emergencies relatively quickly.

21
00:08:31.140 --> 00:08:49.259
Boardroom: And then our next slide is our communication center initiatives. The communication center has operated below strength for years, as many of you know, and at the start of 2025, nearly half of our dispatch positions were vacant. And this, closing the gap remains a top priority both for the police and fire departments.

22
00:08:49.350 --> 00:08:57.050
Boardroom: We hired 9 new dispatchers in 2025, and after accounting for attrition, that resulted in a net gain of just 3.

23
00:08:57.250 --> 00:09:04.429
Boardroom: So, this is a reminder that recruiting alone isn't enough. Retention and successful onboarding are equally critical.

24
00:09:04.550 --> 00:09:13.480
Boardroom: On the recruiting side, we hosted quarterly virtual recruiting events, and those reached nearly 1,200 candidates.

25
00:09:13.620 --> 00:09:19.249
Boardroom: So, our partnership with All Star Recruiting continues to expand and diversify our applicant pool.

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26
00:09:19.510 --> 00:09:38.390
Boardroom: We've also made structural improvements. Criticall is a pre-employment assessment tool that evaluates core skills required for dispatch work, and the addition of a call taker position provides recruits a more manageable starting point, and early results show higher training completion rates.

27
00:09:38.900 --> 00:09:53.389
Boardroom: In 2026, we anticipate leveraging new technology in the Communications Center, including protocol-based dispatch tools to standardize call handling, and exploring an AI-powered virtual agent to triage non-emergency calls.

28
00:09:53.510 --> 00:09:58.410
Boardroom: And both efforts are designed to improve efficiency and reduce stress on our dispatcher personnel.

29
00:09:58.660 --> 00:10:15.670
Boardroom: Beyond staffing, the Communications Center is in critical need of facilities, and equipment upgrades to meet the demands of modern dispatching, and these improvements will ensure our team has the tools and environmental… and environment necessity, excuse me, necessary to perform at their best.

30
00:10:15.810 --> 00:10:25.750
Boardroom: And so, all of this work is being done in close partnership with the fire department through an ongoing workgroup focused on building a sustainable communication center for the long term.

31
00:10:28.810 --> 00:10:38.139
Boardroom: Alright, good afternoon, I'm Arla Malenberg, Strategic Planning and Accountability Manager, with the PD. I want to take you through just some of the, the crime stats, highlights,

32
00:10:38.230 --> 00:10:55.930
Boardroom: So, overall, I'll start with Group A offenses. Group A offenses are, the most serious crime categories tracked under the federal reporting system, NIBRS, which we adopted in 2024. They cover violent crimes like assault and robbery and, and, property crimes, like burglary and theft.

33
00:10:56.200 --> 00:11:08.090
Boardroom: And crimes against society, like, drug and weapon violations. So, in total, Berkeley recorded about, 9,800 Group A offenses in 2025, which is down 11%, from the year before.

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34
00:11:08.430 --> 00:11:12.550
Boardroom: But I want to put these numbers in context a bit. Crime fell significantly…

35
00:11:12.680 --> 00:11:18.440
Boardroom: across the country last year. The U.S. has now seen two consecutive years of

36
00:11:18.610 --> 00:11:32.730
Boardroom: historic drops in crime rates. And researchers will tell you, that the reasons are not fully understood, but generally the consensus is that there's multiple factors at play. Pandemic disruptions are fading.

37
00:11:32.920 --> 00:11:48.400
Boardroom: And there have been significant investments at the state and local level in community violence prevention, and public safety technology. But for those same reasons, as federal funding gets cut, researchers are not entirely confident that this trajectory will hold.

38
00:11:48.500 --> 00:11:54.820
Boardroom: Multiple analysts have said they would not be surprised to see crime, bounce back up, this year.

39
00:11:55.610 --> 00:12:02.269
Boardroom: So, with that context, Berkeley is part of this broader trend, but there are a couple areas where we outperformed.

40
00:12:02.610 --> 00:12:14.030
Boardroom: So motor vehicle thefts fell 48% here, which is nearly double the 27% national decline. Commercial burglaries dropped 31%, versus 18% nationally.

41
00:12:14.080 --> 00:12:29.000
Boardroom: Shootings fell 40%, compared to a 22% drop in gun assaults nationally. And, and we had zero fatal or injury shootings in Berkeley last year, and we'll touch on that more a little bit later, but that's something that we should be proud of as a city and as a community.

42
00:12:29.540 --> 00:12:44.099
Boardroom: And there are categories… oh, so those categories are ones where we deployed specific strategies. So LPRs for vehicle theft, and robbery investigations, the Flex Team for organized, retail crime.

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43
00:12:44.270 --> 00:12:54.170
Boardroom: And a number of partnerships for gun violence prevention. So the… there was this national trend that helped, but our targeted investments pushed us beyond those national trends.

44
00:12:54.730 --> 00:13:03.949
Boardroom: Some numbers did move in the wrong direction, so aggravated assaults were up 16% here, while they declined nationally. Felony sexual assaults rose.

45
00:13:04.180 --> 00:13:21.020
Boardroom: about 20% here, and nationally we're about flat. And hate crimes reached 50, which is their highest number in 5 years here. And so these are areas where we continue to figure out, where we can make a difference in how we can grow partnerships to address those specific trends.

46
00:13:23.170 --> 00:13:31.350
Boardroom: Clearance rates improved across nearly every category, and we exceeded the California state average, in every one. So, a few highlights.

47
00:13:31.460 --> 00:13:38.180
Boardroom: Homicide clearance has been 100% for, at least 5 years. The state average is 64%.

48
00:13:38.700 --> 00:13:42.960
Boardroom: Robbery clearance jumped from 34% to 49%.

49
00:13:43.240 --> 00:13:57.350
Boardroom: And a big part of that is attributed to LPR-supported investigations. Our detectives will tell you that, and we'll cover a little bit more in the technology section. Theft clearances went from 17% to 20%, which is actually

50
00:13:57.560 --> 00:14:00.979
Boardroom: An additional jump from the year prior,

51
00:14:01.400 --> 00:14:05.920
Boardroom: Which reflects when we started our flex team operations addressing retail theft.

52
00:14:06.140 --> 00:14:15.450

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Boardroom: And so these numbers tell us that our investigative tools and our strategies are working. When detectives have better information.

53
00:14:15.590 --> 00:14:17.110
Boardroom: They solve more cases.

54
00:14:17.830 --> 00:14:20.920
Boardroom: And clearance rates aren't just a data point.

55
00:14:21.060 --> 00:14:22.299
Boardroom: Every case…

56
00:14:22.620 --> 00:14:29.539
Boardroom: Represents, justice, and accountability and closure for a member of our community who was, a victim of a crime.

57
00:14:29.880 --> 00:14:32.650
Boardroom: And that's ultimately what drives this work.

58
00:14:37.070 --> 00:14:46.749
Boardroom: Okay, so, note on, on road safety here. So total collisions were down 11%, and injury collisions dropped about the same, the same amount.

59
00:14:46.940 --> 00:14:51.959
Boardroom: Fatal collisions rose from 4 to 5, so we saw an additional fatal collision last year.

60
00:14:52.130 --> 00:14:55.179
Boardroom: It's just a reminder that even with the overall improvement.

61
00:14:55.810 --> 00:14:58.330
Boardroom: Every life lost on our street matters.

62
00:14:58.660 --> 00:15:18.469
Boardroom: The primary collision factors are shown on, the left of this slide. So, as has been the case in previous years, speeding, is the top primary collision factor that we've seen, followed by unsafe turns, starting and backing a DUI, and, yielding to pedestrian violations. So…

63
00:15:18.560 --> 00:15:36.199

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Boardroom: I want to note here the alignment between the violations that, our officers are enforcing for, and the behaviors actually causing collisions. And that's just a reflection of our three-pronged approach to traffic safety. Being a data-driven strategy, gets us to be targeting the behaviors that cause the most harm.

64
00:15:36.740 --> 00:15:56.690
Boardroom: But looking ahead, and focusing on those speeding, primary collision factors, we're acquiring 5 new handheld speed enforcement units, and expanding speed enforcement training, beyond our traffic unit into patrol, which are gonna increase our coverage of these speeding, violations at high collision intersections.

65
00:15:59.890 --> 00:16:07.199
Boardroom: Okay, and accountability is foundational to trust with our community, and we want to be transparent about all this data.

66
00:16:07.400 --> 00:16:16.069
Boardroom: This information, by the way, is available year-round through our Transparency Hub, but we also conduct a thorough evaluation of it each year as a preparation for this report.

67
00:16:16.770 --> 00:16:18.660
Boardroom: So, use of force.

68
00:16:19.030 --> 00:16:37.559
Boardroom: Only 0.46% of calls involved any use of force, and of those, 93% were the lowest levels of force, level 1 or level 2. And only 45 incidents, or 0.07% of all calls, involved a level 3 or level 4 use of force.

69
00:16:38.100 --> 00:16:55.570
Boardroom: We apply multiple tests for bias each year on our, stop data. So our collision demographics closely align with our stop demographics. I, I do want to note, the version of the moving violation to collision demographic chart that was included in the published materials used a format that pulled

70
00:16:55.570 --> 00:17:07.259
Boardroom: maximum percentages across multiple years, which caused the stacked bars to, sum to above 100%, but council members have a corrected version in front of them that just reflects 2025 data.

71
00:17:07.510 --> 00:17:12.960

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Boardroom: The veil of Darkness test, which compares stops in daylight versus dark.

72
00:17:13.119 --> 00:17:24.040
Boardroom: showed consistent pattern across groups. Our yield rate analysis showed a 61% overall, yield rate, and, but with no indications of, of bias.

73
00:17:24.230 --> 00:17:27.980
Boardroom: And our force rate by race was consistent across groups.

74
00:17:28.760 --> 00:17:35.940
Boardroom: On stop data, we had a bit over, 4,500 total stops. 61% of those,

75
00:17:36.250 --> 00:17:42.099
Boardroom: We're not in response to a call for service. 61% search yield rate, like I mentioned.

76
00:17:42.570 --> 00:17:56.250
Boardroom: And according to the most recent RIP report report, which, counts data from the previous year, our yield rate on searches was higher than 93% of all agencies in California.

77
00:17:58.570 --> 00:18:00.960
Boardroom: So, alongside our community,

78
00:18:01.130 --> 00:18:17.719
Boardroom: We take this data seriously, we publish it, we analyze it, we test it, and we hold ourselves accountable to it. And ultimately, it guides our policy decisions and our training priorities, and it highlights the professionalism and dedications of members of this department.

79
00:18:20.540 --> 00:18:38.380
Boardroom: Okay, so here's the takeaway from the numbers. We can't hire fast enough to make changes overnight. We know we need to do more with the resources that we have. We have to make best use of them, and we have to also use data to drive the things that we're addressing. You saw that with the collision data.

80
00:18:38.670 --> 00:18:57.240
Boardroom: I will also say that these changes aren't accidental. And, it's not just because of all these other societal drivers that might be

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affecting things nationally as well. We're seeing improvements beyond that in our city. And that's the result of, I believe, is a result of intentional strategy, and strong partnerships, and a community to working smarter

81
00:18:57.240 --> 00:19:10.949
Boardroom: commitment to working smarter with the resources that we have. And so I… that's intentionally why we have this next section of this, to talk through about those partnerships, because we're seeing real change in those areas where we're able to build those partnerships. And so Captain Durbin's gonna talk a little bit about that.

82
00:19:12.050 --> 00:19:12.820
Boardroom: Cheers.

83
00:19:13.050 --> 00:19:14.290
Boardroom: Thank you, Chief.

84
00:19:14.450 --> 00:19:27.780
Boardroom: So I'm Mike Durbin, I am the Investigations Division Captain overseeing the Detectives and the Traffic Bureau. The next section covers the people, programs, and collaborations that are driving prevention and public safety in Berkeley.

85
00:19:28.150 --> 00:19:33.590
Boardroom: You will notice that there is a common theme in the next four slides I'm going to be covering, and that's partnerships.

86
00:19:34.840 --> 00:19:42.329
Boardroom: So we obviously have to deal with all crime that comes our way, but we just want to spend a moment to discuss how we address gun violence in 2025.

87
00:19:42.590 --> 00:19:45.580
Boardroom: We are particularly proud of the data that's in front of you.

88
00:19:45.910 --> 00:19:50.759
Boardroom: For the first time in over a decade, we had zero fatal or injury shootings last year.

89
00:19:50.880 --> 00:19:53.119
Boardroom: Gun arrests were up 31%.

90

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00:19:53.240 --> 00:19:57.639
Boardroom: We recovered 114 firearms, shootings were down 40%,

91
00:19:58.020 --> 00:20:01.259
Boardroom: Those are the numbers, but let me talk to you about what's actually behind them.

92
00:20:01.390 --> 00:20:07.149
Boardroom: Our approach to gun violence is built on two pillars, enforcement and prevention. They work together.

93
00:20:07.630 --> 00:20:16.570
Boardroom: On the enforcement side, our officers and detectives work under the premise that any investigative lead connecting to violence deserves our utmost attention.

94
00:20:16.790 --> 00:20:36.059
Boardroom: We believe that those who illegally possess weapons, brandish individuals with weapons, or are involved in shootings should be held accountable, regardless of if there is even a victim that comes forward. Therefore, we investigate those crimes with the same resources and seek prosecution with the same intensity as those incidents involving great bodily injury or death.

95
00:20:36.600 --> 00:20:44.079
Boardroom: We do this because we believe that those involved with those crimes today may be involved in future cases of violence or death.

96
00:20:44.720 --> 00:20:58.739
Boardroom: But we don't stop at enforcement. Over the last year, we have increased the use of two prevention resources, gun violence restraining orders and the Gun Violence Intervention and Prevention Program, so also known as GVRO and GVIPP.

97
00:20:59.380 --> 00:21:12.699
Boardroom: GVROs are focused on taking guns out of the hands, bless you, of individuals who have shown they are danger to the public or themselves. This is a civil proceeding that occurs in collaboration, a partnership, with the city attorney's office.

98
00:21:13.050 --> 00:21:19.020
Boardroom: GVIPP is focused on intervening with individuals who are most at risk for being involved in gun violence.

99

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00:21:19.260 --> 00:21:26.719
Boardroom: Through the City Manager's Office, we partner with Live Free, an on-the-ground community-based violence intervention and mediation group.

100
00:21:26.890 --> 00:21:38.210
Boardroom: We make referrals to Live Free knowing that they have the ability to reach people in the community at a different level, additionally connecting them to support services that address the underlying causes of violence.

101
00:21:38.410 --> 00:21:44.469
Boardroom: The overall goal is community support, accountability, and prevention working together.

102
00:21:48.970 --> 00:21:50.430
Boardroom: CSOs in patrol.

103
00:21:50.580 --> 00:22:07.399
Boardroom: The CSO Patrol Program is one of the most successful programs I have ever watched come together in my nearly 25-year career. It stems from the city's broader reimagining public safety initiative in 2020, designed to shift work that doesn't require a sworn officer to a more appropriate resource.

104
00:22:07.490 --> 00:22:10.549
Boardroom: In their first year, we added 3 patrol CSOs.

105
00:22:10.580 --> 00:22:28.910
Boardroom: We put them on the busiest teams, the busiest shifts, with the highest call volume. The result? They handled over 1,500 calls for service. Those were non-emergency calls, routine calls, traffic-related calls. Every one of those calls is a call that previously would have pulled a sworn officer away from higher priority work.

106
00:22:29.230 --> 00:22:42.140
Boardroom: At the same time, even though sworn staffing numbers declined, and were at an all-time low, our response times to those high-priority calls, priority 1, priority 2 calls, they remained the same. So we kept the same level of service.

107
00:22:42.320 --> 00:22:59.589
Boardroom: Looking ahead, we'll be adding two additional CSOs to patrol in 2026. We're expanding the roles of the CSOs into investigations,

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evidence collection, report preparation, and we're continuing to identify work that they can more effectively handle in this manner.

108
00:22:59.940 --> 00:23:12.679
Boardroom: An additional benefit, I wouldn't call it an unintended consequence, but it was a bonus, is that one of the CSOs that we hired in 2025 is off to the academy. So we've struggled to hire police officers, as you're all aware.

109
00:23:12.680 --> 00:23:23.890
Boardroom: But, we know that a lot of people want to work in law enforcement, they want to work for the City of Berkeley, and we think that through the CSO program, if we give them that exposure, that it's creating a pipeline for the next wave of those officers.

110
00:23:28.440 --> 00:23:45.799
Boardroom: The Flex Team. So, as opposed to CSOs, they were assigned to specific days and hours, the Flex team must be exactly that. They must be flexible. Flexible to address the most acute crime problems facing the city. In 2025, the Flex Team focused on organized retail theft.

111
00:23:46.020 --> 00:23:47.039
Boardroom: So the numbers.

112
00:23:47.210 --> 00:23:58.219
Boardroom: We did 23 operations, we made 141 arrests, and 72% of those arrested faced additional criminal charges beyond the retail theft. Things like

113
00:23:58.430 --> 00:24:08.290
Boardroom: And we, we were able to support this through, things we found on the arrestees, like stolen credit cards, burglary tools, so narcotics.

114
00:24:08.290 --> 00:24:20.549
Boardroom: They also had outstanding warrants for very serious crimes, like kidnapping and carjacking. Two of those arrestees also had firearms on them. 42% of those arrested were either on probation or parole at the time.

115
00:24:20.780 --> 00:24:23.830
Boardroom: So, the approach of the Flex team is proactive.

116
00:24:24.060 --> 00:24:34.859

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Boardroom: Rather than responding to just shoplifting calls one by one after the fact, the Flex team used crime data and partnerships with loss prevention teams to catch suspects during the act.

117
00:24:35.020 --> 00:24:38.070
Boardroom: That made a significant difference for prosecution as well.

118
00:24:38.860 --> 00:24:57.109
Boardroom: Based on these results, we're allocating 3 dedicated officer positions to the FLEX team in 2026. At the moment, we just have a sergeant assigned, and we used officers from different teams to supplement that work. This allows the team to run more operations, respond faster to emerging crime trends, and build stronger cases.

119
00:25:04.220 --> 00:25:08.450
Boardroom: Let me see… I did.

120
00:25:09.120 --> 00:25:09.949
Boardroom: Yeah, I'm good.

121
00:25:10.220 --> 00:25:11.100
Boardroom: Alright.

122
00:25:11.670 --> 00:25:14.460
Boardroom: Vision Zero and Traffic Partnership.

123
00:25:15.170 --> 00:25:18.579
Boardroom: Our traffic safety work is built on collaboration and data.

124
00:25:18.910 --> 00:25:29.309
Boardroom: Collaboration consists of city departments working together to holistically address traffic safety through, we call them the three E's, engineering, enforcement, and education.

125
00:25:29.620 --> 00:25:39.920
Boardroom: Those internal City of Berkeley partners included the City's Public Information Team and Public Works Transportation Team, including their, Vision Zero coordinator.

126
00:25:40.100 --> 00:25:44.059
Boardroom: We also work with regional law enforcement partners on the enforcement side.

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127
00:25:44.640 --> 00:25:51.329
Boardroom: The High Intensity Traffic Team, or HIT, brings together law enforcement agencies for joint operations.

128
00:25:51.490 --> 00:25:59.669
Boardroom: They are then dedicated to our most problematic thoroughfares for collisions to look for the leading violations. Arlo already touched on what those violations are.

129
00:25:59.850 --> 00:26:09.370
Boardroom: One February operation last year brought 11 agencies and 17 officers to Berkeley streets and produced 185 citations in 5 hours.

130
00:26:09.670 --> 00:26:22.079
Boardroom: We also continued our Drive Safer, Drive Longer program with 4 classes at the North and South Berkeley Senior Centers, helping aging drivers stay safe and independent. We are going to continue those programs this year.

131
00:26:22.420 --> 00:26:27.839
Boardroom: All of this is informed by the Transparency Hub and our public-facing Traffic Concern Survey.

132
00:26:27.840 --> 00:26:44.340
Boardroom: In 2025, we also began to give feedback on that survey, so the public was able to say, hey, this is the streets or the areas I'm concerned with, and our traffic sergeant and lieutenant would then circle back and say, here's what we did about those concerns. So we're going to continue that in 2026 as well.

133
00:26:44.780 --> 00:26:59.869
Boardroom: Guided by that community input and data, we used OTS grant funding to increase DUI checkpoints and conduct targeted enforcement on the primary collision factors that led to the most serious injury collisions. So the result, also numbers we're very, very proud of.

134
00:26:59.870 --> 00:27:10.690
Boardroom: We had an 11% decrease in total collisions, which I looked over 14 years. That's the only double-digit decrease we've had outside of the two, the two COVID

135
00:27:10.820 --> 00:27:19.159
Boardroom: Years, and we had a 25% drop in serious injury collisions, which is really the goal of, Vision Zero.

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136
00:27:27.080 --> 00:27:28.230
Boardroom: All right.

137
00:27:29.020 --> 00:27:35.469
Boardroom: So, we're going to talk about technology a lot a little bit later tonight, but, I do want to talk a little bit about how we've

138
00:27:35.580 --> 00:27:47.479
Boardroom: in last year did leverage technology as a resource multiplier, how it helped us provide public safety, increase our ability to de-escalate, and also ensure we had the right resources attached to the issues that we were seeing.

139
00:27:48.750 --> 00:27:51.029
Boardroom: So we're gonna talk about ALPRs first.

140
00:27:51.170 --> 00:27:56.949
Boardroom: I've… like Captain Durbin, I've been in this business for a really long time.

141
00:27:57.380 --> 00:27:59.569
Boardroom: Alprs.

142
00:27:59.700 --> 00:28:04.170
Boardroom: No tool that I've experienced in my career has done more for precision-based

143
00:28:04.420 --> 00:28:13.309
Boardroom: policing than the LPRs. It's about having a vehicle that you know is connected to something, and being able to, stop that vehicle.

144
00:28:13.480 --> 00:28:21.379
Boardroom: And that kind of connection means that it's not casting a wide net and just stopping every car that's driving down the street and doing this. It allows you to use

145
00:28:21.420 --> 00:28:35.210
Boardroom: Precise data, hot lists, stolen vehicle information, to guide your stops. And it's human-driven. It's not a computer telling you to make a stop and you just make the stop. Officers are verifying that the plate that they see is a plate that's reported on a hot list, and taking enforcement action on that.

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146
00:28:36.240 --> 00:28:38.600
Boardroom: So we looked at the data that we saw in 2025.

147
00:28:39.020 --> 00:28:49.649
Boardroom: And, you know, I will tell you that a lot of this information, like you see, 58 arrests. That's the times when, predominantly, when an arrest actually happens as a result of an ALRP in a lifetime.

148
00:28:49.850 --> 00:29:05.339
Boardroom: And you see 38.7 vehicles recovered. What you also see is 121 cases supported. What does that mean? It means that an arrest might have happened later, it led to an investigation, it led to verifying an alibi, it created a case history and allowed us to connect cases.

149
00:29:05.340 --> 00:29:16.539
Boardroom: So it's not just, you know, it's oversimplified to suggest that just because you had 58 arrests compared to all your arrests, it's not a tool that's worth happening. It's a tool where we've seen cases where there is no lead.

150
00:29:16.680 --> 00:29:18.180
Boardroom: Except an ALPR hit.

151
00:29:18.290 --> 00:29:27.349
Boardroom: Or where we hit a dead end in our investigation, and then we're able to piece things together from other jurisdictions. And so we talk about what the value is in 3 ways.

152
00:29:27.350 --> 00:29:43.189
Boardroom: One for patrol. Having that real-time alert when a stolen vehicle comes into our city. We've had cases where a vehicle has come in, victimized our city, they're put on a hot list, they leave town, we don't get them that day, and when they come back the next time to repeat offenses, we're able to arrest them.

153
00:29:43.220 --> 00:29:54.119
Boardroom: And also, like I said, helps our investigations. And this is this historical data, looking where a vehicle traveled, to be able to recreate that they were in an area of crime when all these individual crime series happened, to build that case.

154
00:29:54.430 --> 00:29:59.590

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Boardroom: And you can't, talk about ALPR without talking about the value of the regional network.

155
00:29:59.910 --> 00:30:19.820
Boardroom: So, it's, us understanding the, tying together regional cases. We, we all know that, offenders do not respect jurisdictional boundaries. And so the idea that you can understand that something that happened in Oakland is actually connected to something that happened in Berkeley and Hayward, and build those cases, and have chargeable cases, and, and,

156
00:30:20.980 --> 00:30:31.019
Boardroom: combine different pieces of information that allow you to understand who the offenders are and build a case. But it's also, that, a person can be… the suspect can be apprehended.

157
00:30:31.190 --> 00:30:41.619
Boardroom: So when they alert in a different city because there's a felony warrant on a vehicle, then we're able to apprehend that person, instead of having to wait for them to come back to our city to further victimize us. So,

158
00:30:41.920 --> 00:30:50.140
Boardroom: you know, it's looking at all of them together, and, I know we'll talk about this in a lot more detail, but we did want to talk about what we've experienced so far with technology that we are actually leveraging right now.

159
00:30:52.870 --> 00:31:07.329
Boardroom: So, what's next? You know, we'll talk about… I'm gonna hit this really briefly. We'll talk about the real-time information center, how we synthesize data and information in the feeds that we have. We know research has shown us that it increases odds of clearance a lot.

160
00:31:07.430 --> 00:31:26.830
Boardroom: That's what matters. Crime occurs, we're able to clear, we're able to identify the responsible. Our fixed video cameras, again, we, with Council's approval, really focus those in high pedestrian intersections where, a lot of our crime and calls happen, so we can have a, that investigative tool, and real-time awareness.

161
00:31:26.840 --> 00:31:44.980
Boardroom: And the drone is a first responder. We talked about what our staffing levels do, and right now we're maintaining response times, but having information on the level of seriousness of a crime, and knowing what resource to get there, and being able to get a drone resource there

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in less than 2 minutes means a lot for better outcomes, safer outcomes, getting the right resources to a call.

162
00:31:47.570 --> 00:31:50.400
Boardroom: So looking forward, I'm gonna close with this.

163
00:31:50.930 --> 00:31:55.720
Boardroom: When our officers have better tools and better information, outcomes improve.

164
00:31:56.000 --> 00:32:04.270
Boardroom: The gains we showed you today, fewer shootings, fewer robberies, vehicle thefts cut nearly in half, came without adding additional sworn personnel.

165
00:32:05.230 --> 00:32:20.699
Boardroom: CSO program, able to accomplish things without additional swarm personnel. We understand, the challenging staffing situation, the challenging budget situation that we're in. We're looking to ways to do our work smarter and more fiscally responsible. So our priorities for 2026 are clear.

166
00:32:21.520 --> 00:32:29.279
Boardroom: keep sustaining our gun violence efforts through both GRVRS and GVIPP with those kind of partnerships. Expand our CSO program.

167
00:32:29.450 --> 00:32:36.060
Boardroom: And work with our Flex team to be, deployed in a manner consistent with what data's telling us.

168
00:32:36.810 --> 00:32:48.739
Boardroom: Continuing building our sustainable communication center. None of this works without a strong communication center. That is the heart and soul of us getting the right resources out there, too, making sure that our community members are able to report incidents as they're occurring.

169
00:32:49.090 --> 00:33:04.190
Boardroom: And we want to continue, like, one of the primary things we talk about all the time, right, which you hear about me from the most, is not just crime, but collisions, and serious collisions. And so we have to continue those partnerships, keep up our enforcement efforts, but work in partnership with the Vision Zero goals.

170

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00:33:04.450 --> 00:33:13.749
Boardroom: So all of this is about, advancing our technology and our resources and serving our community in a way that makes us a vibrant and thriving community.

171
00:33:13.890 --> 00:33:19.520
Boardroom: And so, you know, thank you for the time, thank you for your patience today, and we're happy to answer any questions that come up.

172
00:33:20.870 --> 00:33:29.250
Boardroom: Thanks, Chief. Thanks, team. Can I see… let me see if, my Councilmember colleagues have questions to start us off.

173
00:33:33.340 --> 00:33:37.040
Boardroom: I know you do. Okay. Councilmember Traika.

174
00:33:39.580 --> 00:33:41.350
Boardroom: Oh, I'm happy to call.

175
00:33:41.840 --> 00:33:52.200
Boardroom: After Councilmember Humbert. No, I'll just start. Okay. Thank you so much for the presentation, I,

176
00:33:53.240 --> 00:33:58.490
Boardroom: I will ask my questions in rapid fire to save time.

177
00:33:58.870 --> 00:34:00.560
Boardroom: I have 6 questions.

178
00:34:00.940 --> 00:34:02.530
Boardroom: Question one.

179
00:34:04.220 --> 00:34:14.530
Boardroom: Can you say more about what's in the data for… around hate crimes? The increase has, been of concern to me.

180
00:34:14.639 --> 00:34:17.969
Boardroom: Question number 2.

181
00:34:18.250 --> 00:34:27.070
Boardroom: Can you remind me, I know you mentioned this last year, but if you could just refresh my memory, the difference between

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182
00:34:27.690 --> 00:34:39.059
Boardroom: Not sustained, exonerated, unfounded, admin-closed, and active complaints in, how, complaints are dispositioned.

183
00:34:39.540 --> 00:34:49.390
Boardroom: Question 3, how does one assess the success of DUI checkpoints?

184
00:34:49.750 --> 00:34:58.760
Boardroom: On the one hand, be successful, I, I assume if they are yielding In more,

185
00:34:58.950 --> 00:35:09.080
Boardroom: stops for DUIs, But then, on the other hand, we actually want to reduce, DUIs and,

186
00:35:09.510 --> 00:35:22.320
Boardroom: Can you speak to, also, with that question, are there mechanisms to… Prevent someone for just

187
00:35:22.550 --> 00:35:25.749
Boardroom: Not using the main intersections.

188
00:35:25.920 --> 00:35:35.519
Boardroom: And especially if they hear that there might be, a DUI, stop at that intersection.

189
00:35:39.060 --> 00:35:51.300
Boardroom: Question 4, in my district, District 4, can you just generally speak to what are the most common types of calls for service that you receive?

190
00:35:51.580 --> 00:35:53.270
Boardroom: Question 5.

191
00:35:54.980 --> 00:36:05.209
Boardroom: What feedback have you received from the community, if any, regarding the Transparency Hub, now that it has been in use for some time?

192
00:36:05.460 --> 00:36:09.379

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Boardroom: And the final question is,

193
00:36:09.570 --> 00:36:24.050
Boardroom: Can you discuss what trends are driving the nearly 20% increase in crimes against society, including nearly a 50% increase in drug equipment violations? Thank you.

194
00:36:24.820 --> 00:36:36.230
Boardroom: Chief, when you… if you wouldn't mind just telling us which question you're responding to, so we can track a little bit, because I know that was a lot at one time. Sure, thank you.

195
00:36:37.390 --> 00:36:48.110
Boardroom: So, a couple things. Let's see. Hate crime, like, what's driving the increase? Like with sexual assaults, that are up, and aggravated assaults, sometimes we're not exactly sure.

196
00:36:48.290 --> 00:37:03.489
Boardroom: What I can tell you is that, many of our offenders in reported hate crimes over the last several years are, those, suffering from mental health crisis. That tells us a little bit about, where these crimes are occurring, mostly in public.

197
00:37:03.540 --> 00:37:16.930
Boardroom: There's, a variety of instances where there we, as you know, we, we capture hate incidents and hate crimes. Primarily, the hate incidents that we see, are flyers and, and, and,

198
00:37:16.930 --> 00:37:24.169
Boardroom: You know, things like that that are coming out where it's on that threshold, but it's really important for us to capture that data and be able to understand it.

199
00:37:24.250 --> 00:37:42.260
Boardroom: We are seeing things trend, in line with what has happened internationally, and we've continued to see that. And, you know, we've, we've done efforts in the past to sort of work with the community, to stand up together with our community, but, those are the things we're kind of immediately seeing. Same thing with…

200
00:37:42.330 --> 00:38:00.629
Boardroom: partnerships around sexual assaults, I know you didn't ask me that, but it's the same thing. It's like, how do we leverage our relationships, knowing who the offenders or the victims are, predominantly, to get the right resources to address that? And so for

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sexual assaults, it's about increasing our relationships and collaboration with the university, if that makes sense, right, around those kinds of crimes.

201
00:38:00.740 --> 00:38:08.670
Boardroom: That's number one. Number two, I will send you, so you have it, the precise, exact definitions of the, allegations.

202
00:38:08.670 --> 00:38:21.419
Boardroom: But, admin close typically happens if a reporting party is no longer interested in proceeding, will lack evidentiary value to move forward, there's lack of prima facie of wrongdoing. You'll see an admin closure in those kinds of instances.

203
00:38:22.360 --> 00:38:40.959
Boardroom: Sustained means, the thing was a violation, and we believe that it occurred. Not sustained, or exonerated is the thing happened, the action happened, but it's not a violation. And then, not sustained is, there's not sufficient evidence to say whether the thing happened or not.

204
00:38:40.960 --> 00:38:47.640
Boardroom: Or, whether it was a violation of policy or not. So just a little bit of a gray area, right?

205
00:38:47.670 --> 00:38:57.789
Boardroom: So that's what you'll see. For that. I'm… Let me grab,

206
00:39:03.770 --> 00:39:12.429
Boardroom: For the success of DUI checkpoints, I will say that, by and large, DUI checkpoints are meant to be an educational tool.

207
00:39:12.840 --> 00:39:21.019
Boardroom: So, if you think about it from that lens, we are going out and we are, touching… touching the community in a way that we don't…

208
00:39:21.180 --> 00:39:22.260
Boardroom: Any other time.

209
00:39:22.670 --> 00:39:39.560
Boardroom: So, as we're… as we pick a high collision or high DUI, trafficked area, and we focus our attention there, everyone who comes through, we're handing them mad flyers and pamphlets, and we're saying, hey, hi, this is who we are, and we're also

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210
00:39:39.560 --> 00:39:45.499
Boardroom: looking for signs and symptoms of impairment. So, that being said, if you look at it as,

211
00:39:45.520 --> 00:39:50.289
Boardroom: Our success is… are the number of people that we have been able to interact with.

212
00:39:50.350 --> 00:39:58.980
Boardroom: provided information and resources to combat the impaired driving. And then the second piece of that is, if… if…

213
00:39:59.960 --> 00:40:13.420
Boardroom: folks are going to avoid the checkpoint, they're going to avoid the checkpoint. We intentionally advertise it, and that being said, we have all kinds of signs up, and if people want to avoid it, they will.

214
00:40:13.420 --> 00:40:25.179
Boardroom: Sometimes there are folks who are, patrolling around the area of a checkpoint, and if they see someone and there's a reason to stop them, they may have a conversation with them, provided there's probable cause for the stop.

215
00:40:25.300 --> 00:40:31.180
Boardroom: To assess whether or not they're impaired. So, that being said, there's really nothing we can do for the folks who are avoiding it.

216
00:40:31.630 --> 00:40:42.370
Boardroom: One more kind of interesting comment we discussed earlier today as a group is we're seeing a lot of DUI serious injury collisions regarding scooters, e-scooters.

217
00:40:42.390 --> 00:40:52.139
Boardroom: And so that's one of those areas, again, you want to really lean into community education. We already are working on some, social media, engagement posts with the community about how to be safe.

218
00:40:52.170 --> 00:41:03.619
Boardroom: And do that. So that's… that's one of those areas that, you've never… we haven't recently seen the rise or DOI making that list, and we think that's driven in part by that, so that's when we lean into… into those efforts.

219

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00:41:04.520 --> 00:41:23.329
Boardroom: Just add one last thing, too. Now we're really staying on this question, but, the, DUI checkpoints are also funded by the Office of Traffic Safety, and they're done in collaboration with DUI-focused patrols as well, so it's really, kind of a broad, program for DUI reductions.

220
00:41:25.180 --> 00:41:44.980
Boardroom: Yeah, I'll take the two, transparency hub questions. So one that calls for service, in the downtown district, District 4, the most common call by far is a disturbance, 415. That could actually end up being a wide range of things, from a fight, or, somebody stopping traffic in the street.

221
00:41:45.060 --> 00:42:03.850
Boardroom: There's also a number of thefts, alarm calls, batteries, so that information is on the Transparency Hub, and leads me to… the biggest piece of feedback that we've gotten on the Transparency Hub that I, I really agree with is, just the, the,

222
00:42:04.020 --> 00:42:09.049
Boardroom: intuitiveness of where to find everything, and in particular, I'm always,

223
00:42:09.400 --> 00:42:29.140
Boardroom: letting people know that there's a second dashboard if you scroll down on the number of the pages, and a lot of questions get answered that way. People are looking for some more customizability or, you know, filters that are available if you scroll down, but it's not obvious that you have to do that. So that's a really concrete thing that we're gonna work on, but,

224
00:42:29.250 --> 00:42:36.710
Boardroom: In general, we've gotten positive feedback, but there's plenty to do in terms of just, like, the user experience.

225
00:42:39.210 --> 00:42:43.430
Boardroom: Okay, I think the last question was, why do we think crimes against society are up?

226
00:42:47.530 --> 00:42:58.559
Boardroom: I don't know exactly. I mean, we can, we can, we can, you know, guess that, maybe our street patrols having… out there more are able to address quality of life issues.

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00:42:58.600 --> 00:43:18.040
Boardroom: We know that some of those cases came out of, some of our flex team approaches, where there was narcotics or other ones that fit into that crime category on Zoom. Sorry, can you explain what Crimes Against Society is? I think some of us are looking at each other. It's the, definition category that's created by NIBRS that, places.

228
00:43:18.040 --> 00:43:25.669
Boardroom: Weapons charges and, Narcotics or drug cases in that section, because it's, like.

229
00:43:26.030 --> 00:43:43.430
Boardroom: I mean, that's how they separate it. It's a crime against society versus an individual person, that affects the quality of life in the community. And the work that we did leaning into gun violence intervention, right, can also drive that number up, right? You see more arrests, or it seems like it's up, it's because we're doing more proactive enforcement around gun seizures.

230
00:43:44.180 --> 00:43:55.749
Boardroom: Sorry, can I just jump in really fast? I believe Councilmember Trey Group asked specifically about the 50% increase… 49% increase in drug equipment violations, which is… Yeah, that was part of it. And I was curious about that too, so I wanted to just…

231
00:43:55.970 --> 00:44:03.869
Boardroom: It seems to be driving the 20% increase, like a 50%, almost a 50% increase in that subcategory.

232
00:44:06.510 --> 00:44:22.629
Boardroom: So, these are, often secondary charges that come from other enforcement activity that we're doing, and this is one of the innovations of NIBRS, is that now those aren't, subsumed in the more serious crime type. They're separated out into their own individual offense, so…

233
00:44:22.630 --> 00:44:34.060
Boardroom: A lot of the work that, we're doing, if it also involves, a narcotics violation, that will get counted there. And that's kind of also an interesting point. We've only been using it since 2024.

234
00:44:34.070 --> 00:44:35.030
Boardroom: So…

235
00:44:35.080 --> 00:44:43.070

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Boardroom: as this cha… this is… it's a significant change in the way we report data. Before, those things would never have risen to the level of, UCR reporting.

236
00:44:43.070 --> 00:44:58.480
Boardroom: And so now we're seeing them, so that's why we're anxious to have 2 or 3 or 5 years' worth of data to really understand whether something is going up or going down, or what that number is. Yeah, so what I'm hearing you say, basically, and obviously more data, more years of data.

237
00:44:58.480 --> 00:45:01.850
Boardroom: Would be, help us assess whether it's a trend.

238
00:45:02.020 --> 00:45:08.620
Boardroom: But… It could be that just because there is better or more

239
00:45:08.880 --> 00:45:20.500
Boardroom: accurate fidelity of the data. It may look like an increase in, crime, but what it actually is is, kind of a combination of…

240
00:45:20.760 --> 00:45:28.989
Boardroom: Your department clearing more cases and being able to more accurately account for the types of crimes.

241
00:45:29.190 --> 00:45:31.129
Boardroom: Yeah, that's… that's certainly possible.

242
00:45:31.770 --> 00:45:39.929
Boardroom: Yeah, I'll just say that's especially true with the lower-level crimes that previously would have just not been reported to the FBI under, like, a hierarchical rule.

243
00:45:41.280 --> 00:45:42.280
Boardroom: Thank you so much.

244
00:45:43.240 --> 00:45:45.440
Boardroom: Thank you. Okay, Councilmember Bartlett.

245
00:45:46.610 --> 00:46:04.359
Boardroom: Thank you, and that was impressive you answered all of his questions. I've never seen that in a meeting before. I have about 9 questions myself, just kidding, just kidding, just 2. So, one is the,

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first off, great work as always, wonderful, you know, amazing to see the work that you do. You're the best.

246
00:46:04.370 --> 00:46:10.490
Boardroom: I see, I'm really enthusiastic about the response times. Very good, really, really, really good.

247
00:46:10.670 --> 00:46:13.890
Boardroom: I'm curious about the, the, the GVIP.

248
00:46:14.370 --> 00:46:29.470
Boardroom: Is that what you call it? The GVIP, GVIP? The, Gun Violence Intervention Prevention Program. This is something, of course, that we've focused on for a long time, and worked it out, and got it funded, and so I'm really curious if you have any information about it beyond, this sort of high-level report.

249
00:46:30.520 --> 00:46:48.210
Boardroom: Yeah, I'd love to talk about that. You know, that was stemmed from you, Councilmember Bartlett, and from Councilmember Taplin, and, you know, we were… we thought we needed to force Berkeley into the ceasefire peg, and then realized that wasn't appropriate for, what our data showed us about the number of shootings we had, that kind of crime.

250
00:46:48.270 --> 00:47:03.950
Boardroom: And that partnership, you know, having Live Free in our community, those deep connections, the relationship that we've been able to build of trust and, working together in collaboration, but also understanding we have individual and, and, different prior… different…

251
00:47:03.950 --> 00:47:17.919
Boardroom: lanes we need to be in at times. That, you know, that is one of the most tremendous programs that I've seen, and I know I've mentioned that to the mayor before. It's just, it's been an incredible tool for our community, where we haven't…

252
00:47:18.000 --> 00:47:29.280
Boardroom: made it just about shootings, but about the aftermath, and, special events or funerals and other types where people are still raw in a community and be able to get the right resources there.

253
00:47:29.910 --> 00:47:36.430
Boardroom: To also humanize the law enforcement response around those spaces, and build those connections has been incredibly meaningful.

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254
00:47:37.860 --> 00:47:40.780
Boardroom: Oh, that's great, thank you, I really appreciate that. Okay, that's it.

255
00:47:41.790 --> 00:47:43.409
Boardroom: Thank you, Councilmember Humbert.

256
00:47:45.950 --> 00:47:49.979
Boardroom: Thank you, Madam Mayor. And, actually, some of Councilmember

257
00:47:50.200 --> 00:48:01.720
Boardroom: Tragoob's questions, were also on my list, so I don't need to challenge you to speed writing exercise or a cognitive test to remember them all.

258
00:48:01.890 --> 00:48:11.530
Boardroom: But I do have one just follow-up question about the hate crimes, reaching a 5-year high. Does the department have any

259
00:48:11.870 --> 00:48:15.369
Boardroom: Planned initiatives or outreach efforts to respond to this?

260
00:48:17.960 --> 00:48:40.470
Boardroom: I think we are still in the space of trying to determine what the best partnerships are. I will tell you that we're very connected to a number of communities that have been affected by the specific types of crimes that have gone up. We routinely interact with organizers for events to make sure that they have the sense of security that feels most appropriate to whatever the venue is. That's ranged from,

261
00:48:40.470 --> 00:48:46.400
Boardroom: Holy days to, extra presents around a certain event, or a certain, celebration.

262
00:48:46.400 --> 00:48:51.440
Boardroom: And, that's the way that we really reflect, what our community needs and wants from us.

263
00:48:51.440 --> 00:49:03.350
Boardroom: So we're always very, aware, and, and dedicated to that work. And so those are the initiatives. I know, in, in years past, we've, we've, we've stood with United, Against Hate, programs.

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264
00:49:03.490 --> 00:49:12.019
Boardroom: And, I started to talk about some of that collaboration. I did some of that early work with, both, Berkeley High School students, the school district, around that.

265
00:49:12.270 --> 00:49:31.150
Boardroom: And, and with our city PIO about, about notice, about information. But it's absolutely someplace I'd love to hear more ideas as a community about how we, speak vocally about… against hate. I think we do a lot of that in our sanctuary City work, right, as a whole, but, would love to collaborate and partner on that more deeply.

266
00:49:31.450 --> 00:49:35.050
Boardroom: Thank you, Chief. That's really helpful and interesting. Thank you.

267
00:49:37.540 --> 00:49:48.630
Boardroom: Just a quick follow-up question about, the drug equipment violation, issue. What does drug equipment violation mean, exactly?

268
00:49:49.340 --> 00:49:52.290
Boardroom: That term.

269
00:49:53.500 --> 00:50:06.499
Boardroom: that a large increase in… in crimes in this category. So, what I would love to do is, now that that's… this seems like a really, question that we want to dig into a little bit more, that particular crime category, let us go back.

270
00:50:06.600 --> 00:50:10.719
Boardroom: Let us dig into, whether we can,

271
00:50:10.740 --> 00:50:28.370
Boardroom: get any data from pre-2024 around that type of arrest, and look at that in comparison, and we're able to do some side-by-side comparisons with some of our other data for historical data to see whether we're seeing a trend increase. Let's give you a broad range. I don't want to name two or three things that are in that category, and they had more.

272
00:50:28.370 --> 00:50:40.689
Boardroom: Let me… let us go back and do the deep research into it, now that we know this is an area of interest to, you know, a handful of council members, and then we'll either put it together on an off-agenda

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member or something like that, and share it back out. Yeah, no, I appreciate that. I just was wondering what…

273
00:50:40.710 --> 00:50:53.990
Boardroom: what a drug equipment was, what, what drug equipment? You would know it if you saw it. Pardon? Okay. It's, it's not, okay. It could be, it could be a pipe, it's used for something, it could be… Okay, yeah. Yeah, thank you.

274
00:50:54.170 --> 00:50:59.769
Boardroom: I said, that makes sense, drug equipment.

275
00:51:00.900 --> 00:51:10.879
Boardroom: What is the, do you think, is the overtime budget impact of operating at 144 officers against 174 authorized?

276
00:51:11.340 --> 00:51:28.639
Boardroom: That's a great question. I will tell you that we dove into our, overtime expenditures and looking at how we're on budget right now, and I will tell you that the biggest place that we're seeing some overages right now are in our communications center, where, as you saw, we're well below a minimum staffing level, and so that's requiring a lot of overtime.

277
00:51:28.640 --> 00:51:33.760
Boardroom: The other place where we see a lot of overtime is the, our overtime around patrol.

278
00:51:33.760 --> 00:51:51.590
Boardroom: And meeting our minimum staffing levels around patrol. One of the things that we're looking to in, we just launched a new timesheet, was in agreement with the union, drop the minimum staffing level on patrol, which means that we'll have to sell less over time to meet that

279
00:51:51.600 --> 00:52:11.289
Boardroom: to meet that coverage. At the same time, we're deploying things like, Focus Bike Patrol, Flex Team. So we have personnel available and on the street, but dedicated to different work, unless they're needed for priority calls. And all of that to say, that's one of the reasons why I think we'll be able to address our current overtime budget and bring it down.

280
00:52:12.280 --> 00:52:25.240
Boardroom: tools like the technology we're going to be talking about later tonight, and with this change in minimum staffing. Again, we're

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going to be assessing these with, with, quality of service, response times, and things like closure rates and things like that.

281
00:52:25.240 --> 00:52:32.340
Boardroom: Right, thank you, thank you. And then, and then finally, and I know this is sometimes included in other reports.

282
00:52:32.360 --> 00:52:43.149
Boardroom: But do we have any additional information on the 5 fatal traffic collisions? How many were DUIs, maybe? How many occurred at night versus the day… versus during the day?

283
00:52:43.460 --> 00:52:45.060
Boardroom: Those kinds of details.

284
00:52:47.330 --> 00:52:58.310
Boardroom: I do know that we've seen increases in motorized scooters and bicycles, but I don't know offhand, but that's something that would be easily looked up. Okay.

285
00:52:58.310 --> 00:53:13.359
Boardroom: And as you're, I'm sure, aware about our Visiting Zero partnership, the rapid response review, so when they occur, we move immediately to a posture of understanding whether it's a, a traffic engineering issue that needs to be resolved that was, that caused that, collision.

286
00:53:13.360 --> 00:53:27.700
Boardroom: And then we look deeper into whether there's criminal matter having to do with DUI or an attentiveness. A lot of these, as you know, are, pedestrian fatalities, and again, DUI and e-scooters have been, has been a predominant thing that we've seen raised up in these.

287
00:53:27.900 --> 00:53:35.360
Boardroom: Thank you very much. Yeah, I really appreciate the existence of the Rapid Response Team. It's a great thing. Thank you, that's all I have.

288
00:53:35.770 --> 00:53:38.729
Boardroom: Thank you, Councilmember. Vice Mayor Gunapara.

289
00:53:39.420 --> 00:53:46.759
Boardroom: Thank you, and thank you for all your work on this and the presentation. I have two quick comments before I go into questions.

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290
00:53:46.870 --> 00:53:57.559
Boardroom: On the slide with the chart with workload per patrol officer, there's no Y-axis, and it'd be really helpful to have, a Y-axis on there so that we can…

291
00:53:57.870 --> 00:54:16.540
Boardroom: understand what the chart. Yeah, thank you. And then on page 30 of the annual report, there's a chart showing the calls for service versus use of force incidents, and just, in my opinion, it would be much more useful to see percent of arrests that use use of force instead of calls for service, or maybe in addition to. So those are just two quick comments.

292
00:54:16.840 --> 00:54:29.409
Boardroom: My first question is around hate crimes. Last year, the police department found that anti-Jewish and anti-LGBTQ plus hate crimes were the main reason for the increase in hate crimes last year. Do you know if those trends have continued?

293
00:54:36.430 --> 00:54:44.150
Boardroom: Yeah, largely the composition of hate crime, anti-haze, anti… Hate, bias, motivation,

294
00:54:44.340 --> 00:54:47.049
Boardroom: Have… have been relatively stable.

295
00:54:47.700 --> 00:54:54.669
Boardroom: And… and so, yeah, there hasn't been, like, a giant shift in the types of crimes we're seeing.

296
00:54:54.950 --> 00:54:59.230
Boardroom: Okay, thanks. I have two questions on ALPRs.

297
00:54:59.580 --> 00:55:04.209
Boardroom: The report notes significant crime

298
00:55:04.220 --> 00:55:23.569
Boardroom: declines across multiple categories in 2025, and the ALPR program was also deployed alongside the Flex team and the CSO team, or program and the GVIPP partnership, which you all noted. Do you distinguish which programs drove which outcomes? Do you know the… how…

299

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00:55:23.650 --> 00:55:25.340
Boardroom: How to separate those, basically?

300
00:55:25.750 --> 00:55:41.459
Boardroom: Yeah, well, so, in general, it's a really difficult thing to prove causation in these interventions, and that's just true across, you know, crime prevention literature in general, and so I want to be careful not to say that we can definitively say X caused Y.

301
00:55:41.520 --> 00:55:53.309
Boardroom: But what I can say is that we know that our robbery detectives have been, and Captain Durbin can speak to this as well, our robbery detectives have been, some of the most productive users of the LPR technology.

302
00:55:53.420 --> 00:56:01.790
Boardroom: They've solved, upwards of 20 cases directly using LPR information, which accounts for a large jump in the clearance rate.

303
00:56:01.930 --> 00:56:03.500
Boardroom: But…

304
00:56:03.800 --> 00:56:11.360
Boardroom: there… it… and then we've seen the scene with the flex team operations and our, increase in clearances on thefts.

305
00:56:11.620 --> 00:56:16.320
Boardroom: You know, we can look at those numbers and see that, you know, they match up in a way that we would expect them to.

306
00:56:17.120 --> 00:56:21.269
Boardroom: And so, these are things that we… I can see.

307
00:56:21.380 --> 00:56:24.080
Boardroom: That the numbers move in the direction that we would expect them to.

308
00:56:24.400 --> 00:56:36.699
Boardroom: Quantitatively, and qualitatively, we're hearing this incredible feedback from our officers and detectives doing the work that these are tools that have fundamentally changed how they do their job. And so, what we have to do…

309

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00:56:36.810 --> 00:56:47.289
Boardroom: is make decisions and assessments based on imperfect information. That's just the predicament that we're in. And everything is pointing towards these just being profoundly helpful tools.

310
00:56:48.540 --> 00:57:04.729
Boardroom: Thank you. A similar question is around robbery clearance, that improved substantially. Were there other changes in detective staffing, or case prioritization, or investigative practices that could have also contributed to the clearance?

311
00:57:05.020 --> 00:57:10.279
Boardroom: I think the main thing is that the numbers dropped, in addition, like, there were fewer robberies, so that diff…

312
00:57:10.910 --> 00:57:15.910
Boardroom: And Mike can speak to the investigative practices, but… Is it on?

313
00:57:16.270 --> 00:57:33.690
Boardroom: So, no, there wasn't a change in the number of detectives, so it makes it easier for us to say that, hey, what did change? And the ALPR, and the thing that wasn't touched on earlier, it's the speed of which they identify the suspects, that which we believe

314
00:57:33.690 --> 00:57:42.920
Boardroom: then prevents further victimization. They're also not throwing out any other investigative leads. Those all still exist, and those are used as additional…

315
00:57:42.950 --> 00:57:53.309
Boardroom: tools to point that we have the right suspect. So they're still doing NIBIN on shell casings, they're still doing area checks for witnesses, looking for stationary video.

316
00:57:53.390 --> 00:57:59.549
Boardroom: touch DNA, all those other things are still happening. They're just getting to the right suspects quicker.

317
00:58:00.500 --> 00:58:02.010
Boardroom: Okay, thanks for that.

318
00:58:03.560 --> 00:58:16.729

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Boardroom: On the officer per shift declining, I'm curious what the department's benchmark for a sustainable workload looks like. What is the correct amount of calls per officer per shift?

319
00:58:16.990 --> 00:58:27.430
Boardroom: So, I don't think that there's a particular benchmark, per se. It's based on the number, the type of call, the amount of time that they spend on it, as well as,

320
00:58:27.430 --> 00:58:38.050
Boardroom: So it's more than just the volume, but what we see in the way that it's trending is that it allows more time for proactivity and offers officers to be,

321
00:58:38.190 --> 00:58:50.759
Boardroom: to spend more time with the community and triaging their cases. There's a qualitative piece to working a case, and if you're a patrol officer and are going from call to call to call because the calls are stacking up.

322
00:58:50.770 --> 00:59:09.769
Boardroom: You have less time to go back and check on a victim and make sure they inventoried their stolen property correctly. You have less time to spend explaining a restraining order process. You have less time to just slow down and empathize what they're experiencing, right? You may have less houses you can hit for a canvas. Like, all the pressure of having so many cases stacking up.

323
00:59:09.860 --> 00:59:24.580
Boardroom: means those things are less possible. Those are… that's work that CSOs can do, it's obviously, but that's the… that's the nature, right, of, like, what's a goal? A goal is that an officer has enough time to do that to give the quality of care we expect in Berkeley.

324
00:59:24.610 --> 00:59:39.839
Boardroom: And a little bit of free time to have downtime, right? That emotional time between… between various challenging calls, right? And some time to engage to support our traffic bureau on the traffic enforcement things that we know make a big difference in safety in our city, also. Like, we're putting a lot into their day.

325
00:59:41.720 --> 00:59:45.800
Boardroom: Thank you. So, for example, in 2023, when there was…

326
00:59:46.130 --> 00:59:50.160

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Boardroom: A 6.3 average calls handled per officer per shift.

327
00:59:50.410 --> 00:59:56.940
Boardroom: it still could theoretically be shorter calls. Like, this, this number… Doesn't tell the full story.

328
00:59:58.040 --> 01:00:06.109
Boardroom: No, because… Yeah, yeah, exactly. It's a proxy, and it's a proxy for the quality of service that the officer's able to provide on those calls.

329
01:00:06.800 --> 01:00:12.230
Boardroom: Okay, thank you. The report…

330
01:00:12.390 --> 01:00:17.489
Boardroom: Proposes measuring the drone success, by four metrics.

331
01:00:17.660 --> 01:00:25.830
Boardroom: I'm curious if the department has identified baseline figures for those metrics, so that Council can evaluate whether the program is working.

332
01:00:26.130 --> 01:00:33.410
Boardroom: Once it launches. Yeah, one great example is response times, looking at response times. We shared with you that for an officer in a car.

333
01:00:33.410 --> 01:00:50.249
Boardroom: Their response times are around 7 minutes. We see what happens in the region, what happens nationally, we know that's a little bit ahead of what you might see with regional partners. Especially with higher or lower priority calls, you'll see numbers from Oakland that are in the hours, where it might take us 40 minutes or 30 minutes to get to something.

334
01:00:50.250 --> 01:00:59.949
Boardroom: What, we would then use as a benchmark, right, is once we launch DFR, we know that, jurisdictions of our similar size are reporting about

335
01:00:59.950 --> 01:01:07.799
Boardroom: 2 minutes to get to any call. Ones that are in larger jurisdictions might say 3 or 4. And for me, the question is,

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336
01:01:08.550 --> 01:01:16.890
Boardroom: you want to look at speed that they can arrive to then get the right resources to a call. And so, setting a benchmark about how many minutes it is.

337
01:01:17.220 --> 01:01:36.340
Boardroom: A little challenging, because it depends on the jurisdiction size, right? Unless you only compare, like, jurisdictions. But for me, the bigger drivers are going to be things like, how many calls did we never send personnel to, so that we had free time available? How many calls were they able to clear like that? How many calls did they go to that we could step down, or needed to step up our response?

338
01:01:36.340 --> 01:01:52.700
Boardroom: Right? That tells us whether that's giving us actionable evidence, you know, or, calls that we sent a different resource. Fire department went instead of the police, or a mobile crisis went out instead. Right? So, until we start to really flesh out what Council's desire is about having this tool, and the kind of calls we go to.

339
01:01:52.700 --> 01:02:05.740
Boardroom: then that's when we'll be able to set some benchmarks of expectations about service levels and things like that. What we're sharing are what we hear is kind of some common ways that they assess programs and the efficiency and effectiveness of programs are some of the things we've risen.

340
01:02:07.860 --> 01:02:15.139
Boardroom: Thank you. I want to ask a little bit about the use of force and accountability piece.

341
01:02:15.400 --> 01:02:24.530
Boardroom: The report notes two sustained findings of misconduct out of 10 completed investigations. Are those… the consequences of those cases public? Is that information public?

342
01:02:24.710 --> 01:02:26.430
Boardroom: No, they're not their personnel records.

343
01:02:27.380 --> 01:02:33.739
Boardroom: So the outcome of those… the outcome that I can share is that there was an allegation and there was a sustained finding.

344
01:02:34.580 --> 01:02:45.110

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Boardroom: Okay, thank you. I'm also curious, because there's no mention of it in the report, of what efforts did the police department, partner with the PAB on?

345
01:02:45.680 --> 01:02:47.499
Boardroom: Throughout… throughout the year.

346
01:02:49.280 --> 01:02:51.999
Boardroom: Related to the complaints, or as a whole?

347
01:02:52.190 --> 01:03:01.189
Boardroom: Generally. Yeah, so, PAB has regular meetings, our departmental liaison, Detective Chief, Detective… Deputy Chief Tatewell.

348
01:03:01.190 --> 01:03:17.740
Boardroom: Or myself, or President, we always have a watch commander at those meetings to provide, answers about procedural questions, policy-related questions. We regularly meet, I, meet regularly with the Director of Police Accountability, on a monthly basis. We're talking about a,

349
01:03:17.740 --> 01:03:31.809
Boardroom: a, having a regular meeting with the PAB chair, the DPA, once seated, and, our office as well. We regularly participate either at the deputy chief level, or with the sergeant Policy, at subcommittee meetings.

350
01:03:32.140 --> 01:03:40.019
Boardroom: On policy work, they come over to our office, and we go through and walk through the transparency Hub, and look through policies, and talk through policies together.

351
01:03:40.020 --> 01:03:59.099
Boardroom: We attend, meetings co-jointly sometimes and things like that. I know, they use some of our data and our report, they report out in theirs. There's a number of places, both in our policy and by ordinance, we share reports over to the PAB, or they review our things before we submit them to Council or move forward on processes.

352
01:03:59.130 --> 01:04:01.780
Boardroom: So it's a lot of work,

353
01:04:01.880 --> 01:04:16.010
Boardroom: It's not laid out here. We had a really clear focus on, like, reporting the crime data and things like that. I didn't lay that out in

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detail here, but certainly if, it's of the Council's interest, we can add a section on that, in years follow about the ways we've collaborated.

354
01:04:16.530 --> 01:04:24.910
Boardroom: Thank you, thank you. I just think it's helpful for the community to know how the PAB and the police department interact, and what they work together on.

355
01:04:25.130 --> 01:04:36.099
Boardroom: And my last question is, I'm… because I don't fully understand it, can you go into a little more detail about the anatomy of the complaint process, and how…

356
01:04:36.460 --> 01:04:38.750
Boardroom: What that process looks like.

357
01:04:39.010 --> 01:04:56.550
Boardroom: And what the timeline looks like, also? Sure, so there's some parallel processes that occur, and that's laid out in the charter. But, if there, if there is an allegation of, wrongdoing by a community member, then, if it comes first to the department.

358
01:04:56.630 --> 01:05:05.200
Boardroom: then we institute and begin an investigation. It starts the clock running as soon as the city becomes aware. Complaints can also come directly to, the, the PAP.

359
01:05:05.640 --> 01:05:17.629
Boardroom: If they come to the PAB, they notice us, we run a parallel investigation. So there's never a point in time where we are not running an IA if a PAB investigation is occurring.

360
01:05:17.910 --> 01:05:35.219
Boardroom: If, if and when we receive a, a complaint, we, advise the complainant, like, hey, there's this only separate process that you can get involved in with the PAB. And so there's communication about how to get, how to get connected into that process. That starts the timelines running.

361
01:05:35.310 --> 01:05:51.310
Boardroom: based on the information we get from a complainant, that sets what the allegations are in a complaint, and who the subject officers, if they're known, are, or, you know, on an individual call. That sets record preservation as soon as that occurs, so we know an incident is occurring, we'll preserve all records related to it.

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362
01:05:51.310 --> 01:06:01.939
Boardroom: And, then we start a process. There's a, 240-day time limit on the process from when a, misconduct is, is, the city is notified of it. That could be either the past.

363
01:06:02.130 --> 01:06:15.229
Boardroom: or the police department is notified of it, that starts the clock. That can be told for certain things, like an active criminal case, and other things. There's a government code sets out when that can be told. So sometimes you'll see things extend beyond…

364
01:06:15.240 --> 01:06:26.670
Boardroom: The, 240, depending on, depending on that. You will see sometimes at the end of the year where we have cases that are active, and that may be cases that came in in October, November, that are still on this, like, sick, this, like, long clock.

365
01:06:26.870 --> 01:06:38.999
Boardroom: And, yeah, and that's… happy to talk more about it if you want, or maybe, maybe, we can meet and go through that if you want to hear more, more detail. That's really helpful. Thank you so much. Those are all my questions.

366
01:06:39.530 --> 01:06:57.770
Boardroom: Thanks, thanks for your questions. Councilmember Blackaby? Thanks, Madam Mayor. First, just Chief Lewis, Deputy Chief Tate, Captain Durbin, Mr. Mallenberg, thank you for the presentation, thank you for your report, and more importantly, thank you for the work you do every day to keep the community safe. We really appreciate it, and thank you for your service.

367
01:06:57.910 --> 01:07:07.609
Boardroom: Just a couple of questions. A lot of my questions have been asked, not surprisingly, so I'll just touch on a couple things. On the calls for service number, you'd mention, and again, if…

368
01:07:07.750 --> 01:07:20.980
Boardroom: I had to step out for a minute, so I apologize if you already addressed this, I can get it later, but you mentioned that the 911 call volume's sort of been steadily increasing. Do we have any kind of conjecture as to why that's happening? Anything we can, you know…

369
01:07:21.650 --> 01:07:27.319

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Boardroom: Do you know what's going on there? You know, from 12,000 in 2021 to 16,000 in 2025.

370
01:07:28.960 --> 01:07:35.270
Boardroom: just… It is an interesting trend that, you know, callers are getting more,

371
01:07:35.950 --> 01:07:43.300
Boardroom: are calling with more urgent calls, and then calling with fewer non-emergency calls. Yeah, I don't have a…

372
01:07:43.430 --> 01:07:53.350
Boardroom: great explanation for exactly why that's occurring, but it's certainly a trend that we've seen over a couple of years now. Okay. Yeah, and I was gonna… the second question was gonna be, and then the downward trend on…

373
01:07:53.400 --> 01:08:10.669
Boardroom: non-emergency calls, which is great. Do those also get routed through the communication center? So, it's at least less… a little less traffic on that side. I also wonder if there's more self-service through the website, if there's other tools that people are just… you know, things where they might otherwise be calling for information they're actually getting themselves?

374
01:08:10.910 --> 01:08:30.369
Boardroom: It's possible, with some of the changes to the… that we've seen to the online services and portals recently, in the city. We do receive calls sometimes to the police department about something that's outside of our department. That's one of the reasons why we're exploring an AI agent that would take those non-emergency calls and better direct them and route them in that manner, so that we could then assess

375
01:08:30.370 --> 01:08:37.010
Boardroom: Whether we were able to change our staffing level in the communications center based on a reduction of calls with that, with that support. Yeah, makes sense.

376
01:08:37.010 --> 01:08:43.820
Boardroom: And then on the crime highlights, we mentioned good news on the fewer shootings, fewer robberies, fewer vehicle thefts.

377
01:08:43.819 --> 01:08:50.930
Boardroom: Fewer burglaries, but more… a 23% increase on sexual assaults, 16% increase on aggravated assaults.

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378
01:08:51.689 --> 01:09:04.209
Boardroom: How do you look at that data and then think about deploying resources? Like, what do you do? Do you do things… how do you respond to that and account for that to sort of, over the next year, try and stem that tide? How do you think about that?

379
01:09:05.960 --> 01:09:17.720
Boardroom: Well, for aggravated assaults specifically, we've taken a look at those geographically and seen that a high concentration of those occur, in our business districts.

380
01:09:17.740 --> 01:09:35.529
Boardroom: Especially downtown, and so we, we have a bike team that responds primarily, to, to calls, in that area, but we're looking at, you know, some of these other tools that we're talking about, that can help us, get eyes on those occurrences earlier and, help resolve those situations,

381
01:09:35.529 --> 01:09:57.639
Boardroom: earlier. It's not a point to be lost. The reason why we requested the fixed cameras in those areas where those things were happening is because we know having video evidence is something that's critical for the DA when they're considering charging. It's critical for us when we're identifying responsible parties and seeing… there's a big difference when someone tells you something happens and when you can see it happen. Yeah. Right? And so, that's…

382
01:09:57.640 --> 01:10:14.939
Boardroom: that's why we're anxious to get those tools and those technologies, you know, active in our business communities. Okay. Because that was, yeah, one of the questions I was going to ask, we were talking about ALPRs in particular, and looking at the connection to clearance rates. That's one of the things I was going to ask is, are there other places… so, ALPRs to robbery,

383
01:10:15.030 --> 01:10:21.670
Boardroom: Are there other places where we could see the value of that? We talked about, a little bit about auto theft, clearly, but…

384
01:10:21.700 --> 01:10:24.329
Boardroom: Places where the technology might, if a

385
01:10:24.330 --> 01:10:48.469

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Boardroom: approved might start to show up in the numbers? I think it could show up in the aggravated assaults, and it could show up in the sexual assault, especially who we know are most openly often victimized, right, as people that are at bars or attending, you know, in that environment. There's video evidence, and having that and being able to build chargeable cases is critical. We absolutely would expect to see there to be some kind of measurable impact in that area. Cool. One thing for a future report, just a little asterisk.

386
01:10:48.470 --> 01:10:56.890
Boardroom: because we're talking about impact of ALPR, 58 arrests, another 121 supported cases. I also wonder if there's something about

387
01:10:56.890 --> 01:11:14.139
Boardroom: improved percentage of, like, successful prosecutions or something, to your point, because we have better data, better documentation, more likely that not only is an arrest made, but there's some sort of adjudication after the arrest, as opposed to other things where we don't have the same information. You still may make an arrest, but it may be hard to actually

388
01:11:14.350 --> 01:11:33.899
Boardroom: It can be a little challenging, it could depend on focus of a district attorney who's in, and whether they have a certain initiative that they're working on. It can also be that linking that up, we don't have the same, data access in the way that we could cleanly say. You just follow a case, and you know you'd have to manually go in and enter an offender number, an ascend number, and be able to track back

389
01:11:33.980 --> 01:11:48.290
Boardroom: and see what happens. Some things are resolved as probation or parole violations instead of a criminal case, and some things languish in the court for a really long time, and so it makes it a little challenging, but certainly it does matter. And again, we are one piece in this, in the justice system.

390
01:11:48.290 --> 01:12:00.809
Boardroom: And my responsibility is to ensure that we're doing… providing direct public safety, and that we're building cases that are based on actionable evidence, to bring to the DA. What happens after that, we have a little less control over. Makes sense. Okay.

391
01:12:01.030 --> 01:12:12.630
Boardroom: On the dispatch, we talked… I know we've talked about in previous years, too, how that… that is a challenge, that's a particular area where we do have constraints. I, I like this idea of thinking about how to, in a,

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392
01:12:12.800 --> 01:12:31.169
Boardroom: relatively risk-free way using the AI to sort of help with non-emergency calls, because I think that could be a real important factor there. But it feels like, you know, we're recruiting, and then also seeing some attrition, and it's, you know, it's hard to sort of maintain staffing there. Any thoughts about… is there a retention thing that…

393
01:12:31.220 --> 01:12:33.859
Boardroom: Do you need Council's support. How else can we…

394
01:12:33.860 --> 01:12:58.740
Boardroom: Yeah, there's a couple big things going on. One is the infrastructure and facilities improvements that are needed in there. That makes it a more welcoming and inviting place for people to stay and be well in. The other thing is the changes in critical, right, which you saw, which meant we brought people that were more likely to have the capacity for the job in through the testing process early. We are moving very close to scripted dispatching, launching both for police and

395
01:12:58.740 --> 01:13:09.529
Boardroom: fire. So one of the reasons why our attrition rate is what it is, is it's a hard program. It's a hard job, it's hard to get through the training program. And so we think we'll see really, a great improvement

396
01:13:09.530 --> 01:13:21.540
Boardroom: once we get those, those, those things up and running. So we will need, you know, funding support, for a lot of these projects moving forward, as we then assess, like, what, what it looks like to have this. And, you know.

397
01:13:21.650 --> 01:13:34.440
Boardroom: Making measurable impacts on our staffing level in the communications center. One, it would significantly drive down our overtime costs. Two, it would significantly improve the quality of life for our dispatchers who have been working in a constrained environment for a really long time.

398
01:13:35.040 --> 01:13:39.819
Boardroom: Last question, just, it picks up a little bit on where Councilmember Lunapar was asking about some of the…

399
01:13:39.830 --> 01:13:56.120

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Boardroom: internal affairs, the stats on complaints and closed complaints. I remember this from last year and didn't bring it up, but it, kind of strikes me again this year, that just given the calendar, like, you get much better data on, all the crime data from the previous year, because there's finality to all those numbers.

400
01:13:56.120 --> 01:14:10.549
Boardroom: The trick, obviously, is with a lot of the 2025 data on complaints, and kind of where are we in the process, there's always a large number of active cases that haven't been resolved by the time that you complete the report. I wonder if, for future years, it's worth not just having the previous year, but

401
01:14:10.600 --> 01:14:21.290
Boardroom: Two years ago, in terms of having more accurates, because you'd actually know, probably, better disposition with 100% accuracy of everything at that point, where now we only get partial, because

402
01:14:21.290 --> 01:14:30.420
Boardroom: things are still running their course. Right, that's correct, and and actually, what I think we might explore is having a space on the Transparency Hub, because we report this information publicly, what we can

403
01:14:30.420 --> 01:14:54.429
Boardroom: report publicly, but it could… it's a living thing, right? I have to, talk to Arlo about what we can make to automated, because I'm trying to also avoid creating new staff work, but certainly looking for ways to be able to report so you can kind of track ongoing outcomes, I think would be… could be very useful, and maybe… or maybe the simple cure is just to do two years at a time, so that we capture all the ones that happened the year prior.

404
01:14:54.430 --> 01:14:58.190
Boardroom: Or something like that, for that. Okay, great, that's all of my questions. Thanks again.

405
01:15:01.180 --> 01:15:03.560
Boardroom: Can we go to Councilmember O'Keefe?

406
01:15:05.020 --> 01:15:24.100
Boardroom: Thank you. I really want to thank my colleagues for such thoughtful questions. This is really a lot of things I hadn't thought of, a couple things, questions I had that were answered, but just really great all around. There is one area I do have some, lingering curiosity

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about, which is the Crimes Against Society section. I acknowledge you already,

407
01:15:24.600 --> 01:15:34.859
Boardroom: said that, he would look into the drug equipment violations and see… look… tear that… pull that apart more and see what that's about, so I appreciate that, I'm interested in that.

408
01:15:34.980 --> 01:15:52.339
Boardroom: But in general, this category is concerning to me, because I view most of these offenses as sort of, like, none of your business crimes. That's just a personal philosophy. I'm glad to see that gambling and prostitution were zero. That's, that's good, and I'm assuming the pornography is…

409
01:15:53.000 --> 01:15:56.940
Boardroom: Material that was objectively harmful in some way.

410
01:15:57.310 --> 01:16:07.210
Boardroom: I'm just assuming that. I mean, that's something involving children or something like that. See, that's what the statute requires. Right, right. It's not the… it's not illegal otherwise, right? So I just… I'm gonna give the benefit of the doubt on that one.

411
01:16:07.240 --> 01:16:22.030
Boardroom: And then, and weapons, sure. I guess I am still curious, and if you have to come back with this information, that's okay, but if you could just help us understand what is the department's philosophy around drug crimes by themselves?

412
01:16:22.330 --> 01:16:27.800
Boardroom: Like, if an officer is driving down the street and they see somebody in their car with the engine off.

413
01:16:28.170 --> 01:16:44.520
Boardroom: just smoking something. Do they… are they instructed to stop and do something to the person, or should they… do they look the other way? Like, sort of, by itself, the only crime that is being committed is a drug crime. Is there a department philosophy around that?

414
01:16:44.590 --> 01:17:02.220
Boardroom: Well, I do just want to clarify that these counts, are not separate incidents, necessarily. So a single incident might involve a more serious charge, as well as a drug charge, and so that will get

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separated out into these numbers, so it's… That's what I was hoping, like, if somebody's…

415
01:17:02.280 --> 01:17:12.040
Boardroom: doing, you know, acting violently and had some methamphetamine, yes, it would make sense to, report that. But do any of these represent

416
01:17:12.140 --> 01:17:15.019
Boardroom: Just the act of doing drugs by themselves.

417
01:17:15.230 --> 01:17:33.280
Boardroom: I mean, that question is probably not something you can answer, but in general, is that something that happens in Berkeley? I mean, it's possible it could happen. You have to remember also that driving while under the influence of any drug, right, creates risk for our community, and sometimes the combination of alcohol and drugs can make it even worse.

418
01:17:33.330 --> 01:17:40.420
Boardroom: And I think that to Arlo's great point, we arrest somebody for something, and they have paraphernalia.

419
01:17:40.420 --> 01:17:53.510
Boardroom: and they have usable amounts, right, then you start to stack things. So it's not like you can just look at this number and say, 300 times you went out and did that kind of enforcement. We don't have a, let's go out and arrest people that are smoking marijuana.

420
01:17:54.220 --> 01:18:10.810
Boardroom: policy or practice as a department. Typically, when you see something like that, it's a usable sales amount quantity, you know, using in a way that's causing this other risk, DUI, being arrested for a different charge, and that's something else that you have.

421
01:18:10.810 --> 01:18:23.440
Boardroom: Right? Our officers are also obligated if, you know, a felony scheduled type of drug is found in someone's possession, to take enforcement action, or to document that, right? We can't just, you know.

422
01:18:23.440 --> 01:18:31.389
Boardroom: put in the gutter or something, right? So we have some… there's some spaces where if you engage with you for that reason, we have to take that kind of action. And I… and just to be clear,

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423
01:18:31.390 --> 01:18:52.780
Boardroom: This is not a category of offenses that we identified as things that matter to us, and that's why we've risen it up with our Group A offenses. We're reporting on the structure with which the National Collection of Crime Data has collected. This is one of the categories in some of the things… Correct. It's not us saying, hey, here's the things that really matter to us that we're dealing with. Right. I just may be curious about…

424
01:18:52.780 --> 01:18:55.470
Boardroom: How about that, and I assume drug sales…

425
01:18:55.880 --> 01:19:03.710
Boardroom: is part of the drug narcotics violations. Somebody who's clearly dealing drugs, that would fall under that. Okay, thank you very much.

426
01:19:05.630 --> 01:19:23.490
Boardroom: I remember moving to Berkeley, and people saying, like, they don't ever stop you for smoking weed on the streets, and… because I would walk around and smell weed everywhere, and I was like, oh, well, clearly, not an issue here. So, anyway, I do have some questions. I'm sorry, I was amused by the line of questioning.

427
01:19:23.490 --> 01:19:31.010
Boardroom: So, I'm curious to ask about the recruitment efforts, if you could speak to… I mean, this seems like it's been very successful in terms of getting interest.

428
01:19:31.010 --> 01:19:41.680
Boardroom: Have you seen that translate over to people actually applying, and what did you find was most successful? Was that job fairs, or direct connections with organizations, or what did that look like?

429
01:19:42.700 --> 01:19:57.779
Boardroom: So, I think our partnership with All Star Recruiting has been huge. With our virtual recruiting events, we're able to, show up and give individuals an, sort of an introduction to the department, and we have officers, detectives.

430
01:19:57.780 --> 01:20:19.539
Boardroom: special units available to sort of talk through, some of the exciting things happening at our department and opportunities for individuals. So, with that, I think, leaning into All-Star and those events have been… have been very successful. We are doing some of the

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recruiting fairs. We're a little more selective with the ones that, we go to, just because

431
01:20:19.540 --> 01:20:32.929
Boardroom: We haven't, in the past necessarily seen, a huge return on investment for those. So we certainly, appreciate doing the ones locally, in any way that we can expand our diversity.

432
01:20:34.720 --> 01:20:38.679
Boardroom: Thank you. And then, calls for service, I think that you've…

433
01:20:38.830 --> 01:20:46.829
Boardroom: address this, the automated service, that's the… is it… does it involve AI? I know that Councilmember Blackbee asked a similar question.

434
01:20:48.050 --> 01:21:06.810
Boardroom: Are you talking about the dispatch tool? Yeah, so it's basically like a phone tree, but it has some artificial intelligence built into it, so it can direct you, based on what you're saying to a call, and there's places where you can opt out. We're still in reviewing vendors and looking at those to see what makes the most sense.

435
01:21:08.300 --> 01:21:09.430
Boardroom: Thank you.

436
01:21:09.850 --> 01:21:20.189
Boardroom: And then, Arlo, you mentioned a potential increase in crime that might be expected. Can you speak to why research… why researchers think that might be?

437
01:21:20.470 --> 01:21:23.680
Boardroom: Yeah, so… there's…

438
01:21:24.290 --> 01:21:31.240
Boardroom: So the last two years, we've seen the biggest drops in crimes that we've essentially ever seen on a national level, right?

439
01:21:31.420 --> 01:21:38.290
Boardroom: And so… It's really difficult to explain a trend like that with a really simple explanation, but

440
01:21:38.390 --> 01:21:42.079

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Boardroom: You know, the best researchers in this space,

441
01:21:42.640 --> 01:21:45.879
Boardroom: I've noted that that crime drop has,

442
01:21:46.650 --> 01:21:55.790
Boardroom: matched closely the investments that came from the COVA era, federal funding, that came into local governments and funded all types of services.

443
01:21:55.920 --> 01:22:04.909
Boardroom: In, in public safety technology, and as those things have been adopted, and implemented, crime rates have, have dropped. So,

444
01:22:05.050 --> 01:22:17.220
Boardroom: there's nothing definitive on that, but certainly the best theories are kind of tied to those additional investments that were made, as well as the, you know, lessening of the COVID disruptions.

445
01:22:17.670 --> 01:22:20.230
Boardroom: And so, as that federal funding runs out.

446
01:22:20.380 --> 01:22:23.440
Boardroom: It's, it's possible that,

447
01:22:23.820 --> 01:22:32.309
Boardroom: Those crime rates might come back up accordingly, depending on how, you know, communities continue to invest in those initiatives.

448
01:22:32.880 --> 01:22:39.480
Boardroom: Thank you, that's really helpful. And could you speak to, going to ALPR systems,

449
01:22:40.030 --> 01:22:44.839
Boardroom: Were there any false positive hits generated in the ALPR system alerts?

450
01:22:45.400 --> 01:22:49.839
Boardroom: Like, where the officers would review it, and then it didn't match up.

451
01:22:50.010 --> 01:22:55.380

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Boardroom: With the license plate that the system had said it would… Well, it,

452
01:22:56.230 --> 01:23:02.049
Boardroom: So not… so no. And I'll tell you why. It's because they don't take… they don't take that next step of.

453
01:23:02.300 --> 01:23:03.320
Boardroom: Acting on that.

454
01:23:03.510 --> 01:23:14.120
Boardroom: And if it doesn't match. And it can be as simple as, when they went by the plate reader, they thought it was SAM123, and the officer gets closer and realizes, because of lighting, it was actually SAM128.

455
01:23:14.360 --> 01:23:20.089
Boardroom: And so they don't take enforcement action. And so, in the outcomes drop-down.

456
01:23:21.270 --> 01:23:30.570
Boardroom: There's… it doesn't… there's not a space to capture that, because you're not… you don't engage in the stop. In the same way that if you didn't go and find the car, you wouldn't engage in the stop.

457
01:23:30.700 --> 01:23:35.240
Boardroom: Right, no, that makes sense. I guess I was curious to know… I imagine we don't track that.

458
01:23:35.570 --> 01:23:38.180
Boardroom: If it, if it isn't correct.

459
01:23:38.490 --> 01:23:46.339
Boardroom: Is that right? We don't track that? Yeah, that's correct, just for precisely the reason that the Chief mentioned, is that there would be nothing to report at that point.

460
01:23:47.100 --> 01:23:54.720
Boardroom: It just… it goes to how, how, accurate the ALPRs are. That's, I think, why I was interested in that question.

461
01:23:54.980 --> 01:24:04.210

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Boardroom: And then you mentioned that you're deepening your collaborations with Vision Zero stakeholders, which is really exciting. Could you speak more to what that looks like?

462
01:24:05.140 --> 01:24:06.260
Boardroom: Well, I'll…

463
01:24:06.290 --> 01:24:25.959
Boardroom: I'll talk about our interdepartmental collaborations, and Captain Durbin can talk a little bit about our traffic enforcement, but… So, yeah, we have, now regular meetings as part of a regular, Vision Zero working group that include, myself, our, traffic lieutenant, our traffic analyst, so we are really deeply engaged in,

464
01:24:26.380 --> 01:24:30.180
Boardroom: everything that's happening in public works, around Vision Zero.

465
01:24:30.310 --> 01:24:47.880
Boardroom: In, in traffic engineering, and we're giving our feedback, they're giving us feedback, and so we are, are finding additional ways to, to be a part of all the traffic safety initiatives in… that are happening in the city that kind of revolve around that Vision Zero, crew.

466
01:24:48.540 --> 01:24:50.700
Boardroom: We're, you know, a part of that, fully.

467
01:24:51.140 --> 01:24:55.239
Boardroom: And before Mike talks, another great example, too, is the daylighting efforts.

468
01:24:55.240 --> 01:25:12.290
Boardroom: Right? That was… that's a Vision Zero initiative that helps safety in streets. When that rolled out, there was a lot of meetings with the police department on how we would notice first, and when we would move to enforcement, and working in partnership with when the curbs would be painting, all of that work was done in that kind of partnership, you know, directly related to Vision Zero.

469
01:25:13.480 --> 01:25:32.049
Boardroom: And I'll just add that the traffic lieutenant now regularly meets with the Vision Zero coordinator. We were looking at it, we were like, why are we only talking when we have a serious injury collision or a fatal collision? You're doing construction projects all around the

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city, major ones, major thoroughfares. How can we support you? What enforcement can we be doing?

470
01:25:32.050 --> 01:25:44.839
Boardroom: What should we be informing and educating the public on to make the streets safer in addition to engineer… in addition to engineering? So that's, that's a regular meeting. I don't know how frequently they meet, but I know it's, it's a regular meeting between those two.

471
01:25:45.780 --> 01:25:53.200
Boardroom: Thank you, yeah, I was particularly concerned by this University Avenue and West Frontage total collisions 15.

472
01:25:53.300 --> 01:25:59.330
Boardroom: And I think that there's some work that's being done there on that intersection. I don't know if someone could speak to that a little more.

473
01:26:01.160 --> 01:26:02.790
Boardroom: items. Okay.

474
01:26:03.140 --> 01:26:09.629
Boardroom: Alright, maybe not one that you talked about in your, in your meetings, that's okay, no worries. I'll follow up about that one later.

475
01:26:09.700 --> 01:26:28.800
Boardroom: And then the Drive Safer, Drive Longer classes for our older adult drivers, I think that's super great, and I know I asked a lot of questions about this last year, but could you speak to a little bit about how the attendance has been looking for those classes, and, how we can connect folks to those classes? Are they going well?

476
01:26:29.240 --> 01:26:33.170
Boardroom: They're going really well. Their attendance is ticking up. Our…

477
01:26:33.650 --> 01:26:36.899
Boardroom: We… there's been a little lull because our,

478
01:26:37.000 --> 01:26:53.370
Boardroom: traffic analyst, we just got a new traffic analyst. That class was conducted by the previous traffic analyst, who's now rotated back to

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patrol. But, the new analyst knows that's part of his responsibility. We will be doing them quarterly, but last year in 2025, they did take up

479
01:26:53.370 --> 01:26:58.690
Boardroom: in attendance, and the city's PIO has helped us get the word out on that.

480
01:27:00.140 --> 01:27:02.029
Boardroom: What, what was attendance like?

481
01:27:03.770 --> 01:27:14.470
Boardroom: I don't want to just throw a number out there. You're not sure yet? Okay, so we can… 25 to 30 per class? Oh, that's good. I think last year was around 20 or something. Better towards the latter ones, though.

482
01:27:14.630 --> 01:27:28.489
Boardroom: That's good. Okay, great. Thank you. We'll follow up with you, because I'm really interested in helping the community know more about those classes. I think, they're really important, and we also want to destigmatize this, like, training and asking for help earlier.

483
01:27:28.490 --> 01:27:39.480
Boardroom: Okay, and then the other… my last question is about our early intervention system. I know that that was something we talked about last year, and I didn't see it mentioned in this year's report. Could you speak to what's happening with that?

484
01:27:39.480 --> 01:27:46.500
Boardroom: Yeah, yeah, that's a really exciting, program that we've been working hard on with, the vendor that

485
01:27:46.790 --> 01:27:58.559
Boardroom: the, the PAB and our sales and council, landed on. And so we are up and running with, with that program. We're running it alongside our, our current.

486
01:27:58.750 --> 01:28:06.890
Boardroom: Or our existing protocol, to compare results and make sure that we're not missing anything as we transition.

487
01:28:07.050 --> 01:28:17.289
Boardroom: But that's been, a really exciting project that, we're… we're now in, like, the exciting part, where we're starting to get, you know, some functionality out of it.

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488
01:28:18.410 --> 01:28:43.150
Boardroom: That's great. I'm really looking forward to seeing the data from that and learning more about that for the next year's report. Yeah, and certainly, 2025 was us about getting into contract and getting it built. In early 2026 is when it went… we first started piloting it actually out with our data, our local data. So I expect that next year's report would cover that more thoroughly. That's great, thank you. Okay, alright, so I think we're finished with the questions now, so I want to open it up

489
01:28:43.150 --> 01:28:44.750
Boardroom: for public comments.

490
01:28:44.750 --> 01:28:50.569
Boardroom: This is for public comments on the 2025 Berkeley Police Department Annual Report.

491
01:28:55.900 --> 01:29:08.560
Boardroom: On hate crimes and incidents, it would help, if we're going to address these, it would help to know more specific information. For example, on race, ethnicity, and national origin.

492
01:29:08.630 --> 01:29:21.140
Boardroom: Are these individuals black? Are they white? Are they Asian? Are they Latino? National origin is in the same category. Are these anti-immigrant hate crimes and incidents? Religion, same.

493
01:29:21.290 --> 01:29:28.409
Boardroom: Sexual orientation of the person's trans. Gender may be too broad of a category,

494
01:29:28.470 --> 01:29:43.330
Boardroom: And that's why probably nothing has been captured. Perhaps it has, been captured in larger offenses. A disability. Are these persons with physical disabilities or mental disabilities?

495
01:29:43.330 --> 01:29:49.469
Boardroom: And also, from the Homeless Commission, Council had passed a recommendation to have a category on

496
01:29:49.470 --> 01:30:02.330

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Boardroom: hate crimes against the homeless, and I recall reading about a situation where someone associated with a business stabbed a homeless man while he was urinating, and that was seen.

497
01:30:02.340 --> 01:30:03.130
Boardroom: Fallen back.

498
01:30:03.750 --> 01:30:04.529
Boardroom: Thank you.

499
01:30:06.230 --> 01:30:07.670
Boardroom: Other public comment?

500
01:30:11.430 --> 01:30:13.350
Boardroom: Hi, Kit Saginaw.

501
01:30:13.810 --> 01:30:28.459
Boardroom: One minute. Okay, so I, note the fact that you have not been able to fill all of your officer slots, and have not been able to for years. This is not a new statistic at all. But that does bring to the point that the unfilled slots

502
01:30:28.460 --> 01:30:40.980
Boardroom: are not, in fact, costing the city real dollars. They're in the budget, but in the end, you don't have the officers, so they can't be paid. So, any kind of suggestion that decreasing that number of slots will

503
01:30:41.040 --> 01:30:50.830
Boardroom: free up a great deal of money for some other program is not really the case, because they're not… they're not, in fact, empty. They are, in fact, empty, so they're not costing money now.

504
01:30:50.940 --> 01:31:03.139
Boardroom: And I'm very happy to hear about the, the CSO program and the other kinds of violence intervention programs. I had seen an article saying that the Live Free program is running out of funding.

505
01:31:03.140 --> 01:31:13.720
Boardroom: And it doesn't… I didn't hear anything that says that that funding has now been, increased or will be, continued, so I'm wondering about the future of that. I think that's a really important one for violence prevention.

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506
01:31:13.920 --> 01:31:15.000
Boardroom: Thanks, Kit.

507
01:31:19.730 --> 01:31:24.450
Boardroom: Good afternoon, Council. I have a couple minutes… I have 2 minutes yielded to me.

508
01:31:24.830 --> 01:31:30.620
Boardroom: I wanted to just share with you some statistics from the Human Rights Data Analysis Group.

509
01:31:31.280 --> 01:31:32.829
Boardroom: Tarek Shah.

510
01:31:33.270 --> 01:31:49.359
Boardroom: In 2025, black people were 6 times more likely per capita than white people to get stopped while driving. Black people were more than 9 times more likely to be stopped on foot than white people. Black people were stopped for equipment violation 11 times more than expected from their representation in the population.

511
01:31:49.480 --> 01:31:55.590
Boardroom: Black people were pulled over for seatbelt violations 10 times more than expected from their representation in the population.

512
01:31:55.920 --> 01:31:58.810
Boardroom: That these statistics should be part of this report.

513
01:31:59.000 --> 01:32:05.599
Boardroom: And the long-time effort of this community to try to address racial profiling

514
01:32:05.980 --> 01:32:10.310
Boardroom: And its impacts on the community is not a small thing.

515
01:32:10.980 --> 01:32:16.179
Boardroom: I also want to talk about this notion of, community service officers.

516
01:32:16.570 --> 01:32:31.489
Boardroom: For those of you who are here, some of you council members were here during the reimagining process. And I take some, offense to the

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idea that CSOs represent reimagining policing. That's not what we were talking about 5 years ago.

517
01:32:31.750 --> 01:32:37.960
Boardroom: What we were saying is that CSOs actually are quite expensive compared to what we're asking them to do.

518
01:32:38.410 --> 01:32:43.499
Boardroom: That looking at that the… you know, when you hear there's somebody sleeping on my doorstep.

519
01:32:43.770 --> 01:32:51.040
Boardroom: That there's a disturbance, you know, somebody's yelling, or somebody's, you know, drunk, or somebody's passed out in the doorway.

520
01:32:51.930 --> 01:32:54.989
Boardroom: That's what the Special Care Unit was supposed to do.

521
01:32:55.440 --> 01:33:00.560
Boardroom: And we know that had they been allowed, had the police actually relinquished their power.

522
01:33:02.570 --> 01:33:06.670
Boardroom: That we could have had a civilianized response at a fraction of the cost.

523
01:33:08.000 --> 01:33:11.010
Boardroom: That all that overtime, all those extra hours.

524
01:33:11.210 --> 01:33:13.440
Boardroom: That they, they could've, they could've…

525
01:33:15.100 --> 01:33:18.059
Boardroom: What can I say? That this idea of care, not cops.

526
01:33:18.360 --> 01:33:20.550
Boardroom: Of care first, jails last.

527
01:33:21.060 --> 01:33:23.199
Boardroom: Some of us still hold the torch for that.

528

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01:33:23.900 --> 01:33:27.160
Boardroom: And when I hear that they're talking about…

529
01:33:27.280 --> 01:33:33.009
Boardroom: Budget numbers, and you realize that since 2000, that their budget has gone up about 20%.

530
01:33:34.200 --> 01:33:40.280
Boardroom: So… And I'm also… just want to say that who is checking those, those clearance rates?

531
01:33:40.610 --> 01:33:52.149
Boardroom: Because, you know, as of 2024, it was reported in the San Francisco Chronicle that, in fact, Berkeley PD's clearance rate was not at the state average.

532
01:33:52.500 --> 01:33:54.040
Boardroom: I'm not sure who's right.

533
01:33:54.280 --> 01:33:59.779
Boardroom: But I wonder what outside agencies are actually able to check those clearance rates.

534
01:33:59.890 --> 01:34:05.230
Boardroom: to check those definitions. Certainly, the PAB has not been allowed to do that.

535
01:34:06.510 --> 01:34:07.589
Boardroom: We'll do that.

536
01:34:08.500 --> 01:34:10.760
Boardroom: So, those are my concerns. Thank you.

537
01:34:11.690 --> 01:34:12.780
Boardroom: Thank you.

538
01:34:13.400 --> 01:34:19.230
Boardroom: Okay, other public comment online for the 2025 Berkeley Police Department Annual Report?

539
01:34:21.020 --> 01:34:24.949
Boardroom: If you'd like to make public comment, please, raise your hand.

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540
01:34:25.250 --> 01:34:28.079
Boardroom: First speaker is Kelly Hammergren.

541
01:34:37.180 --> 01:34:38.529
Boardroom: Kelly, can you hear us?

542
01:34:38.810 --> 01:34:41.020
kelly hammargren: Yes, I can hear you.

543
01:34:41.340 --> 01:34:42.730
kelly hammargren: Can you hear me?

544
01:34:43.030 --> 01:34:43.820
Boardroom: Yes.

545
01:34:44.210 --> 01:34:53.700
kelly hammargren: Okay, so I just had, a couple of questions. I know you don't answer them, but I'm going to place them out there anyway.

546
01:34:53.860 --> 01:34:59.729
kelly hammargren: We just had the meeting on March 10th about pepper spray.

547
01:34:59.770 --> 01:35:16.009
kelly hammargren: and pepper spray reporting, so I looked for that when I read the annual report, you know, was there… we got use of force, but we don't know whether pepper spray was used in the last year, and so I was hoping that

548
01:35:16.040 --> 01:35:28.370
kelly hammargren: Someone might answer that, or one of our council members might… might ask what the state… what the status of that was, since people were so interested in the reporting.

549
01:35:28.820 --> 01:35:34.199
kelly hammargren: And then I wanted to know if the definition of hate crime had changed.

550
01:35:34.650 --> 01:35:39.839
kelly hammargren: And then, I also wanted to know if, with the auto theft.

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551
01:35:39.950 --> 01:35:42.700
kelly hammargren: And the reporting of those solved cases.

552
01:35:42.700 --> 01:35:44.560
Boardroom: Thanks, Kelly.

553
01:35:44.560 --> 01:35:45.460
kelly hammargren: Sharing.

554
01:35:45.460 --> 01:35:49.249
Boardroom: I'm sorry, you're out of time, but thank you for your questions and your comments.

555
01:35:52.120 --> 01:35:58.309
Boardroom: Next speaker is… first name… Yick, Y-I-K.

556
01:36:02.180 --> 01:36:04.239
Yik Suen Lung: Hi, I'm a student from UC Berkeley.

557
01:36:04.440 --> 01:36:23.120
Yik Suen Lung: Berkeley, I'm speaking on behalf of the Cal ECLU. We're a student chapter of the American Civil Liberties Union. We're mainly here to talk about flock, which I know we'll discuss later, but for now, I want to comment on the BPT claim that ALPRs are somehow necessary for their function in Berkeley. I want to raise a study that ALPRs in Piedmont found that less than 0.3% of hits actually translate

558
01:36:23.240 --> 01:36:39.790
Yik Suen Lung: into useful investigative leads, so the hundred or so success stories that were brought up today, are actually only a bucket, a drop in the bucket of all the other data that ALPRs are unnecessarily capturing. I recognize the department's concerned about staffing, but this is not the right technology to be remedying that with. Thank you.

559
01:36:41.660 --> 01:36:43.360
Boardroom: Thank you. Okay.

560
01:36:44.370 --> 01:36:46.660
Boardroom: Next is Alana Auerbach.

561
01:36:49.750 --> 01:36:55.709

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Elana Auerbach: Hello, based on the police stop data from their own open data portal.

562
01:36:55.980 --> 01:37:13.450
Elana Auerbach: In 2005, the… this is… I don't… I'm not sure if this is in the report, because I haven't had a chance to read it, but just to make sure this is in the public record. In 2005, racial dis… 25, excuse me, racial disparities were worse than reported by the Center for Equity in Policing in 2018.

563
01:37:13.650 --> 01:37:24.119
Elana Auerbach: Okay? So in 2025, black people were 6 times more likely per capita than whites to get stopped while driving, 9 times more likely to be stopped on foot.

564
01:37:24.670 --> 01:37:37.179
Elana Auerbach: Black people were stopped for equipment violations 11 times more than expected from their representation in the population, and were stopped 10 times more for seatbelt violations, even though the BPD

565
01:37:37.670 --> 01:37:44.530
Elana Auerbach: based on a unanimous Berkeley City Council directive in 2021, was supposed to eliminate low-level offenses.

566
01:37:44.750 --> 01:37:56.309
Elana Auerbach: Meanwhile, in 2025, 489 equipment violations and 45 seatbelt violations. In short, the BPD stop data demonstrates very strong, statistically significant evidence of racial.

567
01:37:56.310 --> 01:37:58.080
Boardroom: Lana, thanks for your comment.

568
01:38:00.770 --> 01:38:03.190
Boardroom: Next is Angeline.

569
01:38:07.080 --> 01:38:32.060
Angeline Phan: Hi, good evening. I'm also here on behalf of UC Berkeley's Cal ACLU, and I'd like to expand on how Flock cameras negatively impact the immigrant community, and goes against the notion that Berkeley is a sanctuary city. So, our laws are meant to prohibit local police from assisting federal immigration enforcement, but Flock's network creates a loophole that these laws cannot close. So, we already know that federal agencies are using this service as audit logs

570

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01:38:32.060 --> 01:38:34.279
Angeline Phan: From departments across the country.

571
01:38:34.500 --> 01:38:46.090
Angeline Phan: As audit logs from departments across the country show officers listing ICE or immigration as the reason for running searches, and this means that local police are conducting searches on behalf of federal agencies.

572
01:38:46.090 --> 01:39:07.399
Angeline Phan: And Berkeley is home to thousands of undocumented residents and students who are a part of this community, and block cameras interfere with the safety of these individuals and puts them at risk of unjustified detention, and bridges on their privacy, and also has the potential to create a system of mass surveillance that impacts the lives of everyone in our city, and not just those of undocumented residents.

573
01:39:07.400 --> 01:39:09.709
Angeline Phan: And so the city is now considering expanding.

574
01:39:09.710 --> 01:39:12.659
Boardroom: Thanks, thanks for your comment. Your time is up.

575
01:39:13.040 --> 01:39:15.730
Boardroom: Next is Leslie.

576
01:39:19.400 --> 01:39:25.199
Leslie: Yes, I'm, sorry, can you start my time over?

577
01:39:26.520 --> 01:39:45.370
Leslie: Trying to get my thinking. Thank you. I want to speak also on behalf of a community who does not want to see any flock expansion, or any flock contract for any reason, for that matter. They have been known to share their information. Several,

578
01:39:45.510 --> 01:40:00.060
Leslie: Police departments around the country have, canceled their contracts in cities and counties, and we should be doing the same. We don't need to be surveilled, we don't need to have more surveillance.

579
01:40:00.060 --> 01:40:14.120

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Leslie: And this is not a way that helps police, it only hurts our community. And again, as others have said, we're supposed to be a community that is a sanctuary city, and flock…

580
01:40:14.140 --> 01:40:16.139
Leslie: Is not in line with that.

581
01:40:16.680 --> 01:40:22.060
Leslie: Continuing to take away our rights is not what Berkeley should be about. Thank you.

582
01:40:22.790 --> 01:40:23.680
Boardroom: Thank you.

583
01:40:25.010 --> 01:40:28.180
Boardroom: And the last speaker is Wendy Alfson.

584
01:40:34.040 --> 01:40:45.650
wendy alfsen: end up… documentation, there's mention of a July 2025, flock,

585
01:40:46.180 --> 01:40:57.299
wendy alfsen: access to Berkeley's data. I assume that's either ALPR or fixed video. It was not mentioned in the public report.

586
01:40:57.490 --> 01:41:07.990
wendy alfsen: And I don't know whether Council has asked for and received a report as to exactly what happened at that time, and what data was

587
01:41:09.940 --> 01:41:16.420
wendy alfsen: taken and accessed. We do know that Mr. De La Garza, a Berkeley resident.

588
01:41:17.740 --> 01:41:27.670
wendy alfsen: It's wrongfully detained at San Francisco Immigration based on a wrongly completed INS report.

589
01:41:28.270 --> 01:41:31.649
wendy alfsen: Based on his criminal record.

590
01:41:32.250 --> 01:41:34.789
wendy alfsen: Including expunged record.

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591
01:41:34.890 --> 01:41:37.539
wendy alfsen: And I don't know what.

592
01:41:37.750 --> 01:41:40.529
Boardroom: Thank you. Thanks for your comment.

593
01:41:40.690 --> 01:41:45.100
Boardroom: That concludes the, online public commenters.

594
01:41:45.590 --> 01:41:53.229
Boardroom: Okay, alright. Thank you all for your public comments. I will now take any, comments from Council members.

595
01:41:58.110 --> 01:42:01.620
Boardroom: No comments? No, I have comments. Sorry, I'm slow.

596
01:42:02.660 --> 01:42:04.680
Boardroom: Would you like to go then? Yes, yes.

597
01:42:08.150 --> 01:42:14.129
Boardroom: Alrighty, thank you, Madam Mayor. I want to thank our Police Chief, Deputy Chief Tate, Captain…

598
01:42:14.240 --> 01:42:33.039
Boardroom: Durbin, I was gonna say Urban for some reason, I apologize, and Mr. Malmberg for your presentation. It was very, very comprehensive, as always, and, I, you know, I, I didn't have questions, but I did just want to note, some of the really important,

599
01:42:33.220 --> 01:42:37.959
Boardroom: stats that you presented, one that really jumped out at me were the clearance rates.

600
01:42:38.310 --> 01:42:57.169
Boardroom: I can't find… oh, okay, here, I see the slide, but I don't… it doesn't have a number on it. But, you know, on every category I see, we have clearance rates, and that's the percentage of cases closed within one year of being reported. On every single one of those, our percentage exceeds the state average.

601
01:42:57.170 --> 01:43:09.490

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Boardroom: So, you know, I just want to note that, you know, we have been very successful. I didn't actually look at all of the prior years to compare how we're doing. I do see, some increases, though, just scanning it.

602
01:43:09.600 --> 01:43:16.050
Boardroom: Right now. So, you know, I think that that's a very positive sign. And, you know, as a preview for…

603
01:43:16.280 --> 01:43:21.459
Boardroom: For what we'll be discussing later this evening, you know, I think…

604
01:43:21.690 --> 01:43:32.089
Boardroom: the, what you had to say about leveraging technology, I think, will… will be really important for our later conversation, so I just wanted to note, you know, do you think that the…

605
01:43:32.290 --> 01:43:47.479
Boardroom: that there's a relationship, between having the full year of citywide deployment of the automated license plate readers and the higher than average clearance rates. I don't know if you've looked at that, specifically, that relationship. Can you comment on that at all?

606
01:43:48.330 --> 01:44:06.690
Boardroom: Yeah, I think that's absolutely one of the things that we would point to to that, and I'll share an example, later tonight again, but with, what Richmond experienced when they, paused their ALPRs for a period of time, for a couple months, and what they saw was that incidents went up.

607
01:44:06.690 --> 01:44:22.460
Boardroom: And closure rates went down as a result. And so we just, we look to… we look to, understand that there may be things that drive clearance, and I, I appreciated Councilmember Lenopara's, comment about, or a question about, did you get more detectives?

608
01:44:22.460 --> 01:44:32.920
Boardroom: Did you tell them to focus on this work? You know, did something else change? And because we try to limit or understand what drove change, and we didn't have those things that occurred. What we did have was a full year of ALPR data.

609
01:44:32.920 --> 01:44:43.750

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Boardroom: Okay, thank you very much for that. And then the other thing I wanted to note was the, on the accountability slide that you showed, in terms of the tests for bias.

610
01:44:43.820 --> 01:45:01.570
Boardroom: I think you've shown that, you know, every year for several years now, and I think those results speak for themselves, you know, and I can just repeat what you reported, right? For the collision demographics, there's a strong alignment with stops, the veil of darkness, it's been consistent across light and dark, the yield rate analysis.

611
01:45:01.570 --> 01:45:18.959
Boardroom: showed no indications of bias, and the force rate by race was consistent across groups. So, I mean, obviously we could delve more into that, we could have a whole session about that, but that's not what we're doing this evening. But, you know, I just wanted to highlight that, because I think that that's very important, and…

612
01:45:18.960 --> 01:45:27.199
Boardroom: You know, I think that's something we must continue to monitor, as with all of these stats, so, thank you again for the presentation.

613
01:45:27.240 --> 01:45:28.969
Boardroom: Thank you. Councilmember Humbert.

614
01:45:34.270 --> 01:45:47.660
Boardroom: Thank you, Madam Mayor. And I want to thank everyone present, on the other dais here tonight. I really appreciate, all the presentation, all the work that you've done on the report.

615
01:45:47.770 --> 01:46:03.109
Boardroom: And all other, folks who worked on the report. I also want to thank, officers LeDoux and McGee, and the remainder of folks at BPD that have been supporting your efforts.

616
01:46:03.110 --> 01:46:08.940
Boardroom: And all the staff who do the day-to-day work on our streets to keep our city safe.

617
01:46:09.230 --> 01:46:15.690
Boardroom: I'm very pleased by most of what I see in this report. I don't want to jinx anything, but it seems right now we've…

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618
01:46:15.890 --> 01:46:24.669
Boardroom: turned a major corner on the increase in crime that we saw after the pandemic, and while I'm sure that a notable portion of that is due to external factors.

619
01:46:24.670 --> 01:46:36.559
Boardroom: I also think it really reflects the hard work of the department, and that some of the more recent trends likely reflect the effectiveness of the new tools we're using, especially the license plate readers.

620
01:46:36.860 --> 01:46:46.120
Boardroom: I understand that it can be hard to separate out different causes and effects, as Arlo mentioned, and that we have national and state crime trends that are also going down.

621
01:46:46.120 --> 01:46:57.160
Boardroom: But we have enough local examples at this point of ALPR proving instrumental in solving crimes that I think it is reasonable to conclude there is a very significant benefit.

622
01:46:57.160 --> 01:47:14.879
Boardroom: I think the strongest evidence of this is perhaps in our increase in solved robberies. That increase would not be as closely associated with national trends, because whether we solve robberies or not is much more locally determined. So again, I think the evidence that the tools are working is strong.

623
01:47:15.390 --> 01:47:30.850
Boardroom: I'm concerned by the increase in sexual assaults, though it's not clear if that reflects a worrying trend, or whether we're doing a better job of encouraging people to come forward. I hope this is something that BPD will monitor, and may be able to report back on later.

624
01:47:31.350 --> 01:47:40.819
Boardroom: Unfortunately, we're having a national moment where hateful people feel enabled and empowered, and I think this is likely responsible for our increase in local hate crimes.

625
01:47:40.920 --> 01:47:41.930
Boardroom: So…

626
01:47:42.050 --> 01:47:49.040

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Boardroom: Likewise, I hope that BPD might explore ways that it can even more effectively respond to those and prevent these crimes.

627
01:47:49.150 --> 01:47:56.050
Boardroom: And let the community know that they should report them, and that victims will be supported by the city and by the department.

628
01:47:56.310 --> 01:48:08.309
Boardroom: I also want to laud BPD on the fact that, the recovery rates and veil of Darkness test shows, frankly, no broad systemic bias. That's something to be…

629
01:48:08.400 --> 01:48:25.899
Boardroom: be proud of the yield rates as well. So again, I really want to thank everybody, Chief Lewis, all the folks at BPD for their excellent work on the streets and on this report, and I hope that positive trends continue, and that we can reverse the negative ones. Thank you.

630
01:48:26.990 --> 01:48:30.400
Boardroom: Thank you, Councilmember. Councilmember Treykov.

631
01:48:32.110 --> 01:48:50.799
Boardroom: Thank you so much. Actually, many of my laudatory comments were echoed by, Councilmember Humbert. So, I just wanted to say, and I've said this before on the dais, and it's true,

632
01:48:51.450 --> 01:48:56.699
Boardroom: Every time I travel to conferences with elected officials.

633
01:48:56.880 --> 01:49:03.160
Boardroom: I, I am sure to mention the professionalism of this department.

634
01:49:03.410 --> 01:49:08.150
Boardroom: I will hold it up against any other department,

635
01:49:08.670 --> 01:49:20.230
Boardroom: You do an incredible job day in and day out, and I want to thank you for, demonstrating the utmost professionalism.

636
01:49:22.270 --> 01:49:38.320

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Boardroom: I will keep my comments very brief. I, very much support, the initiatives that you're taking, particularly around, standing up the CSO program and, the Transparency Hub.

637
01:49:38.360 --> 01:49:52.109
Boardroom: There's always going to be continuous improvement, but this is something that, has been incredibly helpful and valuable from a… well, for the sake of transparency,

638
01:49:52.110 --> 01:50:05.589
Boardroom: with the public and everyone, and I want to thank, the work that you are continuing to do to build that out and, share it with the public.

639
01:50:05.950 --> 01:50:14.559
Boardroom: Like others, I am concerned about the reported increase in both sexual assaults

640
01:50:14.740 --> 01:50:21.860
Boardroom: and hate crimes. I look forward to digging in, more to see,

641
01:50:22.260 --> 01:50:31.810
Boardroom: How we may be able to support your efforts to, reduce, those instances.

642
01:50:31.980 --> 01:50:35.940
Boardroom: And… Of course,

643
01:50:36.120 --> 01:50:54.599
Boardroom: We look forward to continued engagement as the District 4 Council office, with the highest number of calls for service. I've been deeply appreciative of the opportunities to connect with you and get additional detail.

644
01:50:54.690 --> 01:51:14.610
Boardroom: So, we look forward to doing that, also very interested in hearing more about how we can partner to, reduce, not just traffic violence, but, collisions, between.

645
01:51:14.730 --> 01:51:23.220
Boardroom: or injuries related to micromobile… the use… the improper use of micromobility devices. So thank you so much.

646

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01:51:24.420 --> 01:51:26.360
Boardroom: Thank you. Vice Mayor Lunapara.

647
01:51:27.060 --> 01:51:32.650
Boardroom: Thank you. I just wanted to appreciate and acknowledge the work that went into this, and so thank you for the report.

648
01:51:34.330 --> 01:51:48.280
Boardroom: Thank you. Okay, Councilmember Blackaby. Thanks, Madam Mayor. I know we're going to be spending a lot of time together tonight, so again, just want to thank you for being here, thank you for answering our questions, and I look forward to working with you over the next year to make material progress in all these metrics. Thank you.

649
01:51:48.500 --> 01:51:50.660
Boardroom: Thank you, Councilmember Bartlett.

650
01:51:50.730 --> 01:52:10.690
Boardroom: Great, I too want to also thank you for your service and your work here. 12 years ago, I saw one of our members here, de-escalate a potential knife attack. I saw it with my own eyes, it was amazing. It was a brilliant response, and you cooled someone down, and that person's alive and well today. Going back to the…

651
01:52:10.870 --> 01:52:12.010
Boardroom: The GVIP.

652
01:52:12.090 --> 01:52:15.459
Boardroom: the, Gun Violence Intervention Prevention Program.

653
01:52:15.470 --> 01:52:33.090
Boardroom: Do you say GVIP when you say this? Say Gvip. What do you say? Okay. Gavipula here. But we're on the Gavipula, the GVIP. I do want to… I love that you love it. Of course, we fought for this for years, and so, I guess rolling into the next conversations outside of this.

654
01:52:33.090 --> 01:52:36.029
Boardroom: particular instant, you know, budgetary conversations.

655
01:52:36.030 --> 01:52:39.520
Boardroom: I look forward to working with you to help build out the case, to refund it.

656

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01:52:39.770 --> 01:52:40.670
Boardroom: Thank you.

657
01:52:42.100 --> 01:52:43.969
Boardroom: Thank you. Councilmember Taplin.

658
01:52:44.390 --> 01:52:50.970
Boardroom: Thank you, and good evening. I offer my thanks as well. It's great to see a lot of the work that we set out together come to fruition.

659
01:52:53.170 --> 01:53:18.130
Boardroom: Okay. Well, I really want to thank you all so much for the report. Thank you, Chief. I… I really… I want to… there's so many things I really want to comment on, so I apologize. In advance, it's gonna be a longer comment than I normally give, but I really want to comment on the strategic way of using the right resources, right people for the job. I just think that this working smart approach, data-driven approach, is incredibly

660
01:53:18.130 --> 01:53:26.280
Boardroom: effective, and so I know, Arlo, you do a lot of their data crunching, so I want to thank you as well, because I think it makes for really good policing.

661
01:53:26.280 --> 01:53:28.150
Boardroom: And…

662
01:53:28.790 --> 01:53:42.810
Boardroom: And I really appreciate also the increase in the on-street, on-the-street patrolling. We hear from a lot of community members, they want to see officers more out in the community interacting with folks, the community policing piece, so thank you for that.

663
01:53:42.810 --> 01:54:06.380
Boardroom: I really want to comment also on the importance of reporting. I think there are a lot of folks in the community, when stuff happens, they'll tell their neighbor, they'll tell their friend, but they don't always report it, and those reports are so important, so I want the community to make sure that they know that you all change, what you do based on the different reports and the numbers in different neighborhoods, and so I hope that also my council colleagues, we can also encourage the community members

664
01:54:06.380 --> 01:54:31.310

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Boardroom: to report when things are happening, because that enables us to figure out what resources we need to support solving those crimes or preventing them in the future. A lot of times when people are thinking about, like, what is the success of a police department? They talk about response time, and they talk about clearance rates, and both of those are really excellent, so I really want to commend you for that and the work that you're doing there, especially given, as we've talked about, a decrease in

665
01:54:31.310 --> 01:54:31.910
Boardroom: staff.

666
01:54:31.910 --> 01:54:50.850
Boardroom: And something that wasn't mentioned on here that I think should definitely be mentioned is your attendance in the Sanctuary City Task Force. I know that that has meant a lot to our Sanctuary City Task Force members and the community to see you all be part of those conversations, to answer some really challenging questions, and just show up. I know that that means a lot to folks.

667
01:54:50.850 --> 01:54:57.440
Boardroom: And just generally the increased connection, communication, collaboration with PAB and ODPA over this past month.

668
01:54:57.440 --> 01:55:12.939
Boardroom: I know that we've had many conversations together. I saw Jose come in somewhere. But just to say that, like, I really appreciate that we're trying to be more proactive in that communication, and that's something that folks don't get a chance to see, especially because this is about 2025 and not this past…

669
01:55:12.940 --> 01:55:37.190
Boardroom: this year. And really want to appreciate the community partnerships, especially around addressing the rise in sexual offenses. That is really concerning to all of us. Most of us have commented on it, and I love the idea of partnering more with the university. We know that that might lead to an increase of reportings, which, because, of course, this is a highly under-reported crime, along with, of course, like, human trafficking and anything that involves,

670
01:55:37.460 --> 01:55:49.869
Boardroom: you know, a sexual offense, but I think that those partnerships will really, hopefully, increase the information, the knowledge, just understanding of how often this is happening, and how we can address, sexual crimes.

671

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01:55:50.020 --> 01:55:56.170
Boardroom: And, I'm really glad, of course, to see across all the categories, as I mentioned, the drop in crime trends.

672
01:55:56.360 --> 01:56:00.769
Boardroom: Just want to highlight a few things here.

673
01:56:00.880 --> 01:56:25.070
Boardroom: Shootings are down 40%, robberies down 20%, vehicle thefts nearly cut in half, commercial burglaries down 31%. I mean, that's really incredible news that I think it's important to highlight. And I also want to comment on what you all commented on as well, but I think it really shows the success of partnerships between BPD and some of our Reimagining Public Safety programs, like Live Free, who runs our gun violence prevention programs.

674
01:56:25.300 --> 01:56:45.770
Boardroom: This partnership has really just done… been amazing. Like, just really incredible, and I really appreciate that we have the kind of police department that is excited about those partnerships, that you all are really engaging in a real way, and it's not like, oh, we have to do this. Like, I really see the enthusiasm from the department, and I want the community to know about that.

675
01:56:47.280 --> 01:57:10.490
Boardroom: And also this CSO position. That is really exciting to me, to have folks out in the community making those connections, showing up for the community, you know, unarmed. I think that that makes a big difference, and as you commented on as well, also a good kind of training platform for folks who might be interested in becoming sworn officers later. And then they have that real community connection.

676
01:57:10.490 --> 01:57:19.099
Boardroom: And hopefully they stay with our department, right? We want that to happen. We want our police officers to be embedded in the community, know the community, have that community trust.

677
01:57:19.100 --> 01:57:25.900
Boardroom: already know kind of our usual cast of characters, that's really valuable for community policing. And,

678
01:57:26.080 --> 01:57:40.569
Boardroom: Yes, as I mentioned already, really pleased to see the clearance rates are rising all across all types of cases. This is huge when crimes occur in Berkeley, and it's good to know that we have higher

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solve rates than California average. That's something we should be incredibly proud of.

679
01:57:40.570 --> 01:57:59.910
Boardroom: And that, given that infrastructure and public safety are two of my policy priority areas, I'm really concerned about all of our road safety issues in Berkeley. I know that's not something you're responsible for, but in terms of working together really closely with this… the Vision Zero team, I really love that collaboration across departments. I think that's

680
01:57:59.910 --> 01:58:02.189
Boardroom: Excellent, and we need to be doing that more.

681
01:58:02.190 --> 01:58:14.399
Boardroom: And also just appreciate that BPD is citing folks on the road who are creating hazardous conditions for everyone, drivers, pedestrians, cyclists, and I, I think that that is just really…

682
01:58:14.400 --> 01:58:39.260
Boardroom: excellent and important work, because I hear from folks sometimes, I said this last year, too, but that they think that BPD doesn't do anything around traffic safety, and that's really not true, so I want to do as much as we can to highlight that. I want folks to know that you all are paying attention, and giving tickets, too, so especially around the daylighting. I wish the daylighting was really highlighted here in this report, because I think that's another excellent opportunity. I'm wondering if there could be, like.

683
01:58:39.410 --> 01:58:59.160
Boardroom: section of, like, you know, cross-departmental community collaborations or something, because there are so many ways that you all do that well. Coffee with a Cop, I don't know if that… I think that's within you. You're, not BPA, but in the department, right? So I think that's excellent. I would love to see all of that stuff highlighted, because I think it's something that you all do very well.

684
01:58:59.160 --> 01:59:11.420
Boardroom: So, okay, that was my gushing. I'm done. Thank you. I really appreciate you all, for this, and given that this was just a presentation, and we don't have to vote on anything, I will see if there is a motion to adjourn.

685
01:59:11.430 --> 01:59:17.379
Boardroom: Second. Okay. And, as long as there is no opposition to adjourning, we will adjourn for our special meeting.

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686
01:59:18.550 --> 01:59:31.060
Boardroom: No opposition, then we are adjourned. Thank you very much. Okay, so it is 6.02, so typically we would be starting our regular meeting, but we do need some time, and there's…

687
01:59:31.110 --> 01:59:47.350
Boardroom: some information that's come in that I think we need to read, an additional supplemental, so I want to give us at least 20 minutes. So we will start at 620, and also, I'm just… for transparency, so 620, and then I expect that we will not get to…

688
01:59:47.540 --> 01:59:51.969
Boardroom: the item that I assume most of you are here for, let me just make sure I have the number correct.

689
01:59:52.270 --> 02:00:00.980
Boardroom: I think… I'm guessing that most people are here for item number 26, I think. It's 26. Hold on.

690
02:00:01.460 --> 02:00:16.890
Boardroom: Okay, 26. Yeah, 26. And so, just to set expectations, we have quite a lengthy consent calendar with two ceremonial items, a presentation from our auditor, so it's likely we won't start for about an hour and a half, at least.

691
02:00:17.170 --> 02:00:28.650
Boardroom: after this 20-minute break. So just to set expectations, 620 plus 720… 7.50… 7.50… excuse me, I'm speaking, so…

692
02:00:28.820 --> 02:00:48.189
Boardroom: You can ask that question of me later, but I'm just letting you all know, we likely won't start until, like, sometime closer to 8 o'clock, so I just want to let folks know about that. So if you need to get something to eat, or take a walk, please do that. I just want to set realistic expectations, so thank you. Will the public have access to the additional supplemental?

693
02:00:56.790 --> 02:01:01.210
Boardroom: Taking the role for the regular meeting, Councilmember Kesarwani.

694
02:01:01.970 --> 02:01:06.660
Boardroom: Here. Taplin? Present. Bartlett? Here. Traeb?

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695
02:01:07.730 --> 02:01:08.720
Boardroom: O'Keefe?

696
02:01:09.170 --> 02:01:17.410
Boardroom: Here. Blackaby? Here. Napara? Here. Humbert? Present. And Mayor Ishii? Here. Okay, quorum is present.

697
02:01:17.550 --> 02:01:18.300
Boardroom: Okay?

698
02:01:18.810 --> 02:01:26.399
Boardroom: Alright, I have a statement to read out first. With respect to information item number 27 regarding the settlement between Berkeley's People Alliance.

699
02:01:26.400 --> 02:01:50.610
Boardroom: And the City in Alameda County Superior Court, case number 24CV064980, California Court of Appeals Case Number A172245. The City Council hereby commits, consistent with the Court of Appeals ruling, to no longer invoke Government Code Section 54957.9 as it is currently drafted.

700
02:01:50.610 --> 02:01:55.130
Boardroom: To recess a meeting and reconvene it in a different room, or otherwise relocate the meeting.

701
02:01:55.550 --> 02:01:57.600
Boardroom: Thank you. Okay.

702
02:02:22.380 --> 02:02:35.790
Boardroom: Okay, and also to report out language for the, item number 1, the City Council met in closed session on March 16th, 2026, pursuant to Government Code Section 54956.9D,

703
02:02:35.790 --> 02:02:50.929
Boardroom: and provided directions to outside counsel and approved a settlement by compromise and release with Open Future Medical Care as to a workers' compensation matter, assigned claim number BER2300091,

704
02:02:50.930 --> 02:02:56.949
Boardroom: and WCAB case number ADJ17101925,

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705
02:02:56.960 --> 02:03:01.479
Boardroom: And item number 2, the City Council met in closed session on March 16th, 2026.

706
02:03:01.520 --> 02:03:04.059
Boardroom: Pursuant to Government Code Section 549…

707
02:03:04.740 --> 02:03:21.799
Boardroom: 54956.9, subsection D, and provided directions to outside counsel and approved a settlement by compromise and release with the release of future medical care, or in the alternative, by stipulations with request for award with open future medical care.

708
02:03:21.800 --> 02:03:38.320
Boardroom: As to a workers' compensation matter assigned claim number BER2400044 and WCAB case number ADJ18… 18386036.

709
02:03:38.420 --> 02:03:39.750
Boardroom: Okay.

710
02:03:40.310 --> 02:03:42.579
Boardroom: Thank you very much, everyone.

711
02:03:43.010 --> 02:03:47.459
Boardroom: Alright, we have two ceremonial matters this evening.

712
02:03:48.580 --> 02:04:06.000
Boardroom: And I am going to start with the Holocaust Remembrance Day Proclamation. It was requested by Councilmember Terry Taplin's office, and they're leading the coordination this year for the Holocaust Remembrance Day event, so thank you very much for that. Today, the…

713
02:04:06.210 --> 02:04:12.660
Boardroom: the proclamation will be received by Anna Rapkin. Anna, are you here? I think you're here somewhere. There you are!

714
02:04:12.840 --> 02:04:13.760
Boardroom: Yay!

715
02:04:14.220 --> 02:04:24.849

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Boardroom: Who is our city… who was our city auditor for 17 years. So, thank you very much for your service. The actual day of Holocaust Remembrance Day is April 12th.

716
02:04:25.240 --> 02:04:33.699
Boardroom: And also, Council will allocate D13 funds for the event at tonight's Council meeting. So, thank you so much, Anna, for being here with us.

717
02:04:34.940 --> 02:04:38.430
Boardroom: Berkeley's 23rd Annual Holocaust Remembrance Day.

718
02:04:38.430 --> 02:05:02.829
Boardroom: Whereas the Holocaust was the state-sponsored, systematic persecution and annihilation of European Jews by Nazi Germany and its collaborators between 1933 and 1945, 6 million Jews were murdered. Roma, people with disabilities, Polish people, gay men, Jehovah's Witnesses, Soviet prisoners of war, and political dissidents were likewise subjected to systematic persecution, oppression, and death

719
02:05:03.030 --> 02:05:17.919
Boardroom: Under Nazi tyranny, and whereas Holocaust Remembrance Day stands as a solemn reminder of the dangers of hatred, bigotry, and antisemitism, and underscores the vital importance of education, vigilance, and action to ensure such atrocities are never repeated.

720
02:05:17.990 --> 02:05:28.879
Boardroom: And whereas the City of Berkeley reaffirms its commitment to human dignity, tolerance, and mutual respect, while standing firmly against antisemitism and all forms of hatred and discrimination.

721
02:05:28.880 --> 02:05:39.039
Boardroom: And whereas it is our shared responsibility to preserve the truth about the Holocaust as a cornerstone of our collective memory, and to honor the resilience and courage of survivors who were able to rebuild their lives.

722
02:05:39.470 --> 02:05:55.810
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby proclaim April 12, 2026 as Holocaust Remembrance Day in the City of Berkeley, in memory of those who were murdered, in honor of those who have survived, as well as the rescuers and liberators.

723
02:05:55.810 --> 02:06:03.270

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Boardroom: Be it further proclaimed that I call upon all residents to join in remembrance of the victims of the Holocaust, to educate themselves about the history of the Holocaust.

724
02:06:03.320 --> 02:06:10.290
Boardroom: And to recommit to building a more just, tolerant, and compassionate society, free from antisemitism and hatred of any kind.

725
02:06:11.040 --> 02:06:13.030
Boardroom: Thank you. Did you want to say?

726
02:06:19.110 --> 02:06:25.139
Boardroom: Thank you very much, Mayor Yashir, and Councilmembers, and Councilmember Taplan.

727
02:06:25.370 --> 02:06:30.409
Boardroom: I'm very proud that Berkeley is the first, I think.

728
02:06:30.710 --> 02:06:36.539
Boardroom: of any city, to have a Holocaust from a secular one.

729
02:06:36.950 --> 02:06:42.060
Boardroom: So it's very important that we are doing this, especially now.

730
02:06:42.520 --> 02:06:52.349
Boardroom: And I also want to remember that it was, former Councilmember Worthington, Chris Worthington, who started,

731
02:06:52.460 --> 02:06:58.439
Boardroom: And very generously started contributing to this event.

732
02:06:58.740 --> 02:07:08.099
Boardroom: in 2002, so he was way ahead. I don't have to tell all of you how incredibly important it is right now.

733
02:07:08.230 --> 02:07:10.679
Boardroom: That we remember that history.

734
02:07:10.800 --> 02:07:19.249
Boardroom: That we teach that history, and that we make sure that it never happens again, and unfortunately, we'll work

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735
02:07:19.370 --> 02:07:27.200
Boardroom: We're living now with very, very dark times, and there are an awful lot of people who are on the tremendous

736
02:07:27.500 --> 02:07:29.459
Boardroom: In tremendous danger.

737
02:07:29.630 --> 02:07:47.040
Boardroom: And we have to come together as a community to help those people and make sure that they're safe. So thank you again, and I hope all of you will participate on April 12th and spread the day… spread the word about it. Thank you again. Thank you, Anna.

738
02:07:53.620 --> 02:07:57.029
Boardroom: And quick announcement,

739
02:07:57.620 --> 02:08:12.779
Boardroom: Looks like there's a blue Subaru Forester that is parked in a driveway on Browning Street, and the homeowner is calling the police. So, if your car is a blue Forester with a license plate 9UE227,

740
02:08:12.990 --> 02:08:14.669
Boardroom: Might want to attend to that.

741
02:08:26.990 --> 02:08:38.539
Boardroom: Okay, we have one more ceremonial item, but folks, there are a lot of seats that are kind of open in the middle, and there are people who are standing or sitting on the ground, so if you could please move inward, so that way more folks can sit down.

742
02:08:38.540 --> 02:08:49.780
Boardroom: I would appreciate it. And there are some seats up here, it says reserve seating for those with disabilities, so, you know, if you have a disability and you want to come forward and sit, please, I want to encourage you to do that.

743
02:08:49.780 --> 02:08:52.940
Boardroom: I want folks to be comfortable, and… Okay.

744
02:08:53.250 --> 02:08:55.599
Boardroom: Alright, so we have one more…

745

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02:08:55.750 --> 02:08:59.240
Boardroom: Proclamation, that's for Elaine Williams-Bloom.

746
02:09:00.860 --> 02:09:09.360
Boardroom: It was requested by Councilmember Bartlett, and it is a proclamation honoring the life of Elaine Bloom, who passed away on February 24th, 2026.

747
02:09:10.220 --> 02:09:18.700
Boardroom: Elaine's son, Russell, is here, and we met a little bit earlier to receive the proclamation. So I will read it to you now.

748
02:09:20.320 --> 02:09:23.930
Boardroom: Honoring the life and legacy of Elaine Williams Bloom.

749
02:09:24.430 --> 02:09:41.440
Boardroom: Whereas Elaine Williams-Bloom was an educator and parent who was a lifelong advocate for social justice until she passed away on February 24th, 2026, and whereas Elaine grew up in New Jersey with her two brothers, Walker and Kenneth, and her sister Diane, finding homes in New York City, Greenwich Village.

750
02:09:41.440 --> 02:09:51.490
Boardroom: Pasadena, California, St. Thomas, U.S. Virgin Islands, and Berkeley, California, where she embodied her strong will, sharp mind, and sense of fairness everywhere.

751
02:09:51.490 --> 02:10:02.740
Boardroom: And whereas founder of an innovative daycare called Gingerbread in Greenwich Village in the early 1970s, which provided a nurturing environment for generations of young children to express and develop their voices.

752
02:10:02.850 --> 02:10:07.260
Boardroom: And whereas Elaine demonstrated her values by being involved in civil rights protests.

753
02:10:07.260 --> 02:10:25.869
Boardroom: community organizing and citizen participation, and modeled that advocacy for fairness and justice is a lifelong responsibility. And whereas at Berkeley, Elaine participated in tenant organizing with her neighbors at the Harriet Tubman Apartments, where their collaboration created a community that received recognition from the City of Berkeley in 2018,

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754
02:10:25.870 --> 02:10:44.000
Boardroom: And whereas Elaine Williams-Bloom will be remembered by her sister Diane, her brother Kenneth, her daughter-in-law Michelle, her grandchildren Gianni and Marco, and also the many friends, neighbors, and community members who have been positively influenced by Elaine's integrity, strength, and lifetime commitment to the pursuit of justice and dignity for all.

755
02:10:44.360 --> 02:10:57.330
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby honor and celebrate the life and legacy of Elaine Williams-Bloom, and express our deepest gratitude for her lifelong commitment to advocacy.

756
02:11:01.470 --> 02:11:02.290
Boardroom: If I…

757
02:11:02.450 --> 02:11:22.419
Boardroom: If I may, just offer my appreciation, Mary Ishi, for, your reading of this declaration. My mother, as you mentioned, was a lifelong advocate and activist. It would be important to her for me to say out loud here that she would encourage you to remain committed.

758
02:11:22.420 --> 02:11:30.169
Boardroom: To protecting the vulnerable, including the elderly, to remain focused on accountability and justice.

759
02:11:30.170 --> 02:11:42.919
Boardroom: And I know that she would have asked me to appreciate your patience with her over the years, as she was a frequent flyer, as they say, and certainly was committed to moving forward

760
02:11:42.920 --> 02:11:50.469
Boardroom: issues of justice, particularly around the, tenancy at the Tubman Apartments. Thank you all for your support all these years.

761
02:12:44.770 --> 02:12:54.550
Boardroom: Apologize. Apologies. We also have an adjournment in memory for Marcia Poole, which was requested by Councilmember Trey Gubb, and so,

762
02:12:54.970 --> 02:12:58.840
Boardroom: I will pass it over to him to share a few words.

763

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02:12:59.480 --> 02:13:08.329
Boardroom: Thank you so much. This will be an excerpt of, a proclamation that will be presented at our Celebration of Life.

764
02:13:08.690 --> 02:13:09.860
Boardroom: In April.

765
02:13:10.110 --> 02:13:16.840
Boardroom: Marsha Poole, was a community member.

766
02:13:17.090 --> 02:13:20.610
Boardroom: And a friend and advocate to many.

767
02:13:20.940 --> 02:13:29.549
Boardroom: In 1999, Marcia demonstrated extraordinary courage when she intervened to prevent

768
02:13:29.850 --> 02:13:36.850
Boardroom: A Barkley landlord from concealing the death of a 13-year-old girl caused by carbon monoxide poisoning.

769
02:13:37.060 --> 02:13:54.220
Boardroom: alongside of, Dr. Diana Russell. They organized, documented, and pursued accountability through the courts, persistently, demanding just decisions. Their efforts contributed to greater awareness and helped create changes in California's human trafficking laws.

770
02:13:54.700 --> 02:13:58.780
Boardroom: In 2019, Marsh, curated and directed

771
02:13:58.890 --> 02:14:16.569
Boardroom: Creativity Unhoused at the Expressions Gallery in Berkeley, a landmark exhibition highlighting the artwork of people experiencing homelessness, reflecting her belief in the dignity and potential of every person, and bringing together artists, advocates, and the community in celebration and recognition.

772
02:14:16.790 --> 02:14:30.040
Boardroom: Marcia was a tireless advocate for tenants, unhoused individuals, and disabled residents, consistently attending Berkeley City Council meetings, supporting initiatives such as First Day Came for the Homeless.

773

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02:14:30.570 --> 02:14:40.130
Boardroom: Confronting injustice and advancing tenant protections, including Measure Y, which strengthen safeguards for seniors and disabled residents.

774
02:14:40.680 --> 02:14:42.269
Boardroom: So we,

775
02:14:42.390 --> 02:14:53.419
Boardroom: We remember, and we celebrate her, and, I know, Louis is here, to say, a few words in a minute.

776
02:14:54.810 --> 02:15:00.579
Boardroom: Three cheers from Marcia. Thank you.

777
02:15:00.740 --> 02:15:02.790
Boardroom: Huh. Thank you.

778
02:15:04.330 --> 02:15:14.050
Boardroom: She really cared about Berkeley, honestly, honestly. And what amazed me about this, my wife,

779
02:15:14.950 --> 02:15:16.580
Boardroom: She never gave up.

780
02:15:18.960 --> 02:15:23.720
Boardroom: I'm… I'm very proud this city was to… Came to agree to a…

781
02:15:24.450 --> 02:15:28.530
Boardroom: And please come to the celebration of life.

782
02:15:28.810 --> 02:15:32.300
Boardroom: It will be… soon.

783
02:15:32.470 --> 02:15:40.310
Boardroom: And, it'll be a party with song, with poetry, with… conversation.

784
02:15:41.180 --> 02:15:46.570
Boardroom: with everything. So thank you, thank you, thank you very much to the City of Berkeley.

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785
02:15:46.750 --> 02:15:49.080
Boardroom: And thank you for the City Council.

786
02:15:55.540 --> 02:16:03.099
Boardroom: Thank you so much. Thank you, everyone. Okay, so we are now moving on to our city manager comments.

787
02:16:03.610 --> 02:16:18.960
Boardroom: Thank you, Madam Mayor. A couple of comments. One, on the consent calendar, I need to remove item 13, which is a pavement safety improvement project contracts. There were a couple of proposals that were inadvertently left off of this list, so we'll bring that item back.

788
02:16:19.220 --> 02:16:21.640
Boardroom: And then also a reminder for…

789
02:16:21.750 --> 02:16:37.480
Boardroom: the Peace and Justice Commission item 16, that, as we talked about at Agenda and Rules, that should be a budget referral. That recommendation does have costs associated with it that are not budgeted, so asking that that item go to the budget, process. Thank you.

790
02:16:38.110 --> 02:16:39.440
Boardroom: 16.

791
02:16:41.879 --> 02:16:54.449
Boardroom: Thank you very much. Oh, and you're already here, in time for our City Auditor comments. Our City Auditor is here, right in the front. And then, I think there are still some empty seats, so I just want to make sure folks are able to sit down.

792
02:16:54.580 --> 02:16:59.190
Boardroom: If folks can make room, there's also some seats up here in the front.

793
02:16:59.330 --> 02:17:00.080
Boardroom: Okay.

794
02:17:11.469 --> 02:17:12.770
Boardroom: Okay.

795
02:17:13.340 --> 02:17:24.039

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Boardroom: Thank you so much. So tonight, I'm going to, we're gonna do a short presentation on item number 18. This is our first whistleblower report.

796
02:17:24.320 --> 02:17:27.680
Boardroom: And… let me see here…

797
02:17:28.510 --> 02:17:43.750
Boardroom: Okay. I have with me Erin Mullen, Whistleblower Manager. She's also a certified fraud examiner, and, she will say more about our whistleblower program and provide counsel and the public with this report. So…

798
02:17:44.820 --> 02:17:45.930
Boardroom: Thank you, Erin.

799
02:17:46.969 --> 02:17:48.100
Boardroom: All right.

800
02:17:48.600 --> 02:18:05.279
Boardroom: So, this is our first, report that we're sharing publicly from our whistleblower program, and I am glad to walk you through it today. I'm gonna share a little bit about what we investigated, what we found, and what we recommend to ensure stronger controls.

801
02:18:05.469 --> 02:18:21.339
Boardroom: But before we jump in to the report, I would like to briefly introduce the program. So this whistleblower program allows city employees and officials to report concerns of fraud, waste, and abuse of city resources.

802
02:18:21.570 --> 02:18:33.219
Boardroom: Reports can be submitted anonymously and are kept confidential with protections in place to safeguard the identity of individuals who come forward, and also individuals who participate in our investigations.

803
02:18:33.940 --> 02:18:40.989
Boardroom: We issue public reports when we identify substantiated findings or issues that warrant transparency or broader awareness.

804
02:18:41.190 --> 02:18:45.339
Boardroom: This is our first public report, but we expect, more in the future.

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805
02:18:46.330 --> 02:19:00.459
Boardroom: We also plan to expand the hotline to the public, but that expansion is currently paused due to anticipated budget constraints, and to ensure we have the capacity to review all reports and prioritize high-risk investigations.

806
02:19:02.340 --> 02:19:13.389
Boardroom: Now let's turn to this specific investigation. So we received a report in late 2024 alleging that an ambulance had been purchased without prior City Council approval.

807
02:19:13.790 --> 02:19:23.859
Boardroom: Under the Berkeley Municipal Code, City Council approval is required for purchases over $100,000 before the City can be committed to that expenditure.

808
02:19:24.450 --> 02:19:30.860
Boardroom: This requirement exists to ensure oversight, transparency, and responsible use of public funds.

809
02:19:32.969 --> 02:19:43.390
Boardroom: So in response to this allegation, we conducted an investigation to determine whether the allegation was substantiated, and to identify any breakdowns in the purchasing process.

810
02:19:43.719 --> 02:19:58.260
Boardroom: We found that the allegation was substantiated. A former city employee committed the city to a $286,000 ambulance purchase without the authority to do so, and without completing required purchasing steps.

811
02:19:59.730 --> 02:20:04.230
Boardroom: Snow will walk you through, sort of, the breakdown of our key findings and why they matter.

812
02:20:04.760 --> 02:20:14.310
Boardroom: First, the ambulance was purchased without required approvals, including council approval. That resulted in a $286,000 commitment without oversight.

813
02:20:14.490 --> 02:20:23.089
Boardroom: When the ambulance arrived, the city could not pay the vendor immediately. The vendor then withheld the title of the vehicle and delayed its use.

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814
02:20:23.360 --> 02:20:24.270
Boardroom: Second.

815
02:20:24.730 --> 02:20:41.120
Boardroom: Council approved the purchase retroactively, but it wasn't clearly disclosed that the city was already committed to the purchase. This reduced transparency for Council and the public. Together, these issues show how bypassing purchasing controls can lead to financial risk and limited oversight.

816
02:20:41.630 --> 02:20:42.510
Boardroom: Yay!

817
02:20:42.770 --> 02:20:45.189
Boardroom: Folks, please…

818
02:20:45.460 --> 02:21:01.200
Boardroom: We have a presentation. Don't interrupt her. Based on what we found, our recommendations focused in four key areas. First, making the rules clear, that no purchases should move forward without a requisition, or a purchase order, or the required Council approval.

819
02:21:01.300 --> 02:21:07.279
Boardroom: Second, creating clear escalation steps so issues are raised earlier if those rules aren't followed.

820
02:21:07.550 --> 02:21:20.310
Boardroom: Third, clarifying rules through targeted training so staff understand who has authority in the purchasing process. And finally, improving transparency by notifying Council when standard purchasing steps are bypassed.

821
02:21:20.480 --> 02:21:25.179
Boardroom: Together, these steps strengthen oversight and prevent similar issues in the future.

822
02:21:26.180 --> 02:21:34.719
Boardroom: And with that, I would like to thank the city departments for their assistance with this investigation, and thank you all for listening.

823
02:21:35.300 --> 02:21:45.300

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Boardroom: Thank you very much. I appreciate the presentation, and thank you. I, I want to, give some time to ask if my council colleagues have any questions here, or comments.

824
02:21:48.460 --> 02:21:49.830
Boardroom: Go ahead, Vice Mayor.

825
02:21:50.200 --> 02:21:55.789
Boardroom: Thank you. I don't have any questions, I just really want to thank you for your work and your commitment to this. Thanks.

826
02:21:57.900 --> 02:22:11.480
Boardroom: Absolutely, thank you. And Councilmember Humbert? Yes, likewise. I don't have any questions, but I want to thank you for this really important and good work, ferreting out this problem and coming up with, ways to avoid it in the future. Thank you.

827
02:22:11.690 --> 02:22:14.949
Boardroom: Absolutely. Any other of my council colleagues?

828
02:22:16.000 --> 02:22:25.120
Boardroom: I do, thank you so much for the presentation, for the report, also really important. Obviously very disconcerting, this purchase.

829
02:22:25.120 --> 02:22:33.390
Boardroom: But I am very confident that we're putting things into place to prevent things like this happening in the future, and I think that this really shows the benefit of having this

830
02:22:33.390 --> 02:22:46.679
Boardroom: whistleblower, program. So thank you very much for the work that you're doing. I also want to see if the City Manager wants to add anything, because I know you've also, implemented some of these changes already, and so I want to make sure you have time to address that if you'd like.

831
02:22:46.680 --> 02:22:57.249
Boardroom: I don't really need to. I appreciate the work of the, of the auditor on this item, and we've agreed with the recommendations, some of which, as you say, Mayor, we have implemented, so…

832
02:22:57.300 --> 02:22:59.360
Boardroom: Creating a stronger system moving forward.

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833
02:23:00.140 --> 02:23:02.620
Boardroom: That's great. Thank you both so much. Thank you.

834
02:23:04.890 --> 02:23:14.350
Boardroom: Okay, we will now take public comment on non-agenda matters. Okay, okay. If you have public comment for anything that's not on this agenda…

835
02:23:14.770 --> 02:23:21.220
Boardroom: Right, so we'll draw 5 cards for the in-person speakers, and then we will go to the first

836
02:23:21.400 --> 02:23:30.090
Boardroom: 5 hands raised on the Zoom, and again, this is for items that are not on the agenda…

837
02:23:31.390 --> 02:23:37.509
Boardroom: So, when I announce the names, you can come up In any order.

838
02:23:38.260 --> 02:23:41.989
Boardroom: And it's too late to put in a card, so… don't bother.

839
02:23:42.240 --> 02:23:47.609
Boardroom: If you're speaking about, you know, the police stuff or the flock cameras, this is not…

840
02:23:47.870 --> 02:23:49.389
Boardroom: The time for that.

841
02:23:52.290 --> 02:24:11.590
Boardroom: So, the 5 in-person speakers… are, Russell Bates, Carol Morasovic, CKD, Durant, And looks maybe like, paolaD5.

842
02:24:12.010 --> 02:24:15.379
Boardroom: So you can come up in any order, you'll have one minute to speak.

843
02:24:17.850 --> 02:24:18.890
Boardroom: Ex…

844
02:24:19.090 --> 02:24:28.740

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Boardroom: Oh, okay, folks, I know there's a lot of whispering going on, I know there are a lot of people here, so even if you're speaking quietly, it's gonna reverberate, so…

845
02:24:28.740 --> 02:24:39.529
Boardroom: I want to hear from Carol, but also, Mark, if there's a way that we can maybe open more doors, or turn up the fan or something, it's starting to get quite warm. Okay.

846
02:24:40.270 --> 02:24:41.089
Boardroom: It only does.

847
02:24:48.790 --> 02:24:57.309
Boardroom: If your name was called, feel free to come up a little bit closer so I can keep track of whose name was called. Thank you.

848
02:24:59.840 --> 02:25:07.319
Boardroom: Exploitation of vulnerable homeowners, this recommendation from the Commission on Status of Women went to land use.

849
02:25:07.470 --> 02:25:26.939
Boardroom: a year after it was passed at the Commission, on June 10, 2025, with a qualified positive recommendation, the Council referred to another commission, it never went back to Council. This is nine and a half months later, and this was a qualified positive recommendation from Land Use.

850
02:25:27.090 --> 02:25:28.469
Boardroom: Second.

851
02:25:28.470 --> 02:25:52.470
Boardroom: Well, I have been the author of multiple recommendations from commissions that are just lost in the process. In fact, ironically, another one I'm going to pass to you, was addressed at the Agenda Committee on… in August 2020, almost 6 years ago, and that recommendation was also a qualified positive recommendation.

852
02:25:52.470 --> 02:26:14.920
Boardroom: And this recommendation was addressing Tracking Commission recommendations by compiling them, and the recommendation has qualified positive, to explore short-term solutions and recommend that the Commission recommend… Thank you, Carol. If I could just finish, it sounds to be reintroduced to… Carol, feel free to… feel free to write us about it. Thank you.

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853
02:26:24.450 --> 02:26:27.299
Boardroom: Yep, as soon as the person's finished, you can come right up.

854
02:26:28.340 --> 02:26:29.080
Boardroom: Of.

855
02:26:31.270 --> 02:26:53.910
Boardroom: Mayor and the Council, you speak tonight on new zoning density rules, yet you actively enable criminal density fraud at 2425 Durant. A developer snitches 19-unit high density bonus with one hand, while claiming 15 units with the other, just to pocket the salaries of a mandate ownsite manager per state law for 16 and more units.

856
02:26:53.910 --> 02:26:57.179
Boardroom: You allow him to have his cake while the tennis staff was…

857
02:26:57.310 --> 02:27:12.909
Boardroom: safety. I exposed this fraud in front of the mayor, the zoning board, and the council on October 9th and February 23rd, and you vote yes and uphold the permit anyway, ever since the city stayed silent. This is not a mistake, it's a calculated…

858
02:27:12.910 --> 02:27:26.310
Boardroom: administrative silence. This permit is void under strict Section 1090, Felony Convict Interest. To the council, do we prioritize greed over life safety, portfolio ministerial duties, status…

859
02:27:26.600 --> 02:27:32.690
Boardroom: void permit. The public's watching. The record is clean. Thank you.

860
02:27:35.430 --> 02:27:40.429
Boardroom: Shane, I saved my time, Paola, D5TPJ.

861
02:27:40.740 --> 02:27:48.809
Boardroom: Good evening, Mayor and Councilmembers. My name is Pijay Singh. I represent the Sikh American community.

862
02:27:49.040 --> 02:27:56.370
Boardroom: I'm here to voice my opinion about a street that was named after a South Asian woman collab guy.

863

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02:27:56.530 --> 02:28:02.919
Boardroom: Who was a… Wealthy wife of a spy who came here to spy on

864
02:28:03.750 --> 02:28:06.370
Boardroom: people that are organizing for India's freedom.

865
02:28:06.480 --> 02:28:10.869
Boardroom: One of them people were my own great-grandfather, who came here in 1907.

866
02:28:11.210 --> 02:28:16.519
Boardroom: The story that was presented here was a story of a woman who was a victim

867
02:28:16.800 --> 02:28:20.569
Boardroom: who was, ran out of Berkeley.

868
02:28:20.810 --> 02:28:36.390
Boardroom: when we discovered, going back, we were happy that someone from our community was represented, but what we discovered was totally the opposite. A wealthy socialite wife of a colonial spy who was sent here to spy on his own people who were

869
02:28:36.490 --> 02:28:43.510
Boardroom: Making $1.50, came here with… over $25,000 when a home in Berkeley was

870
02:28:43.630 --> 02:28:48.390
Boardroom: under $1,000 in North Berkeley. So, we have the evidence.

871
02:28:48.760 --> 02:28:56.829
Boardroom: We have… Several authors that… wrote about this. Thank you. Thanks, thanks for your comment.

872
02:29:05.070 --> 02:29:12.460
Boardroom: So, $286,000 on an ambulance person? That is so pathetic that that could even happen.

873
02:29:12.780 --> 02:29:22.889
Boardroom: And, I hope you're gonna remember the Holocaust that's going on in Gaza, the genocide. It's 899 days!

874

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02:29:23.020 --> 02:29:27.320
Boardroom: 899 days of the genocide.

875
02:29:28.230 --> 02:29:37.499
Boardroom: People are still getting murdered every day. A woman got murdered that was carrying twins over the weekend.

876
02:29:38.160 --> 02:29:52.309
Boardroom: They killed them all. They're wiping out family members, generations, not only in Gaza, but now in Iran, Yemen, and all these other countries. And what have you done?

877
02:29:52.650 --> 02:29:58.789
Boardroom: Absolutely nothing. Say it again. War. What is it good for?

878
02:29:58.980 --> 02:30:01.710
Boardroom: Absolutely nothing!

879
02:30:01.830 --> 02:30:05.840
Boardroom: And you all should be ashamed of yourselves. Ashamed.

880
02:30:06.450 --> 02:30:08.040
Boardroom: Free Palestine!

881
02:30:08.720 --> 02:30:16.740
Boardroom: Thank you for your comments. Thank you, your time is up. Thank you. We're gonna take our online comments.

882
02:30:18.510 --> 02:30:19.470
Boardroom: We haven't.

883
02:30:20.680 --> 02:30:22.539
Boardroom: Russell, your name was called.

884
02:30:31.480 --> 02:30:38.399
Boardroom: Hi, everybody. I'm looking forward at some point to see a Gaza Genocide Remembrance Day.

885
02:30:38.780 --> 02:30:42.589
Boardroom: Because it's so necessary to point it out.

886

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02:30:42.850 --> 02:30:53.990
Boardroom: That $7 billion of weapons just got sent to the Zionist entity. This will enable them to keep on killing people in every country around the area there.

887
02:30:54.290 --> 02:31:01.219
Boardroom: And keep on killing the people in Iran. Iran is fighting back. It's,

888
02:31:01.330 --> 02:31:06.739
Boardroom: It's doing a lot better than the mainstream medieval that people realize.

889
02:31:06.970 --> 02:31:21.170
Boardroom: But Gaza needs to be remembered. It needs to be remembered. There is a genocide going on there, and it's not gonna stop until the people of America make it stop. Thank you very much. Thank you, Russell.

890
02:31:28.840 --> 02:31:31.780
Boardroom: Okay, so we'll go to the first five…

891
02:31:31.980 --> 02:31:37.089
Boardroom: Hands raised on the Zoom, and the first speaker is Whitney Sparks.

892
02:31:42.140 --> 02:31:42.720
Boardroom: Goodbye.

893
02:31:42.720 --> 02:31:50.860
Whitney Sparks: So… can you hear me? I'm just calling to encourage you to cancel the contract with Flock.

894
02:31:52.130 --> 02:32:00.680
Boardroom: This is just for public comment on items that are not on the agenda. So you can come back and comment during that time.

895
02:32:00.800 --> 02:32:02.140
Boardroom: Thank you.

896
02:32:04.190 --> 02:32:04.720
Boardroom: Okay.

897

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02:32:04.720 --> 02:32:06.190
Whitney Sparks: Please now it's done.

898
02:32:06.700 --> 02:32:15.199
Boardroom: Okay. Next is a caller with a phone number ending in 211.

899
02:32:21.830 --> 02:32:23.300
1510****211: Hi, good evening.

900
02:32:23.640 --> 02:32:29.469
1510****211: Well, our store manager again handed you some paper, read it, and respond. Please don't ignore it.

901
02:32:30.200 --> 02:32:32.920
1510****211: What Donald Trump has done

902
02:32:33.220 --> 02:32:40.910
1510****211: under Netanyahu has been dreaming for 30 years to attack Iran. He's totally against American laws, international laws.

903
02:32:41.110 --> 02:32:47.450
1510****211: And this is a genocide of Iranian people after, when everything's said and done, about half million

904
02:32:47.880 --> 02:32:56.810
1510****211: men, women, and children were killed, murdered, burned, sliced, and evaporated by American bombs.

905
02:32:56.910 --> 02:33:05.890
1510****211: Shame on all of us, and must not let it happen. Especially Jewish people, don't search through the Holocaust. Why are we doing another Holocaust?

906
02:33:05.990 --> 02:33:10.540
1510****211: Citizens should not be involved at all. Peace on earth. Thank you very much.

907
02:33:12.890 --> 02:33:16.369
Boardroom: Okay, next is M. Jervis.

908
02:33:20.390 --> 02:33:22.399
mjervis@downtownberkeley.com: Hello, hello? Can you hear me?

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909
02:33:22.400 --> 02:33:22.850
Boardroom: Yes.

910
02:33:22.850 --> 02:33:38.639
mjervis@downtownberkeley.com: Yeah, my name is Matthew Jervis, I'm with the Downtown Berkeley Association, and I'm here to invite all of Berkeley to join us for Make Music Day on June 21st. Thank you to Councilmember Shoshana O'Keefe for introducing us to the organization, and…

911
02:33:38.640 --> 02:33:42.630
Boardroom: This, this is actually on the… yeah, it's on the agenda, so we're…

912
02:33:42.630 --> 02:33:43.570
mjervis@downtownberkeley.com: Oh, it is?

913
02:33:43.570 --> 02:33:57.189
Boardroom: Yes, apologies, so we're actually doing, non-agenda items right now, or comments on things that are not on the agenda. It's on the consent calendar. Yeah, it's on the consent calendar, so there's a separate time for that. Okay, so this is for non-agenda comments.

914
02:33:57.740 --> 02:33:59.490
Boardroom: Nothing on the agenda.

915
02:34:00.590 --> 02:34:01.730
Boardroom: Della Luna.

916
02:34:02.000 --> 02:34:03.160
Boardroom: Next speaker.

917
02:34:05.830 --> 02:34:09.209
Della Luna (she/her) Huichun: Hi, yes, I wanted to say that it's been more…

918
02:34:09.260 --> 02:34:29.509
Della Luna (she/her) Huichun: than 30 days, or right around a month, that the pedestrian crosswalk by the Ashby BART has not been repainted. There's been construction there, it's been allegedly improved, but the paint has not gone up, so you can't actually see the walkway, it's not painted across the street. There's no indication that the pedestrian walkway is still there, and I think,

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919
02:34:29.510 --> 02:34:30.420
Della Luna (she/her) Huichun: People…

920
02:34:30.440 --> 02:34:49.470
Della Luna (she/her) Huichun: there's elements where you all are making progress, and I mean the city, and with the improvements, but it also… there's a missing element to it, almost like maybe you're using AI to plan the construction project, but you need to close those gaps and get the cost walks, or whatever you remake, finish the project, and if you can't finish it, then don't start it.

921
02:34:49.470 --> 02:34:53.059
Della Luna (she/her) Huichun: Until you can make sure it's finished, because people are being harmed in the crosswalks.

922
02:34:53.060 --> 02:35:09.729
Della Luna (she/her) Huichun: There's a yellow curb at Russell and MLK, and it's not painted, there's no reflectors on it. This is also, there's other curbs on MLK that do have reflectors. So why would there not be reflectors on the curb that was put in the middle of the roadway at Russell and MLK? And lastly, I live in District 3.

923
02:35:09.730 --> 02:35:10.969
Boardroom: Thanks, Dollar.

924
02:35:11.150 --> 02:35:15.849
Boardroom: Next is East Shore… East Shore Alliance.

925
02:35:19.280 --> 02:35:21.039
Eastshore Alliance: Hey, confirming everyone can hear me?

926
02:35:21.350 --> 02:35:22.130
Boardroom: Yes.

927
02:35:22.130 --> 02:35:31.460
Eastshore Alliance: Fantastic. My name's Ted Steen, I run East Shore Alliance FC. We're a Berkeley non-profit youth soccer club serving over a thousand youth in and around the community.

928
02:35:31.460 --> 02:35:54.420
Eastshore Alliance: I'm here to strongly support the proposed $300 million GO Bond measure, specifically to improve Gabe Catofo fields at

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Harrison Park, including turfing the fields and upgrading the bathrooms. This is… should be a top priority as it relates to the health and safety of our community. Right now, access to safe and reliable field space is a big challenge, not just for the youth, but for all recreation goers in Berkeley.

929
02:35:54.740 --> 02:36:19.610
Eastshore Alliance: field is closed 6 months out of the year, and even longer due to the extreme conditions, with the fields being in a failing state, as stated by the Berkeley Parks and Rec Division. For many families, soccer isn't just a sport, it's a consistent, positive space for physical activity, mentorship, and community. Turfing Gabe Cutuffo would make a huge difference, providing safe, durable surface that we can use

930
02:36:19.610 --> 02:36:22.960
Eastshore Alliance: year-round. Upgrading the bathrooms is also important.

931
02:36:22.960 --> 02:36:25.259
Boardroom: Thanks for your comments, I'm sorry, you're out of time.

932
02:36:26.390 --> 02:36:28.529
Boardroom: Next is Mar.

933
02:36:28.940 --> 02:36:30.529
Boardroom: Should be allowed to talk.

934
02:36:33.320 --> 02:36:34.799
Boardroom: Unmute, there you go.

935
02:36:35.900 --> 02:36:42.330
Mar: As we go into this meeting tonight, I want people to remember that our Police Accountability Board is

936
02:36:42.490 --> 02:36:55.769
Mar: Completely collapsed, because this city is entirely unwilling to listen to the accountability recommendations they have put out time and time again.

937
02:36:58.580 --> 02:37:06.800
Boardroom: Thank you for your comments. Folks… And the last speaker is, Jim. Jim, you're the last speaker.

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938
02:37:13.460 --> 02:37:16.399
Boardroom: Go ahead, Jim, you should be able to unmute.

939
02:37:20.890 --> 02:37:21.680
Boardroom: Jim?

940
02:37:23.380 --> 02:37:26.970
Boardroom: Alright, we'll go to somebody else.

941
02:37:27.740 --> 02:37:31.620
Boardroom: Let's go to Daniel Brownson.

942
02:37:36.000 --> 02:37:40.650
Daniel Brownson: Hi, we're on just non-agenda public comment right now, right?

943
02:37:40.650 --> 02:37:41.330
Boardroom: Yep. Correct.

944
02:37:41.330 --> 02:37:45.630
Daniel Brownson: Okay, so, I…

945
02:37:46.390 --> 02:37:53.570
Daniel Brownson: I'm not sure if it has been placed on an agenda yet, but I'm strongly opposed to the idea of

946
02:37:54.060 --> 02:38:00.039
Daniel Brownson: re-legalizing the use of tear gas in Berkeley.

947
02:38:00.440 --> 02:38:04.519
Daniel Brownson: I have never seen an instance of fair gas used

948
02:38:04.630 --> 02:38:11.390
Daniel Brownson: in any way, except on protests. It's the only thing I've ever seen it used on.

949
02:38:11.680 --> 02:38:22.290
Daniel Brownson: And that's going to be what it's used on if it's permitted to be used again by the Berkeley PD. It was banned for a reason,

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950
02:38:22.570 --> 02:38:32.519
Daniel Brownson: And we should trust our, you know, prior judgment, and keep it in. There's no reason to use chemical weapons in Berkeley.

951
02:38:34.980 --> 02:38:36.070
Boardroom: Thank you.

952
02:38:37.190 --> 02:38:38.000
Boardroom: That's it.

953
02:38:42.180 --> 02:38:52.050
Boardroom: Great. I love the positive engagement, it's just, that is totally encouraged, it's just the booing that's not, so it's totally fine if you want to clap for things. I'm very supportive of it.

954
02:38:52.090 --> 02:39:07.409
Boardroom: Wow. Comedians out there tonight. Alright, so, we are now moving on to our consent calendar, and there's an urgency item from Councilmember Kesarwani, so I will let her, speak to that.

955
02:39:11.920 --> 02:39:29.529
Boardroom: Thank you very much, Madam Mayor. I am putting forward an urgent item. It is posted online, and it's also available in hard copy in the supplemental communications packet in the back. First, I want to thank my co-sponsors, Terry Taplin, Ben Bartlett, and Brent Blackaby.

956
02:39:29.850 --> 02:39:44.670
Boardroom: I'm the council representative for this park, which is now named, Cesar Chavez Park, so I felt it was important to take urgent action to respond to the shocking investigation published by the New York Times on March 18th.

957
02:39:44.680 --> 02:39:55.829
Boardroom: about the substantiated accusations of sexual violence committed by Cesar Chavez. This investigation was published after the deadline to submit items for this meeting had passed.

958
02:39:56.290 --> 02:40:10.479
Boardroom: The reason why we feel this is urgent is because a piece of this item directs the city manager to remove signage bearing Cesar Chavez's name immediately, which is important to me and others in the community that I have heard from.

959

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02:40:10.620 --> 02:40:26.079
Boardroom: I also understand there's a desire, particularly among members of the commemorative Committee who were involved in the 1994 renaming of the park, who wrote a letter to the council today to engage in a process for arriving at a new name.

960
02:40:26.080 --> 02:40:39.949
Boardroom: I had an opportunity to speak to one of the members of this committee, former school board director Beatrice Leva-Cutler, today. So I do have some amendments that I would like to propose to this item to ensure that a community discussion can take place.

961
02:40:40.110 --> 02:40:57.220
Boardroom: and that this item doesn't dictate a particular name. So I respectfully ask for your vote to accept this item, and I would suggest it be placed on action, just so that we can spend a few minutes on the proposed amendments, because I would want to share screen so everyone could see that. Thank you very much.

962
02:40:59.630 --> 02:41:07.390
Boardroom: Okay, so, yeah, I think it would be helpful to see some of the changes, because I know you mentioned that you've gotten some feedback.

963
02:41:07.560 --> 02:41:16.229
Boardroom: And I also do just want to comment that Councilmember, or Vice Mayor Luna Parra and Councilmembers Humbert and O'Keefe and I also submitted an item.

964
02:41:16.230 --> 02:41:27.810
Boardroom: to refer to the City Manager and Parks and Recreation Commission, a community process to rename the park sites and the holiday. There were a few different places that were mentioned in our item, which will come to Council on April 14th.

965
02:41:27.810 --> 02:41:31.610
Boardroom: And I'd also like to refer to the city manager outside of any of this.

966
02:41:31.610 --> 02:41:47.099
Boardroom: To change the, the holiday on the website to align with the state name, which is now Farm Workers Day, at least for this year. And also, I'd like to refer to the city manager the covering or removal of any signage related to Cesar Chavez.

967
02:41:47.560 --> 02:41:48.220

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Boardroom: So…

968
02:41:49.280 --> 02:42:06.770
Boardroom: So, I believe that we need a majority to… Two-thirds. Two-thirds to put this onto our agenda, onto an action item. So, I think it's probably easiest just to take the roll. I need a motion and a seconder.

969
02:42:06.770 --> 02:42:18.150
Boardroom: I'll make a motion to, your mic is. Oh, excuse me. Just make a motion to, to add the item. To add the item to the action calendar. Yes. Second.

970
02:42:18.520 --> 02:42:37.679
Boardroom: Okay. Seconded by Councilmember Bartlett. Calling the roll to add the item to the action calendar for tonight's agenda. Councilmember Kesarwani? Yes. Taplin? Yes. Bartlett? Yes. Dragov? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii?

971
02:42:37.930 --> 02:42:41.540
Boardroom: Yes. Okay, the item's added to the agenda for consideration.

972
02:42:42.240 --> 02:42:43.150
Boardroom: Okay.

973
02:42:43.260 --> 02:42:53.389
Boardroom: Very good, thank you. Alright, is there any other, are there any comments from my Council colleagues on the consent calendar or information items?

974
02:42:56.030 --> 02:42:58.070
Boardroom: Starting with Councilmember Treyka.

975
02:42:59.320 --> 02:43:02.620
Boardroom: Thank you so much, Madam Mayor.

976
02:43:02.780 --> 02:43:14.229
Boardroom: I would like to, first of all, thank, the Health, Housing, and Community Service, Director, Scott Gilman, and staff.

977
02:43:14.550 --> 02:43:22.689
Boardroom: for… Item 5, as the representative from the Council to the Mental Health Commission,

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978
02:43:22.690 --> 02:43:37.669
Boardroom: I support this important adjustment to ensure that, this commission continues to comply, with new state law, and also helps,

979
02:43:38.280 --> 02:43:48.200
Boardroom: increase the, efficiency and effectiveness, of this very important body with an important charge. I also,

980
02:43:48.370 --> 02:44:02.870
Boardroom: Support item 15, reappointing Dr. Edward Upton to the Mental Health Commission for a second term. He has been a wonderful colleague. Look forward to continuing our work together.

981
02:44:03.100 --> 02:44:15.299
Boardroom: I appreciate, the Peace and Justice Commission's leadership and work on items 16 and 17. On item 19, I would like to,

982
02:44:16.410 --> 02:44:26.429
Boardroom: thank, Councilmember Taplin for co-leading this very important event of Holocaust Remembrance Day.

983
02:44:27.630 --> 02:44:48.460
Boardroom: And, we frequently request something from our fellow elected and appointed officials, but we don't always remember to thank them when they do the right thing. Item 21 is a way of thanking the MTC for their full adoption and implementation of a strong and enforceable transit-oriented community policies with strong tenant protections.

984
02:44:48.460 --> 02:44:51.010
Boardroom: I would like to thank my co-sponsors.

985
02:44:51.010 --> 02:44:52.760
Boardroom: For being on that item.

986
02:44:53.260 --> 02:45:01.420
Boardroom: I'm very happy to offer item 20, along with Councilmember Kaplan.

987
02:45:01.540 --> 02:45:17.840
Boardroom: And with support of Councilmember Humbert, this is, an item that would, refer to the City Manager, regulations, controlling and restricting the use of glue traps.

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988
02:45:18.150 --> 02:45:32.239
Boardroom: I would like to read into the record, and I checked in with the city attorney and the, the clerk on this. It's ju- it's a very narrow amendment,

989
02:45:32.840 --> 02:45:52.359
Boardroom: Based on some feedback we received. So, it would, add the language, explore a narrow exemption for options of use for invertebrate, pest control, and scientific research, and potential implications thereof. And that would be the only change.

990
02:45:58.390 --> 02:46:15.220
Boardroom: I really love that amidst all the tough news and grief that our community is experiencing, we also find time and space for joy. And that is why I'm proud to co-sponsor item 23, Make Music Day, and I'm looking forward to partaking in this beautiful event.

991
02:46:15.220 --> 02:46:19.469
Boardroom: Thank you, to the author for that item.

992
02:46:19.620 --> 02:46:39.229
Boardroom: Thank you also, Councilmember O'Keefe, for sponsoring item 22, the Berkeley High School National Society of Black Engineers Junior Chapter. As a recovering engineer myself, I recognize the importance of this item and would like to contribute $150 for my D13 account.

993
02:46:39.360 --> 02:46:54.510
Boardroom: And last but not least, I would like to also contribute $150 to item 24, Berkeley Public Schools Fund Spring Luncheon, and thank Mayor Ishii and Councilmember Blackaby for their authorship of it. Thank you.

994
02:46:55.920 --> 02:46:59.300
Boardroom: Thank you very much, Councilmember… Councilmember Blackaby.

995
02:46:59.360 --> 02:47:13.510
Boardroom: Thank you, Madam Mayor. I'll be brief. Just wanted to thank you, Mayor, and also Councilmember Kessarwani, for your work on the, very, quick action to rename, Cesar Chavez Park. I know we're considering one tonight, we'll be considering one in the future.

996
02:47:13.510 --> 02:47:24.719
Boardroom: It's really important that we do this process and respond as quickly as possible and engage, our community in the process of what we want, to name, that facility going forward, so I appreciate your…

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997
02:47:24.720 --> 02:47:35.540
Boardroom: leadership on this, and proud to co-sponsor that. On item 18, I know we talked about it already, but thank the city auditor for her whistleblower report on the ambulance purchase. Thank you for sharing that with us.

998
02:47:35.610 --> 02:47:49.369
Boardroom: On item 19, thanks to Councilmember Taplin and Councilmember Tragib for authoring the, Holocaust Remembrance Day program item, allowing me to co-sponsor. I'd like to contribute $500 from my office account towards that event.

999
02:47:49.370 --> 02:48:03.859
Boardroom: On item 22, which is the Berkeley High School National Society of Black Engineers Jupiter, Junior Chapter, again, thanks to Councilmember O'Keefe for her work on that, we'd like to contribute $250 from our office account towards that event.

1000
02:48:04.020 --> 02:48:23.590
Boardroom: On item 23, I think many of us were at a really wonderful event earlier today where we celebrated, music in Berkeley Public Schools. I'd like to take any opportunity that we can do to bring music to the community. So item 23 on Make Music Day, again, we'd like to contribute $250 from our office towards that effort.

1001
02:48:23.590 --> 02:48:26.820
Boardroom: And finally, on item 24,

1002
02:48:26.960 --> 02:48:41.280
Boardroom: I was pleased to be able to bring that forward with the Mayor, the Berkeley Public Schools Fund Luncheon. I also wanted to add, Councilmember O'Keefe as a co-sponsor to that item, and look forward to that event as well. That's it, thank you.

1003
02:48:41.560 --> 02:48:43.880
Boardroom: Thank you very much. Councilmember Bartlett?

1004
02:48:44.660 --> 02:48:52.359
Boardroom: Thank you, Madam Mayor. And also thank you, Councilor Cassarwani, for your fast action representing your district, with your park and controversy there.

1005
02:48:52.560 --> 02:49:04.479

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Boardroom: Good work, thank God I'd be a part of that. I'm 13, I'm really happy about this, to the city manager here. Shout out to you, Paul. My constituents need this badly. You're funding some people to fix the pavement.

1006
02:49:04.790 --> 02:49:05.710
Boardroom: Thank you.

1007
02:49:06.630 --> 02:49:15.160
Boardroom: Constant, constant refrain. I'm 19, Councilmember Trego, I want to thank you for doing this. I want to give you $200, and

1008
02:49:15.260 --> 02:49:17.390
Boardroom: For this event. It's a wonderful event.

1009
02:49:17.900 --> 02:49:19.369
Boardroom: Holocaust Remembrance Event.

1010
02:49:19.770 --> 02:49:21.700
Boardroom: We have item 22.

1011
02:49:21.960 --> 02:49:39.410
Boardroom: This is a wonderful group, the Black Engineers, the National Society of Black Engineers Junior Chapter at BUST. I'm happy to contribute $200. I was never good at math, but, I've become good at it. Item 23, again, Councilmember O'Keefe, thank you for this. Make Music Day.

1012
02:49:39.410 --> 02:49:44.660
Boardroom: You know, arts is so important to you and to all of us, and helping contribute towards all of that as well.

1013
02:49:44.690 --> 02:49:49.000
Boardroom: And then, lastly, but not least, the Spring Luncheon.

1014
02:49:49.090 --> 02:49:55.640
Boardroom: I'd like to give $200 to the BUST Spring Luncheon, and thank you, Councilor Blackaby, for your work in bringing this forward.

1015
02:49:56.890 --> 02:49:58.739
Boardroom: Thank you. Councilmember O'Keefe?

1016

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02:49:59.640 --> 02:50:00.759
Boardroom: Thank you, Mayor.

1017
02:50:01.140 --> 02:50:12.109
Boardroom: Okay, I have 6 things, I'll go in numerical order. Item 19, Holocaust Remembrance Day, I would like to be recorded as donating $250. Thank you very much for bringing that.

1018
02:50:12.480 --> 02:50:24.280
Boardroom: Item 20, I just wanted to say thank you to Councilmember Trey Group, I think that's an important issue, and just really appreciate you. Is there a co-sponsor spot, or not? I believe there is. Can I have it?

1019
02:50:24.710 --> 02:50:30.050
Boardroom: Okay, great. So, can I co-sponsor it? You didn't say yes, actually.

1020
02:50:30.680 --> 02:50:41.410
Boardroom: Only if we don't trap you into sponsoring. Yes, happy to. Okay. I did it voluntarily. Excuse me. Item 22, my item. Thank you so much to those who contributed.

1021
02:50:41.580 --> 02:50:50.799
Boardroom: I really, it's very personal to me that I teach computer science at Berkeley High School. The class I teach is an entry-level class that's really…

1022
02:50:51.430 --> 02:51:01.600
Boardroom: mission-oriented to bringing in more racial and gender diversity into programming, so it's really an issue that's really close to my heart. And Mr. Binloss.

1023
02:51:01.870 --> 02:51:14.260
Boardroom: who is a counselor at Berkeley High, one of my favorite colleagues. He and I work closely together. You know, I recruit from NSBE, he recruits for NSBE from my class, and we just, we work together every year. We both,

1024
02:51:14.260 --> 02:51:28.810
Boardroom: are really supportive of the mission, and he's just, he's an absolute gem. And I, I really, want to take another moment, because he was going to be here with some of the students, and they're not here tonight. It's because they just went to their conference.

1025

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02:51:29.140 --> 02:51:41.749
Boardroom: or the National NSBE Conference in Baltimore, and I heard they had a great time, but they were supposed to come back on Sunday, and I don't know what happened, but something… something upsetting happened, and they had a lot of trouble getting back, and they got back.

1026
02:51:41.780 --> 02:51:51.990
Boardroom: last night at 1.30 in the morning, I think, so they asked to come to another meeting and express their thanks. But, I think he asked me to express a thank you to all of you.

1027
02:51:52.020 --> 02:51:58.200
Boardroom: On his behalf. So anyway, NSBE is great, Mr. Bunloss is great, and thank you so much.

1028
02:51:58.810 --> 02:52:11.300
Boardroom: Okay, I'm trying to go faster. The other item, that was mine, Make Music Day, I just want to say, it sounds like we will have some, commentary on it during the consent calendar comments, but…

1029
02:52:11.300 --> 02:52:20.270
Boardroom: Just so everyone knows, it's an event I'm really excited about. It's actually a worldwide event, different cities participate. It originated in Paris, and it's always on the summer solstice.

1030
02:52:20.270 --> 02:52:26.910
Boardroom: And the idea is that there's free music everywhere in the city. And so, if you are a musician.

1031
02:52:27.100 --> 02:52:36.990
Boardroom: even if you're not a good one, it doesn't matter. Amateur, professional, anything, go to the city website. There's a website, that the Downtown Berkeley Association will publicize.

1032
02:52:37.010 --> 02:52:50.020
Boardroom: Where you can look for a venue that will be open, that can be open, that's like a matching website, basically. So, if you have a venue, which could even be just a sidewalk in front of your store, or a park, or anything like that,

1033
02:52:50.080 --> 02:52:58.210
Boardroom: You can list your venues, and then if you are a musician, you can sign up to perform at that venue. And so the idea is, on the summer solstice.

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1034
02:52:58.460 --> 02:53:05.760
Boardroom: Berkeley will be filled with music, and it's all free, and it's just a really wonderful event. They have a huge one in New York City, and we're bringing it to Berkeley, and I'm really, really excited.

1035
02:53:06.130 --> 02:53:08.999
Boardroom: So, thank you, everyone, who contributed.

1036
02:53:09.150 --> 02:53:18.159
Boardroom: And, I'm almost done, and item 24, Spring Luncheon, thank you for adding me as a co-sponsor. Does that mean that I gave it money, or do I have to say that I'm giving it money?

1037
02:53:18.320 --> 02:53:24.119
Boardroom: I'm giving it $250, in addition to co-sponsoring it. And that's all. Thank you so much.

1038
02:53:24.350 --> 02:53:38.519
Boardroom: Thank you, Councilmember. Councilmember Humbert? Thank you, Madam Mayor. Yeah, as to number 19, the Holocaust Remembrance Day program, I'd like to contribute $500 from the D8, discretionary account.

1039
02:53:38.660 --> 02:53:50.790
Boardroom: Item number 22, the, National Society of Black Engineers, want to donate $250.

1040
02:53:51.010 --> 02:54:00.030
Boardroom: 23, Make Music Day, want to donate $250. And the Spring Luncheon, another $250. Thank you.

1041
02:54:01.560 --> 02:54:03.850
Boardroom: Thank you. Vice Mayor Lunapara.

1042
02:54:04.320 --> 02:54:16.650
Boardroom: Thank you. I would like to donate $250 to, item 19, and $150 to items 22, 23, and 24. Thanks to all the authors of those items.

1043
02:54:16.850 --> 02:54:25.239
Boardroom: I also would like to pull item 7, the 2845 Woolsey Street Mills Act contract from

1044
02:54:25.370 --> 02:54:34.929

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Boardroom: the consent calendar, move it to action, because the Landmark Preservation Commission didn't have a definitive… they didn't vote on this at all. They got stuck.

1045
02:54:35.100 --> 02:54:42.070
Boardroom: So I would like to have more discussion about that item. I'm happy to join you in pulling that item. Me too. Thank you.

1046
02:54:44.650 --> 02:54:52.760
Boardroom: Okay, thank you very much. Moving on to Councilmember Taplin. Thank you. On items 22, 23, and 24,

1047
02:54:52.900 --> 02:54:59.760
Boardroom: I would… I'd like to thank Councilmembers O'Keefe and Blackaby, and relinquish $250 to each item, respectively. Thank you.

1048
02:55:01.820 --> 02:55:26.419
Boardroom: Okay, thank you very much. Alright, so, I just have a few comments myself. I really want to, again, appreciate all of the grants that our staff pursue to deliver quality services to the community. Item number 4 is to conduct public health promotion, protection, and prevention services for our school-based health services, totaling $465,258 for FY27. I've been really trying to highlight for folks all of the grants

1049
02:55:26.420 --> 02:55:27.729
Boardroom: That our city staff

1050
02:55:27.730 --> 02:55:44.619
Boardroom: are applying for, so you know that not only do we have tax money, but also we're trying to leverage those funds to be able to reach, more people and provide more services, so thank you very much to staff. For item 15, I'd like to give a special thanks to Edward Optin for his commitment to continue to serve on the Mental Health Commission.

1051
02:55:44.620 --> 02:55:50.490
Boardroom: For our commissioners, this is, you know, mostly an unpaid labor of love, so I really want to thank you all.

1052
02:55:50.490 --> 02:56:07.839
Boardroom: Lastly, I'd like to thank the Council members for their contributions to the 2026 Holocaust Remembrance Day, the Berkeley High National Society of Black Engineers Junior Chapter, Make Music Day, and the Berkeley Public Schools Fund. It's really a joy to see all of these, you know, community events that we're supporting. Thank you all.

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1053
02:56:07.840 --> 02:56:14.290
Boardroom: Okay, so I will now take public comment on consent calendar or information items only.

1054
02:56:14.370 --> 02:56:16.449
Boardroom: So, come on up. Oh.

1055
02:56:16.900 --> 02:56:41.159
Boardroom: Oh, I'm sorry. Oh, Councilmember, as you're coming up, Councilmember Kessarwani is going to give some comments as well. Okay, thank you very much, Madam Mayor. I pushed my, parliamentarian button late, so I didn't want to miss out on making my donations. First, I just want to clarify, for item 16, we've made that clear that that will be referred to the budget process. Okay, folks, and so I'd like to be recorded as donating $250 for

1056
02:56:41.160 --> 02:56:55.180
Boardroom: Holocaust Remembrance Day, as well as $100 for the National Society of Black Engineers Junior Chapter, $100 for Make Music Day, and $100 for the Berkeley Public Schools Fund Luncheon. Thank you very much.

1057
02:56:55.700 --> 02:56:57.200
Boardroom: Thank you. Okay.

1058
02:56:57.320 --> 02:57:07.200
Boardroom: Come on up! This is for public comment for consent and information items only, folks. Please, we want to make sure we're hearing all of our public comment. If you're having a conversation, especially here in the front row.

1059
02:57:07.400 --> 02:57:08.400
Boardroom: Alana?

1060
02:57:08.780 --> 02:57:25.180
Boardroom: If you could please just take your conversations outside, I would really appreciate it, because I want to be able to hear everyone's comments. I'm sorry, go ahead. Thank you. I want to appreciate Edward Opton for continuing to serve on the Mental Health Commission. That is a very thankless job, because there's not enough support for that commission.

1061
02:57:25.180 --> 02:57:29.600
Boardroom: We need y'all to get involved in the state of mental health

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1062
02:57:29.600 --> 02:57:33.739
Boardroom: in Berkeley. You want to reduce the police budget? Well, guess what?

1063
02:57:33.840 --> 02:57:48.300
Boardroom: If we can deal compassionately with people with mental health disabilities and going through a mental health crisis, you'll save a ton of money, and we won't have overpriced cops responding to mental health emergencies.

1064
02:57:48.620 --> 02:57:52.469
Boardroom: Of course, The mayor knows my passion for

1065
02:57:52.680 --> 02:58:03.960
Boardroom: Wheelchair-accessible vehicles. Because the special care unit spent over a year outfitting, in great detail, two vehicles at a huge expense.

1066
02:58:04.180 --> 02:58:07.559
Boardroom: Nobody in this city, can somebody please tell me where they are.

1067
02:58:07.820 --> 02:58:09.440
Boardroom: Where's the whistleblower?

1068
02:58:09.670 --> 02:58:17.860
Boardroom: Where are those… they are vital for our city. Can you tell me, Mr. City Manager, Thank you.

1069
02:58:17.980 --> 02:58:19.250
Boardroom: Thank you.

1070
02:58:23.090 --> 02:58:47.739
Boardroom: Hi, I want to speak to, item number 17, and this is from the Peace and Justice Commission, and this reaffirms the City of Berkeley's commitment to free speech and assembly in opposition to the detainment and deportation of immigrants without due process. And it goes on and on in the text of this, of this item about what this time is and what it means. Sorry, are you talking about something on consent calendar? Yeah, it's item 17. 17. The Peace and Justice,

1071
02:58:47.740 --> 02:58:48.850

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Boardroom: Yeah, Commissioner. Thank you.

1072
02:58:48.850 --> 02:59:07.150
Boardroom: So, you know, it talks about our commitment to free speech and how we have to reaffirm that commitment right now because of things that are happening right now. And what I would like to know is, has this Commission commented on any other very pertinent items on tonight's calendar, like one that would completely

1073
02:59:07.210 --> 02:59:24.909
Boardroom: upend what is in this text, what we'd be doing here? Because we have an item later on that is terrible for free speech, would uphold deportation, and I don't see their comments on this item, but I see supplementals from 6 of you that do the opposite!

1074
02:59:25.760 --> 02:59:26.700
Boardroom: Thank you!

1075
02:59:32.460 --> 02:59:38.480
Boardroom: Hi, my name's Matthew, I'm in District 3. I just wanted to say I'm really glad for Berkeley City Council for item number 20.

1076
02:59:38.820 --> 02:59:41.919
Boardroom: Sorry, for item number 20, to consider a ban on glue traps.

1077
02:59:42.020 --> 02:59:55.780
Boardroom: hopefully will become legislation before too long, especially thank you for Councilmembers Trigov, Taplin, and Humbert for introducing it, and O'Keefe, joining as well. Berkeley has historically led the way on a lot of

1078
02:59:55.990 --> 03:00:04.530
Boardroom: issues, and I hope can lead on care for animals and in glue traps as an important part of continuing that legacy. Thank you all very much.

1079
03:00:04.800 --> 03:00:05.920
Boardroom: Thank you.

1080
03:00:14.020 --> 03:00:22.039
Boardroom: Good evening, Madam Mayor and the City Council members. My name is Madhuvala Anderson, and I'm here to support item number 20.

1081

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03:00:22.170 --> 03:00:36.520
Boardroom: The glue trap band. For anyone who isn't familiar with glue traps, they are a cruel and sadistic method of catching and killing animals by subjecting them to a slow and excruciating death. After getting stuck to the glue.

1082
03:00:36.520 --> 03:00:53.670
Boardroom: Stongbirds, squirtles, lizards, mice, and other small animals often suffer for more than 24 hours before dying from blood loss, dehydration, or starvation. Some trapped animals even chew off their own limbs in a desperate attempt to escape, and others suffocate to death.

1083
03:00:53.670 --> 03:01:05.559
Boardroom: After their nostrils and mouths become glued shut, new traps have already been banned in several other cities in California. It's time to ban in Berkeley. Thank you for considering the ban. Thank you.

1084
03:01:05.920 --> 03:01:07.240
Boardroom: Thank you.

1085
03:01:09.960 --> 03:01:19.259
Boardroom: Folks, I know a lot of people are standing, I'm not sure if you're here for comment, but, go ahead and find a seat. There are some more seats around. And folks, please make room for everyone so that people can sit down.

1086
03:01:20.310 --> 03:01:35.520
Boardroom: Good evening, Council. My name is Jacob Shaw. I live here in Berkeley, walking distance from here, which is very nice, coming from Southern California, where I previously lived and had to drive everywhere and hate it. I live in Berkeley and also work for People for the Ethical Treatment of Animals.

1087
03:01:35.520 --> 03:01:40.329
Boardroom: And one of the things I do there is research wildlife control products, like glue traps.

1088
03:01:40.350 --> 03:01:48.289
Boardroom: And, as the previous speaker mentioned, these traps are already banned in England, Germany, Iceland, Ireland, New Zealand, Scotland, and Wales.

1089
03:01:48.290 --> 03:02:00.470
Boardroom: They've been banned in 3 cities in California, which is what I'm used to saying, but it's actually 4 after today, because the city of

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Ventura just, adopted their second reading of an ordinance today. This is just an…

1090
03:02:00.480 --> 03:02:04.430
Boardroom: Very simple, easy thing that the Council can do to

1091
03:02:04.490 --> 03:02:19.349
Boardroom: reduce some of the suffering that happens in the world. There's so much of it, and a lot of it feels like it's out of our control, but this is just one small thing we can do to make the world a slightly kinder, more compassionate place for the animals who we get to share this

1092
03:02:19.720 --> 03:02:23.039
Boardroom: at times, awesome world, Wes. Thank you. Thank you.

1093
03:02:29.960 --> 03:02:32.370
Boardroom: I'm gonna take a minute from my husband.

1094
03:02:33.340 --> 03:02:35.330
Boardroom: So I have 2 minutes, so…

1095
03:02:35.580 --> 03:02:49.600
Boardroom: So, item number 14, this is, like, millions and millions of dollars. I couldn't count, I didn't have a calculator, but I… I got to, like, 20 million, and this is on consent for consultants.

1096
03:02:50.300 --> 03:02:52.529
Boardroom: When you're facing a deficit.

1097
03:02:52.770 --> 03:02:59.480
Boardroom: Like, what the heck is everybody else doing that's supposed to be working for the City of Berkeley when you have this much in consultants?

1098
03:02:59.590 --> 03:03:01.500
Boardroom: That's kinda ridiculous.

1099
03:03:02.020 --> 03:03:09.890
Boardroom: And, as stated previously, Today is 899 days of the genocide.

1100
03:03:10.020 --> 03:03:19.370

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Boardroom: And I hope you remember the genocide holocaust that is occurring currently. We haven't left it, there has been no pause.

1101
03:03:19.780 --> 03:03:29.959
Boardroom: In a ceasefire, The bombing continues, the drones continue, the, airstrikes continue.

1102
03:03:30.420 --> 03:03:38.190
Boardroom: They, they stated that since the so-called ceasefire, over 677 Palestinians have

1103
03:03:38.350 --> 03:03:48.710
Boardroom: been killed. 1,800 plus injured. There was a sandstorm last week, and so many people Who are already

1104
03:03:49.000 --> 03:03:55.289
Boardroom: In a catastrophic situation, no water, no food, starving.

1105
03:03:55.730 --> 03:04:03.950
Boardroom: were affected by the sandstorms. The air was orange in front of them. That's what you saw if you looked outside.

1106
03:04:04.140 --> 03:04:11.669
Boardroom: So, have some compassion. You talked about having compassion in your Holocaust remembrance, but it doesn't seem like

1107
03:04:12.010 --> 03:04:20.500
Boardroom: you know, that was kind of a hypocritical thing to say, because you were saying all these words, but you don't apply it to Gaza, so…

1108
03:04:21.010 --> 03:04:24.809
Boardroom: You know, you're just being really pathetic and sad.

1109
03:04:25.600 --> 03:04:26.440
Boardroom: And…

1110
03:04:27.180 --> 03:04:38.400
Boardroom: You know, millions of dollars shouldn't be on the consent calendar. Free Palestine, free Palestine, free yourselves from Zionism and… and AIPAC. Thank you.

1111

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03:04:38.610 --> 03:04:39.430
Boardroom: Thank you.

1112
03:04:43.900 --> 03:04:53.559
Boardroom: Speaking on behalf of item 16, Grace Marazzara and I have been authorized by the Peace and Justice Commission to speak on behalf of this issue.

1113
03:04:53.560 --> 03:05:02.950
Boardroom: The last time the Alien Enemies Act was invoked was during World War II, where Japanese, Italians, and German persons

1114
03:05:02.950 --> 03:05:14.629
Boardroom: were placed in internment camps. And this educational event is important. We have reached out to the mayor's office so that perhaps rare that becoming lost in the budget process.

1115
03:05:14.630 --> 03:05:25.500
Boardroom: an item can come before Council where there, would be contributions from Council members' accounts as we develop this through a community organization.

1116
03:05:25.500 --> 03:05:44.629
Boardroom: I want to reference the glue traps item before, Grace speaks, which is just, is this going to be another feel-good item that isn't enforced, such as the elevator ordinance, the no-smoking ordinance near businesses, and the, source of income ordinance, the…

1117
03:05:44.770 --> 03:05:46.820
Boardroom: Thanks. Is that true? Thanks, Carol.

1118
03:05:47.200 --> 03:05:49.520
Boardroom: Nice girl! Nice girl!

1119
03:05:51.080 --> 03:06:00.679
Boardroom: Good evening, everybody. I want to first thank you all for putting this on the consent calendar. I have to always speak personally if it's an item that,

1120
03:06:00.950 --> 03:06:20.629
Boardroom: speaks to… about the Japanese-American experience in my own family. I had a relative arrested on December 7th, disappeared for weeks, almost a month, until we found him. I mean, I wasn't thin, but my family found him, and subsequently died without seeing his children afterwards.

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1121
03:06:20.730 --> 03:06:35.010
Boardroom: So, just to tell you that, actually, I want to be very practical. I want to say that for the Peace and Justice Commission, we had a panel, and it was a panel of experts talk about the Alien Enemies Act.

1122
03:06:35.010 --> 03:06:46.389
Boardroom: So I hope when you consider this, you will consider having a panel, because I think the interaction and discussion and the learning deeply about how that affected us

1123
03:06:46.450 --> 03:06:52.770
Boardroom: Then, and how it is, you… it's really… legitimizes

1124
03:06:53.550 --> 03:06:57.160
Boardroom: Thanks. Thanks, Grace. Bye. Thank you.

1125
03:07:02.680 --> 03:07:21.219
Boardroom: Okay, my name is Jeanette McNeil, and I'm authorized to speak on behalf of the Peace and Justice Commission on Item 17, the Free Speech and Right to Protest. We wrote this recommendation about a year ago, and I will just say, now more than ever, we must protect our rights to speech and to protest.

1126
03:07:21.220 --> 03:07:29.149
Boardroom: And yes, peace and justice is strongly speaking out on flock, as well as the rollback of police accountability and tactics.

1127
03:07:29.530 --> 03:07:36.190
Boardroom: And we passed resolutions on all three of these issues last week. Thank you.

1128
03:07:36.790 --> 03:07:38.270
Boardroom: Thank you.

1129
03:07:45.360 --> 03:08:00.259
Boardroom: Good evening again, Madam Mayor and the Council members. Since you're making the… I'm all for Item 1, you're making the new zoning density rules, but I want to ask, what's the point if you're actively enabling existing

1130
03:08:00.630 --> 03:08:08.360

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Boardroom: density fraud. And I report this multiple times, and the city just joined me with procedure suppression.

1131
03:08:08.570 --> 03:08:11.560
Boardroom: Without any response, Thank you.

1132
03:08:13.700 --> 03:08:20.100
Boardroom: Thank you. Are you all in line to speak? There are a lot of folks standing in line.

1133
03:08:20.980 --> 03:08:36.279
Boardroom: Sorry, there's a sign, actually, that says, no standing alongside this wall, and partially it's because it's hard for me to keep track of who's actually speaking or not. There are seats up here, I know there's some seats sprinkled throughout. If you've got a seat next to you, can you raise your hand?

1134
03:08:37.010 --> 03:08:40.330
Boardroom: Thank you. Andrea, is that a seat next to you two?

1135
03:08:41.020 --> 03:08:53.569
Boardroom: Okay, I just want to let folks sit. I think there are seats spread throughout. Thank you for those of you who are raising your hands. Okay, go ahead. Hi there. I just want you to appreciate the city auditor's report.

1136
03:08:53.700 --> 03:09:00.050
Boardroom: And… On that topic of auditing, I'm wondering… Google audits the

1137
03:09:00.050 --> 03:09:19.840
Boardroom: police reports. Because the… I have data here, and it was contested, but this was data that was taken from the Transparency Hub that our police department… Alana, what's that data? Sorry. This is about… this is about… The Auditor's report isn't on our consent calendar. You said about information items, or… Okay.

1138
03:09:19.910 --> 03:09:20.980
Boardroom: So, go ahead.

1139
03:09:20.980 --> 03:09:45.580
Boardroom: So, racial profiling continues in Berkeley. I'm, like, you know, 10 seconds back or something. Please, let her finish. Thank you. Give her the time to speak, you need to stop talking so that she can

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speak. Okay. Alright, you've got another minute. There you go. Give me 2 minutes. A minute plus your 10 additional 10 seconds. I got 3 minutes. Another minute, okay. It's important, because this data was done

1140
03:09:45.580 --> 03:09:50.820
Boardroom: by a man named Tarek Shaw, who will be here later, who is with the, Human Rights

1141
03:09:50.820 --> 03:09:55.640
Boardroom: Data analysis group, a serious data analyst who

1142
03:09:55.840 --> 03:10:10.340
Boardroom: who has a program that runs and takes the data from the Transparency Hub. I know y'all don't want to hear this, Kesarwani and others, but the reality is that racial profiling is alive and well in Berkeley in 2025. In fact.

1143
03:10:10.970 --> 03:10:24.369
Boardroom: Not only is racial profiling alive and well, if you are a black person, you are 6 times more likely than a white person to get stopped while driving, you are 9 times more likely to be stopped on foot if you're black.

1144
03:10:24.560 --> 03:10:26.380
Boardroom: You… and…

1145
03:10:26.930 --> 03:10:42.570
Boardroom: Some of these folks on the dais were here in February 2020 when you all directed our police department to eliminate low-level offenses. You said, do not do this anymore, people. Some of y'all were on the council then. Well, guess what?

1146
03:10:42.830 --> 03:10:49.470
Boardroom: They're still doing it, okay? They continue to make low-level stops, think they target?

1147
03:10:49.810 --> 03:10:56.199
Boardroom: Y'all know black people, okay? Because we know in 2025, there were four

1148
03:10:56.350 --> 03:11:08.369
Boardroom: 489 equipment violations! 489! That's more than one per day! 45 seatbelt violations, and how did this affect black people? Black people were stopped for equipment violations

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1149
03:11:09.020 --> 03:11:24.909
Boardroom: times more than expected from their representation in the population. Black people were pulled over for seatbelt violation 10 times more than expected from their representation in the population. In short, the BPD stop data demonstrates

1150
03:11:24.910 --> 03:11:34.639
Boardroom: very strong, statistically significant evidence of racial profiling, and so whatever they say about the veil of darkness in the BPD report.

1151
03:11:35.700 --> 03:11:39.450
Boardroom: auditing their numbers. Is the Police Accountability Board?

1152
03:11:39.560 --> 03:11:43.490
Boardroom: Does the Police Accountability Board, are they even checking it?

1153
03:11:43.680 --> 03:11:58.230
Boardroom: besides Arlo telling you what this data is, so I really want to encourage you, we need the auditor to audit that, because these numbers are real, and we've got to stop… let's focus on stopping racial profiling. We don't need to…

1154
03:11:58.490 --> 03:12:02.339
Boardroom: expand surveillance here. We need to stop racial profiling.

1155
03:12:06.370 --> 03:12:12.640
Boardroom: Are there any more comments online for the consent calendar, or information items only?

1156
03:12:14.080 --> 03:12:21.380
Boardroom: Okay, so this is… Do you have a comment for consent calendar or information items only? Are we counting item 27 as information item?

1157
03:12:21.790 --> 03:12:30.979
Boardroom: Yes, I just have to scroll down to where 27? The, settlement? Yes. The settlement agreement, yes. Go ahead. Thank you.

1158
03:12:31.990 --> 03:12:41.850

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Boardroom: My name's Nathan Meisel, I'll be brief, I'll be talking about flock shortly here. I just want to talk about the settlement. This is a case where I sued the City of Berkeley for violating the Brown Act.

1159
03:12:42.240 --> 03:12:45.570
Boardroom: And we won. We won the case, because sadly…

1160
03:12:46.060 --> 03:12:49.789
Boardroom: This city, and I won't acknowledge it, was a different mayor at the time,

1161
03:12:50.030 --> 03:12:51.640
Boardroom: Sometimes it breaks the law.

1162
03:12:51.910 --> 03:12:58.919
Boardroom: Sometimes the folks we contract with break the law. And sometimes we have to reflect on the facts.

1163
03:12:59.310 --> 03:13:05.210
Boardroom: That the public Are the bosses of the people in this city.

1164
03:13:08.120 --> 03:13:19.000
Boardroom: Their voice is the voice we are responsible to. Not our personal aspirations, not this and that, not our misguided reading of law.

1165
03:13:19.550 --> 03:13:21.730
Boardroom: But the people.

1166
03:13:22.300 --> 03:13:25.799
Boardroom: And I think they're gonna remind you of that throughout public comment tonight.

1167
03:13:26.840 --> 03:13:31.639
Boardroom: But again, I want to thank our attorney, Jonathan Weisglass, I want to thank those,

1168
03:13:32.390 --> 03:13:38.040
Boardroom: I want to thank all the people who were part of the lawsuit, and… Thank you. I'm glad we won. Thanks. Thank you.

1169
03:13:45.990 --> 03:13:48.990

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Boardroom: So now it's time, if you're on the Zoom…

1170
03:13:49.110 --> 03:13:58.169
Boardroom: This is public comment on consent calendar items and information items, so if you're on the Zoom and you want to talk to an item that is on the consent calendar.

1171
03:13:58.350 --> 03:14:00.970
Boardroom: Go ahead and raise your hand. We currently have

1172
03:14:01.100 --> 03:14:06.440
Boardroom: 10 hands raised. The first speaker is Mar.

1173
03:14:10.120 --> 03:14:17.080
Mar: Regarding Item 16 about the Aliens and Enemies Act and Item 17 about free speech.

1174
03:14:17.720 --> 03:14:22.960
Mar: And we'll get into this later, of course, with the flock discussion. I am…

1175
03:14:23.160 --> 03:14:41.599
Mar: just once again, pointing out the hypocrisy of the Berkeley City Council to talk about one thing and then act in a totally oppositional way when it comes to our own city. We want to talk about the history and how we feel about defending people's right to speak.

1176
03:14:41.600 --> 03:14:45.499
Mar: But then you don't actually listen to what we're saying when we speak.

1177
03:14:48.410 --> 03:14:50.909
Mar: That's… yeah, I'll talk more later.

1178
03:14:51.100 --> 03:14:56.429
Boardroom: Thank you. Next is Seth Newman.

1179
03:14:58.940 --> 03:15:01.770
Seth Newman: Hi there. I'm Seth.

1180
03:15:01.770 --> 03:15:24.479

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Seth Newman: I'm here to express my support and gratitude, for Councilmember Blackaby for initiating Consent Item 24 on behalf of the Berkeley Public Schools Fund. Additional thanks to the Mayor and the entire Council for jumping in with their support. I'll be brief, the Berkeley Public Schools Fund is the singular nonprofit that champions equitable public education for all 19 schools across Berkeley.

1181
03:15:24.480 --> 03:15:49.259
Seth Newman: from preschool to adult school. This spring, we're bringing back the Spring Luncheon, which is a beloved Berkeley tradition that unites public education advocates from all across the city, including elected officials, educators, families, local businesses, and volunteers. The event also raises vital funds to support Berkeley schools and Berkeley students, and celebrates educators and community members who help ensure that Berkeley public schools work well for all

1182
03:15:49.260 --> 03:16:02.680
Seth Newman: of our students. The Spring Luncheon is gonna be on Friday, May 8th, at CL Creative Space in West Berkeley, and information about ticket sales and sponsorships can be found on our website. We really appreciate the city's support of our public schools, and we hope to see y'all there.

1183
03:16:02.850 --> 03:16:04.300
Boardroom: Thanks so much.

1184
03:16:05.040 --> 03:16:07.059
Boardroom: Next is Allison.

1185
03:16:11.070 --> 03:16:25.500
Alison: Yes, thank you, good evening, and thank you for this opportunity. I'm commenting on item number 20, banning the sale and use of glue traps. My name is Allison Hermans, I have worked in wildlife rehabilitation and wildlife advocacy for the past 23 years.

1186
03:16:25.500 --> 03:16:32.060
Alison: And in the wildlife hospital, without a doubt, the most heartbreaking cases we see are those involving glue traps.

1187
03:16:32.140 --> 03:16:43.520
Alison: As has already been stated, a glue trap doesn't immediately kill the animal. Instead, the trapped animal must die slowly of dehydration, stress, starvation, and exposure.

1188
03:16:43.650 --> 03:16:57.440

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Alison: Many of the animals brought to wildlife hospitals are actually the intended targets, rats and mice. Most people, after they see the extreme stress and suffering a glue-trapped animal undergoes, are horrified, and they rush the animal to a wildlife hospital.

1189
03:16:57.460 --> 03:17:13.810
Alison: But glue traps are indiscriminate killers, capturing small animals of all kinds, including lizards, snakes, baby opossums, other baby animals, and a shocking number of songbirds. No animal should ever have to suffer the way a glue-trapped animal does. I urge you to strongly vote in support.

1190
03:17:13.810 --> 03:17:17.060
Boardroom: Thanks, thanks so much. Next is Aaron Deem.

1191
03:17:19.520 --> 03:17:32.029
Erin Diehm: Good evening, Council. Thank you for taking my comment and speaking on item 20 in support of the referral to ban glue traps. Thank you to Council Members Tragueb and Taplin and the co-authors Humbert and O'Keefe.

1192
03:17:32.030 --> 03:17:39.950
Erin Diehm: And to the 146 organizations who signed on to this very important matter, and to all the people behind the scenes who worked on it.

1193
03:17:39.960 --> 03:17:51.899
Erin Diehm: As you've heard already, glue traps are just absolutely humane, suffering all kinds of wildlife are impacted, lizards and songbirds. And on that end, I want to just say thank you.

1194
03:17:51.900 --> 03:18:10.379
Erin Diehm: for the reference in the item about the significant declines in birds and songbirds, that we've lost one-third of all birds, that's 3 billion birds, since the 70s, and especially this quote that we are preserving biodiversity, including the city's wildlife. Thank you for acknowledging the value of wildlife in our cities.

1195
03:18:10.390 --> 03:18:22.730
Erin Diehm: Personally, I've seen the photographs from these rehabilitation… wildlife rehabilitation centers, and it is absolutely heartbreaking. So please, I thank you for this item, and one request I have…

1196
03:18:22.730 --> 03:18:26.559

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Boardroom: Sorry, your time's up, but thank you. Feel free to write us if you have more comments.

1197
03:18:26.720 --> 03:18:30.659
Boardroom: Next is a caller with a phone number ending in 211.

1198
03:18:36.220 --> 03:18:41.839
1510****211: Hi, again, the Holocaust consent item 19.

1199
03:18:41.950 --> 03:18:48.300
1510****211: 6 million innocent Jewish people, men, women, and children were murdered by Hitler.

1200
03:18:49.230 --> 03:18:52.870
1510****211: And the biggest genocide in history, actually, most people don't know what happened.

1201
03:18:53.070 --> 03:18:54.080
1510****211: It's happening?

1202
03:18:54.180 --> 03:19:02.650
1510****211: In the 13th century, by the army of King Kusan, he murdered 60 million people across the planet. 60 million.

1203
03:19:02.860 --> 03:19:04.070
1510****211: Maybe more.

1204
03:19:04.880 --> 03:19:10.329
1510****211: Eventually, have conquered all the way to Northern Europe, an issue.

1205
03:19:11.150 --> 03:19:14.010
1510****211: He was defeated in the Battle of Enzalut.

1206
03:19:14.300 --> 03:19:18.400
1510****211: in the year 1260 AD by Egypt.

1207
03:19:18.860 --> 03:19:21.670
1510****211: Egypt have a lot of… Lots of…

1208
03:19:21.860 --> 03:19:23.950

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1510****211: many thanks from us to Egypt.

1209
03:19:24.250 --> 03:19:29.430
1510****211: The last thing, Netanyahu is a bit criminal. He was about to go to prison.

1210
03:19:29.840 --> 03:19:34.250
1510****211: 4… And he used… Davis didn't file.

1211
03:19:34.400 --> 03:19:38.200
1510****211: the square… Trump to do the genocide happening now.

1212
03:19:38.550 --> 03:19:39.700
1510****211: They're on?

1213
03:19:39.700 --> 03:19:40.330
Boardroom: Comment.

1214
03:19:41.610 --> 03:19:44.489
Boardroom: Next is Kelly Hammergren.

1215
03:19:48.850 --> 03:20:04.979
kelly hammargren: Okay, I'll talk fast. So, on 13, I'm, glad that was withdrawn, but I hope that, since this is FF funds, that Safe Streets will meet and actually be able to see the projects before they go forward.

1216
03:20:05.180 --> 03:20:11.269
kelly hammargren: On 14, 34 contracts really is too many to be on consent.

1217
03:20:11.530 --> 03:20:22.790
kelly hammargren: On number 16 from the Peace and Justice and the Alien Enemies Act, I hope this doesn't mean that it's going to get dumped in the Budget Committee. I hope that we actually go through with that.

1218
03:20:22.990 --> 03:20:27.030
kelly hammargren: On item 20, this is really just,

1219
03:20:27.350 --> 03:20:37.520

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kelly hammargren: needs to be a high-priority item, so I hope that this doesn't get pushed to the bottom of things to do, and that we get it, implemented

1220
03:20:37.810 --> 03:20:40.380
kelly hammargren: As soon as possible.

1221
03:20:40.760 --> 03:20:41.940
kelly hammargren: And…

1222
03:20:42.150 --> 03:20:49.599
kelly hammargren: considering what's on our… the rest of the agenda for tonight, I'm hoping that all of you will re…

1223
03:20:49.880 --> 03:20:53.010
Boardroom: Thanks, Kelly. Thanks for your comments.

1224
03:20:54.520 --> 03:20:58.499
Boardroom: Next is a caller with a number ending in 405.

1225
03:21:08.890 --> 03:21:10.950
Boardroom: Press star 6 to unmute.

1226
03:21:20.870 --> 03:21:24.350
Boardroom: caller… Phone number ending in 405.

1227
03:21:26.730 --> 03:21:32.910
Boardroom: Okay, well… On to the next.

1228
03:21:33.230 --> 03:21:37.519
Boardroom: We have, Della Luna.

1229
03:21:41.640 --> 03:21:50.680
Della Luna (she/her) Huichun: Yes, thanks. First I would like to say about item 20 with the glue traps. I wish that this item came with

1230
03:21:51.330 --> 03:22:00.020
Della Luna (she/her) Huichun: recommendations for what people should be using. I don't think it addresses why people buy glue traps, it's because they want something that, can work.

1231

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03:22:00.150 --> 03:22:07.389
Della Luna (she/her) Huichun: And that is… so I just feel like, without providing an alternative, it's just kind of an empty item, and I would have liked it to be,

1232
03:22:07.500 --> 03:22:20.299
Della Luna (she/her) Huichun: also, like, I know vector control exists, but I don't really see a lot of activity with the rodents in the city outside of the lepto outbreak, so I just wish there was more proactive times instead of just banning glue traps.

1233
03:22:20.380 --> 03:22:24.199
Della Luna (she/her) Huichun: And then I wanted to speak also about the auditor's report. I'm…

1234
03:22:24.200 --> 03:22:28.090
Della Luna (she/her) Huichun: Super grateful that this work is happening, and we need to see more of this.

1235
03:22:28.090 --> 03:22:45.470
Della Luna (she/her) Huichun: from the auditor, and more robustness, but this is evidence that what's happening in the city and what's happening at the city council doesn't always jive, and if you're not going through and double-checking and doing due diligence, then there's often instances where negligence can come about, where things are happening, where you all are not aware.

1236
03:22:45.930 --> 03:22:46.919
Boardroom: Thank you.

1237
03:22:47.620 --> 03:22:53.879
Boardroom: Last… Speaker is… M. Jervis.

1238
03:22:54.780 --> 03:22:56.990
Boardroom: Downtown Berkeley.

1239
03:22:59.490 --> 03:23:00.449
mjervis@downtownberkeley.com: Can you hear me?

1240
03:23:01.090 --> 03:23:01.490
Boardroom: Yes.

1241
03:23:01.490 --> 03:23:10.509

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mjervis@downtownberkeley.com: Hi, yeah, Matthew Jervis from the Downtown Berkeley Association. I'm calling in to speak on item 23, Make Music Day.

1242
03:23:10.750 --> 03:23:27.579
mjervis@downtownberkeley.com: Make Music Day Berkeley. Very excited to have this, in our city, and I wanted to… and I also appreciate the Council's support on this, and thank you everyone who's been able to, donate some money to this super fun event, making Berkeley a stage for the afternoon of June 21st.

1243
03:23:27.580 --> 03:23:39.369
mjervis@downtownberkeley.com: Anyone who would like to host, or, music, performance, or be a performer, sign in on, online makemusic.org backslash berkeley.

1244
03:23:39.660 --> 03:23:45.690
mjervis@downtownberkeley.com: And if you have any questions, contact me at info at DowntownBerkeley

1245
03:23:45.940 --> 03:23:51.489
mjervis@downtownberkeley.com: And I'd also like to thank Visit Berkeley for their partnership in this.

1246
03:23:51.730 --> 03:24:02.920
mjervis@downtownberkeley.com: We're gonna have a lot of fun. Downtown Berkeley is administering the registration process, online, and we're looking forward to seeing a bunch of folks out on the streets making music. Thank you.

1247
03:24:02.920 --> 03:24:08.810
Boardroom: Thanks so much, and thanks for coming back to give your comment. I have another speaker, we have Makai Freeman.

1248
03:24:10.600 --> 03:24:13.080
Boardroom: Makai, you should be able to unmute.

1249
03:24:15.900 --> 03:24:18.130
Boardroom: Gonna go back to the dollar that you switched to?

1250
03:24:18.130 --> 03:24:23.060
Michai Freeman CIS She/Her: I didn't even have… Need after 10.

1251
03:24:24.620 --> 03:24:26.280

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Michai Freeman CIS She/Her: For my students.

1252
03:24:26.280 --> 03:24:27.610
Boardroom: We can hear you.

1253
03:24:28.320 --> 03:24:29.699
Michai Freeman CIS She/Her: I'm not just hearing exactly.

1254
03:24:30.390 --> 03:24:31.939
Boardroom: Yes, you have an extra minute.

1255
03:24:31.940 --> 03:24:35.759
Michai Freeman CIS She/Her: Thank you. I'm happy to see.

1256
03:24:36.810 --> 03:24:38.380
Michai Freeman CIS She/Her: My instinct.

1257
03:24:39.360 --> 03:24:40.800
Michai Freeman CIS She/Her: To pay or stop.

1258
03:24:41.900 --> 03:24:48.330
Michai Freeman CIS She/Her: sidewalked, and… easier for those… of us disabilities.

1259
03:24:48.840 --> 03:24:52.570
Michai Freeman CIS She/Her: couldn't be able… No victim.

1260
03:24:53.620 --> 03:24:57.860
Michai Freeman CIS She/Her: I'm pretty just… Naz thought.

1261
03:24:58.300 --> 03:24:59.840
Michai Freeman CIS She/Her: The hypocrisy.

1262
03:25:00.810 --> 03:25:06.980
Michai Freeman CIS She/Her: of… Allowing… Chemical reference?

1263
03:25:07.450 --> 03:25:08.670
Michai Freeman CIS She/Her: Through use.

1264
03:25:09.680 --> 03:25:13.480

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Michai Freeman CIS She/Her: With no… Although it sounds good.

1265
03:25:14.660 --> 03:25:18.300
Michai Freeman CIS She/Her: And I wanted to talk… Safe streets.

1266
03:25:19.170 --> 03:25:20.830
Michai Freeman CIS She/Her: They're not safe for all.

1267
03:25:21.900 --> 03:25:23.220
Michai Freeman CIS She/Her: It's 2…

1268
03:25:26.270 --> 03:25:29.930
Michai Freeman CIS She/Her: the consensus… Challenger?

1269
03:25:30.930 --> 03:25:36.930
Michai Freeman CIS She/Her: And fish… Does not take ins… account the safety.

1270
03:25:38.220 --> 03:25:44.409
Michai Freeman CIS She/Her: First, it's just real… Who have fewer… Access to the curve.

1271
03:25:45.050 --> 03:25:46.509
Michai Freeman CIS She/Her: and lowly.

1272
03:25:47.190 --> 03:25:48.770
Michai Freeman CIS She/Her: Thank you for the light.

1273
03:25:49.760 --> 03:25:51.650
Michai Freeman CIS She/Her: Those are your diets?

1274
03:25:51.980 --> 03:25:53.609
Michai Freeman CIS She/Her: In 5-10 years?

1275
03:25:54.200 --> 03:25:57.899
Michai Freeman CIS She/Her: Let's see what… we fight for.

1276
03:25:58.770 --> 03:26:03.740
Michai Freeman CIS She/Her: And I hope to… What you look for?

1277

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03:26:05.170 --> 03:26:06.070
Michai Freeman CIS She/Her: Thank you.

1278
03:26:07.030 --> 03:26:15.709
Boardroom: Okay. And then we have, thanks, Makai. …caller ending in 405 still has their hand raised, I guess.

1279
03:26:18.060 --> 03:26:23.220
Boardroom: Press, caller ending in 405. You should be able to… Unmute.

1280
03:26:28.420 --> 03:26:31.480
Boardroom: Press star 6 on your phone.

1281
03:26:33.740 --> 03:26:34.460
Boardroom: No.

1282
03:26:36.190 --> 03:26:37.459
Boardroom: Alright, that's it.

1283
03:26:38.830 --> 03:26:46.050
Boardroom: No more speakers online. Okay, thank you very much. Is there a… oh, Councilmember Taplin?

1284
03:26:46.890 --> 03:27:06.069
Boardroom: Thank you. Thanks, everyone. On item 19, the Holocaust Remembrance Day Program. I'd like to thank my co-author, Councilor Tregoob, and my co-sponsors, Mary Ishii and Councillor Blackaby, as well as all my colleagues for their support. As the Mayor mentioned, this April marks the City's 23rd observance, and I encourage all to attend, and with that, I move adoption of the consent calendar.

1285
03:27:06.380 --> 03:27:07.400
Boardroom: Second.

1286
03:27:09.320 --> 03:27:12.600
Boardroom: If there's no opposition to approving the consent calendar.

1287
03:27:13.260 --> 03:27:17.480
Boardroom: Then we will approve it. Okay, consent calendar is approved.

1288
03:27:17.870 --> 03:27:19.139
Boardroom: Thank you very much.

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1289
03:27:19.230 --> 03:27:43.999
Boardroom: Okay, so, just to recap for folks, we've just finished the consent calendar. We are now moving on to the action calendar. We had a couple of things moved down to the action calendar. One is, Councilmember Kesarwani's urgent item, the Cesar Chavez renaming item, and then also item number 7, which was on the consent calendar, that's the Mills Act contract for 2845 Woolsey Street.

1290
03:27:44.400 --> 03:27:55.289
Boardroom: We have two other items, which are adopting a resolution authorizing the temporary employment of retired annuitant Kathy Lee as Interim Director of Police Accountability, and then item number 26,

1291
03:27:55.290 --> 03:28:15.389
Boardroom: which is the public safety technology item, so I just want to give you all an accounting of where we're at. And then, I'd really, would really like to make it through these top three items before we take a break. I know it's already 7.50, and it kind of depends on how much public comment we get on each of them. So, I'm just saying that out loud so you all know what to expect.

1292
03:28:15.390 --> 03:28:18.029
Boardroom: We have a number of items to cover still, so…

1293
03:28:18.080 --> 03:28:30.639
Boardroom: Okay, so, what I'd like to do is start with the Cesar Chavez item. Councilmember Kesarwani, I know you've got some changes that you've made to it that you wanted to share with us, so I'm going to start with there and let you present.

1294
03:28:31.080 --> 03:28:33.260
Boardroom: Oh, sure.

1295
03:28:33.450 --> 03:28:39.349
Boardroom: Okay, would you like us to do the Mills Act contract item first? Okay, let's do the Mills Act contract item first.

1296
03:28:39.370 --> 03:28:56.749
Boardroom: That's the 2845 Wolsey Street, previously item number 7 on the consent calendar. Since you pulled it, Councilmember… or Vice Mayor Lunapara, would you like to speak to this item? Yes, I think we should continue this item to the next regular meeting. So I move to continue this item to the next regular meeting.

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1297
03:28:58.360 --> 03:28:59.480
Boardroom: Or a second.

1298
03:29:01.140 --> 03:29:03.540
Boardroom: And Mark's,

1299
03:29:03.910 --> 03:29:15.319
Boardroom: Let's just take the, actually, if there's no opposition, I'm just gonna have us continue that. Do you have a question? Does anyone know whether the landmarks… so, just to clarify, the landmarks…

1300
03:29:16.260 --> 03:29:24.359
Boardroom: failed to act on it, or… Okay. The Landmarks Commission heard it, they took a vote, and the vote failed.

1301
03:29:24.380 --> 03:29:43.460
Boardroom: a vote to approve it, the vote failed, and it came to Council. Okay, I see. So, actually, also clarifying, so if we continue it, will they have time to review it again, or what's your hope, so I understand? For my understanding, they chose not to move forward with it because the majority did not think that it was worthy of a Mills Act.

1302
03:29:44.300 --> 03:29:47.310
Boardroom: I… I think we should just continue this discussion.

1303
03:29:48.430 --> 03:29:49.729
Boardroom: Shake your color.

1304
03:29:50.080 --> 03:29:54.190
Rashi Kesarwani: Go ahead and put your mic on so we can hear you. I'm just curious, if they didn't move.

1305
03:29:54.190 --> 03:29:56.550
Boardroom: Moving forward with how did it reach us?

1306
03:29:57.000 --> 03:30:02.650
Boardroom: Because they took no action, so… It just comes to us, like… Yeah, it just comes to us for us to decide. I see, thank you.

1307
03:30:04.080 --> 03:30:11.219
Boardroom: Okay, so I'm fine with continuing it. I'm gonna see if there's any opposition to continuing it until the next meeting.

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1308
03:30:11.880 --> 03:30:27.199
Boardroom: Oh, sorry, were you saying something, Mr. City Park? Yeah, and we'll take public comment on it. Yeah, thank you. Okay, I just want to get a sense of where everyone's at. Okay, so, is there any public comment for item number 7, the Mills Act contract for 2845 Woolsey Street?

1309
03:30:31.550 --> 03:30:37.449
Boardroom: Who were the two people that took it off consent besides Luna Parra?

1310
03:30:38.190 --> 03:30:39.400
Boardroom: There was 3.

1311
03:30:40.380 --> 03:30:53.930
Boardroom: We don't typically respond to public comment, so go ahead and give your comment on it. Well, that's what needs to happen. Are you changing the rules, or did… I mean, that's… you should just be transparent, because you mumble and nobody can hear.

1312
03:30:56.160 --> 03:31:02.159
Boardroom: There were 3 council members that removed that item onto action. Go ahead, come on up.

1313
03:31:05.180 --> 03:31:06.989
Boardroom: Hey there, I'm the owner.

1314
03:31:07.940 --> 03:31:18.799
Boardroom: Is it okay? Oh, sorry. I'm the owner. It wasn't exactly… that's not exactly what happened at Landmarks. A bunch of people actually decided not to vote at all.

1315
03:31:18.800 --> 03:31:31.240
Boardroom: And that's why it ended up here. So there actually was quorum, and then a bunch of people said, oh, I don't want to touch this, so it got kicked up to you all. So, to the extent that there's a ability to have this conversation before

1316
03:31:31.250 --> 03:31:32.460
Boardroom: You know, all the stuff

1317
03:31:32.480 --> 03:31:40.570

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Boardroom: There's some deadlines that have to be hit, that's great, but just want to make sure that, like, that cadence is kept, and that the, kind of, the full totality of understanding, like.

1318
03:31:40.660 --> 03:31:47.199
Boardroom: how we got here, what happened, and the changes that have happened over the course of this, like…

1319
03:31:47.440 --> 03:31:54.380
Boardroom: the law, effectively, was X, but the change that happened was Y, and I just want to make sure that, like.

1320
03:31:54.680 --> 03:31:56.110
Boardroom: We can get through this.

1321
03:31:56.720 --> 03:32:03.679
Boardroom: I'm just, you know, I'm trying to follow the steps, and it feels like the steps keep changing. So, if the steps keep changing, then, like, we should make some other amendments, but…

1322
03:32:03.980 --> 03:32:04.730
Boardroom: That's all.

1323
03:32:06.280 --> 03:32:23.130
Boardroom: Thank you, thank you very much for your public comment, and certainly, yeah, if there's some confusion about what next steps are, we definitely can check back in and make sure that it's clear, and can update you on when this would be heard next, because it would be heard at the next City Council meeting. Yeah.

1324
03:32:23.290 --> 03:32:36.210
Boardroom: April 14th. April 14th, yes, because this is right before our spring recess, unfortunately. But feel free, if you have other comments or you want to talk more, feel free to reach out to my office. Thank you.

1325
03:32:36.540 --> 03:32:39.709
Boardroom: Is there any other public comment online for this item?

1326
03:32:41.790 --> 03:32:48.770
Boardroom: This is public comment only for item 7, Mills Act Contract 2845 Woolsey Street.

1327
03:32:49.070 --> 03:32:53.450

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Boardroom: There are two hands raised. The first is Jeff Baker.

1328
03:32:56.620 --> 03:33:07.910
Jeff Baker: Hello, thank you very much for pulling this, into the action items for more debate. I do think it makes good sense to continue this, since

1329
03:33:07.910 --> 03:33:20.259
Jeff Baker: There doesn't seem to be a lot of clarity on why this is on the Council agenda. I believe if you gathered up the six members of the Commission who did not vote to approve this.

1330
03:33:20.430 --> 03:33:26.800
Jeff Baker: And ask them what they thought happened. They would say that they thought they killed the item.

1331
03:33:27.560 --> 03:33:35.119
Jeff Baker: So it was very surprising to me when it appeared on the Council agenda. Certainly, it is a stretch to say that

1332
03:33:35.460 --> 03:33:51.449
Jeff Baker: If the Commission doesn't make findings specifically to deny the contract, then it just arrives at Council. That really defies the meaning of consent and approval of the Commission, which is what the local ordinance says.

1333
03:33:52.190 --> 03:33:53.230
Jeff Baker: Thank you.

1334
03:33:53.650 --> 03:33:55.869
Boardroom: Thank you. Appreciate your comment.

1335
03:33:59.640 --> 03:34:14.599
Boardroom: Actually, the other person lowered their hand, so that's it for public. Okay, very good, then we can move on to the Cesar Chavez item, then. Madam Mayor, I just, I have a question for nobody gonna vote. I just have a question for staff. Is there…

1336
03:34:14.640 --> 03:34:21.259
Boardroom: Is there any trigger? Like, is there an exploration or anything we need to worry about?

1337
03:34:22.430 --> 03:34:25.190

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Boardroom: If we continue it to April 14th.

1338
03:34:27.000 --> 03:34:32.409
Jordan Klein: Hey, Councilmembers, this is Jordan Klein, Director of Planning Development. Sorry, I'm not in the room with you.

1339
03:34:32.960 --> 03:34:36.320
Jordan Klein: For the contract to take effect during the…

1340
03:34:36.480 --> 03:34:41.860
Jordan Klein: 2027-28 fiscal year, we would need to,

1341
03:34:41.980 --> 03:34:47.200
Jordan Klein: take action on it by the end of the calendar year. So, April should be fine.

1342
03:34:47.670 --> 03:34:48.340
Boardroom: Thank you.

1343
03:34:50.230 --> 03:34:57.820
Boardroom: Thank you very much. Okay, so, there didn't appear to be any opposition, but just confirming, there's no opposition to moving this to our next meeting.

1344
03:34:58.590 --> 03:35:05.549
Boardroom: Okay, we will move that to our next meeting then, and move on to the Cesar Chavez item. Councilmember?

1345
03:35:28.380 --> 03:35:47.130
Boardroom: Thank you, Madam Mayor, for the, change of the… changing of the order so I could bring this on screen. So, we… just to keep things simple, we've just modified the recommendation. First, I want to acknowledge that I've added the co-sponsors, Terry Taplin, Ben Bartlett, and Brent Blackaby, and,

1346
03:35:47.470 --> 03:35:55.730
Boardroom: with further discussion with community leaders, I, wanted to strike the…

1347
03:35:56.100 --> 03:36:09.829
Boardroom: the renaming, and simply refer this to the Parks, Recreation, and Waterfront Commission. According to the Council Rules of Procedure, Appendix A, the, the Parks Commission is…

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1348
03:36:10.180 --> 03:36:15.960
Boardroom: granted this authority to rename parks, so we do need to do this referral.

1349
03:36:15.970 --> 03:36:30.839
Boardroom: And, what we did was strike the, the, certainty about naming it for Dolores Huerta, and simply saying that we want to initiate a community process which should incorporate feedback

1350
03:36:30.950 --> 03:36:43.219
Boardroom: Specifically from the commemorative committee that we heard from today, this was the committee that initiated the first renaming process of the park in 1994, as well as input from other community members and stakeholders.

1351
03:36:43.390 --> 03:36:57.509
Boardroom: And what I did here is I just said that we recommend that Dolores Huerta be among the options considered for renaming. And then in conversation with the city manager, we have added,

1352
03:36:57.880 --> 03:37:08.890
Boardroom: removing or covering signage bearing the name Cesar Chavez from park property as soon as practicable, and just making it clear, we want to leave intact signage related to directions and park rules.

1353
03:37:10.320 --> 03:37:12.480
Boardroom: So those are the changes.

1354
03:37:14.190 --> 03:37:20.269
Boardroom: So, we will now take council questions, which I have a couple, if no one else has questions.

1355
03:37:20.830 --> 03:37:33.379
Boardroom: Okay, so I'm curious, since we put forward an item that addresses more than just the park, it addresses anything bearing Cesar Chavez's name, including the site that's within the park.

1356
03:37:33.510 --> 03:37:39.749
Boardroom: I'm wondering then if that would move forward just without the park, essentially.

1357
03:37:40.880 --> 03:37:47.199

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Boardroom: I'm not sure. I'm not aware of any other item. This is the item before us tonight.

1358
03:37:48.440 --> 03:38:08.379
Boardroom: So, I can only speak to this item. So, you're asking about some other… I'm asking about an item that was submitted on Monday, that addressed a process for changing everything with Cesar Chavez's name, and so I'm curious if this would just essentially make the part about the park specifically moot.

1359
03:38:08.710 --> 03:38:13.460
Boardroom: I just… we could remove that part. I just want to understand how to move forward, practically.

1360
03:38:14.790 --> 03:38:18.599
Boardroom: I'm not sure I'm understanding your question. I mean, are you wanting to add

1361
03:38:19.000 --> 03:38:24.050
Boardroom: something to this item, to the effect that other Cesar Chavez names get removed.

1362
03:38:25.320 --> 03:38:32.140
Boardroom: for example, on the website, or are you saying… That might be simpler to do, to include that in here.

1363
03:38:32.670 --> 03:38:36.080
Boardroom: I guess I'm just trying to figure out practically how it looks, so…

1364
03:38:36.590 --> 03:38:51.720
Boardroom: Yeah, okay, so I'll just ask to make a friendly amendment, then, to include the items that we included within our, item that we submitted on Monday, which I don't have that list in front of me. You should probably repeat, say, state out what those are, yeah. Yeah.

1365
03:38:52.080 --> 03:39:05.179
Boardroom: And I think this is just, Madam Mayor, respectfully, I just, I'm not aware of your item, you know, because I know we had different brown acts, and so I don't know, what it was requesting, because I don't think that item's been made public, as far as I know.

1366
03:39:06.620 --> 03:39:07.850
Boardroom: Okay. Right.

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1367
03:39:08.900 --> 03:39:15.850
Boardroom: Sorry, I'm trying to get this, the other items on here.

1368
03:39:50.300 --> 03:39:54.770
Boardroom: Sorry, I just want to make sure my staff knows I'm trying… okay, thank you.

1369
03:40:03.750 --> 03:40:14.540
Boardroom: Okay, so that would be, the items that were listed on here were Cesar Chavez Park, Cesar Chavez Day, which is March 30th or 31st,

1370
03:40:15.090 --> 03:40:25.800
Boardroom: And then Chavez Huerta Tribute Site and Solar Calendar, Cesar Chavez Dolores Huerta Commemorative Period, and Cesar Chavez Park Perimeter Trail Project.

1371
03:40:27.480 --> 03:40:38.669
Boardroom: So, I appreciate that. I think the issue is, on a lot of these, you know, the Parks Commission is tasked with renaming parks.

1372
03:40:38.900 --> 03:40:44.369
Boardroom: you know, some of those names are a little different, and so I would suggest

1373
03:40:44.700 --> 03:40:52.699
Boardroom: that maybe we should keep them separate, and… because I think we need to figure out what kind of process is put in place

1374
03:40:53.190 --> 03:40:54.400
Boardroom: for…

1375
03:40:54.400 --> 03:41:19.339
Boardroom: changing these other things that are not actually the name of a park, right? That's fine. A holiday. So I don't think that this item is equipped to handle that, and I do appreciate how comprehensive your list is. So I would just, just for simplicity's sake, because I know we have a heavy night tonight, in terms of other items, and everyone is here for the following item, maybe just keep this one simple, and just get the park process going.

1376
03:41:19.340 --> 03:41:26.419

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Boardroom: and the removal going, and then look at everything else, which I think we do need to put more time into how…

1377
03:41:26.420 --> 03:41:37.070
Boardroom: You know, which community group or commission would look at that, if that makes sense. Yes, that's fine. Okay. Okay, that's why I was asking. So, alright, so with that, I will see… sorry.

1378
03:41:37.320 --> 03:41:42.480
Boardroom: Were you gonna say something, Mark? No. Okay, with that, I will see if there's any public comments on the item.

1379
03:41:49.080 --> 03:41:49.840
Boardroom: A year.

1380
03:41:50.600 --> 03:42:04.909
Boardroom: Seeing no public comment in person, is there any public comment online? There's two hands raised. This is for public comment on the urgent item regarding renaming, Cesar Chavez Park. The first

1381
03:42:05.300 --> 03:42:07.590
Boardroom: Hand raised is Lisa Teague.

1382
03:42:16.580 --> 03:42:20.760
Boardroom: Go ahead, Lisa, you should be able to… You're unmuted.

1383
03:42:24.740 --> 03:42:31.799
Boardroom: Sorry, are you saying you… No, Lisa, you're… it shows that you've unmuted, you should be able to provide comments.

1384
03:42:35.170 --> 03:42:37.449
Boardroom: Lisa, are you there to give public comment?

1385
03:42:39.330 --> 03:42:42.080
Boardroom: Alright, we'll come back to Lisa.

1386
03:42:42.410 --> 03:42:44.290
Boardroom: Della Luna.

1387
03:42:47.010 --> 03:43:04.079
Della Luna (she/her) Huichun: I just wanted to note for the record that I'm actually witnessing you all, like, move swiftly. This happened, I

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believe, last week, Wednesday or Thursday, and here, 4 or 5 days later, you've already got something on the agenda and you're passing it, so this is evidence that you all actually can move quickly. Thank you.

1388
03:43:08.790 --> 03:43:15.050
Boardroom: All right. Anyone else? The other person lowered their hand, so that's… that's it.

1389
03:43:15.540 --> 03:43:19.570
Boardroom: Okay, thank you very much. Any Council comment on this item?

1390
03:43:22.760 --> 03:43:26.100
Boardroom: We have a… I can, I can, move the item.

1391
03:43:27.430 --> 03:43:29.970
Boardroom: As amended. Second. Okay.

1392
03:43:30.370 --> 03:43:31.760
Boardroom: Moved and seconded.

1393
03:43:33.260 --> 03:43:39.020
Boardroom: Yeah, so no comments. I will just say that, we put together this comprehensive list.

1394
03:43:39.070 --> 03:43:53.630
Boardroom: In our… having our conversations with the community, we went and visited the Berkeley Historical Society. They had an exhibit on Latinos in Berkeley throughout our history, which was really incredible, so I'm sorry if you missed it. Hopefully, they'll have it again.

1395
03:43:53.630 --> 03:43:59.920
Boardroom: But in those conversations, they expressed extreme, just…

1396
03:44:01.330 --> 03:44:25.490
Boardroom: just extreme feelings of being very upset at finding news about these allegations about Cesar Chavez, so I do think it's important. I know we have a long meeting tonight, but I think it's important that we address that, that that was incredibly disturbing to a lot of folks, and that they wanted time to kind of figure out how they were feeling, what process would be good to change the names, and to give the community time.

1397
03:44:25.490 --> 03:44:33.550

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Boardroom: to address this in the way that they felt comfortable doing so, so I just wanted to explain, you know, why we also included other items as well.

1398
03:44:33.550 --> 03:44:50.560
Boardroom: In our item, and I'm looking forward to that item come forward later. So thank you very much. That's all I wanted to say about it. Yeah, and Madam Mayor, I do want to thank you, and, I do appreciate how comprehensive that list is. I guess I hadn't seen it, and we do need to make sure we are,

1399
03:44:50.560 --> 03:45:00.899
Boardroom: you know, look at everything and have the community process. So I feel very good about, not dictating a name right now, and making sure that we hear from

1400
03:45:00.900 --> 03:45:15.700
Boardroom: the commemorative committee, as well as other stakeholders, and arrive at a new name, you know, as a community. So thank you very much. Yeah, thank you. Okay, and with that, I will see if there's any opposition to approving this item.

1401
03:45:16.540 --> 03:45:36.209
Boardroom: Okay. Councilmember O'Keefe will be noted as absent. Okay, thank you. Councilmember, is there any opposition? Okay, to approving this item? Okay, great. So we will approve this item as well. Thank you very much, Councilmember, and to those who are co-sponsoring. Okay, so now we have item number 25, which is…

1402
03:45:36.210 --> 03:45:43.200
Boardroom: Adopt a resolution authorizing temporary employee of retired annuitant Kathy Lee as Interim Director of Police Accountability.

1403
03:45:43.660 --> 03:45:48.090
Boardroom: Actually, I know Jose's here. Did you want to say anything?

1404
03:45:59.920 --> 03:46:13.210
Boardroom: So… Hmm, I will… Yes, okay, so, I have some remarks to read on behalf of Kathy.

1405
03:46:13.210 --> 03:46:31.239
Boardroom: She says, Honorable Mayor Ishii and members of the City Council, I first want to thank you for deciding to fill the Director of Police Accountability position temporarily while you search for a permanent director. With that decision, you have signaled to this

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community the importance of ensuring that the vital work of the ODPA and the Police Accountability Board continue.

1406
03:46:31.260 --> 03:46:39.069
Boardroom: Second, I thank you for putting your trust in me to be the interim DPA. You have my word that I will serve with all due gravity and integrity.

1407
03:46:39.070 --> 03:46:51.449
Boardroom: A few friends and colleagues, upon learning of my plan to un-retire, have wondered whether congratulations are in order, and I have to confess that my immediate reaction upon being asked to consider back was a hard no.

1408
03:46:51.450 --> 03:47:05.520
Boardroom: But the more I thought about it, and about my tenure as the Police Review Commissioner… Commission Officer, and then as the Interim Director of Police Accountability, the more I realized how strongly I felt about making sure that meaningful civilian oversight of our police department lives on.

1409
03:47:05.590 --> 03:47:14.999
Boardroom: I had become a true believer in the value of community members helping keep our police accountable, and ensuring that police policies, practices, and procedures reflect this community's values.

1410
03:47:15.260 --> 03:47:35.029
Boardroom: Civilian oversight has a long history in the City of Berkeley, starting in 1973 with the voter-adopted ordinance creating the Police Review Commission. I believe that this early institutionalization of police accountability in Berkeley has resulted in a police department that has been relatively responsive to the community's needs and concerns, and one that is committed to working with our diverse population.

1411
03:47:35.170 --> 03:47:52.900
Boardroom: As policing methods, patterns of crime, and the makeup and needs of our residents change over time, continued oversight is needed to ensure that our police remain accountable to the public. Since 1973, more jurisdictions have adopted some form of civilian oversight of their police departments.

1412
03:47:52.970 --> 03:48:08.679
Boardroom: Berkeley, at some point, was no longer the leader, but lagged behind other agencies in its powers and independence. Thus, the charter amendment creating the ODPA and PAB in 2020 was proposed, and its easy

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passage showed that a huge majority of Berkeley voters favored a more robust system of police oversight.

1413
03:48:08.880 --> 03:48:15.809
Boardroom: The framework for an independent body no longer under the city manager's office is in place, but as we've seen it, the devil is in the details.

1414
03:48:15.810 --> 03:48:29.980
Boardroom: Just as the police department wants effective tools to do its work, the ODPA and the PAB need effective tools to perform meaningful oversight. It's more than a little sad to me that permanent regulations for handling complaints against officers are still not in place, although I understand we are close.

1415
03:48:30.130 --> 03:48:35.930
Boardroom: I read with great dismay about the resignation of two PAB members, long-time PRC commissioners with whom I had worked.

1416
03:48:35.930 --> 03:48:52.860
Boardroom: Due to their frustration with how PAB and ODPA did not seem to have more real powers than under the old structure. And I find no joy in the circumstances resulting in my appointment today. I guess I love a challenge, and I can invest to being an eternal optimist, although that outlook is being sorely tested by the current president.

1417
03:48:53.300 --> 03:49:06.220
Boardroom: I intend to work collaboratively with all stakeholders while representing the voices of the community as we navigate our work to find common ground on so many significant issues, including the use of emerging new technologies and revisiting the use of force policy.

1418
03:49:06.220 --> 03:49:19.830
Boardroom: I look forward to reestablishing relationships with those whom I have worked previously, and I'm eager to forge new relationships, especially with the members of the Police Accountability Board, and with the staff of the ODPA. Speaking of who, whom I want to thank Jose Murillo.

1419
03:49:19.830 --> 03:49:28.849
Boardroom: for holding everything together as Acting Director, and to Chair Josh Cayetano and the other three PAB members for their heavy lifting during this period of transition.

1420
03:49:29.000 --> 03:49:47.710

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Boardroom: I regret the timing of my appointment coincides with a long-planned trip out of the country. However, I look forward to seeing all of you in the near future. Last but not least, I understand that some of you without current appointees to the PAB have candidates in the pipeline. For those of you who do not, I respectfully urge you to make your appointment a priority. Again, my thanks.

1421
03:49:48.060 --> 03:49:49.120
Boardroom: Kathy Lee.

1422
03:49:49.810 --> 03:49:50.930
Boardroom: Okay, wow.

1423
03:49:51.300 --> 03:49:55.910
Boardroom: Well, okay, so I do also… yeah, we can clap for that, yeah.

1424
03:49:57.670 --> 03:50:22.610
Boardroom: I want to say that I have had numerous conversations now with Kathy, that she has been, incredibly supportive, very excited to get to work, has already reached out to both Chair Cayetano and Jose and other staff, has actually gone in person, that she continues her relationship, with folks who are in the police accountability sphere and attends conferences, so I have a lot of confidence in her

1425
03:50:22.610 --> 03:50:36.579
Boardroom: And just her letter, I think, really shows that she has been following what's going on, really understands these issues, and cares a lot about it. So I am very excited to have her on board. And so, are there any questions from folks?

1426
03:50:38.250 --> 03:51:03.209
Boardroom: I do want to mention, as we have the opportunity, that we already have formed a subcommittee with Vice Mayor Luna Parra and Councilmember Humbert in order to find a permanent replacement for the PAB, and we've already had… or, sorry, for the ODPA, Director of Place Accountability, and, we've already had our first meeting, and I'm very excited about that process moving forward. So, Kathy, don't worry, we are going to find a permanent replacement. I know that's something she's eager for.

1427
03:51:03.210 --> 03:51:04.409
Boardroom: us to do.

1428
03:51:04.410 --> 03:51:08.619

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Boardroom: So, okay, as long as there are no questions, is there any public comment on this

1429
03:51:08.660 --> 03:51:11.080
Boardroom: item. Yes. Kit, come on up.

1430
03:51:15.500 --> 03:51:28.509
Boardroom: I had some occasion to, work with Kathy Lee when she was in the role, both as the, Director of Police… the Interim Director of Police Accountability, and before that, with the, Police Review Board.

1431
03:51:28.640 --> 03:51:42.979
Boardroom: I think that's what it's called. And she is really very good. I'm very happy that she's accepted. I'm very happy that you appointed her. Thank you for reading that letter. I hope we all sort of re-read that letter several times. There's a lot in there. Thank you.

1432
03:51:43.170 --> 03:51:46.520
Boardroom: Thank you, Kit. Other public comment on this item?

1433
03:51:52.340 --> 03:52:04.340
Boardroom: Hi folks, Nathan Mizell. I served on the PRC and PAB with Kathy Lee. There is no finer public servant than Kathy Lee. The issues with police accountability in the city do not…

1434
03:52:04.780 --> 03:52:07.919
Boardroom: Emerge from her, or her service, or her time as interim.

1435
03:52:08.030 --> 03:52:22.220
Boardroom: They emerge from this council's refusal to pay attention to police oversight. It emerges from the city attorney's office refusal to enforce what the voters of this city passed into law in 2020.

1436
03:52:22.880 --> 03:52:37.169
Boardroom: It emerges from a city manager who has seemingly fallen asleep at the wheel as a police chief overwrites our city's use of force policy that was passed by this council completely unlawfully. So…

1437
03:52:37.360 --> 03:52:39.180
Boardroom: Kathy is a great public servant.

1438
03:52:39.430 --> 03:52:44.410

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Boardroom: I'm thankful she's there as interim. Y'all fired the last director as he tried to defend our charter.

1439
03:52:45.230 --> 03:52:52.970
Boardroom: Let's hope you find someone decent to do the job, and we'll be paying attention on who you decide to select. Thank you. Thank you.

1440
03:52:58.700 --> 03:53:17.690
Boardroom: Hi, good evening. My name is George Pretz-Velez, long-time oversight practitioner at the City of Berkeley. I'm here, actually, on behalf of NACO, the National Association of Civilian Oversight Law Enforcement. I'm the vice president of the organization, to say thank you very much for your thorough and fast appointment of Kathy Lee. We hold her in high respect.

1441
03:53:17.690 --> 03:53:34.210
Boardroom: She is an individual with high integrity, and her work is, second to none. So we congratulate you for this move, for her appointment. We're confident that she will reach out to NACOL for whatever work she needs in other support. We are here to support the Council as well.

1442
03:53:34.210 --> 03:53:52.310
Boardroom: On a side note, I would say that as you look at the next candidate, and I said to some council members, please do your search for someone who works in the state of California. I think somebody who's from California will understand the dynamics of oversight in California, as well as stakeholders. Thank you so much.

1443
03:53:52.310 --> 03:53:55.009
Boardroom: Thank you. Thanks. Thanks, George. Good advice.

1444
03:53:57.810 --> 03:54:01.699
Boardroom: Hi, thank you. I'm… I appreciate everything that

1445
03:54:01.700 --> 03:54:26.669
Boardroom: can be done to uphold police accountability, and I want to note the 85% mandate for, police accountability, independent police accountability in the city. And we're seeing a trend of center-right city councils undermining such independent oversight in cities in the Bay Area, especially San Francisco and Oakland. And we're seeing that pattern here with the two recent resignations

1446
03:54:26.670 --> 03:54:36.100

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Boardroom: of two members of the Police Accountability Board, in the name of really supporting this board, for the four members left on the nine-person

1447
03:54:36.100 --> 03:54:53.969
Boardroom: board. Were they given enough time to evaluate a very important item that's coming up next on today's agenda? And what did they say? Because I saw some supplementals from some of you, but I didn't say what the Police Accountability Board had to say about something that is horrible for Sanctuary City

1448
03:54:53.970 --> 03:54:58.199
Boardroom: policy and law right now. Thank you. Thank you.

1449
03:55:03.230 --> 03:55:14.759
Boardroom: I don't have a lot to say about the appointment, but I do have some historic memory of meeting Bobby Seal in a program where, before we had the Police Accountability

1450
03:55:14.760 --> 03:55:29.099
Boardroom: award passed, he was trying to make comments and make us aware of why it would fail. And one of the reasons that he gave was that there is no power in it, and that the city council and different city authorities

1451
03:55:29.100 --> 03:55:31.729
Boardroom: We'll strip it of its ability to

1452
03:55:31.780 --> 03:55:46.960
Boardroom: do anything under the way that it's constructed, which doesn't give it any power, and now I see it taking place. And Chip Moore was removed when he was trying to do a good job, and as we see, the flock thing went through, and it caused

1453
03:55:47.140 --> 03:55:57.989
Boardroom: disintegration of whatever council… whatever police accountability board we had, and now we're trying to piece it back together. So, there's a lot of mismatch and

1454
03:55:58.130 --> 03:56:04.009
Boardroom: disconnect with the city and what the Police Accountability Board should be, and the rights that it should have.

1455
03:56:04.220 --> 03:56:05.630

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Boardroom: Thank you.

1456
03:56:09.940 --> 03:56:12.050
Boardroom: I do believe I have another minute.

1457
03:56:13.710 --> 03:56:22.280
Boardroom: I, I also… I'm a former police review commissioner. I quit that body because it was so unable to hold the police accountable.

1458
03:56:22.570 --> 03:56:25.440
Boardroom: I quit in great frustration.

1459
03:56:26.370 --> 03:56:35.139
Boardroom: Kathie Lee always… she has lots of integrity, she's a wonderful person. I feel bad because we jumped out of the pan and into the fire.

1460
03:56:35.860 --> 03:56:40.430
Boardroom: Because the police association mangled

1461
03:56:40.670 --> 03:56:47.679
Boardroom: the revisions, we were trying to make the PRC stronger, and 2 years of meet and confer, 2 years!

1462
03:56:47.780 --> 03:57:02.569
Boardroom: So that they could write what they wanted. Please remember that the police association and the police department didn't even campaign against the formation of the PAB, because they knew how weak and declawed and powerless it was.

1463
03:57:03.530 --> 03:57:20.129
Boardroom: This is a crisis in our city. Look at the San… if you don't believe… if you don't believe us about racial disparities, look at the San Francisco Chronicle. Their police reporting, their RIPA data is saying that 8.9% of police stops

1464
03:57:20.130 --> 03:57:27.459
Boardroom: And in the city of Berkeley, were of black people who were let go. There was no basis for the stop.

1465
03:57:28.040 --> 03:57:37.169

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Boardroom: There's no control in the police, and to be honest, to sit here and watch you guys compliment them, it looks like a Trumpian cabinet meeting.

1466
03:57:37.990 --> 03:57:40.310
Boardroom: Absolutely uncritical!

1467
03:57:42.460 --> 03:57:53.460
Boardroom: absolutely unquestioning of the data that you are spoon-fed. There is no outside auditor, there's no outside agency.

1468
03:57:53.560 --> 03:57:56.610
Boardroom: So Kathy Lee may succeed.

1469
03:57:57.130 --> 03:58:15.870
Boardroom: If she is allowed to, if she's given independent counsel, if she is given the opportunity, if she's given the support and the funding, but right now, the PAP is a total, absolute waste of time, and there's a crisis in this city. Thanks, Andrea.

1470
03:58:21.580 --> 03:58:40.849
Boardroom: Speaking… excuse me… speaking to the subject of actually having an accountability board with power, I still think there's a lot of accountability that needs to happen around, the firing of the last director, and maybe we need to have a policy set up where the director isn't immediately fired for doing their job too well. We would love to know why they were fired, why it was…

1471
03:58:40.850 --> 03:58:48.120
Boardroom: We won't know that because they were fired in a closed-door meeting, and it was acceptable because they were given 200 grand of severance. That's…

1472
03:58:48.120 --> 03:58:58.990
Boardroom: our money. This is a bad use of resources to just take everything apart the way you are. Everyone's speaking to it. Please do better. Thank you.

1473
03:59:01.140 --> 03:59:04.050
Boardroom: Thank you. Is there any public comment online for…

1474
03:59:04.220 --> 03:59:11.999

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Boardroom: Item 25, which is adopting a resolution authorizing temporary employment of retired annuitant Kathy Lee as Interim Director of Police Accountability.

1475
03:59:12.510 --> 03:59:17.350
Boardroom: We have, John Lindsay, Poland.

1476
03:59:19.690 --> 03:59:42.489
John Lindsay-Poland: Good evening, John Lindsay Poland of the American Friends Service Committee. I worked with Kathy Lee when she was at the PRC. She's highly competent, highly skilled, lots of integrity, and as she noted, there are five, vacancies, and those vacancies are for the districts of Councilmember Taplin, Councilmember Bartlett, Councilmember Tregob.

1477
03:59:42.490 --> 03:59:45.400
John Lindsay-Poland: Councilmember Blackaby, and Mayor Ishii.

1478
03:59:45.400 --> 03:59:53.320
John Lindsay-Poland: And the reasons… there's no other city commission that has that many vacancies. Why could that be? The reason is because you have dissed them.

1479
03:59:53.410 --> 04:00:04.359
John Lindsay-Poland: So when you approve Kathy Lee's appointment, which I am sure you do, and I support you doing, I want to hear you say that you're going to give more support and more attention

1480
04:00:04.360 --> 04:00:15.539
John Lindsay-Poland: to the PAB's recommendations coming in the future, and now, tonight. That's what I want to hear you say when you approve Kathy Lee's appointment, because that's going to make her job

1481
04:00:15.630 --> 04:00:17.670
John Lindsay-Poland: more effective. Thanks.

1482
04:00:20.220 --> 04:00:32.969
Boardroom: Next is… Sorry, I was just confused, because Councilmember Blackaby had put his… but, okay, go ahead, were you gonna respond? I just want to state that my commissioner resigned because he had a baby and was on paternity leave, and I have a new person now.

1483
04:00:34.360 --> 04:00:41.819

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Boardroom: Well, let me jump in, too, then. My commissioner moved away, and I replaced him 2 months ago. He'll be on the board soon.

1484
04:00:42.020 --> 04:00:51.929
Boardroom: A great young man, I must say, by the way. Sure, so, yeah, go ahead. Go ahead. Who's next? Okay, next is Kieran Chenoy.

1485
04:00:54.080 --> 04:01:08.930
Kiran Shenoy: Good evening, Mayor and members of Council. Karen Chanoy here. I just wanted to commend you, Mayor, for bringing forward this resolution to appoint Kathy Lee as Interim Director of Police Accountability. I've had the unique opportunity to observe Kathy's work from an earlier chapter in Berkeley's police oversight system.

1486
04:01:09.020 --> 04:01:23.999
Kiran Shenoy: In 2013, when I was serving as chair of the Police Review Commission, I sat on a panel to evaluate candidates for the commission officer role. At that time, the commission was in a difficult place. We had gone through 3 officers in just 2 years, and operating in what I would describe as a very charged, and at times.

1487
04:01:24.000 --> 04:01:31.049
Kiran Shenoy: unstable environment. During that panel process, it became immediately clear to me that Kathy Lee was the right person for the job.

1488
04:01:31.050 --> 04:01:47.010
Kiran Shenoy: What stood out was not just her qualifications, but her demeanor. She brought a calm, steady presence into a room that needed exactly that. Just as importantly, she projected an unmistakable sense of impartiality. In a role where credibility depends on public trust, that quality is not just valuable, it is essential.

1489
04:01:47.010 --> 04:01:55.649
Kiran Shenoy: She went on to serve for nearly a decade in that and similar roles, providing continuity, professionalism, and consistency in a space that had previously lacked it.

1490
04:01:55.650 --> 04:01:57.020
Kiran Shenoy: I strongly support this…

1491
04:01:57.160 --> 04:02:02.010
Boardroom: Thanks so much, appreciate your comment. Next is… Mar.

1492
04:02:05.550 --> 04:02:13.639

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Mar: You said you have a lot of confidence in her abilities, so I really hope you do listen to Kathy's recommendations while she's

1493
04:02:13.640 --> 04:02:38.309
Mar: working as the interim director. And I hope that whoever you do select as the permanent director is not just going to tell you what you want to hear, say that everything in Berkeley is good, and that we should just let Chief Jen Lewis do whatever she wants. The PAB does need to be given independent counsel, especially if the city attorney is going to side with the police and choose to represent them over representing the Police Accountability Board.

1494
04:02:38.850 --> 04:02:43.890
Mar: And if the city manager is gonna keep siding with the police every time a complaint comes up.

1495
04:02:44.060 --> 04:03:03.019
Mar: And it's very frustrating that you guys keep choosing when you get to respond to public comment. Earlier, you said you can't respond, but then when it comes to defending yourself or making yourself look better, you guys do respond, so either you can respond to us or you can't. Either you ask our questions and respond to our questions, or you ignore us.

1496
04:03:03.100 --> 04:03:07.079
Mar: Like, why you're doing both ways, it's really frustrating.

1497
04:03:08.540 --> 04:03:10.479
Boardroom: Thanks. Thanks for your comment.

1498
04:03:11.190 --> 04:03:23.480
Boardroom: And to clarify, it is typically not our practice to respond. Sometimes folks choose to respond, and I allow them to do that when they want to, so continue on. Daniel Brownson.

1499
04:03:26.940 --> 04:03:38.739
Daniel Brownson: I hope that, under Kathy Lee, the, Police Accounting Ability Board will have some actual teeth, and that you'll actually take, the PAB's recommendations.

1500
04:03:38.860 --> 04:03:42.380
Daniel Brownson: And… Make policy based on them.

1501
04:03:42.630 --> 04:03:43.600
Daniel Brownson: That's all.

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1502
04:03:44.700 --> 04:03:45.730
Boardroom: Thank you.

1503
04:03:46.610 --> 04:03:47.790
Boardroom: Okay, that's it.

1504
04:03:48.750 --> 04:03:56.129
Boardroom: Okay, oh, you have a comment on this item? Yeah. Come on up.

1505
04:03:58.450 --> 04:04:11.150
Boardroom: So, yeah, the Police Accountability Board did not get voted in for, like, a lot of percentage so that people could weigh in on what goes on. And look what's happened. So many people have resigned.

1506
04:04:11.280 --> 04:04:18.239
Boardroom: And I don't know this person, but, Lee, but I've seen her in the meetings, and she's conducted herself well.

1507
04:04:18.540 --> 04:04:20.379
Boardroom: And, let's hope…

1508
04:04:20.880 --> 04:04:30.499
Boardroom: that happens, and I just also wanted to remind people that Pamela Price is running for re-election, and you can vote for her.

1509
04:04:30.640 --> 04:04:35.239
Boardroom: And, free Palestine, thank you.

1510
04:04:36.720 --> 04:04:54.479
Boardroom: Okay, thank you. Councilmember Blackaby, did you have comments? Yeah, very briefly, thanks. Madam Mayor, I just want to thank you for moving so swiftly and bringing this appointment. It is really important that we have someone in that chair, so thank you for doing that. I want to thank Kathy Lee for being willing to step into the breach, as plenty of people have noticed.

1511
04:04:54.540 --> 04:05:03.290
Boardroom: And observe, this is not an easy job in any circumstance, it's particularly not an easy job right now, so we just really appreciate that she's willing to come out of retirement to do that.

1512

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04:05:03.360 --> 04:05:20.800
Boardroom: I also want to thank Chair Cayetano and Vice Chair Leah Wilson, and the current board members for, really, stepping into this challenge. Significantly reduced board, that means more than twice as much work, that they're bearing, so I just want to thank them for doing that.

1513
04:05:20.800 --> 04:05:38.430
Boardroom: And join the call to urge colleagues to make our appointments. I'll also say that, you know, we've made our nomination, we talked to multiple candidates, made our nomination, it's in the pipeline now. I'm confident that we're going to be filling the vacancies soon. The other thing that has never been done, that I would like to do as a council is

1514
04:05:38.430 --> 04:05:55.209
Boardroom: nominate a permanent alternate commissioner, so that in the future… again, it's sort of a unique feature of this particular body in the Charter, because it's a… everything is council-approved. We need a council-approved, alternate commissioner, unlike other commissions, or an alternate board member.

1515
04:05:55.210 --> 04:06:06.969
Boardroom: So that we always have someone that can step up and serve when there is a vacancy. So, I'll also be working on that component, but we can nominate that as a full council. But anyway, thank you, Mayor, and thank you to Kathy for agreeing to serve.

1516
04:06:07.470 --> 04:06:09.440
Boardroom: Thank you, Councilmember Humbert.

1517
04:06:10.180 --> 04:06:22.579
Boardroom: Yes, thank you, Madam Mayor, and I want to thank you for moving swiftly to a point. Kathy Lee, I fully support that. She sounds like an incredible blue-chip person to fill the role.

1518
04:06:22.800 --> 04:06:38.090
Boardroom: And I look forward to working on the search committee with you and Councilmember Vice Mayor Luna Parra. I want to commend my very excellent, PAB member, Randy Wells, who's been serving for some time now.

1519
04:06:38.330 --> 04:06:40.370
Boardroom: Thank you.

1520
04:06:40.630 --> 04:06:44.440
Boardroom: Thank you, Councilmember Bartlett.

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1521
04:06:45.660 --> 04:07:00.400
Boardroom: Thank you. I want to say, Kathy Lee is a wonderful person. I served with her on the PRC when I was on that board many, many years ago. Too many years ago. She was really, very astute, very fair. She taught us all a lot. She taught the system.

1522
04:07:00.400 --> 04:07:07.560
Boardroom: She was wonderful, and so she'll be a good stand-in, and hopefully she can work with the new person and kind of get them on track.

1523
04:07:08.470 --> 04:07:10.620
Boardroom: Thank you. Councilmember Treykov.

1524
04:07:11.400 --> 04:07:23.569
Boardroom: Thank you. I wish to add my voice to the chorus of voices praising Kathy Lee, while I never had a chance to work with her directly.

1525
04:07:23.570 --> 04:07:34.740
Boardroom: Her excellent reputation precedes her in a variety of different ways, and I am, looking forward to,

1526
04:07:35.090 --> 04:07:46.690
Boardroom: having the opportunity to work with her again. Also wish to thank, members of the PAB and Chair Cayetano.

1527
04:07:46.790 --> 04:07:57.010
Boardroom: And, as for our, appointment process, it has been extensive. We are taking this extremely seriously. It is an important

1528
04:07:58.140 --> 04:08:13.730
Boardroom: board. We're very close, and, as, one component of the process, there's the opportunity for, the folks that we have met with

1529
04:08:13.840 --> 04:08:28.959
Boardroom: to connect with our previous, PAB member, former Commissioner Calavita. So look forward to, moving that forward and, helping make sure that the Commission is at full strength.

1530
04:08:29.070 --> 04:08:30.460
Boardroom: In short order.

1531

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04:08:31.060 --> 04:08:33.420
Boardroom: Thank you, Vice Mayor Lunapara.

1532
04:08:33.880 --> 04:08:48.230
Boardroom: Thank you. I… I haven't met Kathy Lee yet, but I've heard great things all around, so I'm really excited, to work with her. I also really want to thank, Chair Cayetano,

1533
04:08:48.300 --> 04:08:59.129
Boardroom: and Deputy Director Murillo for all of the work that they have done, in the meantime, seriously, has been so amazing and impactful. So, thank you.

1534
04:08:59.210 --> 04:09:06.869
Boardroom: Yes, I want to add my thanks to both as well. It's really been a pleasure to work with both of you as we've been moving this process forward.

1535
04:09:06.870 --> 04:09:29.039
Boardroom: And I do want to just address that at our, council retreat, we talked about coordinating so that all of our, appointees to PAB came forward at the same time, essentially, so that way, they wouldn't have to do as much onboarding, because we know with our smaller ODPA that it's a lot of work to onboard multiple people, so it's actually better if all of us

1536
04:09:29.040 --> 04:09:51.890
Boardroom: put our folks forward at the same time. I see a lot of head nods, so I just wanted to make sure folks understood why that was happening, but just to say that certainly if anyone, especially anyone here who's interested in applying to be a PAB member, please feel free to write us. There's a process online. We're really, we are really looking, so please feel free to send folks our way. I know there are a lot of folks here who are interested in, in, their work, so…

1537
04:09:51.920 --> 04:10:03.160
Boardroom: Thank you very much, and I would like to make this motion. I'd like to make the motion. Second. And let's just take a vote on it. I think it'd be better to take the roll.

1538
04:10:03.160 --> 04:10:12.299
Boardroom: Okay, to approve the resolution authorizing Kathy Lee as the Interim Director of Police Accountability, Councilmember Kastarwani? Yes.

1539
04:10:12.420 --> 04:10:20.499

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Boardroom: Kaplan? Yes. Bartlett? Yes. Trageum? Aye. O'Keefe? Yes. Blackaby? Yes. Unapara?

1540
04:10:20.960 --> 04:10:21.790
Boardroom: Yes.

1541
04:10:22.140 --> 04:10:24.770
Boardroom: Humbert? Yes. And Mary Ishii? Yes.

1542
04:10:24.810 --> 04:10:42.230
Boardroom: Okay, item carries. Motion is approved! Very exciting! Thank you! And thank you all for your public comments on that as well. So, it is 8.30, like I said, I knew it was gonna be at least around 8 o'clock, so we are at 8.30. We are gonna take a 15-minute break before item 26.

1543
04:10:42.400 --> 04:10:59.390
Boardroom: And we will come back after that. And just as a reminder, how… so, just so folks know a little preview, how that will go is we'll have our, our, our chief will present on this item, and then we're going to have the PAB present

1544
04:10:59.390 --> 04:11:08.480
Boardroom: on their recommendations, and then we have a number of different supplements that are… are… supplementals that are coming, so… we do. I think we're at…

1545
04:11:08.640 --> 04:11:27.299
Boardroom: 4. We're at four supplementals, so we all need to present our supplementals, and then we will take Council questions, and then we will do public comment, and then we will have deliberations, so just so folks are clear on what the process is going to look like. That's what it'll look like, and we're gonna take a break from now. Hey, folks, please, can I finish?

1546
04:11:27.310 --> 04:11:31.999
Boardroom: Alright, it's 8.34, so we will be back in 15 minutes. Thank you.

1547
04:11:53.980 --> 04:11:54.830
Boardroom: Okay!

1548
04:11:55.210 --> 04:11:55.950
Boardroom: Wow.

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1549
04:11:56.510 --> 04:12:00.409
Boardroom: Hi! You've got the whole crew. Okay, so, folks…

1550
04:12:00.810 --> 04:12:07.719
Boardroom: Can I have your attention, please? I know you're eager to get started on this, so please have your… have a seat, settle down…

1551
04:12:11.720 --> 04:12:16.919
Boardroom: I need… I need it to be quiet before we begin, so if you see a neighbor speaking…

1552
04:12:18.790 --> 04:12:21.230
Boardroom: Okay, we're almost there.

1553
04:12:21.340 --> 04:12:33.389
Boardroom: I'm very sorry, I know it's really hot, we've got some doors open here, I've opened these doors, we've got the fans on, so, it is really hot, so please just, like, let's make sure that there's seats for anybody who needs a seat.

1554
04:12:33.440 --> 04:12:47.870
Boardroom: And also, if you'd like water, I believe there's a water fountain around the corner, so I just want to make sure folks take care of themselves. If you're getting really hot, please feel free to step out and get some fresh air. I don't want anyone passing out. That would be horrible. Okay, folks, I need you to be quiet, please.

1555
04:12:50.000 --> 04:12:52.820
Boardroom: Okay, thank you. Alright, so…

1556
04:12:52.890 --> 04:13:06.970
Boardroom: As I said before the break, the way that this is going to go, we're going to move on to item 26, we are going to have a presentation from our city staff, and then we're going to have a presentation from PAB and the ODPA, and then we're going to have a presentation of all four supplements.

1557
04:13:06.970 --> 04:13:16.009
Boardroom: And then we will take Council questions, and then we'll open up for public comment. So, for folks who are standing up on the wall getting ready to speak, that's fine, just know you're going to be standing for a little while.

1558

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04:13:16.010 --> 04:13:28.250
Boardroom: And then, after that, we will have Council deliberations. So that's the process of what we'll be doing for the rest of this evening. Alright, I'm gonna pass it over to the Chief. Oh, no. I'll kick it over to the Chief. Thank you, Mayor.

1559
04:13:28.370 --> 04:13:30.589
Boardroom: Thank you, Mary. She and Council.

1560
04:13:30.740 --> 04:13:33.960
Boardroom: Thank you for the opportunity to be here tonight to…

1561
04:13:34.190 --> 04:13:42.379
Boardroom: bring this package of, contracts before you. I understand and have heard a lot of concern from folks about Flock.

1562
04:13:42.900 --> 04:13:47.329
Boardroom: And particularly in this moment in time, and,

1563
04:13:47.650 --> 04:13:55.649
Boardroom: We have worked very hard, collectively, between the police department, the city attorney's office, my office, to draft

1564
04:13:55.780 --> 04:14:04.409
Boardroom: language in the MSA that is as protective of the city as possible, knowing that this is a… this is a dangerous moment in time.

1565
04:14:05.500 --> 04:14:25.610
Boardroom: But we do feel, and I do feel, that the balance of safety outweighs the risk that presents itself in this MSA. If things do go in a bad direction, we have the ability to exit this contract and the MSA. We also have a serious

1566
04:14:25.610 --> 04:14:39.099
Boardroom: structural budget deficit. We have an understaffed police department, and having the ability to, create better efficiencies by bringing these, services into the city

1567
04:14:39.100 --> 04:14:48.129
Boardroom: creates the opportunity for us to have a safer city. And I'm very proud of the work that the police department has done, I'm proud of the work the city attorney's office has done.

1568

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04:14:48.130 --> 04:15:06.060
Boardroom: to get us to this point, and I look forward to hearing some of the details from the police department's office, look forward to hearing the presentation from the PAB, and then this discussion that we'll have as a community, and I hope it will land with an approval. So, with that, I will turn it over to Chief Lewis. Thank you.

1569
04:15:07.200 --> 04:15:08.850
Boardroom: Thank you very much. Thanks.

1570
04:15:09.210 --> 04:15:10.710
Boardroom: Please.

1571
04:15:11.090 --> 04:15:24.599
Boardroom: I know you want to speak, and I want to give you time to speak, so please, let's hear from our city staff and be respectful so they can present. Go ahead. Thank you. Good evening. We're here to talk through today our proposed public safety technology package.

1572
04:15:24.860 --> 04:15:39.169
Boardroom: I want to be really clear from the start, this is not about de-emphasizing our service-focused public safety that we give to the city. We continue to invest in and value the community partnerships and the direct contact that we have with our community.

1573
04:15:39.200 --> 04:15:49.090
Boardroom: This is a request to give our officers better information so that they can be more effective at the same time we leverage tools that can help make the community a safer place.

1574
04:15:49.300 --> 04:15:58.669
Boardroom: We have worked on these items with the City Attorney's Office, the PAB, the Public Safety Policy Committee, and community members over more than 3 years, and 25 public meetings to this point.

1575
04:15:58.910 --> 04:16:01.439
Boardroom: The item you see tonight reflects that input.

1576
04:16:01.900 --> 04:16:07.669
Boardroom: Earlier today, we gave a presentation detailing crime trends and public safety initiatives over the past year.

1577
04:16:08.050 --> 04:16:13.880

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Boardroom: While we have a lot to be proud of, we know we still have work to do in support to support a thriving, vibrant community.

1578
04:16:14.000 --> 04:16:21.669
Boardroom: What we're presenting tonight is our best proposal on how we do that under very strange budget and staffing circumstances.

1579
04:16:25.340 --> 04:16:33.909
Boardroom: So I want to start with the big picture. This slide shows how all of the technology that we're discussing tonight fits together. The model we're proposing is called a real-time

1580
04:16:34.010 --> 04:16:41.970
Boardroom: Information Center, or in Arctic. On the left, you see the technology feeds, the LPRs, fixed cameras, community video streams, and drones.

1581
04:16:42.570 --> 04:16:44.870
Boardroom: In the center, you see the analysis.

1582
04:16:44.870 --> 04:17:05.470
Boardroom: You see the investigative software used by an analyst, gathering that information that we receive and making actionable information from it. Situational awareness, case intelligence, and trend analysis. That information then can guide our patrol officers and our detectives so that they make more precise, informed decisions in their work.

1583
04:17:05.780 --> 04:17:18.559
Boardroom: I want to, emphasize that in all of this, all these decisions remain human-driven. This provides us resources in a more efficient way, gathers and collates data in a way that lets us make intelligent decisions, but it's all human-based.

1584
04:17:18.800 --> 04:17:22.830
Boardroom: I also want to, emphasize that an Arctic is not a novel concept.

1585
04:17:22.830 --> 04:17:41.310
Boardroom: We routinely do this kind of work when we activate our EOC in the city. That is, applying those same principles of centralizing information, improving coordination, and getting the right resources to the right place faster. With that, I want to hand it briefly over to, the Fire Chief to talk about that, our TIC model.

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1586
04:17:43.970 --> 04:17:51.530
Boardroom: Thank you, Chief. Good evening, all. I want to speak briefly to why the Arctic matters to the fire department and to our city's Emergency Operations Center.

1587
04:17:52.090 --> 04:17:56.129
Boardroom: When the city activates the EOC for a major incident, an earthquake.

1588
04:17:56.370 --> 04:17:58.819
Boardroom: A wildfire, a large-scale planned event.

1589
04:17:59.440 --> 04:18:02.400
Boardroom: One of our biggest challenges is getting real-time information.

1590
04:18:03.680 --> 04:18:06.649
Boardroom: So we can have an understanding of what's happening in the field.

1591
04:18:06.970 --> 04:18:11.550
Boardroom: We're pulling information from multiple sources, trying to coordinate across

1592
04:18:14.780 --> 04:18:17.030
Boardroom: Trying to coordinate across sources.

1593
04:18:17.320 --> 04:18:21.270
Boardroom: Across departments and making resources… resource decisions under pressure.

1594
04:18:22.170 --> 04:18:29.080
Boardroom: Many local jurisdictions have built partnerships between their real-time information centers and their emergency operations centers.

1595
04:18:29.790 --> 04:18:36.219
Boardroom: When those cities activate for a critical incident, the RTIC is one of the first resources they bring online.

1596
04:18:37.050 --> 04:18:39.200
Boardroom: For Berkeley, this means the investment

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1597
04:18:39.560 --> 04:18:41.689
Boardroom: The police department is describing tonight.

1598
04:18:42.100 --> 04:18:55.100
Boardroom: doesn't just serve daily law enforcement operations. It builds infrastructure that strengthens our citywide emergency management posture, and I see that as another significant benefit to this investment that should be considered.

1599
04:18:58.000 --> 04:19:13.690
Boardroom: Okay, so I know this might seem like a lot, but most of this technology that we're talking about isn't new to the city. The four technologies on the screen here involve renewals, or updates, or tools that the department already uses.

1600
04:19:13.690 --> 04:19:28.699
Boardroom: Drones as first responder, and community video streams are new, but only in that they are an expansion of the current way that we use those technologies. So, this slide gives you a quick reference for each of the previously approved items that the department already uses.

1601
04:19:28.700 --> 04:19:36.020
Boardroom: Lprs, these cross-reference license plates against hot lists for stolen vehicles, missing persons, felony warrants.

1602
04:19:36.020 --> 04:19:40.060
Boardroom: We already have 52 cameras, the ask tonight is to renew the contract.

1603
04:19:40.380 --> 04:19:54.659
Boardroom: Fixed PTZ cameras. We've had cameras for several years at the marina and at San Pablo Park. Council approved 16 solar-powered cameras at high-traffic pedestrian intersections, last year, and we're asking for authority to sign that contract.

1604
04:19:54.800 --> 04:20:11.679
Boardroom: Field-deployed, drones. These are drones that officers carry to incident, incident scenes for aerial views and interior building searches during high-risk warrants and emergencies. Council approved use of these a few years ago in a mutual aid capacity, and tonight we're proposing to purchase our own drones.

1605
04:20:12.120 --> 04:20:29.739

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Boardroom: And the investigative software brings together databases that we already have access to, so not adding anything new, just think our, like, computer-aided dispatch, records management, and digital evidence, just bringing all that into one searchable system. And this is, as part of a grant to directly support our gun violence intervention and prevention program.

1606
04:20:31.900 --> 04:20:40.869
Boardroom: Okay, so to turn to, the two items that are new to Council, community video streams and drones as first responder. Community video streams.

1607
04:20:40.870 --> 04:21:04.609
Boardroom: This is a proposal to allow businesses that already have cameras to give the police department direct access to that footage. So, under this proposal, the police department… Oh, come on, you're being so respectful. I really appreciate it, the quiet. Let's let Arlo finish, please. Thank you. The police department wouldn't install or own any cameras under this program. The cost to the city for hardware would be zero. So,

1608
04:21:04.860 --> 04:21:13.310
Boardroom: We'd just be utilizing, privately owned cameras, which is a concept that might sound familiar, because we have had a camera registry for several years, and this kind of just builds on that concept.

1609
04:21:13.590 --> 04:21:23.060
Boardroom: So before any camera is activated in this system, our proposed policy would require that we conduct a pre-integration review with an in-person site assessment.

1610
04:21:23.170 --> 04:21:37.879
Boardroom: We would require that there be signage that indicates that this program is in place at each location, and each integrated camera location would be published on the city website. And camera owners retain full ownership of their cameras and their data and can revoke access at any time.

1611
04:21:38.210 --> 04:21:43.909
Boardroom: So, the public safety benefit here is the same as our fixed PCZ cameras.

1612
04:21:44.280 --> 04:21:57.880
Boardroom: visual awareness of a scene before officers arrive, which is critical during ongoing crimes, directly support our investigative

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efforts. After the fact, you know, right now, officers, go door-to-door canvassing for video footage, and,

1613
04:21:57.920 --> 04:22:11.249
Boardroom: they… this would replace that slow manual process with something immediate and coordinated. And so this is the theme for all the technologies that we're talking about tonight, is swifter investigations with a higher likelihood of solving the crime.

1614
04:22:11.450 --> 04:22:26.140
Boardroom: Privacy protections on this one, access would be restricted to active investigations only. Facial recognition, of course, is strictly prohibited, and all accesses are logged and audible. And this footage would not be shared to outside agencies.

1615
04:22:26.870 --> 04:22:35.379
Boardroom: Thank you. I'm gonna cover the Dronus First Responder on this slide. So this is the second new item, and here's how it works.

1616
04:22:35.810 --> 04:22:44.070
Boardroom: Drones launch, theoretically, from rooftop docking stations at the public safety building and fly directly to the scene of a call.

1617
04:22:44.330 --> 04:22:52.029
Boardroom: Real-Time Crime Information Center analysts will view the live aerial video and relay critical information to the responding officers.

1618
04:22:52.310 --> 04:22:59.889
Boardroom: In agencies across the country operating DFR programs, drones routinely arrive on scene within minutes.

1619
04:22:59.980 --> 04:23:15.969
Boardroom: And often faster than patrol officers. And in some cases, it's only 2 minutes. So operationally, this is a shift. Before an officer arrives, we already have eyes on the scene. We can assess whether there's an active threat, a medical need, or if the report is unfounded.

1620
04:23:16.450 --> 04:23:30.100
Boardroom: That level of certainty allows for better tactical planning and supports de-escalation when officers don't know what they're walking into, they prepare for the worst. And when they know, they can respond proportionally to what's actually happening.

1621
04:23:30.330 --> 04:23:39.109

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Boardroom: Peer agencies using DFR report that about 25% of calls that drones respond to can actually be resolved without sending a patrol unit at all.

1622
04:23:39.510 --> 04:23:46.779
Boardroom: So that's a meaningful resource multiplier, freeing our officers to focus on higher priority needs while still delivering service.

1623
04:23:47.170 --> 04:24:02.119
Boardroom: And on privacy, our draft policies are clear. Drones are deployed only for specific calls for service, never for random patrol or general surveillance, and cameras face the horizon while they're in transit, and only orient downward once they're at an authorized scene.

1624
04:24:02.590 --> 04:24:15.350
Boardroom: So every flight path is logged and published to a public transparency portal, typically within about an hour of the drone landing, and these drones will never be weaponized, and they will not carry facial recognition.

1625
04:24:16.000 --> 04:24:18.750
Boardroom: And this isn't just a police tool. DFR…

1626
04:24:18.870 --> 04:24:26.290
Boardroom: Also has significant value for fire and emergency medical response, and I'd like to invite Chief Sprague from the Fire Department to speak about that.

1627
04:24:31.210 --> 04:24:37.139
Boardroom: When we get dispatched to a structure fire, the first minutes on scene are about gathering information.

1628
04:24:37.540 --> 04:24:38.620
Boardroom: Where's the fire?

1629
04:24:39.230 --> 04:24:44.420
Boardroom: How far has it progressed? Are there signs of people inside? Where might the fire spread?

1630
04:24:44.680 --> 04:24:47.680
Boardroom: Right now, that assessment happens at a ground level.

1631

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04:24:48.040 --> 04:24:50.109
Boardroom: When our first engine company arrives.

1632
04:24:50.250 --> 04:24:52.869
Boardroom: An aerial drone that's already overhead.

1633
04:24:53.360 --> 04:24:57.359
Boardroom: When we pull up, gives my incident commanders a view from the roof.

1634
04:24:57.590 --> 04:25:02.220
Boardroom: The rear of the building, and adjacent structures that we simply cannot get from the street.

1635
04:25:03.140 --> 04:25:06.230
Boardroom: For wildfire incidents, the value is even more direct.

1636
04:25:06.720 --> 04:25:12.590
Boardroom: We need to see how the fire is moving through terrain, Where spot fires are developing.

1637
04:25:12.890 --> 04:25:15.320
Boardroom: And which evacuation routes are still viable?

1638
04:25:16.070 --> 04:25:18.750
Boardroom: A drone gives us that picture in real time.

1639
04:25:18.970 --> 04:25:24.079
Boardroom: Without putting a helicopter in the air, or waiting for mutual aid air resources from the state.

1640
04:25:25.140 --> 04:25:31.760
Boardroom: On the emergency medical services side, think about a mass casualty incident or a major traffic collision on the freeway.

1641
04:25:32.120 --> 04:25:36.550
Boardroom: A drone overhead lets us do a rapid triage before units arrive.

1642
04:25:36.900 --> 04:25:38.440
Boardroom: How many patients are there?

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1643
04:25:38.570 --> 04:25:43.209
Boardroom: Where are they? What access routes are clear for ambulances and other responders?

1644
04:25:43.330 --> 04:25:45.789
Boardroom: That helped shape our entire response.

1645
04:25:46.630 --> 04:25:50.229
Boardroom: Water rescue incidents, where a drone can use technology

1646
04:25:50.330 --> 04:25:57.480
Boardroom: And search for heat signatures in the water much more rapidly than manually deploying rescue swimmers watercraft.

1647
04:25:57.900 --> 04:26:00.800
Boardroom: And for hazmat incidents, we can assess the scene.

1648
04:26:01.480 --> 04:26:09.109
Boardroom: Read placards, and evaluate vapor spread from a safe distance, rather than sending personnel into a hazardous environment.

1649
04:26:11.450 --> 04:26:15.580
Boardroom: I'll wrap up with a real-life example of how this technology has been used.

1650
04:26:15.760 --> 04:26:21.730
Boardroom: The video you are watching demonstrates one example of how a mutual aid drone was used during

1651
04:26:21.990 --> 04:26:24.639
Boardroom: A four-alarm high-rise fire on University.

1652
04:26:25.460 --> 04:26:31.420
Boardroom: A drone was used to support early firefighting operations by guiding our water stream application.

1653
04:26:32.260 --> 04:26:36.729
Boardroom: It continued to assist as the building smoldered over the following week.

1654
04:26:37.750 --> 04:26:42.150

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Boardroom: The structure had been so severely compromised by fire that officials feared

1655
04:26:42.320 --> 04:26:44.580
Boardroom: It would collapse, which led us…

1656
04:26:45.020 --> 04:26:50.779
Boardroom: To the decision that we could not send firefighters inside the structure to extinguish the deep-seated fires.

1657
04:26:51.670 --> 04:26:54.329
Boardroom: Drone footage provided a bird's-eye view.

1658
04:26:54.910 --> 04:27:00.499
Boardroom: Allowing crews to identify where the water was needed without sending firefighters into the unstable structure.

1659
04:27:01.150 --> 04:27:07.350
Boardroom: The Fire Department is supportive of the DFR program and looks forward to the operational partnership it represents.

1660
04:27:10.840 --> 04:27:17.049
Boardroom: Thank you, Chief. I want to start with a real example that shows exactly why these tools matter.

1661
04:27:17.260 --> 04:27:25.330
Boardroom: Last September, we investigated a 6-case home invasion and burglary series that were targeting women who were home alone.

1662
04:27:26.250 --> 04:27:37.880
Boardroom: Three were home invasion robberies, and three were residential burglaries. ALPR cameras were critical to solving that case. In the first incident, the victim's vehicle was stolen and then later recovered.

1663
04:27:37.960 --> 04:27:54.440
Boardroom: Investigators identified a suspect vehicle, and the Flock ALPR data… the Flock ALPR data showed that a vehicle following the victim vehicle, just 3 seconds behind, directly linking it and the primary suspect to the entire series.

1664
04:27:54.590 --> 04:27:58.329
Boardroom: That suspect was ultimately charged with all six cases.

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1665
04:27:58.660 --> 04:28:05.760
Boardroom: That outcome matters. Without ALPRs, it would have taken significantly longer to build that case.

1666
04:28:05.870 --> 04:28:10.219
Boardroom: And that individual would have remained free to continue targeting women in their homes.

1667
04:28:10.770 --> 04:28:17.340
Boardroom: In 2025 alone, ALPRs generated more than 120 arrests and investigative leads.

1668
04:28:17.540 --> 04:28:19.460
Boardroom: That's the investigative impact.

1669
04:28:19.790 --> 04:28:27.819
Boardroom: Now, zooming out, this is also about capacity. We're operating below authorized staffing while the city is managing a structural deficit.

1670
04:28:28.640 --> 04:28:45.140
Boardroom: And RTIC addresses both. Today, officers often respond to calls with limited information, and within RTIC, a single analyst can integrate multiple live data streams, drone footage, fixed cameras, community video, and ALPR data, all in real time, from one dashboard.

1671
04:28:45.450 --> 04:28:52.340
Boardroom: That's not surveillance, that's preparation. It means faster response, better decisions, and safer outcomes.

1672
04:28:52.850 --> 04:28:58.939
Boardroom: And in a department below authorized strength that makes every officer more effective on every call.

1673
04:28:59.360 --> 04:29:04.259
Boardroom: The data supports this. Cases supported by real-time centers have shown up

1674
04:29:04.430 --> 04:29:20.950
Boardroom: shown up to 66% higher clearance rates. So this program delivers real public safety value, which is victim closure, safer outcomes, stronger investigations, data-driven policing, and it pays for itself from existing departmental budget.

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1675
04:29:23.800 --> 04:29:38.290
Boardroom: I know there have been some questions about our vendor selection, so let me address that directly. When Council directed us to explore these technologies, we assembled a team to evaluate best practices, capabilities, and vendors across all categories.

1676
04:29:38.490 --> 04:29:52.080
Boardroom: The review was comprehensive and included technology conferences, DFR certification training, hands-on demonstrations, site visits to Active Arctics, and direct engagement with agencies already using the systems.

1677
04:29:52.180 --> 04:30:05.169
Boardroom: We evaluated multiple vendors. No other single vendor can deliver ALPR, fixed cameras, drone as first responder, analytics, and community video integration on one unified platform.

1678
04:30:05.680 --> 04:30:06.710
Boardroom: Axon.

1679
04:30:06.950 --> 04:30:14.450
Boardroom: Came closest, but their system currently lacks real-time alerts and hot list functionality, which are core to how we operate.

1680
04:30:14.770 --> 04:30:17.410
Boardroom: On drones, performance was decisive.

1681
04:30:17.650 --> 04:30:22.850
Boardroom: And side-by-side demonstrations, flocks, DJI drones.

1682
04:30:22.970 --> 04:30:34.289
Boardroom: DJI drones could clearly read license plates at 400 feet, while main competitors struggled at half that distance. And in one case, the other product completely lost signal.

1683
04:30:34.640 --> 04:30:50.239
Boardroom: That level of clarity matters because DFR is about situational awareness and understanding what's happening before the officers arrive. It's in everyone's best interest for officers to have the ability to know what someone is holding in their hands before an officer arrives on scene.

1684

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04:30:50.980 --> 04:31:01.640
Boardroom: We also spoke with nearly 20 agencies, where Flock consistently received the strongest feedback, to include Richmond, which is currently operating the system and describes it as invaluable.

1685
04:31:01.990 --> 04:31:11.680
Boardroom: There's also a critical regional advantage. Every city in Alameda County uses Flock for automated license plate readers. That creates a network effect.

1686
04:31:11.910 --> 04:31:19.229
Boardroom: When a vehicle linked to a robbery in Berkeley crosses into Oakland, Fremont, or Hayward, the system doesn't stop

1687
04:31:19.640 --> 04:31:21.020
Boardroom: At the county line.

1688
04:31:21.730 --> 04:31:29.470
Boardroom: Officers across jurisdictions are working from the same platform, alerts, and data standards, and crime doesn't respect boundaries.

1689
04:31:29.880 --> 04:31:32.170
Boardroom: This system reflects that reality.

1690
04:31:32.840 --> 04:31:39.539
Boardroom: And the ecosystem matters. One platform means one dashboard, one audit trail, and one master services agreement.

1691
04:31:39.720 --> 04:31:54.289
Boardroom: That simplifies compliance with the Surveillance technology ordinance and the police equipment ordinance, strengthens accountability, and enables real-time data integration across all systems. Something that simply isn't possible when stitching together multiple vendors.

1692
04:31:54.930 --> 04:32:06.479
Boardroom: Finally, because this is a leasing model, the city retains flexibility. If needed, we can transition to another vendor at the end of the contract term without being tied to owned infrastructure.

1693
04:32:08.080 --> 04:32:16.190
Boardroom: The other side of the wire flock question is about our contractual protections and data security, so I want to spend a minute there.

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1694
04:32:16.420 --> 04:32:21.499
Boardroom: Come on, please. So many of you are being respectful.

1695
04:32:21.690 --> 04:32:33.080
Boardroom: Thank you. I appreciate it. On the technical side, every Flock product line uses end-to-end encryption. The cybersecurity infrastructure meets the same standards that all of our most sensitive data is held under.

1696
04:32:33.080 --> 04:32:44.759
Boardroom: All access across every technology is logged through a single dashboard with a single audit trail, and Locke is contractually required to promptly notify the city of any data security incident that occurs.

1697
04:32:44.760 --> 04:32:55.619
Boardroom: So, more on the contractual side, the city attorney's Office reviewed the Master Services Agreement, and every single red line that the city proposed was accepted by Flock.

1698
04:32:55.620 --> 04:33:06.090
Boardroom: So, so what does that mean in practice? The city owns all of its data. Flock is prohibited from selling, sharing, or distributing our data. The city's…

1699
04:33:06.250 --> 04:33:18.950
Boardroom: Data ownership and control survives, even if the contract terminates, and we have contractual financial penalties for data breaches or unauthorized disclosures, which mirrors the framework that Oakland's Council approved for their flock agreement in December.

1700
04:33:20.029 --> 04:33:34.559
Boardroom: We know that there are multiple supplemental reports tonight that we think will help strengthen the MSA, and we are supportive of re-engaging Flock to make sure that our MSA has every protection that we need to feel confident in the agreement.

1701
04:33:35.720 --> 04:33:44.930
Boardroom: I know that there are concerns about federal access to data. Federal immigration authorities cannot access our data with anything short of a court order signed by a judge.

1702
04:33:44.930 --> 04:34:00.759

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Boardroom: And an administrative subpoena is not… Please, hey, come on. I'm really looking forward to hearing your public comments. I'm gonna sit there, and I'm gonna listen to everything you all are saying. I'd like you to be respectful. You will be respectful of our city staff while they present.

1703
04:34:00.759 --> 04:34:13.640
Boardroom: So this is consistent with our Sanctuary City Ordinance, and with state privacy law. And in the case that they do receive a warrant, they're required to notify us, which would give us time to, assess its validity and decide on how we want to respond.

1704
04:34:13.869 --> 04:34:32.779
Boardroom: And I also want to note that Flock has made meaningful changes nationally in response to the same concerns, communities like ours have raised. Flock has added filters for impermissible search reasons, restrictive by default permission controls, and in California has made it impossible to share ALPR data outside of the state.

1705
04:34:40.119 --> 04:34:58.939
Boardroom: Okay, so I'm gonna bring it all together as we wrap up our presentation. Tonight, we're asking Council to take three categories of action. We've tried to lay that out for you. First, under the STO, accept the acquisition reports and use policies for UAS and community video streams, and approve the updated use policy for fixed cameras.

1706
04:34:59.119 --> 04:35:06.140
Boardroom: Second, under the police equipment ordinance, accept the impact statement and use policy for our unmanned aerial systems program.

1707
04:35:06.360 --> 04:35:23.190
Boardroom: And finally, third, provide contract authority to amend our existing flock contract to renew ALPRs and include DFR, fixed PTZ cameras, and the NOVA investigative software. So, thank you, and we're looking forward to hearing, both PAB's presentation and answering questions.

1708
04:35:23.220 --> 04:35:32.549
Boardroom: Thank you. Okay, so we will now hear from PAB and ODPA. They have a presentation, so it'll probably take a minute to switch over the

1709
04:35:32.830 --> 04:35:34.339
Boardroom: Mics and all that.

1710
04:35:40.480 --> 04:35:41.780

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Boardroom: Thank you, Chiefs.

1711
04:35:42.110 --> 04:35:45.329
Boardroom: Both Chiefs, and DC Tate, and Arlo?

1712
04:35:46.050 --> 04:35:47.130
Boardroom: Alright.

1713
04:35:53.450 --> 04:35:54.669
Boardroom: Whenever you're ready.

1714
04:35:58.040 --> 04:35:59.390
Boardroom: Thank you, Honorable Mayor.

1715
04:36:00.009 --> 04:36:03.709
Boardroom: Honorable council members, thank you for the opportunity to present to you today.

1716
04:36:03.990 --> 04:36:09.940
Boardroom: I'm here with Acting Director Jose Murillo, and my Vice Chair and colleague, Leah Wilson.

1717
04:36:10.230 --> 04:36:16.580
Boardroom: I also would like to thank, the community members who have attended the community sessions put together by the mayor and the council.

1718
04:36:17.180 --> 04:36:34.080
Boardroom: and also BPD for discussing with us our recommendations. But most of all, I'd also like to thank the four PAB board members who have really risen to the task in providing Council with our best set of recommendations under very difficult circumstances. Some of these

1719
04:36:34.140 --> 04:36:39.719
Boardroom: recommendations, we reviewed within 24 hours, and I still would stand by every single one of them.

1720
04:36:40.960 --> 04:36:45.720
Boardroom: With that, I'm going to pass to our Vice Chair, Leah Wilson, to present, on the first item.

1721
04:36:46.669 --> 04:36:48.130

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Boardroom: Can you advance the slide?

1722
04:36:53.570 --> 04:37:02.420
Boardroom: All right. So, our core recommendation this evening is that the Council defer action on all three of the surveillance items before you.

1723
04:37:03.910 --> 04:37:04.860
Boardroom: Also…

1724
04:37:05.040 --> 04:37:19.190
Boardroom: Council is ultimately being asked to approve four programs. That's the ALPR, the fixed cameras, the community video streams, and drones, that will operate as one integrated tracking system.

1725
04:37:19.189 --> 04:37:25.729
Boardroom: Using acquisition reports that have never analyzed what that combined system can do.

1726
04:37:25.730 --> 04:37:34.910
Boardroom: In fact, two of the acquisition reports were submitted to you prior to the department's move to a consolidated surveillance environment.

1727
04:37:35.070 --> 04:37:43.390
Boardroom: That's ALPRs and fixed cameras. The combined capability where one operator can query a license plate.

1728
04:37:43.529 --> 04:37:55.819
Boardroom: Pull fixed camera and community video footage and dispatch a drone in real time creates a privacy impact that is categorically different from the sum of its parts.

1729
04:37:56.340 --> 04:38:12.780
Boardroom: This development represents the largest surveillance expansion in the city's history, and it deserves careful and deliberate consideration. Unfortunately, speaking as your Police Accountability Board, this has not occurred.

1730
04:38:12.910 --> 04:38:16.279
Boardroom: This decision is too important to be rushed.

1731
04:38:21.990 --> 04:38:23.230

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Boardroom: It's me again.

1732
04:38:23.700 --> 04:38:39.710
Boardroom: I would… I love the support. I would… I would support a quieter clap so that we can hear her speak. I want to make sure I hear her, too. I want to protect all of our rights to hear these presentations, so thank you. Is it okay for Council? Can you feel responsible in waiting? The answer is yes.

1733
04:38:39.759 --> 04:38:48.939
Boardroom: The Chief alluded to the presentation of the department's annual report earlier today, and you see on the slide some very impressive crime statistics.

1734
04:38:48.970 --> 04:38:57.960
Boardroom: We see that crime has gone down in all categories, significant categories, not only in the last year, but over the last 4 years.

1735
04:38:57.960 --> 04:39:03.149
Boardroom: These trends mirror what we've seen nationally. In fact, in 2024,

1736
04:39:03.150 --> 04:39:22.060
Boardroom: The FBI reported that violent and property crimes across the country were at their lowest level since 1969. There is not a crisis in this city that should compel you to feel, again, like you have to rush a decision that needs to be carefully made.

1737
04:39:23.320 --> 04:39:24.620
Boardroom: Bounce the slide.

1738
04:39:27.250 --> 04:39:30.220
Boardroom: So… You don't have to rush.

1739
04:39:30.529 --> 04:39:36.920
Boardroom: And to do… to act today would be premature. First of all, we have serious concerns about

1740
04:39:37.099 --> 04:39:41.809
Boardroom: the intention to, partner with Flock Safety.

1741
04:39:42.000 --> 04:39:57.250

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Boardroom: There are the concerns that obviously you will hear this evening from our chair, and I'm sure from many of the community members that are here today. But what I want to speak to is the fact that we have not seen any documentation of the vendor selection process.

1742
04:39:57.500 --> 04:40:12.130
Boardroom: at all. In fact, tonight, in slide 7 of the department's presentation, that's the first time that I've seen any of the metrics that were used to base the decision to go with Flock versus a different vendor. That is…

1743
04:40:12.130 --> 04:40:26.060
Boardroom: good procurement. I've been told that the reason that the department does not have an articulated list of requirements for the surveillance vendor is that this was not put out for bid.

1744
04:40:26.370 --> 04:40:40.659
Boardroom: However, those of us that are familiar with procurement know that even when you don't put something out for formal bid, you do need to document the requirements for the system that you are trying to procure. We've never seen it. I don't know if you have.

1745
04:40:40.930 --> 04:40:49.730
Boardroom: This is good government to have a very transparent and clear vendor selection process, and we don't think it's been done.

1746
04:40:50.450 --> 04:41:07.539
Boardroom: Another reason that action tonight would be premature. There's been inadequate time to review these materials. I don't want to repeat what you did here briefly from our chair. We had 24 hours to review the Master Services Agreement, and we are down to 4 members.

1747
04:41:07.540 --> 04:41:11.010
Boardroom: Even with that, we were able to identify

1748
04:41:11.020 --> 04:41:18.520
Boardroom: many material provisions, which several of you, and I appreciate that, have reflected in your supplementals.

1749
04:41:18.920 --> 04:41:27.409
Boardroom: This is not reasonable to expect us to catch all of the MSA modifications that need to be made.

1750
04:41:27.410 --> 04:41:40.069

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Boardroom: as well as the compliance issues that are existing in the policies as the department has put them forward. We simply haven't had time to do that work, nor is it reasonable, again, to expect us

1751
04:41:40.070 --> 04:41:44.819
Boardroom: To be the catch-all auditor of what the department is putting before you.

1752
04:41:45.720 --> 04:41:58.270
Boardroom: The third reason action tonight would be premature. There has been no combined assessment of this entire, surveillance architecture that you are being asked to approve, and I'm going to speak to that a little bit later.

1753
04:41:58.640 --> 04:42:09.619
Boardroom: So the fourth reason is that, as I mentioned, with 24 hours to review, we were able to, yet and still, advance to you over 30 instances of either

1754
04:42:09.620 --> 04:42:21.860
Boardroom: MSA modifications that needed to be made, or material noncompliance issues with the policies that were presented to you. And when I say material, I mean that the policies in the acquisition reports

1755
04:42:21.860 --> 04:42:36.360
Boardroom: contain failures to comply with the Berkeley Municipal Code, as well as State Law AB481. You simply cannot approve these without first demanding that they be legally compliant.

1756
04:42:36.510 --> 04:42:37.640
Boardroom: Can move forward.

1757
04:42:44.780 --> 04:42:48.010
Boardroom: Just gonna talk about the second question, about why flock safety.

1758
04:42:48.180 --> 04:42:51.509
Boardroom: And for us, the PAB really focused on

1759
04:42:51.610 --> 04:43:07.860
Boardroom: Considering the unique benefits that the department says Flock can provide to a consolidated, centralized surveillance system, and whether they outweigh the privacy risks and community safety risks posed

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by the vendor that BPD selected and that the contract that BPD is asking the city to enter into.

1760
04:43:08.040 --> 04:43:21.520
Boardroom: And so when we analyzed that risk, and we consider all the publicly available data, we didn't see that analysis reflected in the acquisition report. The acquisition report that is before you, I believe on page 15 of the agenda, if I'm…

1761
04:43:21.680 --> 04:43:23.129
Boardroom: I'm understanding that correctly.

1762
04:43:24.390 --> 04:43:33.470
Boardroom: does not… the BMC specifically enumerates specific things that the department is required to put in there. For example, the experience of other entities.

1763
04:43:34.400 --> 04:43:47.809
Boardroom: As we all know, the experience of other entities with Flock has been in the news for the last 6 months, and yet that is not mentioned in the acquisition report. At the community meeting, different community members raised concerns

1764
04:43:48.030 --> 04:44:07.429
Boardroom: of different police chiefs, the Mountain View Police Chief, the Ventura County Police Chief, who have publicly spoken out and said that Flock is not to be trusted, and yet that is not reflected in the acquisition report. And we think that that should have been, and that the risks of that should have been weighed and publicly available for the community to understand.

1765
04:44:08.320 --> 04:44:26.900
Boardroom: Another example, Senator Ron Wyden said in a public oversight investigation that he conducted further oversight and determined that Flock cannot live up to its commitment to protect the privacy and security of Oregonians. An abuse of Flock cameras is inevitable, and Flock has made it clear that it takes no responsibility to prevent or detect that.

1766
04:44:27.090 --> 04:44:32.509
Boardroom: That was… that statement was not reflected in the acquisition report. The analysis of whether the risks

1767
04:44:32.790 --> 04:44:38.430

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Boardroom: that is represented by the experience of other entities, which is reflected in Berkeley's municipal code.

1768
04:44:38.990 --> 04:44:44.170
Boardroom: Specifically, the Surveillance Technology Oversight Ordinance, Ordinance, excuse me.

1769
04:44:44.390 --> 04:44:51.120
Boardroom: Specifies that the experience of other entities is to be reflected in the acquisition report, and we don't think it was accurately reflected.

1770
04:44:52.760 --> 04:44:55.959
Boardroom: Another issue is we see certain flaws in the Master Services Agreement.

1771
04:44:56.460 --> 04:45:00.919
Boardroom: I think that Vice Chair Leah Wilson will speak a little bit more to that, so I'm gonna skip over that item.

1772
04:45:01.390 --> 04:45:17.829
Boardroom: We also didn't see reflected in the acquisition report the concentration risks. We saw an explanation of why consolidation under a single vendor would be beneficial to the department, but we didn't see the flip side analysis of why concentration risk would actually pose a threat to privacy.

1773
04:45:22.230 --> 04:45:24.970
Boardroom: And then the lack of doc… The lack,

1774
04:45:25.110 --> 04:45:33.929
Boardroom: of documented vendor selection process, Vice Chair Wilson also talked about. The last thing I wanted to mention is really this conflict with sanctuary City commitments.

1775
04:45:36.480 --> 04:45:39.069
Boardroom: That was not mentioned a single time.

1776
04:45:41.120 --> 04:45:42.739
Boardroom: In the acquisition report.

1777
04:45:42.950 --> 04:45:45.979
Boardroom: And I think it was important to note that

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1778
04:45:46.190 --> 04:45:51.210
Boardroom: even though Flock has publicly stated that they're contractually bound.

1779
04:45:52.180 --> 04:46:10.560
Boardroom: to notify of an instance. I think we have an example of just 2 weeks ago, where the Modesto Police Department discovered that their nationwide lookup was turned on without their consent, and they turned off their cameras. This was 5 months after the first police department just notified Flock that this was an issue, and yet, 5 months later.

1780
04:46:10.800 --> 04:46:17.499
Boardroom: Modesto County… Modesto City discovered it on their own through a public records request, not through an audit.

1781
04:46:17.760 --> 04:46:19.060
Boardroom: I think that's a concern.

1782
04:46:20.510 --> 04:46:22.020
Boardroom: I also think it's a concern.

1783
04:46:23.320 --> 04:46:28.639
Boardroom: You know, the PAB, was really reflective that Berkeley has a sanctuary City commitment

1784
04:46:28.830 --> 04:46:34.070
Boardroom: What that means is, is it okay for Berkeley to contract with a vendor

1785
04:46:34.580 --> 04:46:40.780
Boardroom: Even if Berkeley's own data is safe, if that vendor If that vendor

1786
04:46:41.180 --> 04:46:56.330
Boardroom: and their business model relies on the sharing of data, and that other police departments can then share their data, maybe not Berkeley's data, but other data with ICE for immigration enforcement purposes, and whether that's consistent with the Berkeley's Sanctuary City commitments.

1787
04:46:57.940 --> 04:47:04.489

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Boardroom: I was reminded of another example, talking to one of our staff members who's, you know, a trans… a trans man.

1788
04:47:04.680 --> 04:47:07.790
Boardroom: And he reminded me that a flock.

1789
04:47:08.300 --> 04:47:11.289
Boardroom: And Flock… part of the contract with Flock

1790
04:47:11.650 --> 04:47:17.580
Boardroom: is to allow Berkeley's data to become aggregated and anonymized, and that will be used to train its AI model.

1791
04:47:18.570 --> 04:47:34.889
Boardroom: You know, they are concerned that their pers… without consent, that their data will be then used to train a model that will be then employed by Kansas' police department to under… to then prosecute crimes about entering bathrooms that they think that he… that they should not be… that they should not enter into.

1792
04:47:36.080 --> 04:47:43.970
Boardroom: I think it's a concern of the community, and I think it's a concern that was not addressed in the acquisition report. So I think all these examples should have been in the acquisition report, and they weren't.

1793
04:47:44.080 --> 04:47:49.599
Boardroom: And the community was concerned at the last community meeting that there was no weighing of the balance of risk

1794
04:47:50.060 --> 04:47:55.290
Boardroom: with the operational benefit that Flock specifically provides… that they say Flock provides.

1795
04:47:55.960 --> 04:48:13.480
Boardroom: Next slide. Alright, so we're asking you tonight to defer action, and then we're also asking you to direct some action. So the first affirmative ask is that you direct the department to complete a consolidated BMC299 report, an acquisition report.

1796
04:48:13.480 --> 04:48:17.119
Boardroom: For the entire surveillance ecosystem.

1797

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04:48:17.120 --> 04:48:42.119
Boardroom: Our chair mentioned some of the risks of having such a consolidated system, irrespective of who the vendor is, and the fact that the current acquisition report only speaks to the benefits. There are significant risks. There's operational dependency. When you consolidate all of these programs with one vendor, you're extremely dependent on that vendor. That vendor has significant leverage over you over time in terms

1798
04:48:42.120 --> 04:48:45.539
Boardroom: of cost, In terms of changes to the system.

1799
04:48:45.540 --> 04:48:51.650
Boardroom: And in terms of their independent ability to, make changes to policies

1800
04:48:51.650 --> 04:49:07.040
Boardroom: and the parameters for the operating system for their program. Once we have all four of our surveillance programs running through one vendor, we are very unlikely to readily leave, or feel that we can leave. And that is something that must be addressed

1801
04:49:07.040 --> 04:49:09.440
Boardroom: In an updated acquisition report.

1802
04:49:09.440 --> 04:49:20.840
Boardroom: And then I want to speak to another element. I mentioned before that we have not had the opportunity to view the entire surveillance architecture for what it truly is.

1803
04:49:20.840 --> 04:49:31.590
Boardroom: You saw in, BPD's slide, it was interesting, they sort of, the slides, they highlighted only two things as being new, and kind of skipped over, the new investigative

1804
04:49:31.590 --> 04:49:50.199
Boardroom: power software. I thought that was interesting, because I think, actually, Flock Nova is what is referenced there, and I think it's quite new. And I think that Flock Nova and its capabilities really do highlight some of the issues that need to be addressed in this new consolidated acquisition report.

1805
04:49:50.420 --> 04:49:56.969
Boardroom: So, the very purpose of Flock Nova is to aggregate data across all systems.

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1806
04:49:57.170 --> 04:50:19.499
Boardroom: and for that data to be accessible to Flock clients. That's the very purpose of Flock NOVA. That's something new that we don't have the right to today, that we will under this proposal. Neither the MSA or any of the materials that we've reviewed give Berkeley the right to consent before NOVA is activated or expanded.

1807
04:50:19.500 --> 04:50:26.870
Boardroom: Nor do they give us the right to control what kind of data is submitted to the NOVA system.

1808
04:50:26.870 --> 04:50:33.690
Boardroom: So this is vital information that should be included in an updated, consolidated acquisition report.

1809
04:50:41.120 --> 04:50:41.970
Boardroom: All right.

1810
04:50:41.970 --> 04:51:01.549
Boardroom: If the City Council chooses to move forward today and contract with Flock Safety, we believe you need to modify, direct modifications to the agreement with Flock. This is reflected in several of your supplementals, and I'm sorry, Councilmember Bartlett, I've not had the time to analyze, yours, but I did have the time.

1811
04:51:01.550 --> 04:51:25.790
Boardroom: to take a look at the other two, and I do believe that all of these points on this particular slide are addressed in one of the two supplementals, directing further modification or amendment to the Flock Master Services Agreement. I will say that some of what I heard in the department's presentation this evening surprised me, because there are some assertions that suggest that some of these items have already been addressed and agreed to by Flock.

1812
04:51:25.870 --> 04:51:31.830
Boardroom: That is not information that has come to us previously. Let's move on to the next slide.

1813
04:51:32.110 --> 04:51:40.210
Boardroom: Even with the supplementals, there are additional modifications to the MSA that I would encourage you to consider if

1814
04:51:40.210 --> 04:51:53.120

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Boardroom: you do, decide to go ahead with Flock today. I did see a suggestion, first of all, that the penalties for breach violations be increased from $75,000 to $150,000.

1815
04:51:53.120 --> 04:51:56.750
Boardroom: I reiterate here what was shared in our written material.

1816
04:51:56.780 --> 04:52:09.629
Boardroom: that Oakland, has a penalty of $200,000 per violation, Richmond $290,000. It's unclear why the City of Berkeley would agree to any less of a penalty provision.

1817
04:52:10.010 --> 04:52:19.370
Boardroom: In addition, none of the supplementals address the exemption in the penalty language for the lookup tool.

1818
04:52:19.370 --> 04:52:32.770
Boardroom: data violations that are done pursuant to FLOC's lookup tool. And this is a really important feature, which our chair just alluded to. I want to make it clear that this is one, as my understanding, is one of the central benefits of FLOC,

1819
04:52:32.770 --> 04:52:47.179
Boardroom: This is a tool that allows participating jurisdictions, and I believe the Deputy Chief spoke to that, to actually look up and access data for other jurisdictions that are on the flock system, and they can do that without getting the affirmative

1820
04:52:47.180 --> 04:53:06.420
Boardroom: of the other jurisdictions. Right now, in your penalty provision in the MSA, any data breach or data violation that is done pursuant to a jurisdiction's use of the look-up tool is entirely carved out of the penalty. That needs to be amended.

1821
04:53:06.430 --> 04:53:31.290
Boardroom: Last but not least, we made a recommendation that the city preserve its full legal remedies when actual harm exceeds the penalty amount. So right now, as the MSA is written, the entire remedy or recourse for data breach violations is a monetary penalty. Currently, $75,000, as several council members have recommended, $150,000.

1822
04:53:31.290 --> 04:53:32.170
Boardroom: thousand.

1823

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04:53:32.170 --> 04:53:34.690
Boardroom: Imagine if a disclosure

1824
04:53:34.820 --> 04:53:50.960
Boardroom: leads to an immigration enforcement action against a Berkeley resident. They are detained, deported, their family is separated. Do you feel that $150,000 is a sufficient remedy for that violation? I think it most likely is not.

1825
04:53:51.310 --> 04:54:07.370
Boardroom: Imagine if a data breach exposes information about many thousands of your, Berkeley citizens, and you are asked as a city to pay for the cost of remedying our credit, or credit monitoring services.

1826
04:54:07.460 --> 04:54:22.350
Boardroom: You would face potential civil liability from your community. You wouldn't be able to go after Flock for any of that the way the contract is currently written. You need to pursue amendments that protect the city's bottom line.

1827
04:54:22.410 --> 04:54:30.159
Boardroom: If flock's negligence is egregious or repeated, you may want to pursue punitive damages or injunctive relief.

1828
04:54:30.160 --> 04:54:47.300
Boardroom: you're not able to do that either, as the MSA is currently structured. So while I appreciate the amendments that have been put forward in the supplemental, I strongly urge you to consider additional amendments, really to protect the city from a fiscal perspective, if nothing else.

1829
04:54:52.850 --> 04:54:53.740
Boardroom: Do you have…

1830
04:54:55.340 --> 04:55:01.049
Boardroom: We have two more topics. Sorry, can you give me a sense of how much… Yeah, 5 minutes. Okay, thank you.

1831
04:55:01.580 --> 04:55:07.629
Boardroom: We have two topics, one of them's very brief, to discuss. Next, next slide, please. And then skip that slide, too.

1832
04:55:08.920 --> 04:55:12.800

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Boardroom: The first is about, all the use policies and our recommendations that are…

1833
04:55:14.970 --> 04:55:28.660
Boardroom: I didn't know they were… that cover, all policies that have been submitted to you. Our first recommendation is that you impose consistent audit requirements across all policies. One of the issues that we've seen is that jurisdictions are not.

1834
04:55:29.040 --> 04:55:42.030
Boardroom: not identifying non-compliant issues, until months later, because they are not consistently auditing their data. And so our recommendation is at least monthly audits, and then biannual reporting by the department to the PAB.

1835
04:55:42.280 --> 04:55:59.779
Boardroom: The second is inconsistent notification standards. A few months ago, or a month ago, the Council asked the department to notify them within 72 hours of a request, by ICE for any information from their department. And that's only reflected in one policy. Right now, we would like to see it reflected across all policies. Next slide, please.

1836
04:56:01.660 --> 04:56:13.770
Boardroom: The last set of recommendations specifically concerns the drone use program and the use policy that the department is presenting, which was not touched on so far, so I think I'm going to spend my last few minutes on this slide here.

1837
04:56:14.700 --> 04:56:25.689
Boardroom: The drone use program, the use policy, as the department is proposing, does not limit it to specific authorized uses. Instead, it says that the drone may be used for

1838
04:56:25.750 --> 04:56:35.500
Boardroom: specific authorized uses, and then doesn't… does not limit it to those specific issues, those specific authorized uses. And I think that's a reason for a couple issues… an issue

1839
04:56:35.650 --> 04:56:44.440
Boardroom: For a couple reasons. The first is that the municipal code actually requires that BPD explicitly identify each authorized use

1840
04:56:44.440 --> 04:56:56.450
Boardroom: for any surveillance technology ordinance. And so instead of limiting and making transparent what each authorized use is, they've

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decided to make it permissive such that there's an unwritten authorized use

1841
04:56:56.490 --> 04:57:11.370
Boardroom: unwritten authorized use that is effectively whatever else the department says is permissible that is not explicitly prohibited by the policy. We think that's an issue. It's an issue for transparency's sake, it's an issue for auditing's sake, and it's an issue because

1842
04:57:11.570 --> 04:57:16.299
Boardroom: Berkeley residents, I deserve to know why and how they're being surveilled.

1843
04:57:18.380 --> 04:57:28.789
Boardroom: The second… the second recommendation specifically, ties to data retention policy. BPD's data retention policy, is… proposed data retention policy is 60 days.

1844
04:57:28.990 --> 04:57:40.640
Boardroom: We recommend tying the data retention policy, tailor it to each use. Tailor it to the uses that BPD says and the purposes that BPD says they're actually deploying the drone for. For example.

1845
04:57:40.870 --> 04:57:47.819
Boardroom: When they deploy a drone for vehicle pursuits, the purpose is officer safety in order to understand the terrain.

1846
04:57:47.870 --> 04:58:02.479
Boardroom: None of that… none of that purpose requires… achieving that purpose does not require retaining the data. And we think that the narrow retention data respects Berkeley… Berkeley residents' privacy, rights, and it also protects from… from…

1847
04:58:02.710 --> 04:58:08.520
Boardroom: warrants… Requests from immigration officials, because the only protection when the data is…

1848
04:58:08.800 --> 04:58:12.470
Boardroom: When they come with a judicial warrant is that the data doesn't exist.

1849
04:58:14.660 --> 04:58:23.919

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Boardroom: We also think that there are concerns around the oversight and accountability mechanisms. Right now, the BPDU policy for drones does not require supervisory approval.

1850
04:58:24.050 --> 04:58:33.540
Boardroom: And it doesn't require BPD operators to actually, specify the reason for the drone deployment. We think those two things are common sense parameters to ensure oversight.

1851
04:58:35.220 --> 04:58:38.689
Boardroom: We also, I want to highlight, what's in the second,

1852
04:58:39.060 --> 04:58:43.900
Boardroom: The second recommendation in the bottom row, about First Amendment concerns.

1853
04:58:44.350 --> 04:58:51.760
Boardroom: One of the, authorized uses that BPD is proposing is, to respond to criminal activity in mass gatherings.

1854
04:58:52.200 --> 04:58:56.379
Boardroom: the police department, Or, excuse me, the Police Accountability Board.

1855
04:58:56.560 --> 04:59:08.660
Boardroom: was specifically concerned about this because the pliant nature, the pliant definition of criminal activity. Criminal activity could encompass anything from failing to… failing to…

1856
04:59:09.240 --> 04:59:23.520
Boardroom: adhere to an unlawful dispersal order that's issued in the moment. It could be, responding to, for example, someone who is in the crowd who's an instigator, and that could be a pretext, then, to use and to… to…

1857
04:59:23.530 --> 04:59:37.489
Boardroom: capture drone surveillance footage of everyone who was in that area. And if the data's retained for 60 days, per BPD's policy, they would be able to look back at that policy, to look back at that footage, and to see if there's any other potentially criminal,

1858
04:59:38.540 --> 04:59:40.140
Boardroom: If there's any actionable…

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1859
04:59:41.550 --> 04:59:49.639
Boardroom: activity in that footage, and I think, you know, for me, this specifically was a concern because before joining the PAB,

1860
04:59:49.760 --> 04:59:54.050
Boardroom: I was working with the Lawyers Committee for Civil Rights, specifically in litigation.

1861
04:59:54.220 --> 05:00:10.800
Boardroom: Against the County of Sacramento Police Department, and the police department ended up having to settle for hundreds of thousands of dollars, specifically because they were using their drones to surveil protesters in a way that chilled First Amendment rights. And the drone use policy that BPD has presented.

1862
05:00:10.920 --> 05:00:16.699
Boardroom: has essentially the same prohibitions that Sacramento Police Department had, and so they are inadequate.

1863
05:00:18.130 --> 05:00:25.030
Boardroom: I'm gonna leave the other ones on there, so that we can conclude our presentation, but thank you for… thank you for listening.

1864
05:00:28.670 --> 05:00:29.390
Boardroom: Okay.

1865
05:00:34.030 --> 05:00:35.220
Boardroom: Thank you.

1866
05:00:35.460 --> 05:00:37.230
Boardroom: For your presentation.

1867
05:00:37.920 --> 05:00:49.059
Boardroom: We now have 4 supplementals that need to be presented. I don't have a strong preference for order. Is there anyone who would like to go first? Don't we need to accept one of them first?

1868
05:00:49.460 --> 05:00:53.270
Boardroom: Do we need to vote to accept? Yeah. Set this up 3?

1869
05:00:53.410 --> 05:00:54.700
Boardroom: I'll be not.

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1870
05:00:55.010 --> 05:00:56.270
Boardroom: Oh…

1871
05:00:59.430 --> 05:01:02.069
Boardroom: Sorry, Mr. City Clerk, can you weigh in here, please?

1872
05:01:02.530 --> 05:01:08.249
Boardroom: So there was, the revised agenda material from, Councilmember Bartlett.

1873
05:01:08.590 --> 05:01:13.780
Boardroom: Needs to be voted to be accepted for, consideration by a two-thirds vote.

1874
05:01:16.250 --> 05:01:17.839
Boardroom: He said, that's this one.

1875
05:01:23.000 --> 05:01:30.839
Boardroom: Yeah, so here's, my supplemental. I saw these other supplementals, I wanted to get involved as well. I felt lonely out there. And so my supplemental…

1876
05:01:32.030 --> 05:01:44.590
Boardroom: No, no, I think it makes sense for him to say what's on there before we decide if we're accepting it, so go ahead. I've never seen… I've never done a supplemental before, it's my first time.

1877
05:01:44.770 --> 05:01:46.889
Boardroom: I gotta learn the litany.

1878
05:01:47.060 --> 05:01:50.840
Boardroom: Okay, so this is, this is,

1879
05:01:50.890 --> 05:02:04.000
Boardroom: These are my efforts to, to enjoin the conversation and offer, my edits to the contract, the Master Service Agreement. And I guess I can read the language inside this box on the page.

1880
05:02:04.000 --> 05:02:16.479

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Boardroom: The purpose of this supplemental material is to clearly define the legal boundaries within which the city may utilize automated license plate reader technology and other surveillance services.

1881
05:02:16.480 --> 05:02:29.849
Boardroom: This supplemental will ensure that any vendors who are contracted to provide ALPR and surveillance technology services operate within specific parameters that will safeguard residents' privacy, civil rights, and Berkeley's Sanctuary City Ordinance.

1882
05:02:29.890 --> 05:02:35.829
Boardroom: While maintaining city control of access and usage of data generated from the technology.

1883
05:02:35.940 --> 05:02:39.390
Boardroom: The supplemental will incorporate Good of the City provisions.

1884
05:02:39.580 --> 05:02:49.710
Boardroom: to ensure full transparency, control, and accountability in the deployment and operation of the technology. These provisions will include strict mutuality of contractual obligations.

1885
05:02:50.120 --> 05:03:00.620
Boardroom: Materially increased penalties for any unauthorized data access or disclosure, and a clear private right of action for affected individuals, including statutory damages and injunctive relief.

1886
05:03:03.490 --> 05:03:22.200
Boardroom: Okay, there are some council members who have marked their… do you have a… something you'd like to say, Councilmember Humbert? No, I'd just like to… I would like to present my supplemental. Oh, we're not… yeah, not quite yet. We're just voting to bring it… I understand, that's… Yeah, okay, so it's for later.

1887
05:03:23.160 --> 05:03:33.550
Boardroom: Okay, so Councilmember O'Keefe, did you have something you wanted to say? I have a question for Councilmember Bartlett regarding a supplemental. Has the City Attorney's Office reviewed this

1888
05:03:34.110 --> 05:03:36.290
Boardroom: No, they have not. Okay.

1889
05:03:36.620 --> 05:03:37.490
Boardroom: Thank you.

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1890
05:03:40.270 --> 05:03:47.039
Boardroom: Okay, so… you are… are you making a motion? Making a motion to include my supplemental. Second.

1891
05:03:48.840 --> 05:03:51.459
Boardroom: Okay, I'll call the roll. This is to…

1892
05:03:51.800 --> 05:03:59.799
Boardroom: accept, the supplemental from Councilmember Bartlett for consideration. Councilmember Kessarwani. Yes.

1893
05:04:00.050 --> 05:04:06.969
Boardroom: Kaplan? Yes. Bartlett? Yes. Trey Gobb? Aye. O'Keefe? Abstain.

1894
05:04:07.590 --> 05:04:08.970
Boardroom: Blackaby? Yes.

1895
05:04:09.260 --> 05:04:10.670
Boardroom: Luna Parra? Yes.

1896
05:04:10.830 --> 05:04:15.720
Boardroom: Humbert? Yes. And Mary Ishii? Yes. Okay, motion carries us.

1897
05:04:16.700 --> 05:04:17.909
Boardroom: Okay. For consideration.

1898
05:04:18.480 --> 05:04:22.280
Boardroom: Now, Councilmember Humbert, would you like to present your supplemental?

1899
05:04:22.850 --> 05:04:35.550
Boardroom: Thank you, Madam Mayor. Yes, I'd like to present the supplemental that, I and Councilmember O'Keefe and Councilmember Taplin and Councilmember Kassarwani, have brought.

1900
05:04:35.690 --> 05:04:37.819
Boardroom: First I want to thank

1901
05:04:38.210 --> 05:04:56.599

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Boardroom: Bpd, Chief Lewis for all her work on these policies, and on the Master's Services Agreement, and I especially want to thank our City Attorney and Stephen Hilis in the City Attorney's Office for their suggestions and review of our supplemental, and also the City Manager's Office for their guidance.

1902
05:04:56.780 --> 05:05:00.939
Boardroom: And of course, I want to thank my co-authors, who I just… who I just named.

1903
05:05:02.280 --> 05:05:13.500
Boardroom: I also want to… everyone was working over the weekend on this, and I deeply appreciate folks taking time out of their schedules and lives to address community concerns and strengthen this agreement.

1904
05:05:13.610 --> 05:05:26.910
Boardroom: I also want to thank the PAB for its review, and for its thoughtful comments, and for its presentation here tonight. I want to preface the rest of my comments by saying that I deeply respect the positions of all my colleagues.

1905
05:05:26.910 --> 05:05:39.289
Boardroom: and the concerns that we… that I have heard, and I'm sure that I will hear further tonight. I want to be clear, I agree that these concerns are justified. We know the federal government is out to get people.

1906
05:05:39.390 --> 05:05:47.969
Boardroom: And we also know there's been inappropriate access to ALPR data in other cities via FLOC, and then in some cases, those cities have sought to exit their contracts.

1907
05:05:48.300 --> 05:05:52.549
Boardroom: At the same time, and as I discussed at our special meeting some time ago.

1908
05:05:52.550 --> 05:06:09.780
Boardroom: I think there's good evidence that ALPRs and other technological tools are creating true public safety benefits that have real weight. We've heard that tonight in the prior meeting, in detail, and also through the BPD's presentation earlier in this meeting.

1909
05:06:09.980 --> 05:06:15.349
Boardroom: The question that I have grappled with is, what tips the scales for me?

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1910
05:06:15.550 --> 05:06:34.630
Boardroom: Can we get to a place where we have sufficient protections for our data and ability to get out of this agreement that the risks are outweighed by the public safety benefits? First, I think it is important to point out… Folks, please. …that in the context of a federal government that is literally snatching people off the streets just for how they look.

1911
05:06:34.970 --> 05:06:42.510
Boardroom: The marginal risks from inappropriately accessed ALPR data are relatively small.

1912
05:06:42.730 --> 05:06:56.839
Boardroom: That said, I understand and can respect the argument that any marginal risk in this regard is too much. That is a principled position that someone can take, in fact. My view… please don't interrupt me.

1913
05:06:56.840 --> 05:07:06.200
Boardroom: You are entitled to your positions, you're entitled to your opinions, but you will let everyone speak so that we can hear them. It's okay if you disagree, it's just not appropriate for you to yell at them.

1914
05:07:06.270 --> 05:07:17.700
Boardroom: Go ahead. My view, though, is that our residents face public safety risks every day. One of my constituents, who's a senior, was brutally mugged and thrown under the ground in 2023.

1915
05:07:17.960 --> 05:07:25.700
Boardroom: And she was not alone in being a senior who was targeted. And I know that other parts of Berkeley, most notably West Berkeley, South Berkeley.

1916
05:07:25.760 --> 05:07:45.710
Boardroom: and District 2, face constant threats of gun violence. Robberies and car thefts, too, of course. These are the real, concrete, everyday safety threats against which I'm weighing the more marginal impacts of things like data leaks from ALPRs, and a limited number of fixed surveillance cameras and drones.

1917
05:07:45.810 --> 05:07:54.890
Boardroom: I believe that with the right amendments, and with the ability to swiftly exit this agreement for any reason, and that's critical to me, the ability to walk away.

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1918
05:07:55.260 --> 05:08:08.429
Boardroom: we can provide adequate protection to get these risks down to a level where they are outweighed by the public safety benefits. And I… please don't interrupt me. And I'd ask, Councilmember,

1919
05:08:08.990 --> 05:08:12.090
Boardroom: Kesserwani to put the… put the,

1920
05:08:12.320 --> 05:08:17.130
Boardroom: the, supplemental app. Anyway,

1921
05:08:19.140 --> 05:08:27.700
Boardroom: As I… I'm gonna repeat it. I believe that with the right amendments, and with the ability to swiftly exit this agreement for any reason.

1922
05:08:28.480 --> 05:08:35.750
Boardroom: We can provide adequate protection to get these risks down to a level where they are outweighed by the public safety benefits.

1923
05:08:35.910 --> 05:08:39.840
Boardroom: And that if changes we have made, and if that changes.

1924
05:08:39.950 --> 05:08:43.110
Boardroom: We have the ability to get the heck out of Dodge.

1925
05:08:43.230 --> 05:08:46.650
Boardroom: So with that, I'm going to listen to the basic versions

1926
05:08:46.900 --> 05:08:49.509
Boardroom: Off the basic versions of our

1927
05:08:50.050 --> 05:08:57.139
Boardroom: Group's 6 recommendations, and there are more details… details in the supplemental itself.

1928
05:08:57.380 --> 05:08:59.450
Boardroom: Which will be up on the screen.

1929
05:09:00.310 --> 05:09:10.859

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Boardroom: One, increase the financial penalty for unauthorized data sharing from $75,000 to 100,000… $150,000 per violation.

1930
05:09:11.100 --> 05:09:24.189
Boardroom: Establish a termination for convenience right under which the city is not refunded for payments already made, but is not obligated for the remaining contract value. Can walk away, for whatever reason we want.

1931
05:09:24.280 --> 05:09:31.360
Boardroom: Limit FLOC's license to use anonymized data to the term of the agreement, rather than in perpetuity.

1932
05:09:31.550 --> 05:09:43.129
Boardroom: 4. Require Flock to obtain the City's prior written consent before making any changes. That's any changes to the City's data sharing settings or configurations.

1933
05:09:43.480 --> 05:09:54.030
Boardroom: 5. Revise the special terms section to clarify the MSA Master Services Agreement may not be modified without City Council approval. And 6.

1934
05:09:54.220 --> 05:10:10.089
Boardroom: remove the amendment and incorporate provisions on restrictions on data sharing into the MSA, and stipulate that such provisions shall not be modified by subsequent flock amendments or attachments without further City Council approval.

1935
05:10:10.270 --> 05:10:29.879
Boardroom: At this point, I also want to say, and I've read this, Councilmember Blackaby's supplemental, I also want to say that I'm very open to all of his recommendations, and would be delighted if our supplemental and his could be integrated into a consolidated set of recommendations that would go to our city manager and city attorney's offices.

1936
05:10:29.880 --> 05:10:35.700
Boardroom: Now, his recommendations include, serious monitoring efforts, requirements.

1937
05:10:35.910 --> 05:10:52.550
Boardroom: I think that with our powers combined, we would have a very strong master services agreement that I think would go very far to address community concerns and ensure that we can make use of these very

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helpful tools, again, with the option to get out if we want to and need to. Thank you.

1938
05:10:53.850 --> 05:10:55.599
Boardroom: Thank you, Councilmember.

1939
05:10:56.010 --> 05:11:02.860
Boardroom: So, would you, Councilmember Blackaby, like to present your supplemental?

1940
05:11:03.250 --> 05:11:06.110
Boardroom: Sure, thank you, Madam Mayor. If I can share…

1941
05:11:07.820 --> 05:11:25.629
Boardroom: Thanks to Councilmember Humbert and team, for their supplemental. It was interesting on Monday to see all the supplementals together, and to reflect that there's a lot of commonality, in the points that they've made and the points I've made. I will say that their six points

1942
05:11:25.640 --> 05:11:31.750
Boardroom: Or a superset of what I've presented. My three are basically a subset of what they've presented.

1943
05:11:31.850 --> 05:11:46.729
Boardroom: But the whole idea here is, you know, the thought behind this is that, as we've heard earlier tonight, that public safety technology does play a critical role in supporting the BPD's investigations, clearing cases, enhancing officer safety, and strengthening overall public safety. However.

1944
05:11:47.430 --> 05:11:56.430
Boardroom: flock's previous unauthorized sharing of surveillance data, and promises that they've fixed these problems, that must be monitored, verified.

1945
05:11:56.430 --> 05:12:11.360
Boardroom: and ensure that they are actually following through on those commitments constantly, underscores the need for more robust safeguards in the Master Services Agreement if we move forward, in our use policies, as well as enhanced program reporting and auditing.

1946
05:12:11.480 --> 05:12:20.730

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Boardroom: to ensure full transparency, informed oversight, and accountability as we move forward. Especially, I would say, at the beginning as we're getting the new program off the ground.

1947
05:12:20.730 --> 05:12:26.690
Boardroom: So, my supplemental is similar in some respects with what we've just seen from Councilmember Humbert.

1948
05:12:26.690 --> 05:12:41.240
Boardroom: There's the penalty, component, which is doubling the penalty, allowing the city to terminate the MSA for convenience, ensuring that we are not paying. If we cancel early, we're only on the hook for what we've spent and what we've consumed, but not future payments.

1949
05:12:41.340 --> 05:12:53.150
Boardroom: full flexibility to be able to exit the agreement, which also gives, again, gives us more leverage and also an incentive for Flock to actually perform and maintain their commitments, because we can exit at any time.

1950
05:12:54.470 --> 05:13:12.850
Boardroom: In addition, again, there is an existing technology ordinance, there are existing reports, but I don't think that given the changes that are being asked for, that just the biennial process is sufficient. And so, my recommendation here is more frequent reports, that are coming from BPD through the City Manager of the Council.

1951
05:13:12.850 --> 05:13:27.259
Boardroom: Even before the system is operational, quarterly reports about installation, what's the progress in timeline, what are any early results for components that may go live before the full system, and any issues or concerns that arise during installation.

1952
05:13:27.300 --> 05:13:50.150
Boardroom: Once the system's in use, we need monthly reports for at least the first 6 months of operation. I'd be open to extending that, including but not limited to, early results and performance evaluation of each component, issues and concerns, proposed solutions or fixes by the department, and also short case studies or synopses of what the technology is actually supporting. Can we actually see, what it is doing and get a better grasp of that?

1953
05:13:50.280 --> 05:14:04.089
Boardroom: And then three, thereafter align with existing practices for auditing and reporting. We do have these existing audits for the ALPR

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twice a year, that get shared with PAB. We also have an annual surveillance technology report that comes to us.

1954
05:14:04.110 --> 05:14:22.669
Boardroom: So that's the component. So there is a contract component, which is largely similar, and, a subset of what Councilmember Humbert and Councilmember Castorwani and team have proposed, and then additional reporting and auditing, requirements, especially early in the process to ensure that Flock is, adhering to the commitments they've made to the city.

1955
05:14:24.600 --> 05:14:35.209
Boardroom: Thank you very much, Councilmember. Councilmember Bartlett, did you want to also share so folks can see the more detailed version? Sure. I think you might have to stop sharing, Councilmember Blackby.

1956
05:14:40.980 --> 05:14:53.759
Boardroom: Thank you, thank you, and thanks for honoring me with your attention from my supplemental. My first supplemental, as I said, my first one. You know. So, listen, so, you know, we're here debating, and…

1957
05:14:53.920 --> 05:15:07.520
Boardroom: kind of engaging in this, this classic tension between security and liberty. And America has always had this, even from the very beginning, with the framers, or the Founding Fathers, as they're called.

1958
05:15:07.520 --> 05:15:15.309
Boardroom: This issue was talked about a lot, and it still is. And it's something that we all negotiate with ourselves and our families, our communities, our neighbors.

1959
05:15:15.320 --> 05:15:18.839
Boardroom: In our states, our countries, within our laws, all the time.

1960
05:15:19.050 --> 05:15:24.150
Boardroom: And so tonight, this is the latest sort of negotiation.

1961
05:15:24.270 --> 05:15:25.919
Boardroom: Of a line of scrimmage.

1962
05:15:26.040 --> 05:15:29.060
Boardroom: Between liberty and security.

1963

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05:15:29.780 --> 05:15:39.750
Boardroom: Now, I want to say this, regarding the, the flock vendor, I can tell you, I was… we worked in the privacy policy for a long time, like 3 years worked on it.

1964
05:15:39.750 --> 05:15:50.169
Boardroom: So Taplin brought it, in response to crime in his district. And I didn't love it at first, but we hammered it out, and we do have the best privacy policy in the state, probably the country, as a city.

1965
05:15:50.440 --> 05:15:54.749
Boardroom: And, did I tell a joke? When I make a joke, you'll know.

1966
05:15:55.040 --> 05:16:04.350
Boardroom: Come on, folks, come on. Let him finish speaking. Yeah. And, you people. And, so…

1967
05:16:04.470 --> 05:16:07.019
Boardroom: You know, so here's what I've seen. One.

1968
05:16:07.130 --> 05:16:17.270
Boardroom: In front of my predecessor's house, a car drove into and ran over a baby in a baby stroller across the street on Alcatraz. They caught the guy within the hour.

1969
05:16:17.280 --> 05:16:32.270
Boardroom: Another time, someone set off 12 shots outside a playground at Malcolm X school that caught him a little while later, lost the same technology. There was a rapist caught in a different district that was caught, due to the technology. So I know, I know it's effective.

1970
05:16:32.280 --> 05:16:44.139
Boardroom: And, you know, so that aspect of the security piece, where I feel responsible for your safety in my city, is real. And I want you to put yourselves in my shoes for a minute.

1971
05:16:44.170 --> 05:16:46.570
Boardroom: However.

1972
05:16:46.990 --> 05:16:52.909
Boardroom: However, that effectiveness alone is not enough, because we could just have a soldier in our house all the time.

1973

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05:16:53.120 --> 05:16:55.610
Boardroom: Right? And, on this issue.

1974
05:16:56.400 --> 05:16:59.330
Boardroom: Policing works best when there's trust.

1975
05:16:59.940 --> 05:17:11.540
Boardroom: And so many of our constituents, and all of my constituents, every single one I've talked to, I've talked to all of them, many, many, many, not one person supports it, they are fearful

1976
05:17:12.070 --> 05:17:23.079
Boardroom: fearful of the company we're working with. Because of what they've observed, and what they've heard, and what they've seen, and the impacts are on TV and all around us.

1977
05:17:23.220 --> 05:17:30.500
Boardroom: People are living scared, people are getting abused, there's a secret police force loose in the country, dragging people around.

1978
05:17:30.640 --> 05:17:35.439
Boardroom: And people feel that. And so, you know, I want… I want stuff to work.

1979
05:17:35.780 --> 05:17:47.850
Boardroom: I do this job to make things work for people. And I want to say this, and that in the… as we negotiate the scrimmage line again between Liberty and security, District 3 has chosen Liberty.

1980
05:17:48.180 --> 05:17:49.280
Boardroom: 100%.

1981
05:17:49.780 --> 05:17:50.574
Boardroom: So…

1982
05:17:56.570 --> 05:18:06.339
Boardroom: So, in this instance, my notes here, my edits to the Master Service Agreement, the MSA, I've done my best to give it balance.

1983
05:18:06.650 --> 05:18:13.150
Boardroom: By that, sparkly tipped it towards us a bit, and to make it,

1984

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05:18:13.260 --> 05:18:24.699
Boardroom: make it have teeth, and make it work, right? And so I've included a million dollar violation provision, and that's intentional, because… because it rec… I'll put it now, because it recognizes that, in the corporate world.

1985
05:18:25.000 --> 05:18:27.599
Boardroom: Only one thing matters, and that is the bottom line.

1986
05:18:28.260 --> 05:18:35.209
Boardroom: So, let's talk their language. And I do this for a living, you know, so basically I'm treating you all as if you're my client.

1987
05:18:35.400 --> 05:18:39.019
Boardroom: And if you had hired me to do your MSA, this would be the result.

1988
05:18:39.660 --> 05:18:41.850
Boardroom: How do you show us that we do here?

1989
05:18:42.180 --> 05:18:43.299
Boardroom: Where's James?

1990
05:18:47.030 --> 05:18:48.809
Boardroom: James?

1991
05:18:50.220 --> 05:19:00.209
Boardroom: Where is it? Where is this thing? How do I do this? Oh, here it is, here it is, okay. Just keep speaking. I need to share this.

1992
05:19:00.990 --> 05:19:06.229
Boardroom: Ladies and gentlemen, James Chang.

1993
05:19:06.460 --> 05:19:13.500
Boardroom: No, the page is right… no, it's right there. No, we're already on the Zoom. The document's right there. You just gotta make…

1994
05:19:39.200 --> 05:19:40.250
Ben Bartlett: Oh, there we go.

1995
05:20:01.010 --> 05:20:09.160

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Boardroom: Okay, yeah, okay, we're here, okay. So, perfect. So, going through this here, it's not moving.

1996
05:20:09.460 --> 05:20:11.239
Boardroom: Section 2.4.

1997
05:20:11.370 --> 05:20:26.389
Boardroom: This is, a section where, essentially, the original version… we don't have a lot of control of things, so if they update the platform, we can't… we have no say in it. And I use the larger word, which is change.

1998
05:20:26.500 --> 05:20:31.180
Boardroom: Because you can typify an upgrade, but you can also just have a change. So I just say,

1999
05:20:31.950 --> 05:20:35.689
Boardroom: I replace it with… where is it here?

2000
05:20:36.150 --> 05:20:49.880
Boardroom: Original language to replace platform changes, shall not implement, activate, or deploy any modification, enhancement, or new functionality that affects data collection, analysis, sharing, access, or retention of the customer's prior written approval, which shall…

2001
05:20:49.920 --> 05:20:59.079
Boardroom: without the proper approval, which shall require approval by the Berkeley City Council. And this includes, without limitation, fears involving predictive analysis.

2002
05:20:59.080 --> 05:21:11.600
Boardroom: pattern recognition, vehicle tracking, network sharing, or integration with third-party systems. And it's important because so many of the reports you heard about third parties accessing the data on a basis that may not be so evident.

2003
05:21:11.610 --> 05:21:12.800
Boardroom: To others.

2004
05:21:12.880 --> 05:21:22.600
Boardroom: And all data sharing settings shall be disabled by default. Any deviation must be expressly approved in writing by the customer, which is us, and publicly disclosed.

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2005
05:21:23.160 --> 05:21:29.260
Boardroom: Alright, now we're going to Section 4.1. We are… Removing irrevocable language.

2006
05:21:29.440 --> 05:21:31.879
Boardroom: There we go.

2007
05:21:33.210 --> 05:21:41.919
Boardroom: Perfect. And now, Section 4.1, this is the irrevocable license requirement, just scratching that.

2008
05:21:42.690 --> 05:21:48.419
Boardroom: This license, let's see here, what's the good language here? This is a limited…

2009
05:21:49.060 --> 05:22:02.500
Boardroom: Non-exclusive, royalty-free, non-transferable license. They also had a transferable, accessible, like, transferring language, which is not going to work for us. To use customer data solely to provide flock services to customer during the term of this agreement.

2010
05:22:02.750 --> 05:22:17.319
Boardroom: And this license shall automatically terminate upon expiration or termination of this agreement, and flocks have no right to retain, use, or access customer data thereafter, except as expressly required by law, and only for the minimum period required. Okay?

2011
05:22:18.220 --> 05:22:19.730
Boardroom: Now, Forbidden to…

2012
05:22:20.470 --> 05:22:31.259
Boardroom: This new language at the bottom, there's a loophole in there, it lets me share things that are mentioned in the agreement, right? So let's close it up here. It's just…

2013
05:22:31.590 --> 05:22:44.290
Boardroom: Notwithstanding and to the contrary, customer-generated data shall not be used, shared, or accessed for any purpose other than providing services to customer, and shall not be subject to any broader rights under Section 4.3 or elsewhere in this agreement.

2014
05:22:44.530 --> 05:22:49.949

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Boardroom: Now moving down to, the perpetual rights, removing those, again.

2015
05:22:50.440 --> 05:23:01.839
Boardroom: I have a different version of this, actually. The anonymized data, okay? Flock may create anonymized data solely for the purpose of providing services to customer during the term.

2016
05:23:02.280 --> 05:23:10.549
Boardroom: And Flocks have no right to use anonymized data for product development, commercialization, or any purpose unrelated to services provided to customer.

2017
05:23:10.630 --> 05:23:26.029
Boardroom: And all rights granted under this section shall terminate upon expiration or termination of this agreement, and Flock shall delete all anonymized data derived from customer data in accordance with this section. Data deletion down there. Okay? There's a new section.

2018
05:23:26.310 --> 05:23:34.980
Boardroom: that restricts the way they share the data. So Flock should not disclose, provide access to, or enable access to customer data to any third party.

2019
05:23:34.980 --> 05:23:50.270
Boardroom: And again, third-party's important because it keeps coming up in the reports that I read about third-party access to customer data by this organization, including any federal agency, except pursuant to a specific written authorization issued by customer for each individual request.

2020
05:23:50.540 --> 05:23:51.350
Boardroom: B.

2021
05:23:51.900 --> 05:24:02.749
Boardroom: Access by federal personnel embedded within or assigned to any state or local agency shall be prohibited unless expressly authorized in writing by customer for each instance of access.

2022
05:24:02.910 --> 05:24:03.950
Boardroom: C.

2023
05:24:04.080 --> 05:24:14.960

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Boardroom: The use of any shared lookup, query, or network-based access tool that permits third-party querying of customer data is prohibited unless explicitly approved in writing by the customer.

2024
05:24:15.580 --> 05:24:16.460
Boardroom: D.

2025
05:24:16.880 --> 05:24:22.950
Boardroom: Indirect access, including access facilitated through another agency, shall be deemed a violation of this agreement.

2026
05:24:25.920 --> 05:24:30.479
Boardroom: And this, I think, is kind of earlier, termination for convenience. This is a standard one.

2027
05:24:30.660 --> 05:24:33.720
Boardroom: For customers that have way…

2028
05:24:34.340 --> 05:24:39.200
Boardroom: Remember, too, when you do these things, We're a valuable customer.

2029
05:24:39.710 --> 05:24:44.220
Boardroom: We have leverage in these agreements. Yes, we do.

2030
05:24:44.500 --> 05:24:48.950
Boardroom: You just gotta act like we do, you know? I know, so…

2031
05:24:49.200 --> 05:25:03.559
Boardroom: It's not a joke. Again, that wasn't a joke. That's, like, actual, real stuff, real… you should know this. Okay, Mark knows. He's a lawyer. Okay, assignment. This gets COB controls, our controls, right? So notwithstanding the foregoing

2032
05:25:03.560 --> 05:25:14.610
Boardroom: Flock may not have signed this agreement to any affiliate, successor, or acquirer without written consent of the customer, which shall not be unreasonably withheld and shall require City Council approval.

2033
05:25:14.750 --> 05:25:18.290
Boardroom: Okay, and now there was this morality clause that held that

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2034
05:25:18.740 --> 05:25:24.469
Boardroom: Flock could break the contract with Berkeley if Berkeley all of a sudden did something bad.

2035
05:25:24.780 --> 05:25:42.679
Boardroom: I'm like, but not them. So I just made it mutual. Customers shall have the right to terminate this agreement immediately upon written notice if Flock or its officers or affiliates are indicted, found liable for violations of law, or determined by customer to have engaged in unauthorized data access, sharing, or misuse.

2036
05:25:44.350 --> 05:25:53.739
Boardroom: And now, the unauthorized sharing section down there on the, in the, the amendment, this really gets to the, to the core of it here.

2037
05:25:53.910 --> 05:25:59.909
Boardroom: Any unauthorized access, disclosure, sharing, or use of customer data

2038
05:26:00.240 --> 05:26:02.780
Boardroom: Shall constitute a material breach of this agreement.

2039
05:26:02.910 --> 05:26:10.160
Boardroom: For each unauthorized access event, Flock shall pay customer liquidated damages in the amount of $1 million per violation.

2040
05:26:10.830 --> 05:26:13.279
Boardroom: Or $10,000 per affected record.

2041
05:26:13.440 --> 05:26:14.780
Boardroom: Whichever is greater.

2042
05:26:14.980 --> 05:26:20.520
Boardroom: Each individual query, access event, or data retrieval shall constitute a separate violation.

2043
05:26:20.790 --> 05:26:25.989
Boardroom: And the remedies set forth herein are cumulative, and shall not be deemed the sole or exclusive remedy.

2044
05:26:26.710 --> 05:26:31.979

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Boardroom: Customer retains all rights at law and inequity, including the right to seek injunctive relief.

2045
05:26:32.610 --> 05:26:38.319
Boardroom: Flock acknowledges, That the unauthorized access to surveillance data creates irreparable harm.

2046
05:26:38.630 --> 05:26:43.039
Boardroom: Customers shall be entitled to immediate injunctive relief without the requirement to post bond.

2047
05:26:45.370 --> 05:26:46.700
Boardroom: Private right of action.

2048
05:26:46.890 --> 05:26:48.350
Boardroom: Another important one.

2049
05:26:48.660 --> 05:26:50.210
Boardroom: Any individual.

2050
05:26:50.770 --> 05:26:59.850
Boardroom: whose data, image, likeness, or identifying information is accessed, disclosed, or used in violation of this agreement shall have a direct right of action against flock.

2051
05:27:00.250 --> 05:27:12.889
Boardroom: Frock agrees that such individuals may bring claims for statutory damages of not less than $5,000 per violation. Actual damages, punitive damages were permitted, and reasonable attorney's fees and costs. Mark?

2052
05:27:13.940 --> 05:27:26.220
Boardroom: He's an attorney, it's a joke. That was a joke, see? That was a joke. Flock expressly waives any argument that is not a data controller, or that individuals lack privity under this agreement.

2053
05:27:26.270 --> 05:27:38.319
Boardroom: And then, of course, mandatory data deletion within 30 days of termination or expiration of this agreement. Flex will permanently delete all customer data, customer-generated data, or any derivative data.

2054
05:27:38.330 --> 05:27:49.079

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Boardroom: Including anonymized data. And Flex will certify such deletion in writing, signed by the officer… by an officer of the company, and no data may be retained for product development, machine learning, or any other purpose.

2055
05:27:49.100 --> 05:27:54.710
Boardroom: So these are the elements I put in here, because I could think of no other way to make my constituents feel safe

2056
05:27:54.770 --> 05:27:55.979
Boardroom: with this agreement.

2057
05:27:56.670 --> 05:28:02.680
Boardroom: Okay, folks, please.

2058
05:28:03.040 --> 05:28:13.179
Boardroom: Alright, so it is… I think we're now finally on the fourth supplemental. So I am going to present our fourth supplemental.

2059
05:28:13.830 --> 05:28:15.390
Boardroom: Give me a second.

2060
05:28:31.540 --> 05:28:32.550
Boardroom: Okay…

2061
05:28:39.860 --> 05:28:41.010
Boardroom: Alright.

2062
05:28:47.290 --> 05:28:53.290
Boardroom: So, this is a supplemental brought forward by myself, Vice Mayor Lunapara, and Councilmember Trey Gubb.

2063
05:28:53.710 --> 05:29:09.100
Boardroom: And as it says here, in our supplemental item, we offer amendments to the policies, balancing benefits and guardrails. What we've suggested here overall is that we reject the contract specifically with Flock, and that we…

2064
05:29:12.980 --> 05:29:17.649
Boardroom: Let me finish so that we can get to your public comments, right? Okay, so,

2065

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05:29:17.840 --> 05:29:34.359
Boardroom: And, and also we make recommendations, based on conversations that we had, both with the PAB, other members of the community, also in… had conversations with the Chief, and Arlo, and our city attorney's office. So I'm gonna go over these…

2066
05:29:35.850 --> 05:29:36.980
Boardroom: A bit more.

2067
05:29:37.270 --> 05:29:50.559
Boardroom: Okay, so this is a chart that just kind of goes over some of the things that we're… that we're suggesting, so rejecting the flock contract across the different items, referring some things back to staff, and also approving,

2068
05:29:50.560 --> 05:30:04.370
Boardroom: or approving with amendments certain things, because what we realized in these conversations is that we could approve a surveillance use policy that doesn't include the contract with Flock, so we could separate those, which is why it's written this way.

2069
05:30:04.800 --> 05:30:11.190
Boardroom: So, the first thing on here is to refer the community safety… excuse me, let me just…

2070
05:30:11.910 --> 05:30:13.930
Boardroom: Amend this… okay.

2071
05:30:15.590 --> 05:30:28.649
Boardroom: Refer the community video stream acquisition Report and Surveillance use policy to the Public Safety Committee for further review, request that the City Manager work at the committee level to address the PAPS concern, and clarify operational ambiguity.

2072
05:30:30.820 --> 05:30:37.810
Boardroom: So… Apologies, the way this works on here, I have to kind of jump back between my notes and…

2073
05:30:38.180 --> 05:30:50.539
Boardroom: the document. So there are some more details here about adding in explicit prohibition on surveillance of First Amendment activity, unless there's clear, articulable, and imminent public safety threat that's actively occurring.

2074

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05:30:50.540 --> 05:30:59.379
Boardroom: Specify concrete data retention periods with the four elements required by the BMC. Conduct a disparate impact analysis addressing whether camera coverage

2075
05:30:59.380 --> 05:31:09.920
Boardroom: is concentrated in areas with particular demographic characteristics. Supplements Section 11 of the Acquisitions Report to disclose adverse findings from comparable jurisdictions.

2076
05:31:09.960 --> 05:31:21.679
Boardroom: Update immigration-related search reporting to match the 72-hour standard and named recipients in Policy 351, Section 351.6, per our Sanctuary City Ordinance.

2077
05:31:22.030 --> 05:31:30.680
Boardroom: Consider developing a use policy to address combined cross-platform use of all integrated technologies, regardless of vendor,

2078
05:31:30.820 --> 05:31:47.349
Boardroom: you… regardless of the vendor used, including ALPR fixed cameras, community video streams, and drones, institute semi-annual audits of CVS, similar to Council Directive on Fixed Camera, established in June 2025. You know, I'm sorry, I think that I'm…

2079
05:31:49.620 --> 05:31:50.730
Boardroom: Actually.

2080
05:31:55.810 --> 05:31:57.330
Boardroom: This is not lined up.

2081
05:32:02.830 --> 05:32:04.839
Boardroom: Alright, I'm gonna just keep going.

2082
05:32:05.600 --> 05:32:14.830
Boardroom: So, for amending the surveillance use policy for the undemanned aerial system, to include the following provisions, I'm gonna focus on the high level here.

2083
05:32:16.130 --> 05:32:30.959
Boardroom: So, limiting the retention period for non-evidentiary footage to 5 days. As was mentioned in one of the recommendations, it makes sense to tailor the amount of days that are kept based on the purposes for the technology.

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2084
05:32:31.910 --> 05:32:46.479
Boardroom: Strengthening the oversight by requiring semi-annual audits, supervisorial approval, except for drones as first responders, and removing ambiguity for when UAS can be deployed. There are a couple of minor edits that we'd like to make to this as well.

2085
05:32:46.480 --> 05:33:03.350
Boardroom: Including to clarify language to our supplemental. So for the supervisory approval, it would say subsequent to supervisory approval for all deployments, with the sole exception that supervisory approval is not required for drones as first responders, and also edit the language around… clarifying the language for the audits.

2086
05:33:03.420 --> 05:33:21.050
Boardroom: So the Office of Strategic Planning and Accountability shall conduct monthly audits of UAS use to check permission settings and ensure that data is not shared with out-of-state agencies or federal law enforcement. A report of these audits shall be published semi-annually and should be sent to the Police Accountability Board.

2087
05:33:21.320 --> 05:33:36.649
Boardroom: And we're also referring to the city manager-developed performance metrics, data governance, policy development, and deeper research on alternative sailor surveillance technology vendors capable of meeting Berkeley's safety and surveillance needs, while balancing the need for privacy and civil liberties protections.

2088
05:33:37.930 --> 05:33:38.710
Boardroom: Okay.

2089
05:33:38.860 --> 05:33:40.280
Boardroom: So that's that one.

2090
05:33:42.710 --> 05:33:46.700
Boardroom: Okay… Alright…

2091
05:33:50.390 --> 05:34:04.939
Boardroom: Amending the surveillance use policy for fixed cameras to include monthly audits with a semi-annual audit report, same kind of edit there, where it clarifies that it would be monthly audits, but then the actual, report back

2092
05:34:05.230 --> 05:34:08.400

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Boardroom: Would be published semi-annually.

2093
05:34:10.780 --> 05:34:12.020
Boardroom: Okay…

2094
05:34:16.910 --> 05:34:20.430
Boardroom: Okay, and this is for the police equipment ordinance.

2095
05:34:20.820 --> 05:34:28.809
Boardroom: Which is amend the UAS Equipment Use Policy to include the same revisions as the recommendations for the UAS surveillance use policy, which is above.

2096
05:34:28.960 --> 05:34:39.180
Boardroom: And refer the following request for information to the City Manager to quantify the need for UAS, something also mentioned in the PAB presentation.

2097
05:34:46.370 --> 05:35:00.110
Boardroom: Okay, referring the UAS military equipment impact statement to the City Manager for research and analysis of alternative surveillance technology vendors capable of meeting the City of Berkeley's safety and surveillance need while balancing privacy and civil liberties protections.

2098
05:35:00.350 --> 05:35:06.630
Boardroom: And then for the contract authority, reject any renewal, authorization, approval, or execution of the flock safety contracts.

2099
05:35:08.260 --> 05:35:10.119
Boardroom: There's some more information there.

2100
05:35:10.290 --> 05:35:24.759
Boardroom: I refer to the City Manager to amend Ordinance 2.99 to include a violation termination clause for surveillance technology vendors, and refer to the City Manager and City Attorney additional contractual language to require a vendor to inform the City of any requests.

2101
05:35:24.930 --> 05:35:40.640
Boardroom: For information, including but not limited to subpoenas, discovery requests, or requests under any federal or state statute to the extent permitted by law, it receives… it receives related to the city-controlled data and safeguarded to the fullest extent allowed by law.

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2102
05:35:41.040 --> 05:35:42.570
Boardroom: So…

2103
05:35:44.730 --> 05:36:01.810
Boardroom: These are all of the different pieces. What I really want to highlight for folks, because I understand this is incredibly wonky, is really just this piece up here at the top, which is this chart. And I think that that kind of more clearly explains what it is that we're trying to do here.

2104
05:36:02.060 --> 05:36:11.239
Boardroom: So I'm gonna keep that up for a little bit longer, so that folks can take a look at it. Okay. Madam Mayor? Do you need to make it bigger? Yes.

2105
05:36:11.280 --> 05:36:26.819
Boardroom: Knowing that we've got a ways to go, just want to step in. I move we suspend the rules and extend the meeting time until 1AM. Second. I'd suggest 1.30. Okay, 1.30? Yeah, I want to make sure everyone has the opportunity to speak. Also second.

2106
05:36:27.420 --> 05:36:29.540
Boardroom: Okay.

2107
05:36:30.160 --> 05:36:35.060
Boardroom: Alright, is there any objection to extending the meeting time to 1.30 a.m?

2108
05:36:35.270 --> 05:36:50.979
Boardroom: Folks, I'm sorry, you don't get to vote, and we want to hear you speak! Otherwise, we're gonna end early, and then you're gonna be sad that we didn't get to hear from you, so… Alright, so, alright, so is there any objection? Okay, so we will extend the meeting time until 1.30 a.m.

2109
05:36:51.320 --> 05:36:52.370
Boardroom: Okay.

2110
05:36:52.520 --> 05:37:05.490
Boardroom: I'm hoping that we don't go that long, it's just so that we don't have to cut off. That's the only reason why we're doing it. Okay, so, now we have presented all four supplementals. Typically, this is where we get a chance to ask the questions, but I want to get a sense

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2111
05:37:05.490 --> 05:37:13.020
Boardroom: From folks about how many questions, approximately, they have, so if you could just take a quick poll, and then let me know, that would be really helpful.

2112
05:37:13.450 --> 05:37:30.289
Boardroom: 6? Can I ask one clarifying thing? Is Mr. Chandler available? Okay. Yes. I do have some… The flock representative will be… is available for… Okay. Yeah, in the Zoom for questions. 5, 8, 8. Sorry.

2113
05:37:30.680 --> 05:37:33.499
Boardroom: 7, 6… 2?

2114
05:37:33.800 --> 05:37:46.249
Boardroom: Questions? Okay, I have a couple. Questions? I don't have specific questions right now. Okay. I'd like to ask, because we have so many questions, that we took public comment first, then we come back.

2115
05:37:49.780 --> 05:37:52.210
Boardroom: Otherwise, we're gonna lose people, I'd rather…

2116
05:37:53.240 --> 05:38:07.450
Boardroom: I think even if you have a couple of questions, there are so many other questions on the dais, it'll take, like, a long time. So, can we just… let's take… we're gonna take public comment first, and we'll come back then. Okay.

2117
05:38:08.230 --> 05:38:09.520
Boardroom: I don't want to lose.

2118
05:38:10.650 --> 05:38:15.280
Boardroom: Too many people, because it will take an hour to ask our questions, I think. So, okay.

2119
05:38:15.670 --> 05:38:16.740
Boardroom: Okay.

2120
05:38:17.010 --> 05:38:18.590
Boardroom: Thank you.

2121
05:38:18.710 --> 05:38:25.770

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Boardroom: Alright, so if you have public comment, please come up to the dais. Okay, how this is going to work…

2122
05:38:26.640 --> 05:38:45.260
Boardroom: It's totally fine if you want to clap. I prefer the snaps so that we can keep it moving. We have so many people here who are giving public comments, so we really want to hear from all of them. I ask that you all please be respectful, whether you agree or disagree with whoever's speaking, I ask that you respect them. Folks, I know you're discussing course trading over here, but…

2123
05:38:45.510 --> 05:39:00.379
Boardroom: Please, I want to ask that you all be respectful when folks are giving their public comments so we can hear from everyone. And then as soon as someone's finished, please come up and speak so that we can keep the line moving. Okay. Go ahead, Kit. Okay, folks, so that means you have to be quiet now.

2124
05:39:01.750 --> 05:39:04.550
Boardroom: Thank you. Go ahead, Kit. Thank you.

2125
05:39:04.770 --> 05:39:10.450
Boardroom: Although I heard the, the chief talk about the fact that

2126
05:39:12.210 --> 05:39:29.429
Boardroom: I heard the Chief talk about the fact that the federal government could use a warrant to gain access to this information, and then that could be reported, and we know. I did not hear the Chief acknowledge the fact that the federal government has the legal right to get information without our knowing.

2127
05:39:29.430 --> 05:39:44.120
Boardroom: They can do it through a FISA warrantless search, they can do it through a FISA warrant, and they would not be… they would be legally obliged not to tell us, so then we wouldn't know. So I think that fact is worth acknowledging, and then I really want to,

2128
05:39:44.120 --> 05:39:51.980
Boardroom: ask all of you to, talk to each other. I, I think the city attorney and the, the,

2129
05:39:52.100 --> 05:40:10.610
Boardroom: City Manager may be wanting to rethink whether this is a good idea to do this right away, and I want to praise my own council member, I want to praise the supplemental from the mayor and two other council

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members, and I really want to acknowledge the wonderful work that PAB has done. Thank you. Thank you, PAB. Okay, come on up.

2130
05:40:17.020 --> 05:40:22.140
Boardroom: Oh, and if you're getting a minute from someone, please try to organize that beforehand, because it'll be easier. Go ahead.

2131
05:40:23.090 --> 05:40:27.409
Boardroom: I guess I'm going to say several things to you. One is, I think.

2132
05:40:27.820 --> 05:40:32.259
Boardroom: This is the most inopportune time to bring something like this up.

2133
05:40:32.360 --> 05:40:48.459
Boardroom: People are dying, people are being locked up in prison, there is a war going on, and in a sanctuary city that has a history in this country and in the world, to have this come up, I don't understand why it's so important right now.

2134
05:40:48.680 --> 05:40:57.530
Boardroom: I want to congratulate the members of PAB, because they gave the most extraordinary explanation of what is going on.

2135
05:40:57.660 --> 05:41:08.029
Boardroom: In my time on the City Council, I would have been so grateful to have people like that around me, and our city attorney and our city manager would have said.

2136
05:41:08.030 --> 05:41:20.840
Boardroom: whoa, I think it's time that we put the brakes on this, and we do a little more investigating, because too many questions have been raised. I think another thing I want to say is.

2137
05:41:20.930 --> 05:41:26.659
Boardroom: This is an assault on the psyche of this city. Thank you. Thank you so much.

2138
05:41:26.970 --> 05:41:27.770
Boardroom: Thanks.

2139
05:41:32.250 --> 05:41:39.379

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Boardroom: Someone is giving you a minute. You're giving me another minute? Yeah, this person here is giving you a minute. Oh, thank you to whoever.

2140
05:41:39.450 --> 05:41:47.610
Boardroom: I started to say that… I started to say that… that this feels to me like a real assault on the psyche of this city.

2141
05:41:47.660 --> 05:42:00.010
Boardroom: You know, it's not just the laws we put in, it's what we do to people's emotions. And that's part of your job as politicians. It's not just looking through all of the rules and all of the…

2142
05:42:00.090 --> 05:42:02.900
Boardroom: Amendments and everything else that you do.

2143
05:42:03.070 --> 05:42:10.550
Boardroom: I spoke with someone in the Office of the Assembly Speaker, and they have put a hold on something with Flock.

2144
05:42:10.980 --> 05:42:14.710
Boardroom: So that's another one added up to all the other cities.

2145
05:42:14.940 --> 05:42:23.200
Boardroom: I guess the last thing I want to say is that Berkeley gets itself in the news many, many times.

2146
05:42:23.500 --> 05:42:39.790
Boardroom: I just hope that we are not in the news, because in this sanctuary city, you have not heeded what has been said to you, and taken time to reconsider this, and as I'm feeling it, not go with flock for sure.

2147
05:42:43.650 --> 05:42:44.600
Boardroom: Betsy?

2148
05:42:51.940 --> 05:43:05.200
Boardroom: I think there's a minute for me, but I'm gonna try to be succinct. My name is Betsy Morris. I have the privilege of being the co-convener of East Bay Berkeley Gray Panthers. Keith, too. I would… I would like…

2149
05:43:05.330 --> 05:43:10.639

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Boardroom: to, say, I ask Council, or at least four of you.

2150
05:43:10.770 --> 05:43:20.329
Boardroom: Possibly 5, I guess we need five, to, reject the new contracts on flock. Just reject, and, and I ask…

2151
05:43:20.510 --> 05:43:26.080
Boardroom: Councilmember Bartlett and, O'keefe.

2152
05:43:26.500 --> 05:43:30.699
Boardroom: To perhaps support that, that, that measure.

2153
05:43:30.710 --> 05:43:49.369
Boardroom: Thank you for all your good work. I want to compliment the Police Accountability Board. My god, the effort, the detail, the thought, they proved why so many of us voted to have that board, and the fact that they're carrying on with this detail on such short notice was incredible.

2154
05:43:49.470 --> 05:43:55.360
Boardroom: Yeah, and they have produced a series of recommendations that I would very much like

2155
05:43:55.640 --> 05:44:07.309
Boardroom: to be brought into the conversation around the contract. I was here last time I was here. The city auditor spoke strongly about the,

2156
05:44:09.100 --> 05:44:20.849
Boardroom: consequences of doing sole source, non-bid, non-competitive bid contracts, that overall those have been detrimental, certainly to the budget, and in this case, to…

2157
05:44:21.020 --> 05:44:37.559
Boardroom: the spirit of so many people here in Berkeley. So, I, you lauded her tonight. Let's listen to her. We elect her, along with you, to provide that kind of information. And so, I know… I want to thank the folks who are already supporting

2158
05:44:37.610 --> 05:44:41.780
Boardroom: Rejecting signing of contracts to… tonight.

2159
05:44:41.970 --> 05:44:44.140
Boardroom: Finally, I have had the…

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2160
05:44:44.370 --> 05:44:55.539
Boardroom: I have 8 minutes. I need to say that Elaine Bloom and Marcia Poole would have been much more fierce in their rejection of this… Thank you. Tonight. Thanks, Betsy.

2161
05:44:59.240 --> 05:45:02.419
Boardroom: Okay, a minute from… okay.

2162
05:45:03.200 --> 05:45:08.269
Boardroom: Okay, so, I'm a former Berkeley High student, my brother's a current student, it's nice to see you.

2163
05:45:08.500 --> 05:45:10.330
Boardroom: It's nice to see you, Ms. O'Keefe.

2164
05:45:10.490 --> 05:45:13.880
Boardroom: But… Today.

2165
05:45:14.050 --> 05:45:33.020
Boardroom: he was discouraged from coming to this meeting, actually, because he was told the vote already happened, that there was a no, that we've dropped the contract already, so he's not here tonight. I don't think the vote already happened. Has the vote already happened? No. The vote hasn't already happened, so that's kind of embarrassing that he was told that, he's your student.

2166
05:45:33.770 --> 05:45:51.770
Boardroom: Other thing, Terry, you're my representative. Sorry, you can't speak directly to council members, but you can speak to us generally. Go ahead. Terry, you're my representative. I like your suit, but honestly, I think you need to, we have a rule around addressing the Council as a whole, so… Okay, Council, I think you need to…

2167
05:45:51.990 --> 05:46:02.210
Boardroom: re-evaluate your stance on this. You need to drop the contract entirely. This is an opportunity to do so. This is not an opportunity to renew it.

2168
05:46:02.470 --> 05:46:05.720
Boardroom: At all. Everyone here is here because we do not

2169
05:46:06.170 --> 05:46:09.709

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Boardroom: We do not support this in any way. You guys are representing us.

2170
05:46:10.170 --> 05:46:11.699
Boardroom: And, honestly.

2171
05:46:12.010 --> 05:46:19.029
Boardroom: That's all I'm here to say, I've used my minute, but fuck drones, fuck ICE, fuck you guys, yeah. Free Palestine!

2172
05:46:24.840 --> 05:46:26.399
Boardroom: I think I also have a minute.

2173
05:46:29.480 --> 05:46:32.320
Boardroom: Okay, I'm taking it from the person with the baseball cap.

2174
05:46:34.440 --> 05:46:41.619
Boardroom: Fully integrated centralized surveillance system. Does anyone not wearing blue and a badge think that's a good idea? I don't think so.

2175
05:46:42.190 --> 05:46:50.800
Boardroom: The way the BPD has presented this, as the PAB pointed out, has been dishonest on a number of fronts. First of all, leaving out

2176
05:46:51.100 --> 05:47:02.450
Boardroom: Okay, folks, please, people in line. Give some space. Okay, everyone, space.

2177
05:47:02.920 --> 05:47:05.120
Boardroom: Okay.

2178
05:47:06.230 --> 05:47:10.579
Boardroom: Here we go, here we go. Folks, folks, please back up.

2179
05:47:15.170 --> 05:47:28.309
Boardroom: The problem is, we've got a guy here… Thank you. Okay, I'm just asking that everyone give… everyone give folks some space. Everyone give folks some space so we can hear from the public comment.

2180
05:47:30.970 --> 05:47:32.110
Boardroom: I'm sorry.

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2181
05:47:32.600 --> 05:47:34.540
Boardroom: Please continue your comment.

2182
05:47:35.190 --> 05:47:39.040
Boardroom: Does anyone mind if I get 5 seconds added? Yeah. Okay.

2183
05:47:40.090 --> 05:47:52.220
Boardroom: Yeah, the way the BPD has presented this has been dishonest on multiple fronts. In particular, leaving out that the Flock Nova software, which is investigative, not simple surveillance, is being added as a one-year contract.

2184
05:47:52.250 --> 05:48:02.859
Boardroom: Not highlighting that. Also, as one of our council members pointed out, the initial MSA only allowed Flock to terminate easily, did not allow the City of Berkeley to do the same. Not only is that asymmetrical.

2185
05:48:03.210 --> 05:48:10.170
Boardroom: That seems deliberate to me. I don't understand why that would be in the contract, and it… or it's just severe negligence.

2186
05:48:10.460 --> 05:48:22.119
Boardroom: This is reflective of a larger national struggle against so many companies that are surveilling us all the time. Palantir is most notable, their AI system, which is being built to integrate all sorts of data.

2187
05:48:22.980 --> 05:48:25.840
Boardroom: But every single big tech company is implicated in this.

2188
05:48:26.030 --> 05:48:29.060
Boardroom: I also want to return to the justification of public safety.

2189
05:48:29.450 --> 05:48:30.410
Boardroom: First of all.

2190
05:48:30.520 --> 05:48:39.599
Boardroom: If you are saying that drones are going to be used for firefighting, then propose drones for firefighting. Do not pretend that drones being used for firefighting and policing are the same.

2191

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05:48:41.770 --> 05:48:55.150
Boardroom: Second, the boundaries of what are going to be considered a crime are already expanding. Trump just released a memorandum essentially announcing that he intends to criminalize left-wing organizing and protest under the guise of terrorism and violence.

2192
05:48:55.460 --> 05:49:03.529
Boardroom: Whether or not you consider yourself to be someone who is going to commit a crime, I suggest you re-evaluate that, because your status may change very soon.

2193
05:49:03.820 --> 05:49:15.540
Boardroom: I do not accept public safety as a justification for more surveillance, and I do not accept the existence of some cameras or an existing contract as a justification for furthering the contract or for more cameras and more surveillance. Thank you.

2194
05:49:16.530 --> 05:49:17.580
Boardroom: Thank you.

2195
05:49:20.170 --> 05:49:21.620
Boardroom: Come on, folks, gotta move.

2196
05:49:22.500 --> 05:49:25.580
Boardroom: Where's your… another minute from someone? Okay, yeah, go ahead.

2197
05:49:27.300 --> 05:49:27.960
Boardroom: Ghost.

2198
05:49:29.670 --> 05:49:30.490
Boardroom: Gosh.

2199
05:49:30.830 --> 05:49:48.710
Boardroom: My name is Sirok Mikhail, and I'm a resident of Southside. I want to be clear, the supplemental for Mayor Ishii is already a compromise. It increases mass surveillance and puts Berkeley residents at risk when there is no concrete evidence to show that surveillance technologies help reduce crime.

2200
05:49:49.080 --> 05:49:58.229
Boardroom: However, we do have evidence that these technologies have been used to track immigrants, people seeking abortions, and even ex-partners of police officers.

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2201
05:49:59.670 --> 05:50:13.730
Boardroom: Still, the Mayor Supplemental rejects FLOC, which is the bare minimum. FLOC already violated the contract with the city by working directly with ICE, but nothing was done about it. How can you have any confidence that they'll follow the contract now?

2202
05:50:14.170 --> 05:50:22.099
Boardroom: A $150,000 penalty is pennies for a company worth $7.5 billion. A slap on the wrist is an understatement.

2203
05:50:22.630 --> 05:50:35.159
Boardroom: Lastly, our city is in a structural deficit, and every dollar matters. Using these technologies, and especially working with a vendor as untrustworthy as fuck, opens up the city to incredible legal liability.

2204
05:50:35.160 --> 05:50:46.000
Boardroom: Obviously, the worst impacts of the misuse in these technologies are being unjustly detained, and are people being unjustly detained and brutalized, but the financial risk is very real as well.

2205
05:50:46.010 --> 05:51:00.360
Boardroom: We have seen headline after headline about the dangers of this tech. Our safety needs to be addressed through investing in community, not mass surveilling it with tools created by major Trump donors. Please reject mass surveillance and reject flock. Also, I want to…

2206
05:51:00.360 --> 05:51:12.460
Boardroom: highlight, anybody who's talking, please talk to my friends at Berkeley Copwatch. They are organizing people to be more aware of this stuff, and just want to get tapped in, because I know people are going this way, so go that way. Thank you so much!

2207
05:51:16.000 --> 05:51:18.480
Boardroom: As soon as the person's finished, can you please come up?

2208
05:51:18.610 --> 05:51:20.160
Boardroom: Do you have public comment?

2209
05:51:23.050 --> 05:51:26.170
Boardroom: Hi, my name's Amla, and I'm a student at Berkeley High.

2210

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05:51:26.750 --> 05:51:46.419
Boardroom: And on a daily basis, I think about ICE coming to my school, I think about ICE kidnapping my friends and family. I think about the innocent lives some younger than me who have been shot, beaten, and disappeared by ice. I open my phone, and I see a woman and her daughter at SFO in tears being kidnapped. That was Sunday.

2211
05:51:47.580 --> 05:51:53.590
Boardroom: As a student who is terrified by the daily fascism that has become a normal part of my growing up.

2212
05:51:53.660 --> 05:52:09.650
Boardroom: I am begging you to use the power that you have to avoid a contract with FLOC which works with ICE. FLOC, as a tool of ICE, stands against everything this Council and the City promises its constituents. So please do your job, and protect us to your fullest power.

2213
05:52:09.670 --> 05:52:18.030
Boardroom: If you choose to support that which supports ICE, this Council will go down as standing on the wrong side of history. Thank you.

2214
05:52:25.580 --> 05:52:43.929
Boardroom: I'm a technologist. Flock has a poor record of digital security and responses to security. The real-time aggregation of the data is extremely difficult to not violate our privacy right. And the safeguards mentioned about not connecting to third parties is actually difficult in practice.

2215
05:52:44.000 --> 05:52:59.930
Boardroom: Just like the best way to protect our data is to, you know, have it expire and not keep it, the best way to not have these kind of tools turned into mass surveillance is to not have it in the first place. And, you know, I'm an immigrant, I've come to Berkeley, I've made it my home, I want to be proud of…

2216
05:53:00.040 --> 05:53:01.950
Boardroom: part of this place for Maytime. Thank you.

2217
05:53:04.270 --> 05:53:05.220
Boardroom: Thank you.

2218
05:53:10.200 --> 05:53:11.200
Boardroom: Hi.

2219

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05:53:11.350 --> 05:53:26.080
Boardroom: My name's Lisa Hoffman, I'm one of the co-executive directors at East Bay Sanctuary Covenant, an immigrant-serving organization based in Berkeley, and we're turning, 44 years old today. It's our 44th anniversary.

2220
05:53:26.170 --> 05:53:34.209
Boardroom: I'm representing here the Berkeley Immigration Collaborative, which is a group of 5 Berkeley-based organizations who have over 40 years of experience serving immigrants.

2221
05:53:34.860 --> 05:53:46.900
Boardroom: I want to share with you that yesterday, I spent the day on the phone with countless other organizations trying to find the woman and her U.S. citizen daughter who were detained at SFO and get them legal help.

2222
05:53:47.550 --> 05:53:51.449
Boardroom: This is what we do day in and day out.

2223
05:53:51.580 --> 05:53:54.589
Boardroom: This is my colleague Alina, who's one of our attorneys.

2224
05:53:55.340 --> 05:53:57.280
Boardroom: We work tirelessly.

2225
05:53:57.460 --> 05:54:02.219
Boardroom: To help people who are being terrorized, and sometimes disappeared.

2226
05:54:02.690 --> 05:54:07.459
Boardroom: This afternoon, we found out that they were both deported to Guatemala.

2227
05:54:08.340 --> 05:54:14.939
Boardroom: The last time we were here, this Council unanimously voted to approve the sanctuary ordinance.

2228
05:54:15.300 --> 05:54:19.979
Boardroom: Codifying Berkeley's commitment to protecting immigrants, and declaring

2229
05:54:20.080 --> 05:54:28.260

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Boardroom: That cooperating with the federal deportation machine is against our moral obligation as the first sanctuary city.

2230
05:54:30.150 --> 05:54:37.929
Boardroom: Continuing to spend Berkeley's taxpayer dollars on a company whose technology is being used across the country

2231
05:54:38.080 --> 05:54:43.909
Boardroom: To deport our neighbors is the antithesis of sanctuary.

2232
05:54:44.940 --> 05:54:47.839
Boardroom: We have met with most of you individually.

2233
05:54:48.420 --> 05:54:51.489
Boardroom: Have participated in community listening sessions.

2234
05:54:51.750 --> 05:54:55.380
Boardroom: And have shared our community's concerns and questions with you.

2235
05:54:55.580 --> 05:55:02.160
Boardroom: We have strived to listen to your perspectives, while also not backing down on our core message.

2236
05:55:02.230 --> 05:55:19.879
Boardroom: Flock is a company whose investors are deeply tied to Trump's deportation machine, and as a result, has broken contracts and lied repeatedly. Thank you. Yeah, that was 2 minutes. Okay, you've got a minute here. Go ahead.

2237
05:55:22.290 --> 05:55:27.610
Boardroom: As a result, has broken contracts and lied repeatedly about sharing data with the federal government.

2238
05:55:28.280 --> 05:55:43.620
Boardroom: This is not about creating an airtight contract that will somehow miraculously withstand the pressure of a well-funded federal machine intent on ripping apart immigrant families and sending them into danger.

2239
05:55:44.000 --> 05:55:48.320
Boardroom: I want to say to you very clearly, this is a moral decision.

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2240
05:55:49.520 --> 05:55:57.120
Boardroom: In a unique political moment of state-sponsored terror and government overreach.

2241
05:55:57.780 --> 05:56:06.569
Boardroom: We're grateful to Mayor Ishii, Vice Mayor Lunaparo, and Councilmember Tregeu for proposing a supplemental which refuses to contract with FLOC.

2242
05:56:07.320 --> 05:56:12.549
Boardroom: We urge you all to follow the excellent recommendations that were made by the PAB.

2243
05:56:12.750 --> 05:56:17.700
Boardroom: And we urge all of you to join us in taking a stand to protect our community.

2244
05:56:19.900 --> 05:56:21.000
Boardroom: Thank you.

2245
05:56:27.040 --> 05:56:41.919
Boardroom: Hi, good evening. My name's Abigail Lasperance. I am a Berkeley native and resident, and this is my husband and daughter, also District 5. My father, at his 91 years, had to leave early, District 6.

2246
05:56:43.890 --> 05:56:55.259
Boardroom: I am also an immigration attorney and a legal director at East Bay Community Law Center, representing undocumented UC Berkeley students, community college students, and other Alameda County residents.

2247
05:56:55.490 --> 05:57:09.359
Boardroom: Recently, I want to share with you a story of my client, who recently, literally had her movements tracked using ALPR cameras. After an accident, she was pulled over to… and exchanged information with the other driver, and then she left.

2248
05:57:09.690 --> 05:57:17.180
Boardroom: The other driver called in the accident as a hit-and-run. The investigating officer, had our client's address.

2249
05:57:17.410 --> 05:57:22.509
Boardroom: And he went to her house, but she wasn't home. So, what did he do? He turned to flock.

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2250
05:57:22.900 --> 05:57:31.160
Boardroom: And using Flox ALPR cameras, were they giving you their minutes, too? Yeah, sorry, their minutes, too. But from both of you?

2251
05:57:31.440 --> 05:57:35.059
Boardroom: One first, and then if I need another, I'll… Okay, got it.

2252
05:57:35.350 --> 05:57:54.959
Boardroom: So, you have another minute, go ahead. So, using the cameras and their warrantless and continuous monitoring of every community member's movements, the officer was instantly able to create a detailed record of her location history and pinpoint down to a 20-minute window where she would be driving both to and from work.

2253
05:57:55.810 --> 05:58:05.980
Boardroom: Does anybody want that for themselves? The next day, he positioned himself where he and when he knew she was gonna be, and detained her.

2254
05:58:06.030 --> 05:58:20.679
Boardroom: And this is just one example of how this type of surveillance impinges on all of our constitutional rights, by enabling warrantless, large-scale data collection that violates privacy. Yours, mine, everybody's.

2255
05:58:20.950 --> 05:58:37.260
Boardroom: Moreover, this constant surveillance also has been shown to chill free speech and suppress free association. Is this the type of Berkeley that we want to live in? Is this representative of who we are and how we treat the most vulnerable among us?

2256
05:58:39.160 --> 05:58:43.089
Boardroom: And those who are willing to speak truth to power? I don't think so. Thank you.

2257
05:58:48.730 --> 05:58:49.530
Boardroom: Okay.

2258
05:58:49.850 --> 05:59:06.769
Boardroom: So, when you come up, if you can tell me your… if someone's giving you minutes, so this is for everyone. When you come up, please let me know if someone's giving you minutes, so that I can keep track of

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that, and then we'll give you the right time, and we won't interrupt your comment, so… Okay, go ahead. Thank you so much. I have a minute.

2259
05:59:07.210 --> 05:59:11.920
Boardroom: Good evening, my name is Nigres Cervantes with the Multicultural Institute.

2260
05:59:12.050 --> 05:59:29.249
Boardroom: Berkeley's January 2025, resolution reaffirming Berkeley as a sanctuary City, authored by Councilmember Blackaby, says, Sanctuary is fundamentally about public safety, the need for everyone in the community to feel safe.

2261
05:59:29.660 --> 05:59:47.369
Boardroom: When all community members, documented or undocumented, are able to attend school and after-school programs, hospitals and health centers, and places of worship without the threat of deportation, we are promoting a more educated, healthy, and thriving community.

2262
05:59:47.570 --> 05:59:51.519
Boardroom: Sanctuary policies strengthen all of our lives.

2263
05:59:51.890 --> 06:00:04.009
Boardroom: This is the Berkeley we are fighting for, one where our families, friends, and neighbors feel safe without fear that our location is being tracked or shared with the federal government by Phlox Technology.

2264
06:00:04.540 --> 06:00:14.220
Boardroom: We at the Multicultural Institute work directly with day laborers in Berkeley who do not feel safe looking for work while flock cameras are watching them.

2265
06:00:14.670 --> 06:00:20.799
Boardroom: Safety for some at the expense of our most vulnerable is not true safety.

2266
06:00:21.420 --> 06:00:30.599
Boardroom: We are also proud to train a dedicated group of allies and community patrollers who take daily shifts to look out for ICE activity.

2267
06:00:30.610 --> 06:00:48.179
Boardroom: We are deeply concerned that the current drone use policy will result in surveillance of mass response to an ICE raid, which could put

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our community patrollers at risk of federal prosecution and prevent them from conducting essential legal observation.

2268
06:00:48.360 --> 06:00:58.809
Boardroom: To actually promote public safety, the city could consider investing in violence prevention programs and mental health solutions that actually prevent crime, not just record it.

2269
06:00:58.870 --> 06:01:10.280
Boardroom: We understand and agree with the need of safety, and firmly believe that contracting with Flock will not contribute to public safety, and instead will leave our communities in fear. Thank you.

2270
06:01:17.040 --> 06:01:23.239
Boardroom: Yeah. Abby? Yeah, you haven't given your minute yet, so… Great. So, 2 minutes, okay. Thank you.

2271
06:01:23.450 --> 06:01:30.620
Boardroom: Hi, Council, nice to see you all. I've met most of you, worked with some of you. My name's Rebecca Gurney, I work for East Bay Sanctuary Covenant.

2272
06:01:30.620 --> 06:01:53.610
Boardroom: Continuing the Berkeley Immigration Collaborative comment, that effective policing involves building community trust through transparency and accountability. In various presentations by BPD, not once has there been an honest discussion of the completely unilateral access that Flock has had to our ALPR cameras through the contract section 5.3, meaning that we have no idea

2273
06:01:53.610 --> 06:01:57.980
Boardroom: how many times Berkeley data… Berkeley's data has been shared with federal agencies.

2274
06:01:57.980 --> 06:02:11.080
Boardroom: Given Flock's investors' financial stake in the deportation machine, it should be expected that Flock will quickly fold to any pressure from the Trump administration to share its data at great cost to our communities.

2275
06:02:11.080 --> 06:02:25.000
Boardroom: This month alone, police departments in Mountain View, Ventura County, and last week, Modesto have explicitly accused Flock of manipulating settings and sharing data with immigration agencies without the consent or knowledge of the department.

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2276
06:02:25.000 --> 06:02:29.059
Boardroom: In Modesto, this breach was only discovered through a public records request.

2277
06:02:29.070 --> 06:02:42.420
Boardroom: If the City of Berkeley believes that Flock is trustworthy, why are we only discovering these violations through public records requests? Flock knew about these harms and only provided changes to departments that explicitly accuse them of misconduct.

2278
06:02:42.900 --> 06:03:02.749
Boardroom: Flock causes harm first, and makes limited changes to preserve their contracts. They do not care about falling sanctuary laws or the harm that this technology is causing. Over 50 jurisdictions, a list that is growing every week, have decided that the risks of contracting with Flock outweigh any purported safety benefits.

2279
06:03:02.750 --> 06:03:13.739
Boardroom: What calculus is Berkeley making that is somehow different from all of these other jurisdictions and city attorneys and police departments who are saying that this technology is not worth the risk?

2280
06:03:13.740 --> 06:03:25.710
Boardroom: If you really care about public safety and effective policing, it starts with accountability. We urge you to implement the suggestions of the Police Accountability Board, many of which are included in Mayor Ishuu's supplemental. Thank you.

2281
06:03:31.910 --> 06:03:43.930
Boardroom: Good evening, my name is Rachel Caffelli, I'm from Oasis Legal Services. We represent queer and trans asylum seekers from our office in Berkeley. I'm here to give you an example of the type of harm we are talking about.

2282
06:03:43.980 --> 06:03:56.279
Boardroom: We have a trans client who applied for asylum over 10 years ago. She was pulled over while driving. The officers could not verify her California driver's license, so she was turned over to ICE, who arrested her.

2283
06:03:56.330 --> 06:04:14.750
Boardroom: and put her in detention, despite the fact that she had been waiting over 10 years for a chance to be heard. She was held in a men's detention center until our attorneys were able to fight for her release.

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There are thousands more stories of people in California and around the country who are being detained and arrested by ICE, separated from their families, loved ones.

2284
06:04:14.750 --> 06:04:18.459
Boardroom: And community, and placed in dangerous and harmful detention centers.

2285
06:04:18.580 --> 06:04:34.929
Boardroom: Please take a moment to consider how you would feel if this was your family member, or if your actions tonight were responsible for the prolonged detention or deportation of a BUSD family. That is the harm that flock's cameras are aiding, and the harm you will… Thank you. Thanks for your comment.

2286
06:04:40.160 --> 06:04:41.050
Boardroom: Two minutes.

2287
06:04:42.670 --> 06:04:52.889
Boardroom: Good evening, council members. Abigail Esquivius with Social Justice Collaborative, rounding out BIC's comment, and this is Lily, an attorney with SJC, who's a resident of District 6.

2288
06:04:53.040 --> 06:05:09.269
Boardroom: At this point, we hope it's unmistakably clear that this community does not want Flock. As you have seen, Berkeley residents are strongly opposed to this contract, so we have to ask, for those of you voting to move forward with Flock, who do you represent? Because Berkeley has told you no.

2289
06:05:10.110 --> 06:05:20.569
Boardroom: We are not here to negotiate a stronger contract, and we're not asking for better assurances. We're asking you to stand in solidarity with the communities you pledged to protect when you passed a sanctuary ordinance.

2290
06:05:21.040 --> 06:05:25.320
Boardroom: That ordinance was a promise, and the thing about promises is that they're tested.

2291
06:05:25.700 --> 06:05:30.160
Boardroom: It's easy to say, I stand with immigrants. Your actions must also reflect that.

2292

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06:05:30.940 --> 06:05:35.359
Boardroom: Our teams work day in and day out to serve communities that are targeted by this administration.

2293
06:05:35.520 --> 06:05:45.820
Boardroom: SJC provides removal defense for immigrants who would otherwise not have access to legal aid. And we have fought to protect individuals who have been kidnapped from their homes, from their cars, and from ICE check-ins.

2294
06:05:45.960 --> 06:05:48.509
Boardroom: Some days, our job feels impossible.

2295
06:05:49.790 --> 06:05:59.090
Boardroom: The last time we were here, I asked you to help make the job of the federal administration and the federal immigration enforcement harder. This contract does not do that.

2296
06:05:59.890 --> 06:06:11.040
Boardroom: When, and not if, Flock betrays your trust, this Council will be responsible for violations and harm that follows. Is a contract with FLOC worth losing the trust your constituents have placed with you?

2297
06:06:11.680 --> 06:06:20.379
Boardroom: This is a moral question. We urge you to stand with us in this fight, rather than support a company whose goals and profits are deeply connected to Trump and his administration.

2298
06:06:20.800 --> 06:06:25.940
Boardroom: The only way Berkeley can maintain its sanctuary values is by refusing to contract with Flock.

2299
06:06:28.830 --> 06:06:30.040
Boardroom: Thank you.

2300
06:06:30.420 --> 06:06:31.170
Boardroom: George, come on up!

2301
06:06:34.850 --> 06:06:41.209
Boardroom: Yes, I have one minute from Grace, and if possible, one from Serena. Okay, thank you.

2302
06:06:41.690 --> 06:06:43.350

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Boardroom: That's all.

2303
06:06:43.680 --> 06:06:44.939
Boardroom: Hi,

2304
06:06:45.080 --> 06:07:00.460
Boardroom: My name's George Lipman, I'm of the Peace and Justice Commission. This is the City's… You can sit down if you want to. Go ahead. Yeah. Yeah, thank you. This is the City's Social Justice Advisory Commission. I'm speaking for the Chair, Pastor Duane Phillips, on behalf of the Commission.

2305
06:07:00.460 --> 06:07:10.510
Boardroom: On March 9th, the Commission voted by 11 to 1 with 2 abstentions to oppose any contracts with Flock Safety. We passed this recommendation.

2306
06:07:10.570 --> 06:07:17.810
Boardroom: Adopt a policy approving the following action with regard to safeguards for Berkeley's surveillance-derived images and footage.

2307
06:07:17.900 --> 06:07:19.090
Boardroom: Cancel…

2308
06:07:19.310 --> 06:07:32.130
Boardroom: Berkeley's flock safety contracts for public surveillance images and video footage due to Flock's repeated sharing of such data with immigration authorities, and the inherent exposure

2309
06:07:32.330 --> 06:07:44.720
Boardroom: of cloud-based storage to access by the Trump administration. Now, I want to step back a second and, you know, people are saying, well, where's the smoking gun? Well, how is Flock involved in any of this? Well.

2310
06:07:45.490 --> 06:07:57.079
Boardroom: I just want to mention that two years ago, Brandon Upchurch, an African-American civilian, was pulled over by the Toledo, Ohio Police due to a mistake by Flock Safety Software.

2311
06:07:57.120 --> 06:08:10.300
Boardroom: The pullover resulted in the officer setting his dog upon Mr. Brandon Upchurch, seriously mauling him. Upchurch was completely innocent, but the officer believed his faulty software over

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2312
06:08:10.540 --> 06:08:12.709
Boardroom: the man's protests.

2313
06:08:13.040 --> 06:08:18.370
Boardroom: Now, to… back to my… Texts.

2314
06:08:18.830 --> 06:08:35.849
Boardroom: One of the important messages from the Commission to the Council is about the precautionary principle, which I hope you're all familiar with. Council adopted it 20 years ago. The principle requires that decisions rely upon science, particularly social science, and not solely on politics.

2315
06:08:35.850 --> 06:08:43.859
Boardroom: Most important, the burden of proof must be put on those proposing a new program, rather than on those who are opposed.

2316
06:08:43.860 --> 06:08:52.069
Boardroom: It is time to apply the precautionary principle also to the impact on social justice. Now, I want to briefly touch on

2317
06:08:52.260 --> 06:08:59.480
Boardroom: Oh, I got just less a minute. Five issues that none of the proposals that support a flock relationship speak to.

2318
06:08:59.780 --> 06:09:13.449
Boardroom: No contract language will protect our data from judicial warrants or FISA warrants. FLOC has already, too, FLOC has already broken its word to Berkeley, notably by lying that they do not work with ICE while maintaining a pilot program with that agency.

2319
06:09:13.580 --> 06:09:24.229
Boardroom: Former PAB member Kitty Calvita's letter contains shocking information about Flock, his letter, her letter to you.

2320
06:09:24.360 --> 06:09:39.450
Boardroom: She demonstrates that Flock's biggest investor, Mr. Andreessen, is a MAGA booster who considers DEI and immigration to be two forms of discrimination. Techcrunch has shown that Flock corruptly hired a local mayor and city council members in Moreno Valley.

2321
06:09:39.450 --> 06:09:47.480

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Boardroom: California to promote its business and get contracts signed. Thanks, George. Thanks, George. Thank you. …to dive into. Thank you. Thank you.

2322
06:09:49.630 --> 06:09:50.660
Boardroom: Can't you…

2323
06:09:52.330 --> 06:10:05.009
Boardroom: Yeah, but you've already spoken, so you can't come back again. Not like that. You've already spoken, I'm sorry. You can speak, certainly, yeah, please, go ahead.

2324
06:10:05.180 --> 06:10:07.530
Boardroom: Yeah, which one? This one.

2325
06:10:08.400 --> 06:10:09.769
Boardroom: For far less…

2326
06:10:10.020 --> 06:10:24.379
Boardroom: Well, I want to say what I want to say. Thank you so much, Mayor and Igor and Cecilia, and I just think Berkeley and Flock are absolutely so counter…

2327
06:10:24.560 --> 06:10:28.509
Boardroom: Counter… Opposite camps, opposite camps.

2328
06:10:28.660 --> 06:10:36.440
Boardroom: Isn't there a California law, AB54, that says data cannot be exchanged?

2329
06:10:37.420 --> 06:10:43.910
Boardroom: in data collection with other jurisdictions outside the state of California?

2330
06:10:44.790 --> 06:10:46.180
Boardroom: I think so.

2331
06:10:47.020 --> 06:10:48.990
Boardroom: I just read something from the…

2332
06:10:49.140 --> 06:10:55.930

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Boardroom: the new sheriff… the new police chief of Richmond, who said, Flock!

2333
06:10:56.130 --> 06:11:00.040
Boardroom: has not… Been honest at all.

2334
06:11:00.360 --> 06:11:08.549
Boardroom: And we are going to… absolutely review and set aside any contracts with Flock

2335
06:11:08.740 --> 06:11:11.310
Boardroom: Well, I wish I could be more articulate.

2336
06:11:11.520 --> 06:11:16.769
Boardroom: I was sort of pulled in. You did great. Thank you. Thanks for your comment.

2337
06:11:17.820 --> 06:11:23.979
Boardroom: Kit. Kit. It's not written. You need to write that, if that's the rule.

2338
06:11:30.680 --> 06:11:36.200
Boardroom: Hi, everyone. I'm sharing a testimony today from someone who didn't feel safe enough to be here.

2339
06:11:36.230 --> 06:11:43.750
Boardroom: My name is Johnny Silva, I am from Honduras, and I have lived in the U.S. with my wife and our two children for 27 years.

2340
06:11:43.750 --> 06:12:07.430
Boardroom: In 1999, I became the beneficiary of a temporary status called TPS, and I'm a current member of the National TPS Alliance. I work for a company as a driver for over 27 years. My wife and I have contributed to the economy of this country by working and paying our taxes. For those of us with TPS, it would be devastating to lose this status that allows us to work legally and to renew our driver's license.

2341
06:12:07.430 --> 06:12:24.290
Boardroom: Unfortunately, in the current political situation, some people who have TPS, people who have followed all the rules, and have given the U.S. government all of our information are being racially profiled and deported. The mass deportations taking place across the country instill a lot of fear into our families.

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2342
06:12:24.430 --> 06:12:27.839
Boardroom: Do not approve this contract. Vote no on flock.

2343
06:12:29.380 --> 06:12:30.370
Boardroom: Thank you.

2344
06:12:36.030 --> 06:12:45.380
Boardroom: Ben Franklin said, those who would give up essential liberty to purchase a little temporary safety deserve neither liberty nor safety.

2345
06:12:46.430 --> 06:12:58.279
Boardroom: As we give our police more and more control over our lives, we should remember the quote at the end of the movie Nuremberg, and I'll paraphrase, the only clue to what police can do is what police have done.

2346
06:12:58.280 --> 06:13:11.420
Boardroom: So stop and think about that. The police brutality we've seen over the last decade, think about the intrusion the NSA, CIA, and ICE have done. Do we really want to give them more surveillance control over our lives?

2347
06:13:11.430 --> 06:13:13.189
Boardroom: And I'll quote Orwell.

2348
06:13:13.350 --> 06:13:24.459
Boardroom: War is peace, freedom is slavery, ignorance is strength. I guess we can now add surveillance as safety. As we give our police more and more control over our lives, we really want that.

2349
06:13:25.250 --> 06:13:40.030
Boardroom: And I'd like to think about what our council is. Are we gonna be the MAGA Council? Are we gonna be the MAGA… which council members are gonna be the MAGA council members that are gonna vote for more surveillance, that are gonna vote for Peter Thiel in college? Thank you. Thanks for your comment. Thanks.

2350
06:13:44.110 --> 06:13:46.030
Boardroom: Sorry, you're sick. Okay, go ahead.

2351
06:13:46.030 --> 06:14:06.279
Boardroom: You've got 2 minutes. Hey, I'm Stu Ralston, dead from down the street. Just wanted to say a quick thanks for the smooth streets and some great public schools, really wonderful, Councilmember Terry, who I will

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not address directly. Thanks for coming to our block party, great to see you again. Okay, so the proposal for Flock is, I understand, to keep us safe. The key question in that is, well, who's us?

2352
06:14:06.730 --> 06:14:24.690
Boardroom: Right? And the truth is, what we've learned, is we keep us safe. We keep us safe. Right? I lived here in the East Bay for 14 years, and I'm proudly from Minneapolis, Minnesota. In January, I went back because I saw my community being torn apart by a ruthless federal onslaught.

2353
06:14:24.740 --> 06:14:29.350
Boardroom: What I saw there has direct impact on the legitimate concerns that are being raised here tonight.

2354
06:14:30.170 --> 06:14:34.820
Boardroom: We've all seen the footage, the murders, kidnaps, trauma, and economy cratering.

2355
06:14:35.450 --> 06:14:40.800
Boardroom: And, these are troubling times, empowered by surveillance technology and lawless law enforcement.

2356
06:14:41.560 --> 06:14:50.909
Boardroom: Even the police, the police chiefs of the 10 metro areas said that the federal enforcement was not making, the citizens and the people safer, was making even the police less safe.

2357
06:14:51.950 --> 06:15:13.019
Boardroom: What we saw less of in the news, but what we… what held the city together was the community. The neighbors packing deliveries and groceries for their neighbors, the moms delivering breast milk because other mothers were detained and kept away from their children, the dads taking terrified neighbors' kids to schools, and I share these stories because it was these neighbors, like everyone here, who kept the community safe.

2358
06:15:13.020 --> 06:15:14.499
Boardroom: We keep us safe.

2359
06:15:14.820 --> 06:15:17.770
Boardroom: These quiet heroes were called…

2360
06:15:17.810 --> 06:15:35.840

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Boardroom: domestic terrorists and agitators, suddenly, because they supported their neighbors, they were no longer the us that law enforcement was there to protect. The idea that Berkeley would be able to keep license plate data, video recordings, audio recordings, from flock cameras safe from this federal government.

2361
06:15:36.250 --> 06:15:46.150
Boardroom: Pretty laughable, sorry, respectfully. And the Supremacy Clause, of course, gives the federal government rights to anything deemed related to immigration enforcement, and that's when they follow the Constitution.

2362
06:15:46.290 --> 06:15:49.820
Boardroom: Flock won't keep us safe. We keep us safe. Thank you. Thank you. Thanks so much.

2363
06:15:55.840 --> 06:16:14.080
Boardroom: Hello, I'm Allison, I live in District 4, and I just want to say, not only do I oppose Berkeley's partnership with Flock, but any expansion of mass surveillance. Mass surveillance plays right into the aims of the Trump administration. It also continues the legacy of Coin Intel Pro, it continues the legacy of the Patriot Act.

2364
06:16:14.080 --> 06:16:22.010
Boardroom: And one thing that hasn't been discussed tonight is that even when it's been cited, some of the victories that Flock has caused around, like, catching

2365
06:16:22.010 --> 06:16:27.089
Boardroom: And solving crimes. What about prevention of crime? Surveillance does not keep us safer.

2366
06:16:27.180 --> 06:16:46.010
Boardroom: We need housing, we need funding, we need, we need food, we need to be… and then, not only, so when Flock, not if, but when Flock, you know, is used by the government to, breach, breach our privacy, the amount of money and time and energy going into addressing that, both as far as

2367
06:16:46.010 --> 06:16:56.539
Boardroom: public trust will be taken away from preventing… investing in the services that actually prevent crime, and actually promote safety. I don't care about… well, actually, never mind, but it's like…

2368
06:16:56.630 --> 06:16:58.180

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Boardroom: Safety for who? Thank you.

2369
06:16:58.660 --> 06:16:59.830
Boardroom: Thank you.

2370
06:17:04.380 --> 06:17:18.220
Boardroom: Hi, I'm David Allen. I grew up here, and I'm still here. Let's be very clear, we're talking tonight about contracting out an unprecedented expansion of mass surveillance to a corporation that has acted in bad faith over and over again.

2371
06:17:18.610 --> 06:17:28.919
Boardroom: Many of you seem to think that we can… that that can be okay, as long as we try to predict the problems and write contracts and usage policies against them. That idea is doomed to fail.

2372
06:17:29.230 --> 06:17:37.170
Boardroom: Flock safety as a private corporation is vulnerable to federal subpoenas in a way that we, a local municipality, a sanctuary city, are not.

2373
06:17:37.800 --> 06:17:42.490
Boardroom: In fact, the very contracts in this proposal have carve-outs

2374
06:17:42.720 --> 06:17:46.049
Boardroom: Carve-out language to allow them to do that.

2375
06:17:46.690 --> 06:17:55.480
Boardroom: Furthermore, as the pub points out, the proposal limits are insufficient. Flock Safety and the BPD will find ways to stretch and break the limits we try to place on them.

2376
06:17:55.630 --> 06:18:02.409
Boardroom: This also creates a centralized target for malicious actors from a vendor with many documented security issues. Thank you.

2377
06:18:02.900 --> 06:18:04.010
Boardroom: Thank you.

2378
06:18:05.900 --> 06:18:10.159
Boardroom: Hi, I have 3 friends who've ceded me time. 1, 2, 3…

2379

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06:18:10.600 --> 06:18:13.319
Boardroom: So I believe 4 minutes if I use it.

2380
06:18:13.400 --> 06:18:38.189
Boardroom: My name's Leah, I'm a Berkeley resident of District 3, a parent of three Berkeley students or grads, a pastor of a church called Haven Berkeley Faith Community, and I had the opportunity, like Stuart spoke of, to visit Minneapolis in January. I was one of about 20 faith leaders from the Bay Area that joined about 700 faith leaders across the country to meet up with the faith community in

2381
06:18:38.190 --> 06:18:54.870
Boardroom: in Minneapolis, learn from their experiences, participate in the large day of action and general strike that took place at the end of January, and I witnessed firsthand the chilling way that the surveillance technology was being weaponized, not only to terrorize immigrants and people of color, which it did.

2382
06:18:54.870 --> 06:19:02.609
Boardroom: but also whole swaths of the community who were standing up to protect their neighbors. People like Renee Goode, people like Alex Pretty.

2383
06:19:02.740 --> 06:19:16.240
Boardroom: I met people who'd had to stop delivering groceries to their neighbors who were trapped inside their homes because they knew that law enforcement was using tools like these to follow them and kidnap the people that they were going to try to help.

2384
06:19:16.760 --> 06:19:28.669
Boardroom: I saw something else, though, that, besides the terror of an American occupation when I was there, that was truly inspiring, because in Minneapolis, thousands of people have been taken to the streets to push back.

2385
06:19:28.780 --> 06:19:34.240
Boardroom: On this authoritarianism, and one of the ways they've been doing this is through singing.

2386
06:19:34.410 --> 06:19:44.199
Boardroom: And the movement of singing resistance has been making its way across the country. So with the rest of the time that's been ceded to me, I'm gonna call you in, through song.

2387
06:19:44.360 --> 06:19:58.340

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Boardroom: And if you're planning to vote in favor of surveillance technology, I just want to offer this to you. It's okay to change your mind, show us your courage, leave flock, leave flock, but how

2388
06:20:00.980 --> 06:20:19.999
Boardroom: It's okay to change your mind, and you can join us. Join us here anytime, it's okay, it's okay, it's okay to change your mind. Show us your current, leave flock, leave flock behind

2389
06:20:22.460 --> 06:20:31.549
Boardroom: It's okay to change your mind and you can join us. Join us here anytime.

2390
06:20:32.000 --> 06:20:42.460
Boardroom: It's over here. Change your mind, show us the courage, live full blind!

2391
06:20:43.580 --> 06:20:52.210
Boardroom: It's okay to change your mind, and you can join us. Join us here anytime.

2392
06:20:54.740 --> 06:21:00.210
Boardroom: It's okay to change your mind.

2393
06:21:01.260 --> 06:21:02.140
Boardroom: Leave flock.

2394
06:21:04.750 --> 06:21:06.270
Boardroom: It's on!

2395
06:21:06.970 --> 06:21:11.320
Boardroom: To change your mind, and you can join us!

2396
06:21:11.680 --> 06:21:21.930
Boardroom: Join us here, ready? One more time, one more time! It's okay to change your mind or wash your courage.

2397
06:21:22.060 --> 06:21:24.069
Boardroom: Leave flock behind.

2398
06:21:26.310 --> 06:21:32.670
Boardroom: It's okay to change your mind, and you can join us!

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2399
06:21:32.830 --> 06:21:38.049
Boardroom: Join us here anytime, and you can join, and you can join us!

2400
06:21:38.500 --> 06:21:42.110
Boardroom: Join us here anytime!

2401
06:21:43.240 --> 06:21:45.539
Boardroom: Thank you, friends, I hope you will.

2402
06:21:49.480 --> 06:21:50.540
Boardroom: Thank you!

2403
06:21:51.390 --> 06:21:56.239
Boardroom: Thank you for the lovely song. Okay. Thank you.

2404
06:21:57.370 --> 06:22:03.780
Boardroom: Good evening, Council. I'm reading testimony on behalf of an immigrant community member. This is what she wrote.

2405
06:22:03.920 --> 06:22:20.089
Boardroom: My name is Claudia. Originally from Honduras, I have lived in the U.S. for 27 years with temporary protected status. I have two sons, one 29 and the other 21. I work as a caregiver for seniors and children with disabilities. Although my job is hard, I love doing what I do.

2406
06:22:20.090 --> 06:22:31.270
Boardroom: We are hardworking people and don't rely on government assistance. Rather, we contribute economically to this country's economy and are active members of the community. My family and I are desperately afraid.

2407
06:22:31.350 --> 06:22:42.810
Boardroom: We have been active in the TPS campaign for permanent residency. In this political environment, I'm worried that we could be targeted, and that video camera data could be shared with federal immigration enforcement.

2408
06:22:43.000 --> 06:23:00.790
Boardroom: We have a mixed-status family and are worried that any one of us could be detained at any time, for no reason, and sent back to a country where we have nothing and would face extortion or persecution.

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For this reason, I ask that the Berkeley City Council reject the contract with Flock and stand with immigrant communities. Thank you.

2409
06:23:07.720 --> 06:23:08.839
Boardroom: One minute.

2410
06:23:09.870 --> 06:23:15.019
Boardroom: You're giving your minute? Or she's giving… I have one minute. Okay, you're giving your minute time. Thank you.

2411
06:23:15.220 --> 06:23:18.260
Boardroom: Hi, my name is Sam, I'm a resident of District 8.

2412
06:23:18.580 --> 06:23:30.870
Boardroom: the concept of data fatalism came up a few times at Mayor Ishii's town hall last week in South Berkeley, once by a fellow attendee at our table session, and again by Chief Lewis while answering questions.

2413
06:23:30.970 --> 06:23:38.190
Boardroom: Data fatalism is the idea that we already have so much of our lives online and digitally accessible. What's to worry about one more thing?

2414
06:23:39.000 --> 06:23:43.699
Boardroom: I understand that privacy exists on a spectrum, and everyone has different tolerances.

2415
06:23:43.810 --> 06:23:51.409
Boardroom: Meta knowing your political leanings, or Amazon understanding your buying habits may be worth it if those services provide enough relative value to you.

2416
06:23:51.810 --> 06:23:56.760
Boardroom: But using these services is a personal choice that you can regulate and opt in or out of.

2417
06:23:57.250 --> 06:24:03.960
Boardroom: With an artificial intelligence-powered surveillance network, compliance is automatic, and there's no choice or opt-out.

2418
06:24:04.080 --> 06:24:09.239
Boardroom: Our freedom and liberty to exist as private citizens in a public space

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2419
06:24:09.340 --> 06:24:24.980
Boardroom: To remain free from searches and seizures, and to freely voice views or protests are greatly compromised when our personal lives and data are saved, indexed, and used to power AI law enforcement for profit and against our will.

2420
06:24:25.820 --> 06:24:32.760
Boardroom: Please say no to this flock contract. Resist the slide into fascism. Invest in addressing the root causes of crime.

2421
06:24:32.880 --> 06:24:36.940
Boardroom: Invest in the people and communities of Berkeley and the East Bay. Thank you.

2422
06:24:37.450 --> 06:24:38.660
Boardroom: Thank you.

2423
06:24:46.480 --> 06:24:49.760
Boardroom: Hi, my name's Adrian, I live in District 3.

2424
06:24:49.790 --> 06:25:08.619
Boardroom: So, I just wanted to read some quotes verbatim from press releases from cities across California. So, from Ventura, although VPD's settings were set to California-only access, a vendor-enabled nationwide query function allowed out-of-state agencies to query Ventura's data. These queries were completed without the department's knowledge or authorization.

2425
06:25:08.690 --> 06:25:21.670
Boardroom: For Mountain View, federal law enforcement agencies accessed Mountain View's Flock Safety ALPR system via a nationwide search setting that was turned on by Flock Safety. The setting was enabled without MVPD's permission or knowledge.

2426
06:25:21.670 --> 06:25:36.750
Boardroom: In Oxnard, even though OPD's flock safety security settings had been set to California-only access, a vendor-enabled nationwide query allowed agencies from outside California, which also included federal agencies, to query OPD's data without OPD's knowledge or approval.

2427
06:25:36.850 --> 06:25:48.419
Boardroom: These are all from within the last 3 months. So this has happened in Santa Cruz, Capitola, Richmond, El Cerrito, many other cities

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across California. Flock is not trustworthy. Please cancel this. Thank you.

2428
06:25:52.040 --> 06:26:10.620
Boardroom: Hi, Council. I'm a community member in District 3. I do community organizing in my neighborhood, and I just want to say that I have never once heard any person that I've, interacted with in the neighborhood, in the community garden, organizing against surveillance, that they want to feel safer by having cameras

2429
06:26:10.620 --> 06:26:15.199
Boardroom: in the neighborhood. I feel the safest when I know who my neighbors are.

2430
06:26:15.200 --> 06:26:33.679
Boardroom: when we know we're looking out for each other, when we know we can feed each other, we can support each other. Cameras have never done any of that, and I also resent the, victims of crime section from the police board. As someone who was a victim of a violent crime, a camera didn't intervene, a community member did. So I don't feel that these…

2431
06:26:34.030 --> 06:26:50.139
Boardroom: Surveillance, like, measures will increase anybody's safety. I really urge the Council to cancel this contract, and to go further than that, and to just decrease surveillance across the City of Berkeley to increase safety for community members, because we look out for each other. Thank you. Thank you.

2432
06:26:53.040 --> 06:26:57.259
Boardroom: Sorry, minute from… I've got 2 minutes over there, if you guys raise your hands.

2433
06:26:57.560 --> 06:27:01.210
Boardroom: Yeah. Where's your second one? Oh, okay, thank you.

2434
06:27:01.840 --> 06:27:02.979
Boardroom: I mean, just one second.

2435
06:27:04.290 --> 06:27:12.030
Boardroom: Good evening, Mayor and members of the City Council. My name is Solly Alpert. I am chair of the Berkeley Rent Stabilization Board, speaking in my own individual capacity tonight.

2436
06:27:12.530 --> 06:27:20.690

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Boardroom: There is disagreement in the community about surveillance, whether the privacy and state oppression risks is worth, or worth the security it is purported to bring.

2437
06:27:21.090 --> 06:27:31.570
Boardroom: I and many others believe it is not, and I'm happy another time with any of you to have the conversation about why I, as the child of lesbian unionist Jewish mothers, oppose mass surveillance.

2438
06:27:32.110 --> 06:27:35.070
Boardroom: But even if we did all agree that surveillance

2439
06:27:35.200 --> 06:27:41.650
Boardroom: was the solution that these technologies were the way to make us safe, Flock would not be an acceptable partner for the City of Berkeley.

2440
06:27:42.090 --> 06:27:47.379
Boardroom: The Council unanimously passed the Sanctuary City Contracting Ordinance and the Sanctuary City Ordinance.

2441
06:27:47.590 --> 06:27:51.899
Boardroom: Flock violated that this summer when it came out, that they contracted with ICE.

2442
06:27:52.330 --> 06:27:54.780
Boardroom: It is easy to support these values in concept.

2443
06:27:55.820 --> 06:27:58.409
Boardroom: It does not demonstrate courage to do so.

2444
06:27:59.410 --> 06:28:05.630
Boardroom: The real test of your character comes when it is no longer a theoretical question, but a question of competing priorities.

2445
06:28:06.100 --> 06:28:11.449
Boardroom: Councilmember Blackaby, you were the author of at least one of those items, and it'll be your vote tonight that determines the outcome here.

2446
06:28:12.280 --> 06:28:16.690
Boardroom: Thank you to the Mayor, to Councilmembers Luna Parra, Tregob, and Bartlett for your supplementals.

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2447
06:28:17.230 --> 06:28:20.369
Boardroom: I am extremely confident that the people of Berkeley stand behind you.

2448
06:28:20.500 --> 06:28:28.359
Boardroom: And for the rest of this Council and all Council members, please, please follow the recommendations of the Police Accountability Board. Do not approve a contract with PLOC.

2449
06:28:28.750 --> 06:28:30.440
Boardroom: Now, to the public.

2450
06:28:31.690 --> 06:28:38.800
Boardroom: This council has repeatedly failed to uphold the values that Berkeley holds dear of sanctuary, justice, and accountability.

2451
06:28:39.000 --> 06:28:55.400
Boardroom: I, along with a number of other leaders, are working on drafting a ballot measure that would undo a number of the changes that this council has brought, and I will be in the back of the room with a QR code that you can scan if you're interested in getting involved. So find me if you'd like to join in our effort to fix the harm that this Council has caused. Thank you very much.

2452
06:28:56.010 --> 06:28:56.950
Boardroom: Thank you.

2453
06:29:03.190 --> 06:29:06.239
Boardroom: Hi, my name is Moni, I'm from District 1.

2454
06:29:07.450 --> 06:29:15.099
Boardroom: I did not come prepared with the speech, but I have to say something about this. It's shocking.

2455
06:29:15.510 --> 06:29:19.079
Boardroom: That in a city with such an educated populace.

2456
06:29:19.300 --> 06:29:25.839
Boardroom: A progressive populace, a sanctuary city, The home of free speech.

2457

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06:29:26.200 --> 06:29:28.349
Boardroom: And the neighbor of the Black Panthers.

2458
06:29:29.240 --> 06:29:31.510
Boardroom: That would… we would even consider.

2459
06:29:31.640 --> 06:29:34.120
Boardroom: A contract.

2460
06:29:34.230 --> 06:29:40.780
Boardroom: with a surveillance company. It makes me wonder if anyone on the City Council has read 1984?

2461
06:29:41.430 --> 06:29:48.289
Boardroom: Th-this… proposal has widespread opposition, so I'm…

2462
06:29:49.440 --> 06:29:57.660
Boardroom: I'm finding a little bit mind-boggling why we're even presented with this, and why we're wasting the energy, resources.

2463
06:29:57.830 --> 06:30:11.720
Boardroom: intelligence, talent that this community has to even consider this proposal. Thank you. I hope you all do the right thing, like Mountain View, Santa Cruz, and Santa Clara, thank you. Thanks.

2464
06:30:14.250 --> 06:30:24.980
Boardroom: Okay. I'll just finish that comment. If Mountain View, Santa Clara, and Santa Cruz can do the right thing, Berkeley can too. We can… we can still save our soul, so please…

2465
06:30:26.510 --> 06:30:29.580
Boardroom: Please do that. You can always change your mind.

2466
06:30:29.920 --> 06:30:31.199
Boardroom: Thank you.

2467
06:30:32.550 --> 06:30:38.660
Boardroom: Sorry, woman with the choker, who were you pointing to that was giving the minute? Oh, you were giving… okay, thank you.

2468
06:30:42.260 --> 06:30:48.379

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

Boardroom: Ready? Good? Yeah. Hello! I'm Roberta, I'm a resident of Berkeley. Berkeley is my home.

2469
06:30:48.610 --> 06:30:58.599
Boardroom: I have lately the displeasure of writing software, so I feel very strongly about,

2470
06:30:59.780 --> 06:31:13.280
Boardroom: how time has progressed, all the ample evidence of what technology has done to our lives. I think a lot of us can agree here, I have personal anecdotes, that your data has been uploaded, replicated, shared many times over.

2471
06:31:13.480 --> 06:31:18.159
Boardroom: Arbitrary information, you know, what you actually like to buy.

2472
06:31:18.550 --> 06:31:19.330
Boardroom: You're…

2473
06:31:19.710 --> 06:31:26.380
Boardroom: at a crossroads here where it's no longer going to be arbitrary. It's going to be video footage. It's going to be images.

2474
06:31:26.670 --> 06:31:37.720
Boardroom: We've seen that… buzzwords like SOC 2 compliance, GDPR, end-to-end encryption, TOS, Any of that meaningfully…

2475
06:31:37.960 --> 06:31:40.730
Boardroom: Tamp down on tech companies?

2476
06:31:41.120 --> 06:31:43.069
Boardroom: I don't feel like it.

2477
06:31:43.240 --> 06:31:45.440
Boardroom: Thank you. Okay, that's all I got.

2478
06:31:51.110 --> 06:32:01.640
Boardroom: Hi, my name's Kelsey, I live in District 1. I just wanted to come up here and remind you all that you're public servants, you work for us, the police are public servants also, they work for us.

2479

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

06:32:01.830 --> 06:32:14.289
Boardroom: and Berkeley has showed up here and all over the city to say, we don't want any part of this. So it's ridiculous that we all have to stay here till 1AM begging you not to pass this, when we have…

2480
06:32:14.410 --> 06:32:29.410
Boardroom: proven and said it over and over again that we do not want it. SOC is aggressively incompetent, and they've collaborated with fascists openly, and have no accountability. And there's endless examples and data about this that you've been given.

2481
06:32:29.590 --> 06:32:46.410
Boardroom: So, pushing this vote through just shows that you don't care about black, brown, or any marginalized community members, and you should absolutely be ashamed if you push any part of this through. And it will absolutely come back to haunt you, because this whole country is sliding into techno-fascism.

2482
06:32:46.730 --> 06:32:47.570
Boardroom: Thank you.

2483
06:32:48.870 --> 06:32:49.930
Boardroom: Thank you.

2484
06:32:54.690 --> 06:32:58.249
Boardroom: I am receiving one minute from my friend right here.

2485
06:32:58.610 --> 06:33:13.410
Boardroom: Hi everybody, my name is Micah, I live in District 6, and I am a therapist and social worker who works with, immigrant communities, with a lot of Latina communities, namely kids.

2486
06:33:13.520 --> 06:33:26.290
Boardroom: And as you already know, stress has been at an all-time high. One kid that I worked with, that I work with, was recently admitted to a hospital because of suicidality.

2487
06:33:26.720 --> 06:33:29.600
Boardroom: And largely, it was due to immigration stress.

2488
06:33:29.710 --> 06:33:32.699
Boardroom: Every time his single mom went to work.

2489

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

06:33:33.050 --> 06:33:37.240
Boardroom: I'm worried that that day would be the last day that he'd ever see his mom.

2490
06:33:38.040 --> 06:33:41.700
Boardroom: And that was before the Flock expansion that y'all are thinking about.

2491
06:33:42.350 --> 06:33:54.720
Boardroom: So, if you pass the flock contract, and if the kids that… and if the kids learn that y'all, the city, put everyone in danger like that, their mental health will plummet even lower than it is.

2492
06:33:55.650 --> 06:34:02.149
Boardroom: Mass block surveillance will make our families stress every time they just need to step outside the door.

2493
06:34:02.440 --> 06:34:15.660
Boardroom: The kid I mentioned has just barely been able to pull himself up from the abyss, and passing this would risk pushing him and many others into the abyss past the point of no return.

2494
06:34:16.390 --> 06:34:30.090
Boardroom: So, this decision would cause real mental health, mental and physical harm to our communities. If you really care about serving Berkeley residents, vulnerable Berkeley residents, like y'all say you are.

2495
06:34:30.280 --> 06:34:33.129
Boardroom: I would love to see y'all cancel this contract.

2496
06:34:33.390 --> 06:34:35.119
Boardroom: Thank you. Thank you.

2497
06:34:40.110 --> 06:34:44.269
Boardroom: You're getting a minute from someone? Oh, no, just one minute. Just one minute, okay. Go ahead.

2498
06:34:44.370 --> 06:34:56.450
Boardroom: Hello, I'm a resident of District 3. First, I want to applaud the audience for their patience earlier to sit through BPDs and some council members downplaying and scrape dishonesty of the harms Flock does, has done, and continues to do.

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2499
06:34:56.450 --> 06:35:07.570
Boardroom: Thank you to TPAB, your research voices the reality that Flock is dangerous to our safety. If the original report emits so many harmful truths of surveillance tech, we have no reason to trust why or how Flock will be used.

2500
06:35:07.570 --> 06:35:26.780
Boardroom: Flock gives us data to federal agencies to commit violence on immigrants and all of us. They do not care about contracts, laws, or promises. The people of Berkeley oppose Flock every time it comes up. We are here at this late hour, unpaid to say it again, and it is time for you to counsel to represent our opposition to that. No flock, no surveillance, reject Berkeley's contract with FLOC. Thank you.

2501
06:35:28.260 --> 06:35:29.370
Boardroom: Thank you.

2502
06:35:31.280 --> 06:35:48.939
Boardroom: Hi, my name is Marilyn, I'm a resident of, District 3. I work for the state of California, that means that I serve the citizens of California, and in turn, that means that you, our council members, serve us. Literally everyone here is your boss, so that means you have to listen to us.

2503
06:35:49.150 --> 06:35:57.800
Boardroom: And look at how many people showed up for us tonight. And if you're not gonna be listening to us, then I guess we'll be voting you guys out. Thanks.

2504
06:35:59.950 --> 06:36:01.170
Boardroom: Thank you.

2505
06:36:03.590 --> 06:36:18.860
Boardroom: Good evening, and thank you for this opportunity. I'm Omoali Fowles. I have a minute from someone back here who told me to announce my minute. Anyway, sorry, who has your… Who's your minute from? Oh, okay, thank you.

2506
06:36:20.400 --> 06:36:38.819
Boardroom: I'm the former Health Commissioner for the City of Berkeley. I'm also a member of Berkeley Equity Summit Alliance, and I'm also the Housing Director at Telegraph Community Ministry Center, a roof over their heads emergency to permanent housing. We house homeless people.

2507

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

06:36:38.980 --> 06:36:51.589
Boardroom: And, feed them also, and have a pantry, and if you need a flyer, I'll put the flyers in the back so you guys can use them and hand them out to whomever you need. But the thing that I'm concerned about today is consent and compelling reasons.

2508
06:36:51.670 --> 06:37:02.230
Boardroom: We do not have consent to do the contract with Flock, and we should not have done the contract with Flock, because even as a city.

2509
06:37:02.910 --> 06:37:21.440
Boardroom: Upholding California Constitution Article 1, Section 1 guarantees an inevitable right to privacy against both government and private entities. This protects against unwarranted sharing of personal information with third parties and government.

2510
06:37:21.470 --> 06:37:31.969
Boardroom: enforced through strict laws requiring consent for data disclosure. You are also… this contract with Flock is in…

2511
06:37:32.310 --> 06:37:40.279
Boardroom: violation of government code 11015.5, which says you cannot have

2512
06:37:40.530 --> 06:38:00.409
Boardroom: personal information shared with third-party persons, governments, businesses, etc, except that there is a legal consent of the user. We don't have any of that. I have not signed anything for Flock to give my information to ICE.

2513
06:38:00.700 --> 06:38:16.580
Boardroom: That's ridiculous. I don't know anybody else in this room who has. You haven't either. So, apparently, you are in violation of the California Constitution, which also is in viola… which also shows that you're partially in violation of the federal one. Thank you. Thanks for your comment. Okay.

2514
06:38:19.090 --> 06:38:37.379
Boardroom: It is… it is 1128, so I want to take two more public comments, and then we're gonna take another quick break. I've got staff… my staff have some numbers, they're gonna pass them out, so that you can keep track of where you are in line, and we'll take a 10-minute break after this person and the next person.

2515
06:38:37.410 --> 06:38:48.220

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Boardroom: Okay, go ahead. Hi, my name is Jen Phelps Quinn. I am a NICE agent. That is not ICE. I've been throwing a weekly dance party on the overpass.

2516
06:38:48.310 --> 06:39:01.419
Boardroom: That has a protest flavor. Nice, not ice. I want to thank BPD, first of all. We were possibly swatted last week. BPD showed up, and found that there was no man with a rifle on the overpass.

2517
06:39:01.490 --> 06:39:17.339
Boardroom: And they were very, very helpful and sweet and understanding. I know that there are major concerns about police brutality across the country. In my 30-plus years living here in Berkeley, the only experiences I've had with BPD have been

2518
06:39:17.520 --> 06:39:32.650
Boardroom: positive, including a time when I was attacked in my home. So I really appreciate the thoughtful, and very reasonable, and empathic officers of the BPD.

2519
06:39:32.840 --> 06:39:48.379
Boardroom: My concerns about this are not that BPD is gonna let us down. It is that, Flock is a Trojan horse. Thank you. And all my neighbors and all the parents at Berkeley… Thank you, I'm sorry, your time is up. Thank you.

2520
06:39:50.470 --> 06:40:02.199
Boardroom: I believe I have one minute over here, one minute? Yes. Okay, thank you. Adriana Betty, Executive Director of RISE, also the Director of the Native Youth Group here in Berkeley, Kualimi Totiani Mexica.

2521
06:40:02.250 --> 06:40:13.030
Boardroom: I'm speaking to you as a First Nations woman also, and I want to talk about how drones have impacted our Berkeley youth, and how they could be impacting our youth. In the early 80s, I protested…

2522
06:40:13.660 --> 06:40:33.600
Boardroom: In the early 80s, I protested apartheid. In 2016, I was at Standing Rock. While at Standing Rock, I was photographed, facial recognitions, license plates, all kinds of things like that. That has impacted me and put me on a number of different supposedly dangerous lists for exercising my, you know, my constitutional right.

2523
06:40:33.710 --> 06:40:44.279

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Boardroom: Every year, we travel internationally to Berkeley Youth Group. Last year, we were invited to the International Indigenous Leadership Gathering as honored guests, as well as a number of different other gatherings.

2524
06:40:44.280 --> 06:41:00.009
Boardroom: Due to security, I had to cancel every single one of those trips. I'm the only adult that travels with those young people. If they detain me, they detain every one of those young people. We've crossed the international border before when it wasn't as heightened as it is right now.

2525
06:41:00.010 --> 06:41:08.140
Boardroom: And, you know, they detained us. They actually took a kid away from me one time and put him in a separate room. So the rights that we get as Native people, we all know.

2526
06:41:08.140 --> 06:41:17.879
Boardroom: They're not the same. The injustice is the same. And I know they're talking about deporting us, and a number of elders have been picked up. Where do you deport us to? I don't know. So, Berkeley Youth

2527
06:41:17.880 --> 06:41:33.260
Boardroom: For 2025, all their trips were canceled into British Columbia. For 2026, we have canceled all of our trips into British Columbia. Actually, we've canceled all our international trips. We're still doing stuff inside the United States carefully.

2528
06:41:33.400 --> 06:41:44.619
Boardroom: The other thing, as a Berkeley grad and going to Berkeley, we see that our kids are still protesting and exercising their constitutional rights. So as they do protest,

2529
06:41:45.030 --> 06:41:57.079
Boardroom: you know, and say these cameras are around. Who gets the advantage of having those cameras? Does that mean these young people that are expressing their right now, just like me in Standing Rock, are now

2530
06:41:57.120 --> 06:42:08.539
Boardroom: That's 2 minutes? Thank you, I know. 2 minutes is fast. Okay. Thanks, Ms. Betty. Add one thing. What if we have to start wearing masks? Okay, someone else is giving you a minute. Go ahead. So I just wanted to finish that thought. Thank you so much.

2531
06:42:08.540 --> 06:42:29.939

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Boardroom: So as these young people are trying to express their rights, like Turning Point, for instance, can the government come in and take that film footage and know? And what consequences happen to those students? So does that mean that our students now have to wear masks at protests? And then my question becomes, as we start wearing masks at protests to protect ourselves from these surveillance things.

2532
06:42:29.940 --> 06:42:33.119
Boardroom: What problem does that cause for our police department?

2533
06:42:33.800 --> 06:42:36.030
Boardroom: Thank you, Ms. Maddie.

2534
06:42:36.390 --> 06:42:50.959
Boardroom: So, if you did not get a number, make sure you get a number from Julie, who's back there talking to folks, and, otherwise you'll end up at the back of the line, so please make sure you get a number from Julie, and then that way you can move around. So we're gonna take 10 minutes. Okay.

2535
06:43:02.230 --> 06:43:10.649
Boardroom: The things I do for the people. I said, the things we do for the people. I know.

2536
06:44:20.060 --> 06:44:25.409
Boardroom: Okay, alright, thank you all so much for your patience. Folks, please!

2537
06:44:25.770 --> 06:44:43.959
Boardroom: Okay, if you can please get in line based on your numbered pieces of paper. Thank you so much to my staff for handing those out. Thank you all for your patience. Okay, woo! You okay? Okay. Okay, alright.

2538
06:44:44.310 --> 06:44:45.440
Boardroom: Shh, okay.

2539
06:44:46.930 --> 06:44:50.830
Boardroom: Folks, I need it to be quiet so that we can start our public comment again.

2540
06:44:52.370 --> 06:44:55.300
Boardroom: If you're gonna have a conversation, please take it outside.

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2541
06:44:55.640 --> 06:44:57.030
Boardroom: Thank you!

2542
06:44:57.140 --> 06:44:58.210
Boardroom: Okay, coming up.

2543
06:45:00.900 --> 06:45:02.050
Boardroom: I just need one minute.

2544
06:45:03.790 --> 06:45:13.210
Boardroom: I'm a resident of District 8, and I am deeply concerned about mass surveillance and the privatization and monetization of our personal data.

2545
06:45:13.580 --> 06:45:17.020
Boardroom: And I question whether license plate readers keep us safe.

2546
06:45:17.660 --> 06:45:23.250
Boardroom: Even if the city demands… Sorry, hold on, your mic went out.

2547
06:45:23.950 --> 06:45:29.969
Boardroom: 42 seconds. Go ahead, try again. Even if the city demands… Hold on, let's pause for a second.

2548
06:45:33.610 --> 06:45:34.840
Boardroom: Hello?

2549
06:45:35.460 --> 06:45:36.290
Boardroom: Okay.

2550
06:45:36.570 --> 06:45:51.129
Boardroom: Even if the city demands… I'll give you more time, but go ahead. Oh, okay. I don't need more time. Even if the city demands a contract with escape clauses and punitive provisions for noncompliance, a private company will fold to the demands of a federal agency such as ICE.

2551
06:45:51.280 --> 06:46:00.250
Boardroom: As for public safety, Flock provides a false sense of security. Supporters cite anecdotal evidence when Flock aided a criminal investigation.

2552

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06:46:00.250 --> 06:46:12.849
Boardroom: But an analysis of a large set of license plate reader data from 63 California law enforcement agencies found that only .05% of data collected was relevant to a public safety concern.

2553
06:46:13.070 --> 06:46:23.199
Boardroom: Berkeley's values in support of civil liberties, as well as our city's commitment to the safety of our immigrant neighbors, is in direct opposition to Flock Safety's corporate mission.

2554
06:46:23.430 --> 06:46:25.269
Boardroom: Thank you. Thank you.

2555
06:46:31.730 --> 06:46:56.320
Boardroom: Hi, my name is Emma. I just wanted to say it's kind of insulting that you're having this meeting in front of, you know, a pride flag and a Black Lives Matter flag while you're actively contributing to, you know, building an environment that's making myself and all the other trans people of color I know just completely terrified right now. I feel like multiple council members here are under the, pretty frankly, childish understanding that if you put the right people in charge of these surveillance

2556
06:46:56.320 --> 06:47:19.020
Boardroom: flock or otherwise, or if you put the right regulations in place for these tools, that you can find good uses for them, but we have a federal government and a police department right now that has shown time and time again that they have no interest in being regulated, and they will do whatever and whatever they want to get what… to get access to the people that they want. So, I urge you to please just not do any of this flock, or…

2557
06:47:19.020 --> 06:47:23.470
Boardroom: say no to all of this surveillance technology. Thank you. Thank you.

2558
06:47:27.300 --> 06:47:28.789
Boardroom: I have an extra minute.

2559
06:47:29.240 --> 06:47:31.410
Boardroom: Sorry. Oh, thank you, over here.

2560
06:47:33.280 --> 06:47:42.049
Boardroom: Hello, my name is Valerie Sizemore. I moved to Berkeley back in 2012 to work on the risks from artificial intelligence.

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2561
06:47:42.350 --> 06:47:48.880
Boardroom: I first want to say about this city that I feel safe enough

2562
06:47:49.110 --> 06:47:58.549
Boardroom: We don't need more safety. The balance of safety and freedom is already great, just as it is. We do not need to expand surveillance.

2563
06:48:00.350 --> 06:48:08.730
Boardroom: Second thing, I have watched my freedoms erode as a millennial. I was born in 1989, as I grew up.

2564
06:48:09.140 --> 06:48:16.800
Boardroom: The children a year, two years ahead of me, they had more freedoms in almost every way, in school, and in driving.

2565
06:48:16.900 --> 06:48:25.380
Boardroom: And so I have watched this country walk back our freedoms in the name of safety, in all of these little ways, and I don't like it.

2566
06:48:29.070 --> 06:48:31.970
Boardroom: The second thing is that

2567
06:48:31.970 --> 06:48:51.620
Boardroom: This council, many of the members here seem incredibly naive about how tech companies work. They are going to try to trap you in this contract. They'll say they won't, but they are trying, right now, they're scheming, in whatever Zoom chat they're in, about how to trap you in that contract, despite you thinking you've schemed your way out of it.

2568
06:48:52.560 --> 06:48:57.109
Boardroom: Once they have you, they will squeeze, and squeeze, and squeeze.

2569
06:48:57.240 --> 06:49:12.290
Boardroom: And we know that ICE is coming for more people. They're coming for me next. They're coming for the immigrants now, but I'm a trans person, they're coming for me next. And I see faces on this council that are also in the set of people they are coming for next.

2570
06:49:13.170 --> 06:49:17.879
Boardroom: When Trump's Nazis come here to murder you, Flock will be right there helping them.

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2571
06:49:18.670 --> 06:49:19.550
Boardroom: Thank you.

2572
06:49:22.310 --> 06:49:23.260
Boardroom: Thank you.

2573
06:49:31.410 --> 06:49:36.340
Boardroom: Hello, my name's Todd Darling, I'm in District 3. Technology is not neutral.

2574
06:49:36.520 --> 06:49:38.909
Boardroom: And this is not taking place in a vacuum.

2575
06:49:39.570 --> 06:49:45.460
Boardroom: Big data has become the politically aligned handmaiden of the Trump regime.

2576
06:49:45.770 --> 06:49:47.930
Boardroom: This contract will help them.

2577
06:49:48.290 --> 06:49:59.650
Boardroom: Flock, Meta, Google, Palantir, Y Combinator, and Dreesen Horowitz et al. decided that their growth potential resides with defense contracts and surveillance.

2578
06:50:00.090 --> 06:50:05.599
Boardroom: They're making… they've departed from making useful gadgets to stuff that kills people.

2579
06:50:05.830 --> 06:50:10.480
Boardroom: Surveils the population, or murders them when they get angry about it.

2580
06:50:11.040 --> 06:50:14.200
Boardroom: As we've seen in Minneapolis and other places.

2581
06:50:14.440 --> 06:50:18.280
Boardroom: In 2026, the utility of this technology

2582
06:50:19.150 --> 06:50:31.080

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Boardroom: is far out… the dangers of this technology far outweighs the marginal use of it. Drones are cheap enough that if the fire department needs one, they can get one.

2583
06:50:31.650 --> 06:50:35.960
Boardroom: Trump's… Trump surveillance, someone was done. Thanks for your comment.

2584
06:50:37.000 --> 06:50:46.750
Boardroom: Give me 30 seconds, somebody. Sorry, I… you're supposed to do this before. You're gonna give comment? You're gonna give your time? Okay. Thank you very much, I appreciate that.

2585
06:50:51.370 --> 06:50:55.320
Boardroom: Trump's surveillance state does not need any more help from us.

2586
06:50:55.950 --> 06:51:10.960
Boardroom: The real perpetrators are in Silicon Valley and Washington, D.C. As a council, we're asking you to defend Berkeley, not join the perpetrators. Get rid of Flock, do not sign this contract. We do not need more surveillance.

2587
06:51:12.510 --> 06:51:13.590
Boardroom: Thank you.

2588
06:51:18.020 --> 06:51:18.900
Boardroom: Hello.

2589
06:51:19.060 --> 06:51:27.630
Boardroom: Let's see, learning about the existence of BPD's real-time information center has been nothing but appalling.

2590
06:51:28.060 --> 06:51:32.650
Boardroom: Community video streams fed into the alleged real-time information center system.

2591
06:51:33.040 --> 06:51:40.229
Boardroom: Yet there is no mention of any auditing policy that will take place when data breaches take place via third-party platforms.

2592
06:51:40.380 --> 06:51:51.670

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Boardroom: Despite this, Flock has historically proven integration paths with quote-unquote community streams, like Amazon Ring cameras, further stacking the layers of this data-sharing nightmare.

2593
06:51:52.230 --> 06:51:59.579
Boardroom: There are private… these are private corporations that have the provision to collaborate without explicit city approval.

2594
06:51:59.710 --> 06:52:14.669
Boardroom: Increased reliance on Flock will make it easier for Flock to deploy new technologies and collaborations without Council approval, and frankly, BPD knows this because of their flimsy plea to avoid door-to-door canvassing in order to obtain this footage.

2595
06:52:15.050 --> 06:52:18.069
Boardroom: Open data sharing. This is a slippery slope.

2596
06:52:19.710 --> 06:52:21.710
Boardroom: Thank you.

2597
06:52:24.270 --> 06:52:38.819
Boardroom: We don't only have ICE to worry about using these drones and surveillance. In the beginning of the meeting, we had multiple commenters pointing out the issues with BPD, whose excessive brutality resulted in a well-known 2015 civil rights lawsuit, and who are currently engaging in well-documented racial profiling. The chief.

2598
06:52:38.820 --> 06:52:52.409
Boardroom: without Council approval, unilaterally struck out more than two-thirds of the current use of force policy in December, including the requirement to attempt de-escalation before employing force. The so-called Public Safety Subcommittee wants to authorize BPD to use chemical weapons, including tear gas.

2599
06:52:52.410 --> 06:53:04.090
Boardroom: Our PAB is gutted and has no enforcement capability. The independent policy review commissioned by the PAB from the Berkeley Criminal Justice and Law Center also showed the PPD's claims about the efficacy of this technology are false. I'll quote.

2600
06:53:04.090 --> 06:53:13.319
Boardroom: Claims that drones as first responding technologies improve safety, response time, and staffing efficiencies advanced by vendors and captured in the department's policies remain largely unsubstantiated.

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2601
06:53:13.320 --> 06:53:22.240
Boardroom: Whose safety are you actually considering? Because it is not ours. This Berkeley exceptionalism of, it can't happen here is why this is happening here, and why it keeps happening everywhere.

2602
06:53:22.780 --> 06:53:25.280
Boardroom: Thank you.

2603
06:53:28.380 --> 06:53:32.219
Boardroom: You're giving your… okay, your minute.

2604
06:53:32.470 --> 06:53:41.750
Boardroom: Good evening, my name is Brenda Grisham. I am the principal… one of the principal officers of SAFE, the recall of Pamela Price. I'm here as a mother…

2605
06:53:41.830 --> 06:53:59.219
Boardroom: who has lost her son to gun violence in Oakland. I'm an advocate for public safety. I have a daughter and three grandchildren that live right here in Berkeley, and I don't have any confidence that any of you care about the lives of my African American family. All I've heard is what Flock has not done.

2606
06:53:59.220 --> 06:54:16.020
Boardroom: I haven't heard any of you tell the positive side of Flock. The young lady that was trafficked to another city and flocked was there to save her life. The families of people that have mental illnesses that have been brought back home because of flock. The guns that have been taken off the street because of flock.

2607
06:54:16.020 --> 06:54:17.799
Boardroom: And none of you can tell

2608
06:54:17.800 --> 06:54:22.160
Boardroom: Many of us, how many people have been deported because of flocks?

2609
06:54:22.250 --> 06:54:32.729
Boardroom: You can't tell us that. All there is are the stories of what Flock has done wrong. I haven't heard anything that Flock has done right. And then, to top it off.

2610
06:54:32.760 --> 06:54:49.639

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Boardroom: The men and women sitting right here that come to work here every single day, the fire department and the police officers, their lives are being disrespected. They have families to go home to, just like everybody else. They know better than we do what they need to be safe. There needs to be a balance, there needs to be a coming together.

2611
06:54:49.640 --> 06:54:55.880
Boardroom: To make sure that all residents, not just the immigrants, the immigrants and the residents, you serve all of them.

2612
06:54:55.880 --> 06:55:03.890
Boardroom: And you need to do just that. Don't make a hasty decision, because you have a room full of people that don't have anything positive to say, because there's a lot positive.

2613
06:55:03.890 --> 06:55:13.690
Boardroom: about flock, and there's no perfect system. Every system out there has a flaw. And if you move to another system, somebody ain't gonna agree with that either. Thank you.

2614
06:55:14.880 --> 06:55:27.790
Boardroom: Hey, folks, no booing, she's entitled to her opinion. There's… okay, a minute for this person from here. Okay, go ahead.

2615
06:55:28.100 --> 06:55:33.639
Boardroom: I'm also with Brenda. We did the recall of, Pamela Price.

2616
06:55:33.870 --> 06:55:41.579
Boardroom: Sheng Tao, corrupt Sheng Tao, 95 years in prison she's facing, and I've been fighting.

2617
06:55:41.670 --> 06:55:55.110
Boardroom: for public safety for years, from San Jose, and yes, last week, I was at Richmond, when they made the decision to continue the flock camera after they paused it. And the reason is because

2618
06:55:55.180 --> 06:56:04.149
Boardroom: There, in Richmond, there were 274 violent criminals that were being taken off the streets, and one of them

2619
06:56:04.530 --> 06:56:09.350
Boardroom: Actually, Was kidnapping a young lady.

2620

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06:56:10.040 --> 06:56:11.040
Boardroom: They…

2621
06:56:11.220 --> 06:56:22.929
Boardroom: had her in a car, her phone was on, it was pinging, and they needed the flock camera to rescue her. But they had turned it off last November, so they couldn't rescue her.

2622
06:56:23.260 --> 06:56:31.370
Boardroom: Many cases like this, violent criminals were victimizing people, so they decided to put safety

2623
06:56:31.800 --> 06:56:39.300
Boardroom: Guard rails in place so that because we could be safe and still have sanctuary policies.

2624
06:56:39.310 --> 06:56:56.420
Boardroom: No immigrants were deported, no residents were deported out of Richmond, nor Burke, nor Oakland. And that's why the City Council in Oakland voted 71 to continue the Fox safety cameras. And let me tell you, Mountain View might have paused their program.

2625
06:56:56.580 --> 06:57:06.709
Boardroom: Other cities, Ventura might have passed their program, maybe 40, 50 cities have passed their program, but 6,000-plus communities continue

2626
06:57:06.880 --> 06:57:08.120
Boardroom: To you at the fuck?

2627
06:57:08.300 --> 06:57:13.569
Boardroom: camera system, and for good reason! So, that's not… in case you guys fail bad!

2628
06:57:13.790 --> 06:57:36.790
Boardroom: 99 plus percent of communities choose to use Flock for public safety, because it provides a vital service, it saves lives, it solves crimes, shootings, homicides, violent crimes. Thank you. Don't boo him, he's entitled to speak to his opinions. We don't allow booing. Go ahead.

2629
06:57:37.200 --> 06:57:38.060
Boardroom: Shut up.

2630

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06:57:38.470 --> 06:57:45.960
Boardroom: I have a minute from somebody in the audience. Sorry, thank you. Hi, council people.

2631
06:57:45.960 --> 06:58:05.249
Boardroom: I would like to start with, some quick rebuttals to what was just said. I mean, it's almost not even worth my time to rebut these points because of the extreme paucity of, people who actually support flopposity, meaning lack. There is a lack of them. They have brought more signs than there are people. It has been over

2632
06:58:05.250 --> 06:58:11.200
Boardroom: It's overwhelming that the community does not support this flock contract. Absolutely overwhelming.

2633
06:58:12.290 --> 06:58:18.339
Boardroom: I'd also like to take issue with this idea that it's either the community or immigrants.

2634
06:58:18.690 --> 06:58:21.869
Boardroom: Immigrants are our community.

2635
06:58:24.030 --> 06:58:33.480
Boardroom: I'd also like to respond to something that the police department said. They said that these cameras pay for themselves because they come out of the existing department budget.

2636
06:58:34.060 --> 06:58:42.819
Boardroom: Now, how is that paying for itself? I think that's us paying them, is it not? Is that not how tax dollars work? Is this not on our dime?

2637
06:58:43.140 --> 06:58:58.080
Boardroom: I get that it's within their budget, but the Berkeley Police Department has been and continues to really dominate our city budget, so the idea that these cameras aren't gonna cost us anything because it's coming out of the police budget, the police budget comes out of our pockets.

2638
06:58:59.320 --> 06:59:05.540
Boardroom: I would also like to respond to, I believe it was the chief who said, oh, crime doesn't respect boundaries.

2639
06:59:05.980 --> 06:59:12.390

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Boardroom: We need these cameras because crime doesn't respect boundaries. You know what else doesn't respect a boundary? A FISA warrant.

2640
06:59:12.700 --> 06:59:13.639
Boardroom: And if you

2641
06:59:13.690 --> 06:59:33.639
Boardroom: collect this data, you can't protect it. There is no way to protect this data from a FISA warrant. Any data you collect can be used by the federal government. It just can be. And this idea that we're speculating wildly, that no one has been deported because of flock, look at what is going on in this country. Somebody was just snatched in SFO.

2642
06:59:33.640 --> 06:59:46.669
Boardroom: ISIS roaming our streets, and Berkeley as a sanctuary city will be a target, so any data that we are collecting on our community is data that will be accessed by the federal government, and we will not have recourse. Thank you. Thank you.

2643
06:59:54.380 --> 07:00:09.819
Boardroom: Hi, you know, you opened this meeting with the Holocaust Remembrance thing, and it just made me think about how the Nazis would have loved Flock. And I really wonder what kind of commemoration we're gonna have in 50 years after you do this.

2644
07:00:09.820 --> 07:00:16.819
Boardroom: I want to bring attention to this whistle on my keychain and let you know why I have it, because I know that at any moment.

2645
07:00:16.820 --> 07:00:41.700
Boardroom: Armed, masked thugs are gonna come into our community with impunity and kidnap and terrorize our neighbors, and they are gonna know exactly where to go and when because of flock, and because of, if you pass it, your support for this tonight. So please do the right thing. We are here to say, overwhelmingly, do not stab us in the back so that ICE can shoot us in the face.

2646
07:00:42.180 --> 07:00:50.810
Boardroom: How clear do we have to make it for you? Please do the right thing tonight. Thank you.

2647
07:00:52.400 --> 07:00:53.710
Boardroom: Thank you.

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

2648
07:00:57.530 --> 07:01:12.999
Boardroom: Greetings, my name is Ian Hart, I live in District 3. I would also like to shine some light on the moral question and the moral stand that we're asking you to take tonight. I want you to use your imagination

2649
07:01:14.570 --> 07:01:23.669
Boardroom: Imagine that it's the year 1935 or 1936, and your constituents have come here to say, we don't want you to…

2650
07:01:24.220 --> 07:01:29.439
Boardroom: enter into a contract with IBM or Kodak. We know that they make great punch cards.

2651
07:01:29.630 --> 07:01:31.639
Boardroom: We know that they make great film.

2652
07:01:33.070 --> 07:01:34.689
Boardroom: But…

2653
07:01:35.280 --> 07:01:43.190
Boardroom: They're also propping up the Nazi regime. They're using those punch cards to enforce the Nuremberg Laws, they're using that film.

2654
07:01:43.330 --> 07:01:47.039
Boardroom: Which is made with forced labor and labor camps.

2655
07:01:47.520 --> 07:01:49.130
Boardroom: To carry out their agenda.

2656
07:01:49.940 --> 07:01:53.820
Boardroom: And so, I want you to imagine that…

2657
07:01:54.370 --> 07:01:57.039
Boardroom: Maybe city councils across the country.

2658
07:01:58.420 --> 07:02:05.370
Boardroom: divested from those companies, and that we didn't have to commemorate the Holocaust. Thanks. Thank you.

2659
07:02:10.270 --> 07:02:11.480
Boardroom: Good evening.

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2660
07:02:11.760 --> 07:02:15.670
Boardroom: My name is Iida, District 3.

2661
07:02:16.600 --> 07:02:19.130
Boardroom: I'll quote Ben Franklin again.

2662
07:02:19.330 --> 07:02:35.619
Boardroom: Those who would give up essential liberty to purchase a little temporary safety deserve neither liberty nor safety. Have we learned nothing in the past 25 years since the Patriot Act unleashed the eroding of our civil liberties?

2663
07:02:35.810 --> 07:02:51.729
Boardroom: Here in Berkeley, as you can see, we should and do know better. Now is absolutely not the time to expand surveillance powers. Some of the contractual muscle flexing suggestions laid out in the supplementals

2664
07:02:52.080 --> 07:03:02.939
Boardroom: Might sound reasonable in the world where the rule of law is followed and respected, but the past 14 months of terror inflicted on us by the federal government

2665
07:03:02.940 --> 07:03:14.680
Boardroom: have shown us that we absolutely cannot rely on the rule of law to protect us at this time. I implore you to consider the dire nature of current events. Thank you. Thanks so much.

2666
07:03:20.770 --> 07:03:34.969
Boardroom: Good evening, my name is Jason Martins. I just want to talk about the idea of a budget as a moral document. And we don't have choices, we can't make every choice. And we are choosing this

2667
07:03:35.180 --> 07:03:46.000
Boardroom: Instead of something else. Live Free is a great example of an organization that has proven to reduce violence in our community, and they don't have funding right now.

2668
07:03:46.560 --> 07:03:53.330
Boardroom: But in a $30 million budget deficit scenario, we're gonna spend money on surveillance cameras.

2669

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07:03:53.700 --> 07:04:00.220
Boardroom: What kind of morals and what kind of values are we demonstrating? Thank you. Thank you.

2670
07:04:04.240 --> 07:04:07.689
Boardroom: Madam Mayor, Council, I'm conflicted.

2671
07:04:08.310 --> 07:04:11.260
Boardroom: I stayed… stood here as a student today.

2672
07:04:11.460 --> 07:04:17.870
Boardroom: And I heard many people of opposite color talk about the plight of black people, or Latino people.

2673
07:04:17.970 --> 07:04:22.219
Boardroom: Somebody even said Black Lives Matter, somebody just said 1935.

2674
07:04:22.570 --> 07:04:29.719
Boardroom: I can remember in 1935, or around that time, our people being hung. I wouldn't know that unless it was documented.

2675
07:04:29.900 --> 07:04:37.859
Boardroom: Even in your chambers, when I came to the aid of a black woman to defuse the situation, I was accused of being threatened.

2676
07:04:38.510 --> 07:04:41.139
Boardroom: Or a threat. Maybe I was.

2677
07:04:41.330 --> 07:04:42.720
Boardroom: Maybe I wasn't.

2678
07:04:43.290 --> 07:04:59.039
Boardroom: If it's not for documentation for young black men as well in today's society, we would be doing 25 to Life to prove our innocence. I am a crisis responder. I respond to scenes when people are dead.

2679
07:04:59.570 --> 07:05:12.669
Boardroom: I say many different people, 3 grandkids and a grandmother out of a fire. They would not know that, they would think I'm a threat because I'm a black man. Thank you. So we need some type of documentation to save lives. Thanks for your comment.

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2680
07:05:14.450 --> 07:05:15.740
Boardroom: Yeah, it's fine, huh?

2681
07:05:16.070 --> 07:05:29.859
Boardroom: Good evening, my name is Jeanette, and I'm a lifelong resident, homeowner, and voter in Berkeley District 2. Are those of you considering voting for these cameras and this contract knowledgeable of history?

2682
07:05:30.060 --> 07:05:42.699
Boardroom: Do you know about the McCarthy era? COINTELPRO? How the information gathered is used to kill and destroy people, and destroy dissent and organizing efforts? Do you have historical amnesia?

2683
07:05:42.840 --> 07:05:52.519
Boardroom: Did you forget that when the government unlawfully rounded up Japanese Americans and put them in concentration camps, that they used their intel to easily locate them?

2684
07:05:52.720 --> 07:06:02.849
Boardroom: It's not possible to be a sanctuary city while contracting with Flock. That's an oxymoron. If you vote for this, you are carrying out Trump's agenda.

2685
07:06:02.850 --> 07:06:07.300
Boardroom: You say the flock cameras and contractor are for safety, not safety for immigrants.

2686
07:06:07.300 --> 07:06:24.120
Boardroom: Not safety for women seeking healthcare, not safety for trans people, not safety for protesters or organizers. These cameras put us, the community, in danger. Who wants these cameras? The police? Outsiders? They don't live in Berkeley, and they're not gonna vote for you. Thank you.

2687
07:06:31.360 --> 07:06:35.720
Boardroom: Hello, Council. You opened this meeting talking about Holocaust remembrance.

2688
07:06:36.010 --> 07:06:41.109
Boardroom: Do you realize that this tool is exactly what supports making a Holocaust happen?

2689

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07:06:42.070 --> 07:06:49.670
Boardroom: A network of cameras tracking people that government wants to find. This is not hypothetical, this is happening right now.

2690
07:06:50.030 --> 07:07:07.209
Boardroom: And we kid ourselves that we are putting real safeguards in place. 75,000, 1 million, it does not matter. FISA warrants. The government can, through a secret court, get this information at any time. We will not know. Those safeguards don't matter at all. They do nothing.

2691
07:07:08.270 --> 07:07:14.270
Boardroom: Consider Miramar Martinez, a schoolteacher ICE shot 5 times. In her court case, DHS

2692
07:07:14.510 --> 07:07:32.460
Boardroom: moved to suppress two things. The agent's texts bragging about shooting her, and, drum roll, 30 days of FLOC surveillance footage on her. She was targeted using Flock. Data sharing amendments, like the one Berkeley added, would have done nothing to prevent this. Thank you.

2693
07:07:39.610 --> 07:07:52.280
Boardroom: Hello, my name is Benjamin. I live in the Elmwood neighborhood of District 8. I urge you to discontinue Berkeley Berkeley's relationship with these surveillance technologies, and certainly not expand their use.

2694
07:07:52.350 --> 07:07:59.740
Boardroom: I do not think that the loss of liberty and privacy required by these systems are worth any potential benefit that they may provide.

2695
07:08:00.030 --> 07:08:06.470
Boardroom: There are many ways to improve a community's safety that do not rely on surrendering fundamental freedoms.

2696
07:08:06.670 --> 07:08:17.620
Boardroom: I would also like to highlight that the best way to avoid abuse or misuse of data, intentional or not, is to simply not collect it in the first place. Thank you. Thank you.

2697
07:08:25.060 --> 07:08:38.810
Boardroom: All right, Councilmembers, I just… you know, so we've established that you're not in control of… that we're not going to be in control of the data. Whether it's due to bad actors within the department, outside the department, hackers, federal agents.

2698

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07:08:39.150 --> 07:08:46.440
Boardroom: We're not gonna control this data, so whatever penalties… you're looking at me funny, but maybe you need to put your head in the articles.

2699
07:08:46.600 --> 07:08:49.999
Boardroom: That, that we… I can't believe you're looking at me like that.

2700
07:08:50.530 --> 07:08:56.250
Boardroom: Are you, are you unclear about the concept that I'm distracted.

2701
07:08:57.360 --> 07:09:11.560
Boardroom: Pause your time! Keep going, keep going. He's just reading your sign here, go ahead. He's not looking at you, Andrea, go ahead, your time. So the fact is that…

2702
07:09:11.980 --> 07:09:25.930
Boardroom: You're also willingly entering into a contract with a company that's ethically, not credible. And so, when the city council member says we can swiftly exit a contract.

2703
07:09:26.050 --> 07:09:27.859
Boardroom: How many violations would be enough?

2704
07:09:28.450 --> 07:09:34.390
Boardroom: people will have to suffer before you exit that contract. You're walking in, it's like, it's like…

2705
07:09:34.630 --> 07:09:39.330
Boardroom: It's like an abusive relationship, you got beat up by him, why are you going back?

2706
07:09:40.010 --> 07:09:47.460
Boardroom: I also want to tell you this, I don't know if you know this, but public safety, I wish, I wish that the police would actually

2707
07:09:47.580 --> 07:09:54.339
Boardroom: Ask us, what is the number one safety threat right now? In a city with declining crime rates.

2708
07:09:54.680 --> 07:09:57.880
Boardroom: That's not what's burning on our minds!

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2709
07:09:58.580 --> 07:10:16.150
Boardroom: We're worried about the fascists. We're worried about the federal government. And you stand there, stone-faced, like you don't hear us, like you don't understand what we're saying. But what I'm trying to tell you is that, whether you like it or not, you are leaders in a city filled with the lunatic left.

2710
07:10:16.260 --> 07:10:22.190
Boardroom: Filled with… with domestic terrorists. People who are willing to…

2711
07:10:22.270 --> 07:10:31.599
Boardroom: Give a meal to a hungry person. Somebody who maybe dresses all in black, you know, and I guess that makes… that qualifies us for Antifa.

2712
07:10:31.660 --> 07:10:35.829
Boardroom: I'm joking, but I'm serious. Can I have one more minute, please?

2713
07:10:35.830 --> 07:10:52.679
Boardroom: What I'm trying to tell you is that… okay. That was in the last one. Yeah, over here. Go ahead. There's one over here. What I'm trying to tell you, I don't know if you guys are even aware of what's happening in this town about people, networks of responders, people who are providing support.

2714
07:10:52.720 --> 07:11:04.349
Boardroom: To undocumented people who are worrying about what's going on for day laborers, for childcare workers, that we care.

2715
07:11:04.530 --> 07:11:08.039
Boardroom: But by doing that, caring is gonna get us targeted.

2716
07:11:08.170 --> 07:11:20.889
Boardroom: That flock data will be tracking where we go to school, where we go, who we met, who we talked to. Oh, well, does that number connect with that number? Connects with this number? Oh, well, that must be Antifa.

2717
07:11:20.900 --> 07:11:31.440
Boardroom: That's what's happening here. And we perceive that as a public safety threat. And you sit there stone-faced, like you don't understand

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2718
07:11:31.620 --> 07:11:50.340
Boardroom: And that, in my mind, it really sort of disqualifies you for the jobs that you have if you're not able to understand that this whole night and this whole movement is about getting you to shift your understanding of what the greatest threat to the public safety is. Thanks, Andrew. Thank you.

2719
07:12:01.360 --> 07:12:12.819
Boardroom: Alright, so we had… you all voted and were… there were lots of, kudos to, I'm forgetting her name now, who's gonna be the interim director, Kathy?

2720
07:12:13.390 --> 07:12:26.599
Boardroom: Kathy Lee, thank you, of the Police Accountability Board. So now you have an opportunity to show your support for our Rockin' Police Accountability Board, who did such deep due diligence

2721
07:12:27.220 --> 07:12:51.540
Boardroom: where the city manager, the city attorneys were, and they were just, like, waving this agreement through, when they, in 24 hours, identified 30 issues. There's likely more, because they didn't have time. So, this is an opportunity for you to get behind your commitment, which all of you said when you fired the director, that you do believe in police accountability and police oversight.

2722
07:12:51.540 --> 07:12:53.710
Boardroom: What we know is that…

2723
07:12:53.750 --> 07:13:07.969
Boardroom: Poverty is criminogenic. We need to get at the source of what causes crime, which is poverty. So invest in community well-being instead of over $95 million into the police department this year. Thanks.

2724
07:13:14.100 --> 07:13:31.330
Boardroom: Any contract with Flock is inconsistent with our status as a sanctuary city. We can't have it both ways. If you house an abused woman, but you give her abuser's friend a key to pass on to the abuser, which gives him access.

2725
07:13:31.410 --> 07:13:36.360
Boardroom: How have you protected her? Flock contracts have been canceled.

2726
07:13:36.630 --> 07:13:37.740

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Boardroom: Elsewhere?

2727
07:13:37.920 --> 07:13:46.260
Boardroom: Because they violate these contracts. So what good does it do to come up with all these amendments with safeguards in them if

2728
07:13:46.670 --> 07:13:49.700
Boardroom: They are likely to violate them.

2729
07:13:50.290 --> 07:14:01.499
Boardroom: Would you go into business with someone who had a history of embezzling from their previous partners, business partners? Would you trust them?

2730
07:14:01.760 --> 07:14:19.780
Boardroom: So why would we trust Flock? I mean, the police do need, public safety tools, they need the correct tools. Are these the correct tools at this point in time? And I have another minute. Okay. Are these the correct tools at this point in time?

2731
07:14:19.780 --> 07:14:27.480
Boardroom: Safety is important. I don't think anyone disputes that, but not at the cost of not our civil rights.

2732
07:14:27.790 --> 07:14:31.109
Boardroom: Not the cause of potentially doing harm.

2733
07:14:32.000 --> 07:14:36.949
Boardroom: And serious harm, and has, and earlier, the social worker mentioned.

2734
07:14:37.330 --> 07:14:48.449
Boardroom: There's also psychological harm from all of this. There's also terror among people in the community who feel that they are particularly at risk and vulnerable.

2735
07:14:48.590 --> 07:14:51.860
Boardroom: And as we know from Alex Pratti and Renee Goode.

2736
07:14:51.970 --> 07:14:55.120
Boardroom: anybody actually is at risk. Thank you.

2737

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

07:14:57.070 --> 07:14:58.590
Boardroom: Thank you.

2738
07:15:02.730 --> 07:15:04.960
Boardroom: I think, I think I have 2 minutes.

2739
07:15:05.130 --> 07:15:10.450
Boardroom: Anyone else want to give me a minute, if you're not speaking? Okay, hold on a second.

2740
07:15:10.490 --> 07:15:28.510
Boardroom: Okay. Do you need just 2? I'm gonna take 3 if I can get it. Okay, hold on, hold on one second, let me keep track of it, so this person in the back… and thank you for the four folks… You already gave a minute in the front. Okay, so this person here, and that person on the wall. Okay, thank you. So you'll have 4.

2741
07:15:29.390 --> 07:15:30.619
Boardroom: Thank you.

2742
07:15:31.450 --> 07:15:34.360
Boardroom: Hello, Mayor and Council. My name is Nathan Meisel.

2743
07:15:34.890 --> 07:15:47.569
Boardroom: I am a Rent Board Commissioner, I'm speaking in visual capacity, I am the former vice chair of the PAB, I was a member of the Front Partnership Policing Task Force, and I was the chair of the City's Reimagining Public Safety Task Force.

2744
07:15:47.930 --> 07:15:52.750
Boardroom: Today, as Vice Chair Wilson, dimensions.

2745
07:15:53.230 --> 07:15:57.779
Boardroom: This is the most significant expansion of surveillance in our city's history.

2746
07:15:58.080 --> 07:16:03.220
Boardroom: And I won't bury the lead here. I am supporting the Mera Supplemental, which, while flawed.

2747
07:16:03.920 --> 07:16:10.849
Boardroom: I appreciate that it reflects on the inherent problem with flock safety.

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2748
07:16:11.840 --> 07:16:28.919
Boardroom: Here are the facts as I know them. We have a department that ignores oversight at every turn, undermines oversight actively. We have a private company well known for violating legal and contractual agreements, and the federal government hell-bent on attacking our immigrant community with any surveillance tool we can get a hands-on.

2749
07:16:29.950 --> 07:16:37.189
Boardroom: Originally, this stuff was supposed to be a pilot, but I guess now it's permanent, advanced surveillance that we must have all the time.

2750
07:16:37.540 --> 07:16:48.050
Boardroom: Again, this is a chief who ignores PAB investigatory subpoenas. This is the chief who unlawfully tried to weaken the use of force policy just last week. This is the chief

2751
07:16:48.050 --> 07:17:00.360
Boardroom: who was, excuse me, wasn't accused, was found to have violated by an outside law firm to say sexual harassment policy, was accused by four BPD officers of making advances on younger officers.

2752
07:17:01.700 --> 07:17:04.430
Boardroom: Surely, there is someone else we could have.

2753
07:17:05.580 --> 07:17:08.129
Boardroom: Before we hand over a mass surveillance tool.

2754
07:17:09.300 --> 07:17:10.719
Boardroom: Now, returning the flock.

2755
07:17:11.230 --> 07:17:14.079
Boardroom: Flock's own chief legal officer says.

2756
07:17:14.190 --> 07:17:29.399
Boardroom: that they admit about… they admit the abuse. They admit that their data has been accessed in ways that cities have written into contracts they shouldn't be able to access. They just say, well, now our violations will be logged better. That's the expectation we can have as a city. Violations will be logged.

2757
07:17:31.290 --> 07:17:48.680

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Boardroom: The truth of the matter is, if Flock was a person, BPD would be sending out a Nixle alert warning the community that a dangerous criminal was on the loose, and had committed crimes across the state, and that they were doing everything in their power to keep us safe. But since Flock is a mass surveillance company.

2758
07:17:48.890 --> 07:17:54.429
Boardroom: They're okay with it. Apparently, the department is fine with criminality when it serves them.

2759
07:17:55.860 --> 07:18:12.239
Boardroom: And the truth of the matter is this, as well. I heard some of the lawyers talking earlier, I'm a lowly 2L, but I can say this much. Lawyers should know the limits of their powers. No magical contractual terms are going to prevent Flock from taking our data and using it as they wish.

2760
07:18:12.320 --> 07:18:21.749
Boardroom: They've done it to dozens of cities. What makes you think you're so special? We have the perfect attorneys, the perfect contract, we don't. It will not protect us.

2761
07:18:25.980 --> 07:18:35.529
Boardroom: Let's go quickly to the data. I got one minute. This department says, bringing this technology will fix all the crime. Actually, based on their own data, it solves about

2762
07:18:35.670 --> 07:18:38.519
Boardroom: 0.59% of crime in Berkeley.

2763
07:18:38.680 --> 07:18:42.670
Boardroom: 0.59%. We are willing to sell out our immigrant community

2764
07:18:42.940 --> 07:18:58.949
Boardroom: Sell out our values as a sanctuary city. Sell out all the moral compass that we used to have as a city for, supposedly, by their own numbers, a .59% reduction in crime. Those are the facts, folks. And sadly.

2765
07:19:00.330 --> 07:19:19.259
Boardroom: We seem to be headed in that direction, despite the fact that we were the first city in this nation to pass a sanctuary Ordinance. We were the first city in this nation with a police accountability board with the powers to investigate police misconduct. We had many good

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firsts. We were the first city to get daylighting on our streets done to protect folks as they walk and bike on our streets.

2766
07:19:19.260 --> 07:19:20.740
Boardroom: These are positive things!

2767
07:19:21.060 --> 07:19:24.530
Boardroom: Let us not be… Let's remember those first.

2768
07:19:25.970 --> 07:19:38.970
Boardroom: Let's remember those first, because ultimately, whether it's now, next week, or November, accountability will return to this city, and I hope tonight is the night you make the right vote. It's up to you guys going back to me, it's up to you!

2769
07:19:48.920 --> 07:19:52.770
Boardroom: Hi, my name's Gordon Gilmore, can you hear me?

2770
07:19:53.600 --> 07:20:01.740
Boardroom: I'm with the Berkeley Outreach Coalition, and I just, well, most of what I wanted to say tonight has already been said.

2771
07:20:01.950 --> 07:20:08.780
Boardroom: But I wanted to follow a theme that Verena brought up at the very beginning, and Carol just brought up again recently,

2772
07:20:10.560 --> 07:20:13.630
Boardroom: Let me start by saying that it's recently seemed like

2773
07:20:13.870 --> 07:20:28.539
Boardroom: We've been playing a game of dystopian bingo. First, we got less lethal weapons, now we got drones flying off from the cop shop, and now we got AI surveillance that's accessible to ICE and military equipment added into the equation.

2774
07:20:29.680 --> 07:20:33.390
Boardroom: This all equals an assault on the psyche of the city.

2775
07:20:33.810 --> 07:20:43.539
Boardroom: Choosing again and again to direct funds from support of our community to bolstering a perpetual undercurrent of fear, to coerce compliance and dampen free speech.

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2776
07:20:44.830 --> 07:20:55.959
Boardroom: We, as the public, should not need to feel like we need to be on perpetual defense against decisions of our City Council. Call for resolutions for community care, not the power of abortion. Thanks.

2777
07:21:03.350 --> 07:21:09.000
Boardroom: Hi, folks. The Israelization… of the U.S.

2778
07:21:09.220 --> 07:21:10.610
Boardroom: Includes…

2779
07:21:10.990 --> 07:21:25.140
Boardroom: what happens inside the Zionist entity, which is a very highly surveilled, many, many cameras everywhere, cameras watching cameras. Yet here in this country.

2780
07:21:25.510 --> 07:21:29.210
Boardroom: anybody who supports Palestine is under…

2781
07:21:29.470 --> 07:21:38.810
Boardroom: surveillance is under the gun. People look at them, funny, there's something wrong with us. We're terrorist supporters. We support…

2782
07:21:41.260 --> 07:21:54.780
Boardroom: what we support, and is considered wrong. And the Israelization of America enforces that, with the reality of cameras everywhere, watching people everywhere.

2783
07:21:55.040 --> 07:21:57.840
Boardroom: And flock just contributes to that.

2784
07:21:58.210 --> 07:21:59.640
Boardroom: And we don't need that.

2785
07:22:00.220 --> 07:22:02.800
Boardroom: any more Israelization of the U.S?

2786
07:22:03.910 --> 07:22:06.300
Boardroom: Thank you.

2787
07:22:11.880 --> 07:22:25.939

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Boardroom: I think I have a few minutes from the crowd one. I see. Hold on, wait for just a second. You already have, you already gave your minute. You can't give a minute again, sir, in the front. Okay. Go ahead. So, one minute from you.

2788
07:22:26.310 --> 07:22:41.610
Boardroom: Hold on, I can't… You already gave your minute, this person raised their hand. You would like to give a minute. Okay, you have 2 minutes extra, so that's 3. Okay.

2789
07:22:44.990 --> 07:22:56.989
Boardroom: Time's running, go ahead. Okay, well, thank you, City Council members, thank you for those who are looking and not texting. I appreciate your attention to this grave matter.

2790
07:22:57.420 --> 07:23:07.140
Boardroom: You know, I… so my name's Aiden, Aiden Hill. I live in District 7. If I was a council member for District 7, I would simply say no.

2791
07:23:07.330 --> 07:23:09.290
Boardroom: Why waste the people's time?

2792
07:23:09.470 --> 07:23:18.490
Boardroom: Why not work on something to help the community? I want to say thank you to the people who are taking the time to stay here, even if it is till 1AM.

2793
07:23:18.570 --> 07:23:34.710
Boardroom: We're all risking something, and you should know what that is. We're all being recorded right now. So we all have privilege. You understand that. The people that are here have the ability to be seen on that screen, to be watched by MAGA clones or whoever's watching.

2794
07:23:35.130 --> 07:23:39.530
Boardroom: You're putting your community at risk by even debating this topic.

2795
07:23:41.550 --> 07:23:57.339
Boardroom: I hope you do sit with that. I hope you do realize that Flock is already deployed across Berkeley. In District 7, it's right on Telegraph and Bancroft, a well-known major transportation hub that takes our sanctuary students into campus.

2796

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07:23:57.450 --> 07:24:02.009
Boardroom: It's also on Durant Avenue, which is a part of our economic corridor.

2797
07:24:02.670 --> 07:24:08.289
Boardroom: You know, all of this seems to just be some type of way to justify…

2798
07:24:08.900 --> 07:24:12.199
Boardroom: Predictive policing is what I can think of it.

2799
07:24:12.380 --> 07:24:21.899
Boardroom: You don't want to address the systems that place people in a form of crime-bearing behavior. You don't want to give water fountains to everyone

2800
07:24:21.900 --> 07:24:36.869
Boardroom: To make sure that they're hydrated. You don't want to give morning coffees to people so they're not angry. You don't want to give sleeping bags. You don't want to give affordable housing. We only have 20% in each building. But we can have a 22-story high-rise at Anna Head Hall.

2801
07:24:38.110 --> 07:24:44.559
Boardroom: And are the people who are doing this crime going to get the benefits of these resources?

2802
07:24:45.840 --> 07:24:47.490
Boardroom: You just want to watch them.

2803
07:24:48.230 --> 07:24:49.640
Boardroom: While they suffer.

2804
07:24:50.000 --> 07:24:53.349
Boardroom: Because crime is a symptom of something that's wrong.

2805
07:24:53.930 --> 07:24:54.830
Boardroom: And…

2806
07:24:55.470 --> 07:25:14.220
Boardroom: And as first responders, as representatives, recognize the duty to your people means the duty for them to feel safe, and the only way people can feel safe is if their bodies feel safe. That means making

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sure that people get enough sleep. That means making sure that people get enough food to eat.

2807
07:25:14.270 --> 07:25:29.620
Boardroom: All of our time, and I want to be clear, all of our time needs to be put towards something positive for this community. FOC is not the answer. The Police Accountability Board gave you a wonderful, you know, everyone here is saying the same thing.

2808
07:25:29.880 --> 07:25:34.990
Boardroom: Delay this opinion. If you must continue, delay it until another night.

2809
07:25:35.140 --> 07:25:42.130
Boardroom: Let us have ICE leave San Francisco first, before you give them Flock security cameras.

2810
07:25:42.480 --> 07:25:44.200
Boardroom: At the very least, thank you.

2811
07:25:50.990 --> 07:25:52.610
Boardroom: Hello,

2812
07:25:52.770 --> 07:25:59.899
Boardroom: He will be giving me his one minute, so I have 2 minutes. Sorry, can you stand a little bit so I can… Okay, thank you. Alright, just start…

2813
07:26:00.050 --> 07:26:08.610
Boardroom: Okay, hello, my name is Evelyn, I'm a Berkeley undergrad student, an RA for the Berkeley Student Cooperative, and a resident of District 7.

2814
07:26:08.970 --> 07:26:19.240
Boardroom: I believe that we should not pass this order. Flock is a company known for handing data to ICE and puts our immigrant community in danger of the draconian policies ICE has been known to do.

2815
07:26:19.490 --> 07:26:36.599
Boardroom: While Flock has claimed that they will not give ICE any info without a valid reason, I find it hard to believe that ICE, an organization that has conducted no-knock raids, arrested people without habeas corpus, and is responsible for shooting three unarmed individuals, this year would follow such a provision.

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2816
07:26:36.600 --> 07:26:45.470
Boardroom: ICE is not a law enforcement organization, but a brown shirt-like group of thugs that go around arresting people without any care of our Constitution.

2817
07:26:45.660 --> 07:27:04.260
Boardroom: By passing this measure, we are not only violating the privacy of everyone in the city, but also putting our immigrant communities in danger of getting brutalized and imprisoned indefinitely. If you pass this, the blood of innocent people will be shed by the people who are committing crimes in Minneapolis, San Francisco, LA, and more.

2818
07:27:04.360 --> 07:27:13.349
Boardroom: We must make Berkeley a fortress against the Trump administration, and not allow this Trojan horse to enter our community and destroy it from within. Thank you.

2819
07:27:14.040 --> 07:27:15.060
Boardroom: Thank you.

2820
07:27:21.450 --> 07:27:26.430
Boardroom: I have another minute. Cheryl, didn't you speak already? No, I did not.

2821
07:27:26.990 --> 07:27:37.969
Boardroom: Yeah, she did speak alright. I did not on this subject! Get the hell out of here. Okay, go ahead. You have a minute. No, I have 2 minutes.

2822
07:27:38.160 --> 07:27:42.690
Boardroom: And I haven't started yet. Where's my other minute? Over there.

2823
07:27:45.300 --> 07:27:59.860
Boardroom: Hold on, Mark's gonna check, Mark's in it, Mark's gonna check. You are so disrespectful and annoying. So, I'm just gonna… I'm just gonna check. There's nothing wrong with that. We're gonna just don't…

2824
07:28:00.040 --> 07:28:02.750
Boardroom: Nothing, you didn't check anybody else in the fucking room!

2825
07:28:03.660 --> 07:28:17.770

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Boardroom: Okay. Alright, so you've got one minute there. And you have one comment. I'm not going to apologize for double-checking something. Alright, a blue sweater… You should! I'm a sweater!

2826
07:28:17.770 --> 07:28:27.379
Boardroom: You have two minutes to speak? You pissed me off! Start my time over, please.

2827
07:28:29.180 --> 07:28:31.349
Boardroom: Your time, you can use it as you'd like.

2828
07:28:32.090 --> 07:28:36.589
Boardroom: You're so disrespectful and rude. I can't wait for you to be gone.

2829
07:28:38.900 --> 07:28:39.890
Boardroom: Data!

2830
07:28:40.100 --> 07:28:45.790
Boardroom: Storing will not be controlled. That's a goddang lie, and y'all know it.

2831
07:28:46.480 --> 07:28:47.330
Boardroom: flock.

2832
07:28:47.540 --> 07:28:49.500
Boardroom: Should not be in Berkeley.

2833
07:28:50.250 --> 07:28:52.050
Boardroom: It shouldn't be anywhere.

2834
07:28:52.590 --> 07:28:59.260
Boardroom: You know you can't control the data, you can't… the feds can do anything they damn well please.

2835
07:28:59.770 --> 07:29:13.000
Boardroom: And I really am really… you really got to me right now, and I'm just, like, so sick of all the disrespect in this fucking chambers. You don't listen to the people, ever.

2836
07:29:13.650 --> 07:29:15.900
Boardroom: Nobody in this room wants flock.

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2837
07:29:16.460 --> 07:29:20.450
Boardroom: Black and brown people in the city of Berkeley don't want flock.

2838
07:29:21.380 --> 07:29:30.279
Boardroom: It doesn't save lives, it doesn't… it doesn't do any of the things that they're saying, and plus, they lied to you about some of the things that they said.

2839
07:29:30.400 --> 07:29:32.939
Boardroom: People have already pointed out the lies.

2840
07:29:33.680 --> 07:29:37.199
Boardroom: Put the money into voices against violence or live free.

2841
07:29:37.400 --> 07:29:46.199
Boardroom: put the money into, income for folks so that they can live in Berkeley and get the services that they need.

2842
07:29:47.320 --> 07:29:54.409
Boardroom: But, you know… I'm, like… I guess that was your point, to throw me off and piss me off.

2843
07:29:54.800 --> 07:29:56.219
Boardroom: And you've done it.

2844
07:29:56.850 --> 07:30:01.989
Boardroom: But let this be the last time, because I know the damn rules of the fucking city council.

2845
07:30:02.330 --> 07:30:07.210
Boardroom: I don't have to check, because I know. Just because you don't know the damn rules.

2846
07:30:07.410 --> 07:30:12.249
Boardroom: And that's a damn shame, because you're supposed to be the mayor. He's supposed to know these things.

2847
07:30:12.670 --> 07:30:19.579
Boardroom: You know, if you're just being racist and disrespectful. And that is really a shame.

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2848
07:30:19.840 --> 07:30:26.620
Boardroom: Free Palestine, and don't vote for Florida. Okay, so we've got some comments online.

2849
07:30:28.390 --> 07:30:29.910
Boardroom: If you are…

2850
07:30:30.200 --> 07:30:46.479
Boardroom: If you're online, and you'd like to give public comment on item number 26, which is the public safety technology item, surveillance technology ordinance and Police Equipment Ordinance Approvals, policy updates, and contract authority, please raise your hand.

2851
07:30:47.540 --> 07:31:05.579
Boardroom: And, Mr. City Clerk, if you could please start us off. Before we do, Madam Mayor, should we extend the meeting time? We have 28, there's 28 hands. There's 28 hands. That was so… So, you have, you have, we have until 1.30. Sorry, okay, sorry. So, okay.

2852
07:31:07.740 --> 07:31:08.640
Boardroom: Okay.

2853
07:31:09.050 --> 07:31:12.469
Boardroom: The, first commenter is Mar.

2854
07:31:15.590 --> 07:31:18.789
Mar: I'm here with my roommate who's seating their minute to me.

2855
07:31:19.330 --> 07:31:22.090
Boardroom: Roommate, can you just verbally let us know?

2856
07:31:22.290 --> 07:31:24.399
Mar: Yeah, they can take my minute.

2857
07:31:24.420 --> 07:31:34.009
Boardroom: Okay, thank you. Okay, so Keith, there's gonna be 2 minutes for that person. Okay, that's fine, thank you.

2858
07:31:34.010 --> 07:31:35.260
Mar: Alright, thank you.

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2859
07:31:35.300 --> 07:31:42.989
Mar: We cannot expect to be able to exit an agreement with Flock at any time, because Flock has proven that they will lie

2860
07:31:42.990 --> 07:31:58.680
Mar: Incidents in Evanston, Illinois, and Verona, Wisconsin saw cameras remain active after cities decided to cancel their contracts, getting so bad that city officials had to issue cease and desist orders and resort to covering up the cameras with bags.

2861
07:31:58.680 --> 07:32:14.299
Mar: I heard the name Chandler mentioned, I believe it was in reference to Trevor Chandler, who is a representative of Flock, who has lied on Twitter earlier this month, claiming that vehicle thefts increased by 33% in Richmond after Flock cameras were turned off.

2862
07:32:14.330 --> 07:32:23.789
Mar: When in reality, the highest number of vehicle thefts was in November, when cameras were on, and that's per Richmond Crime Statistics reports.

2863
07:32:23.880 --> 07:32:31.800
Mar: There's also mentions of the benefits of a network effect and a one audit trail from Flock. That…

2864
07:32:31.840 --> 07:32:56.570
Mar: doesn't really mean shit in regards to ICE. There's no way for an independent audit to know if and when ICE has accessed mass surveillance data, because the DHS license plate reader policies for any vendor says, quote, ICE query data is not retained by the vendor except to maintain logs for the use by ICE. Any positive match results are tagged as ICE and would not

2865
07:32:56.570 --> 07:33:12.419
Mar: be retained in the vendor database. Further, ICE does not share any query terms, query results, or uploaded images with state or local law enforcement agency or any other entity with access to the vendor's database, so only ICE would be able to self-audit.

2866
07:33:12.420 --> 07:33:19.000
Mar: And are we really gonna trust them on that? Like, be so real. Yeah, and just to…

2867
07:33:19.360 --> 07:33:39.000

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Mar: get back to reality for a second. As was mentioned multiple times, last Sunday, a woman was violently taken against her will, separated from her child at SFO Airport, and ICE is being deployed to airports across the U.S, standing around TSA lines, and this has been said by.

2868
07:33:39.000 --> 07:33:40.530
Boardroom: A comment, your time's up.

2869
07:33:40.790 --> 07:33:43.999
Boardroom: Next is Wendy A.

2870
07:33:50.370 --> 07:33:52.389
Boardroom: Wendy should be able to unmute.

2871
07:33:55.780 --> 07:34:02.459
wendy a: I'm ceding my time to… John Lindsay for Poland.

2872
07:34:03.240 --> 07:34:04.210
Boardroom: Okay, thank you.

2873
07:34:04.210 --> 07:34:06.140
wendy a: C'estant.

2874
07:34:06.490 --> 07:34:07.140
Boardroom: Yes.

2875
07:34:07.300 --> 07:34:08.200
Boardroom: Thank you.

2876
07:34:10.560 --> 07:34:20.579
Boardroom: Well, why don't we just go to… Well… Okay, our hand, and Wendy…

2877
07:34:21.540 --> 07:34:25.230
Boardroom: Okay, now we… now we have Wendy Alston.

2878
07:34:27.570 --> 07:34:32.490
Boardroom: So, John, when your name comes up in the list, I think you're… Fourth.

2879
07:34:32.490 --> 07:34:36.149

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Wendy Alfsen: then you'll get an extra minute. Okay, go ahead.

2880
07:34:36.260 --> 07:34:41.620
Wendy Alfsen: This is Marilyn Cleveland, I think I showed up as Wendy Alston, and I'm also ceding my time.

2881
07:34:41.620 --> 07:34:50.279
Boardroom: Sorry, we can't… Okay, another… a second person is seating their time to John Lindsay Poland, so John, you'll have 3 minutes. Okay.

2882
07:34:55.890 --> 07:34:58.070
Boardroom: Yeah, it was… Okay.

2883
07:34:58.770 --> 07:35:00.980
Boardroom: Daniel Brownson?

2884
07:35:04.230 --> 07:35:10.710
Daniel Brownson: Hi, so… Well, I… Like,

2885
07:35:11.850 --> 07:35:17.609
Daniel Brownson: Councilmember Bartlett's idea of, you know, charging in…

2886
07:35:18.430 --> 07:35:28.460
Daniel Brownson: very large amount for violations of the contract. Realistically, no financial penalty is going to keep

2887
07:35:28.680 --> 07:35:37.700
Daniel Brownson: flock from choosing to divulge our data to, Homeland Security and ICE,

2888
07:35:39.690 --> 07:35:47.929
Daniel Brownson: They're in real tight with, the Trump administration. Their founders are huge donors.

2889
07:35:48.100 --> 07:35:52.710
Daniel Brownson: And it's not just going to be, immigrants, it's going… they…

2890
07:35:52.950 --> 07:36:01.659
Daniel Brownson: ICE have gone after protesters, too. You know, Realistically, we can't have…

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2891
07:36:02.460 --> 07:36:06.210
Daniel Brownson: we can't have our cake and eat it, too. We have to choose our immigrant.

2892
07:36:06.210 --> 07:36:11.190
Boardroom: Our community. Thanks, Daniel. Thanks for your comment. Next is Beth Rossner.

2893
07:36:13.650 --> 07:36:19.559
Beth Roessner: Good evening, Mayor and Council. This is Beth Rossner, CEO of the Berkeley Chamber of Commerce.

2894
07:36:20.070 --> 07:36:28.170
Beth Roessner: We recognize and share the community's concerns around privacy and data security, especially in light of recent reports elsewhere.

2895
07:36:28.900 --> 07:36:48.519
Beth Roessner: Berkeley has already put strong safeguards in place through its existing ordinances and through the proposals put forward by some of the council members tonight. We expect those protections to be rigorously upheld and enforced. For our business community, public safety and economic vitality go hand in hand.

2896
07:36:48.520 --> 07:36:55.920
Beth Roessner: Employers, employees, and customers all rely on a city where people feel safe to work, shop, and invest.

2897
07:36:56.060 --> 07:37:06.230
Beth Roessner: Tools like Drone as First Responder, LPRs, and camera systems can improve response times and make better use of limited public safety resources.

2898
07:37:06.450 --> 07:37:12.119
Beth Roessner: With that balance of safety and privacy, we ask you to move this item forward. Thank you.

2899
07:37:12.500 --> 07:37:13.460
Boardroom: Thank you, Beth.

2900
07:37:15.640 --> 07:37:20.359
Boardroom: Next is John Lindsay Poland. You'll have 3 minutes.

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2901
07:37:21.720 --> 07:37:23.670
John Lindsay-Poland: Good evening, can you hear me?

2902
07:37:23.820 --> 07:37:24.710
Boardroom: Yes.

2903
07:37:25.090 --> 07:37:36.840
John Lindsay-Poland: We heard earlier that crime in Berkeley has dropped 20-40% without expanded surveillance, so it is not clear what problem this contract is trying to solve.

2904
07:37:36.930 --> 07:37:52.179
John Lindsay-Poland: Much less why a contract with Flock must be approved tonight. If you don't have an informed analysis of why crime has dropped so dramatically, you don't know what effects on crime expanded surveillance will have.

2905
07:37:52.660 --> 07:38:03.570
John Lindsay-Poland: Flock has repeatedly lied about security benefits from its data. This is not a conflict between liberty and security, it is a conflict between liberty and money.

2906
07:38:04.110 --> 07:38:28.960
John Lindsay-Poland: You are going in too deep with one vendor, and what a vendor. Flock's investors are deeply committed to the Trump agenda and can change its softwares and conditions, such as what led to data access and violations in other cities. You also can't protect against FISA warrants from the Trump government using Berkeley data, and retention policies are neither clear nor consistent with

2907
07:38:28.960 --> 07:38:29.780
John Lindsay-Poland: the law.

2908
07:38:29.870 --> 07:38:41.649
John Lindsay-Poland: The Chief says this proposal has had many public meetings over 3 years, yet the MSA was only presented to the PAB 24 hours before its meeting to consider it.

2909
07:38:42.510 --> 07:38:57.359
John Lindsay-Poland: I was going to say that with 4 supplementals in front of you, it's clear that you cannot integrate, amend, edit, review, and hear meaningful input to approve the flock contract tonight.

2910

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07:38:57.360 --> 07:39:11.619
John Lindsay-Poland: I was going to say that editing complex, interlocking, and conflicting proposals for a lengthy contract and policies on the dais, late at night, is the worst kind of governance.

2911
07:39:12.060 --> 07:39:31.659
John Lindsay-Poland: But hearing our beautiful community tonight provide diverse, compelling arguments for X-ing the contract, I'm convinced that you should decide tonight to reject the flock contract. So please do not show contempt for your people. Listen. Thanks.

2912
07:39:31.660 --> 07:39:32.979
Boardroom: Thank you, John.

2913
07:39:37.150 --> 07:39:39.150
Boardroom: Next is Neil Egbert.

2914
07:39:42.210 --> 07:39:44.309
Neil Egbert - BPA: Good evening. I should have another…

2915
07:39:48.340 --> 07:39:50.540
Boardroom: Neil, you have a minute from someone else?

2916
07:39:53.180 --> 07:39:54.350
Neil Egbert - BPA: Can you hear me?

2917
07:39:54.350 --> 07:39:57.129
Boardroom: Oh, yeah, we can hear you now. Who's your minute?

2918
07:39:57.570 --> 07:40:00.030
Neil Egbert - BPA: Sorry, from Timothy Wynn, he should be logged in as well.

2919
07:40:00.860 --> 07:40:02.510
Boardroom: Timothy…

2920
07:40:02.630 --> 07:40:03.519
Neil Egbert - BPA: Or Tim Nguyen?

2921
07:40:07.130 --> 07:40:09.789
Boardroom: Doesn't have his hand raised.

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2922
07:40:11.390 --> 07:40:13.550
Boardroom: I don't see him either.

2923
07:40:13.910 --> 07:40:16.050
Neil Egbert - BPA: Okay, well, I'll get going then.

2924
07:40:16.050 --> 07:40:17.600
Boardroom: Timothy on, sorry.

2925
07:40:17.600 --> 07:40:33.240
Neil Egbert - BPA: Okay. Good evening, I'm Neil Egbert, president of the Berkeley Police Association. The BPA is urging your support for this item because at its core, this is about Berkeley keeping pace with modern and effective public safety. Technology is not optional. It's a core component of smart, accountable policing.

2926
07:40:33.240 --> 07:40:39.060
Neil Egbert - BPA: The tools discussed tonight give first responders the information they need to respond faster, safer, and more precisely.

2927
07:40:39.060 --> 07:40:56.749
Neil Egbert - BPA: Our staffing is dropping fast, 3 officers have already left for SFPD, another to a different department, and more are scheduled to leave to SFPD as soon as next month. In a few weeks, we'll be policing the city with just 6 officers on night shift, the lowest in my 14-year career. That's barely more than Emeryville, a city just barely our size.

2928
07:40:56.750 --> 07:40:59.739
Neil Egbert - BPA: At the same time, we're being asked to do more with fewer people.

2929
07:40:59.950 --> 07:41:11.589
Neil Egbert - BPA: The city is facing a budget deficit, and this matters even more than ever. Public safety isn't just an expense, it's a foundation for economic stability. A safe city attracts businesses, keeps storefronts occupied, and drives revenue.

2930
07:41:11.590 --> 07:41:22.869
Neil Egbert - BPA: Without that foundation, vacancies increase, investment slows, and the city's financial challenges only grow. If you look around the city, such as San Pablo and University, where 3 out of the 4 corners are vacant, businesses don't just need customers.

2931

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07:41:22.870 --> 07:41:25.109
Boardroom: Neil, I'm sorry, your time's up. Thank you.

2932
07:41:25.280 --> 07:41:28.700
Boardroom: Next is Dylan Melowitz.

2933
07:41:31.630 --> 07:41:32.820
Boardroom: Folks, come on.

2934
07:41:33.060 --> 07:41:44.350
Dylan Melowitz: Hi, my name is Dylan Melowitz. I'm calling on behalf of the BPA, Berkeley Police Association. I'm currently a robbery detective who's experienced firsthand the impact of flock ALPRs. I am not calling on behalf of the department.

2935
07:41:44.480 --> 07:41:55.589
Dylan Melowitz: Berkeley needs to follow San Francisco's lead in terms of public safety. This isn't… there isn't one documented instance of federal authorities using flock systems, specifically in Berkeley, to conduct immigration enforcement.

2936
07:41:55.640 --> 07:42:08.630
Dylan Melowitz: I have many examples of how the utilization of flock technology not only solved serious crimes, but prevented entire region-wide sprees. I can think of countless victims who cried tears of relief when I was able to tell them that we caught whoever harmed them.

2937
07:42:08.690 --> 07:42:26.300
Dylan Melowitz: Please do not do what Richmond did. We saw crime explode the second it was known their cameras were deactivated. They had an astronomical increase in vehicle thefts in a remarkably short time frame, victimizing countless people unnecessarily, and that doesn't even include crimes committed using those stolen vehicles. As crime goes up.

2938
07:42:26.300 --> 07:42:36.470
Dylan Melowitz: Police work gets more dangerous, and it'll be up to officers to react to incidents, rather than cameras deterring and preventing crime in the first place. Police staffing is suffering more than ever, and the utilization.

2939
07:42:36.470 --> 07:42:37.490
Boardroom: Folks!

2940
07:42:37.740 --> 07:42:39.660

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Boardroom: There is no booing.

2941
07:42:40.300 --> 07:42:46.219
Boardroom: That's one of the rules of the procedure, you're… Next is Ben.

2942
07:42:51.760 --> 07:43:02.700
Ben: Good evening, Mayor and City Council. My name is Ben, I'm a UC Berkeley student from D7, and I'm speaking today on behalf of the Cal Berkeley Democrats. I urge you to reject the contract with Flock.

2943
07:43:02.740 --> 07:43:12.619
Ben: Immigrants make our community safer. It's ICE that endangers Berkeley. We know that ICE uses flock cameras. They were found to have accessed San Francisco's 1.6 million

2944
07:43:12.780 --> 07:43:17.280
Ben: There is no direction you can give or policy you can make that can stop a judge's warrant.

2945
07:43:17.510 --> 07:43:21.960
Ben: I know you all do not intend to increase deportations, so please know that you can

2946
07:43:22.170 --> 07:43:30.959
Ben: Take actions to keep this community safe without endangering our immigrant neighbors. 2026 has already been a year of too much danger and upheaval.

2947
07:43:31.170 --> 07:43:34.600
Ben: Please keep Berkeley stable and safe for our immigrant neighbors.

2948
07:43:35.250 --> 07:43:39.740
Ben: Do not underestimate the nationalization of local politics. Thank you for your time.

2949
07:43:41.110 --> 07:43:42.699
Boardroom: Thanks, Ben.

2950
07:43:42.910 --> 07:43:47.510
Boardroom: Alright, next is… Jim?

2951
07:43:54.840 --> 07:43:56.149

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jim [he/him] unceded Ohlone Land (Berkeley): Okay, can you hear me?

2952
07:43:56.470 --> 07:43:57.220
Boardroom: Go ahead.

2953
07:43:57.220 --> 07:44:06.680
jim [he/him] unceded Ohlone Land (Berkeley): Yeah, I'm Jim Bess from District 3. I live 4 doors down from Sylvia Mendez Elementary, a likely target of ICE operations at some point.

2954
07:44:06.810 --> 07:44:22.310
jim [he/him] unceded Ohlone Land (Berkeley): Parents, teachers, and neighbors are self-organizing safety protocols and rapid response systems to protect our families and neighbors. And that's happening at Willard Middle School, Border Town, several toddler parks, and in other nearby districts.

2955
07:44:22.370 --> 07:44:35.459
jim [he/him] unceded Ohlone Land (Berkeley): My point is that even if city council members are not yet getting a powerful message from this growing body of recently activated folks, it is coming, and it will persist long after this moment.

2956
07:44:35.820 --> 07:44:53.239
jim [he/him] unceded Ohlone Land (Berkeley): The community is responding to the sense of terror at having our own federal forces weaponized in our neighborhoods with no accountability and no real protection from our own Berkeley PD against these armed, masked, unidentified kidnappers. Flock is clearly the wrong direction for our long-term safety.

2957
07:44:53.240 --> 07:44:59.120
jim [he/him] unceded Ohlone Land (Berkeley): When these Berkeley neighbors look to you now and in the future, they'll remember each council member's critical vote.

2958
07:44:59.120 --> 07:45:00.210
Boardroom: Thank you.

2959
07:45:03.900 --> 07:45:07.380
Boardroom: Alright, next is, Laura Hill.

2960
07:45:10.450 --> 07:45:21.989
Laura Hill: Good evening, my name is Laura, and I'm a Vice President of Public Policy for the Bay Area Council. We represent nearly 400 of the

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region's largest employers across many sectors, including higher education and research institutions.

2961
07:45:21.990 --> 07:45:45.919
Laura Hill: nonprofit and community organizations, utility and transportation providers, and private sector employers. In 2023, at the request of a diverse group of 125 employers based in the East Bay, our organization formed a coalition of employers who are committed to building a safer and more vibrant region. The Bay Area Council on this coalition strongly supports the continued and expanded use of flock technology in Berkeley.

2962
07:45:45.920 --> 07:46:10.910
Laura Hill: Technology is a vital public safety tool, and it is particularly critical for cities like Berkeley that are facing significant law enforcement staffing challenges. On the ground every day, this technology is a proven effective tool in recovering lost and stolen property, identifying suspects in violent crimes, preventing human trafficking, and much more. As we have seen in many cities in the East Bay and throughout the region, ALPR and related technology can absolutely be implemented with appropriate safeguards in a

2963
07:46:10.910 --> 07:46:15.760
Laura Hill: that balances both the needs of the community and, community privacy and public safety.

2964
07:46:15.760 --> 07:46:20.219
Boardroom: Decorum! Next is Daniel Marcus.

2965
07:46:26.470 --> 07:46:27.960
Daniel Marcus: Thank you, can you hear me?

2966
07:46:27.960 --> 07:46:28.630
Boardroom: Yes.

2967
07:46:28.980 --> 07:46:43.600
Daniel Marcus: I'm a Berkeley District 5 resident. I have an engineering PhD from Cal, and I've worked for 3 decades in computer technology implementation and governance. And I'm asking the City Council to terminate its relationship with Flock, as several other Bay Area cities have done.

2968
07:46:43.860 --> 07:46:59.539
Daniel Marcus: Flock allows ICE access to local data. Flock has lied by concealing its relationship with ICE. Flock has lied by claiming its

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technology reduces crime. Flock's largest investor is a leading Trump supporter. How many dots do we need to connect?

2969
07:46:59.970 --> 07:47:15.520
Daniel Marcus: Reliance on improved contractual guardrails is naive, and frankly, disingenuous, because we know that Flock lies. Flock is in bed with ice, and ICE is murdering people in the streets. It is not plausible that Flock

2970
07:47:15.830 --> 07:47:31.380
Daniel Marcus: given their relationship with ICE, will care about breach of contract or nominal fines. $150,000 is pocket lent to these people. ICE will come to Berkeley, and if flock is deployed, it will be used to support ICE's immoral and inhumane…

2971
07:47:31.820 --> 07:47:34.890
Boardroom: Thanks so much. Next is Paolo La Verde.

2972
07:47:36.670 --> 07:47:49.509
Paola Laverde: Hi there, Penny from District 5. So, the Oakland side yesterday reported that a Hayward nurse was hauled from her car after a botched play alert near City Hall, and

2973
07:47:49.510 --> 07:48:03.710
Paola Laverde: In Hayward. So, this woman got stopped, Anna Mora, a white lady, 62 years old, who works at the nursing home, because of, of, there was a license plate reader system which matched her car to

2974
07:48:03.710 --> 07:48:13.459
Paola Laverde: a hot list car. Turns out that her back license plate had been switched, and now the officers were stopping her as if she were some sort of criminal.

2975
07:48:13.460 --> 07:48:17.750
Paola Laverde: We just heard from BPOA saying that they have to do faster work.

2976
07:48:17.750 --> 07:48:39.450
Paola Laverde: Well, these officers with Ann Namora didn't even bother to check that the license plate that was supposedly stolen matched the car that the plate was on. And that's my biggest fear, because Berkeley PD, if they have shortage of staff, that means they're going to be doing things in a hurry, and someone like Brenda Grisham, who might have her license plate stolen and drive…

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2977
07:48:39.450 --> 07:48:43.300
Boardroom: True. Thanks, Paola. Next is Lisa.

2978
07:48:44.510 --> 07:48:49.870
Boardroom: Sorry, one second. Next is, alok?

2979
07:48:50.750 --> 07:48:52.239
Alok Singhal: Hello, can you hear me?

2980
07:48:52.240 --> 07:48:52.990
Boardroom: Yes.

2981
07:48:53.190 --> 07:48:59.900
Alok Singhal: Yes, I'm from District 1. As a technical lead for more than 100 engineers at various big tech companies.

2982
07:48:59.990 --> 07:49:13.780
Alok Singhal: I am an expert. Not only that, I am an expert in online security space. I have led trust and safety teams responsible for safeguarding the biggest online platforms, including Gmail, Instagram, Pinterest, and Airbnb.

2983
07:49:14.160 --> 07:49:22.910
Alok Singhal: I had a lot of things to say, but after sitting through the frankly amateurish presentation by the BPD, I have to talk about one item in particular.

2984
07:49:23.290 --> 07:49:26.530
Alok Singhal: They mention that the flock data is end-to-end encrypted.

2985
07:49:26.730 --> 07:49:39.259
Alok Singhal: Either they don't understand the meaning, or they're, like, using a completely bogus definition of end-to-end encrypted. If Flock, ICE, and countless other agencies can access the data.

2986
07:49:39.490 --> 07:49:50.510
Alok Singhal: access the video footage, ALPR data, run queries on it. I don't understand what that means for the data to be end-to-end encrypted. It's as if it's open to anyone, and they can see it.

2987
07:49:50.690 --> 07:49:52.880
Alok Singhal: And I have a big problem with that.

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2988
07:49:52.880 --> 07:49:55.130
Boardroom: Thank you. Thanks for your comment.

2989
07:49:59.690 --> 07:50:05.210
Boardroom: Next is, lisa?

2990
07:50:11.130 --> 07:50:17.670
Lisa: Good evening, Mayor and Council. I urge a yes vote on flocked public safety cameras with the strong guardrails proposed tonight.

2991
07:50:17.820 --> 07:50:23.679
Lisa: Every person here carries a smartphone, the most prevalent… pervasive surveillance device there is.

2992
07:50:23.910 --> 07:50:39.340
Lisa: Many of you have home security cameras, and if not you, your neighbors and businesses do, and they can be used to surveil you. If you've ever been a crime victim, you know why this matters. Minutes can mean life or death, just as some survivors.

2993
07:50:39.460 --> 07:50:48.530
Lisa: I know because my dear friend's daughter was abducted, tortured, and died a horrific death. She ran out of time, her justice denied.

2994
07:50:49.080 --> 07:50:51.379
Lisa: Berkeley is not a magical bubble.

2995
07:50:52.100 --> 07:50:54.370
Lisa: Everyone's safety is right.

2996
07:50:54.920 --> 07:50:56.690
Lisa: Please hear my pleas.

2997
07:50:56.820 --> 07:51:00.499
Lisa: Councilmembers Blackaby and Bartlett, and please vote yes.

2998
07:51:00.650 --> 07:51:01.510
Lisa: Thank you.

2999
07:51:03.240 --> 07:51:04.440

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Boardroom: Thank you.

3000
07:51:05.230 --> 07:51:07.539
Boardroom: Next is Rocky.

3001
07:51:12.160 --> 07:51:13.180
Rocky Chau (he/him): Oh, can you hear me?

3002
07:51:13.320 --> 07:51:14.230
Boardroom: Yes.

3003
07:51:14.390 --> 07:51:26.050
Rocky Chau (he/him): Hi, my name is Rocky with the Berkeley Animal Rights Center. I oppose contracting with Flock. Flock, in other jurisdictions… Flock makes a lot of false claims, and to illustrate one.

3004
07:51:26.090 --> 07:51:36.870
Rocky Chau (he/him): In a different city, Flock referenced a violent crime decrease of 22% in the City of Los Angeles Trail neighborhood between January and August 2021.

3005
07:51:36.900 --> 07:51:51.570
Rocky Chau (he/him): Compared to the same period during 2019, the reality is between 2021 and 2023, when flock cameras were operational, crimes of aggravated assault and residential burglary actually rose by 5% across the city. Flock does not keep us safe.

3006
07:51:51.570 --> 07:52:05.900
Rocky Chau (he/him): Another consideration is Flock exploits workers. Flock, like many other tech companies, is currently using workers living in poor Global South countries, like the Philippines, to review video footage being recorded on its cameras, and that's shameful. Do the right thing. Do not contract with Flock.

3007
07:52:05.950 --> 07:52:08.750
Rocky Chau (he/him): Oh, also, end Zionism and Free Palestine.

3008
07:52:09.170 --> 07:52:11.590
Boardroom: Yoo! Thank you.

3009
07:52:12.930 --> 07:52:16.560
Boardroom: Next is, deb?

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3010
07:52:19.970 --> 07:52:20.900
Deb Den: Hi.

3011
07:52:21.070 --> 07:52:25.099
Deb Den: We've been told that if there are serious concerns, the contract can be dropped.

3012
07:52:25.910 --> 07:52:29.660
Deb Den: Data can't be retrieved once it's been released.

3013
07:52:30.020 --> 07:52:32.440
Deb Den: There are serious concerns now.

3014
07:52:32.700 --> 07:52:35.030
Deb Den: Drop the contract now.

3015
07:52:36.170 --> 07:52:42.550
Deb Den: Boating this down may appear to give less protection, and no one wants that, but there are other ways to increase safety.

3016
07:52:43.410 --> 07:52:54.150
Deb Den: You've been requesting that people not laugh, but it should be clear that the privacy requirements and the contracts are so likely to be meaningless that they do become laughable.

3017
07:52:54.830 --> 07:53:00.069
Deb Den: It'll be so disappointing if the Council fails to follow the recommendations of the PAB.

3018
07:53:00.600 --> 07:53:03.450
Deb Den: The supplementals are likely to be inadequate.

3019
07:53:03.880 --> 07:53:12.349
Deb Den: The council member appears poised to betray his constituents, who preferred freedom, pretending that a large enough penalty will protect them.

3020
07:53:12.510 --> 07:53:17.110
Deb Den: And again, there are serious concerns now. Drop the contract now.

3021

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07:53:18.380 --> 07:53:19.490
Boardroom: Thank you.

3022
07:53:21.840 --> 07:53:24.110
Boardroom: Next is Andy Kelly.

3023
07:53:33.600 --> 07:53:35.459
Boardroom: Andy, can you hear us?

3024
07:53:37.260 --> 07:53:39.180
Boardroom: Andy, you can unmute yourself.

3025
07:53:39.180 --> 07:53:42.680
Andy Kelley: Sorry. Thanks, Adina.

3026
07:53:42.830 --> 07:53:59.689
Andy Kelley: This is Rep Board Commissioner Andy Kelly calling, to strongly oppose re-contracting with Flock tonight. I was in City Hall still when we did the last update of the surveillance ordinance during the Biden administration, and even then, we knew it was only worth the paper it was written on if it was upheld by the courts.

3027
07:54:00.000 --> 07:54:07.880
Andy Kelley: There's not a day that goes by that the Trump administration doesn't ignore not only the law, but judicial order after judicial order.

3028
07:54:08.180 --> 07:54:15.749
Andy Kelley: if they want to access this data, they're going to. And the nuanced policy conversation happening on the dais is…

3029
07:54:16.120 --> 07:54:19.800
Andy Kelley: Great, but that assumes a federal government

3030
07:54:19.960 --> 07:54:23.410
Andy Kelley: that's going to follow the law. They aren't.

3031
07:54:23.530 --> 07:54:26.140
Andy Kelley: Flock is actively coordinating with ICE.

3032
07:54:26.740 --> 07:54:41.849
Andy Kelley: They are. We need to stand up, and we need to realize that we can be safer without flock. And just because flock might have been

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used in solving a crime does not mean that crime would have not otherwise been solved. The statistics are misleading.

3033
07:54:44.780 --> 07:54:49.179
Boardroom: Next is caller with a phone number ending in 211.

3034
07:54:55.590 --> 07:55:02.369
1510****211: Hi, good evening. While I do believe in surveillance, and our business has surveillance cameras that did save us, and even

3035
07:55:02.950 --> 07:55:08.310
1510****211: Saved other people in Telegraph Avenue, and… Durant Avenue.

3036
07:55:08.490 --> 07:55:11.189
1510****211: I think in the current government situation.

3037
07:55:11.620 --> 07:55:15.999
1510****211: I disagree with this company, because

3038
07:55:16.230 --> 07:55:21.620
1510****211: It is, definitely. This government have no

3039
07:55:21.870 --> 07:55:29.260
1510****211: You don't obey the rule of law. They're totally lawless when you come to that. And I'd also like to say, immigrants built this country, made this country.

3040
07:55:29.520 --> 07:55:32.310
1510****211: And, shame on Donald Trump.

3041
07:55:32.730 --> 07:55:42.950
1510****211: He's a monster, the way he's gonna come with it. Education, is shutting down education, shutting down IRS, shutting down the whole government. This is a dis…

3042
07:55:43.170 --> 07:55:44.180
1510****211: A scandal.

3043
07:55:44.360 --> 07:55:46.270
1510****211: Listen to the government, this is a scandal.

3044

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07:55:46.390 --> 07:55:47.630
1510****211: Thank you, and have a good night.

3045
07:55:48.370 --> 07:55:49.400
Boardroom: Thank you.

3046
07:55:51.970 --> 07:55:54.470
Boardroom: Next is Kelly Hammergren.

3047
07:56:02.070 --> 07:56:15.420
kelly hammargren: Thank you, it's been a long evening. I agree with and thank the many speakers tonight who have tried to convince at least two of you to change their mind… to change your mind out of the six.

3048
07:56:15.660 --> 07:56:16.440
kelly hammargren: Who have?

3049
07:56:16.780 --> 07:56:21.169
kelly hammargren: Who believe you can write a contract that will control flock.

3050
07:56:21.840 --> 07:56:29.530
kelly hammargren: But you already told us that you made up your mind, and that you're going to approve a contract tonight when you extended the meeting to 1.30.

3051
07:56:29.800 --> 07:56:32.490
kelly hammargren: AM. I hope I'm wrong.

3052
07:56:32.690 --> 07:56:34.809
kelly hammargren: But I don't think I am.

3053
07:56:36.190 --> 07:56:38.570
kelly hammargren: So, I'm disappointed.

3054
07:56:39.300 --> 07:56:42.240
kelly hammargren: And that's all I have to say. Thank you.

3055
07:56:42.490 --> 07:56:43.650
Boardroom: Thanks, Kelly.

3056

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07:56:44.470 --> 07:56:49.820
Boardroom: Alright. I have, Brian, Hoffer.

3057
07:56:53.770 --> 07:57:08.459
Brian Hofer: Good morning, Brian Hofer with Secure Justice. We oppose mass surveillance systems and urge a no vote. That said, if this body is moving forward, we support the mayor's supplemental rejecting flock and returning the defective use policies to the PAB. You're being played.

3058
07:57:08.460 --> 07:57:15.980
Brian Hofer: Flock's lawyers are running circles around you. The contract is full of traps and allows Flock to leverage your data in ways your lawyers don't understand.

3059
07:57:16.020 --> 07:57:21.860
Brian Hofer: Saying we own the data is not a safeguard. It's a talking point Flock relies on while drafting around it.

3060
07:57:21.880 --> 07:57:34.040
Brian Hofer: I didn't expect an agenda packet that made your litigation exposure worse. Flock Nova is very invasive, and it is surveillance technology as defined by BMC 299, and thus requires ordinance vetting.

3061
07:57:34.040 --> 07:57:42.450
Brian Hofer: Consider this your right to cure notice. Flock has repeatedly concealed, altered, and mishandled data practices, only changing course when exposed.

3062
07:57:42.450 --> 07:57:51.810
Brian Hofer: We appreciate the intent behind Councilmember Bartlett's supplemental, but it misses a lot of red flags, and like the other two supplementals, it presupposes Flock is trustworthy.

3063
07:57:51.810 --> 07:57:56.610
Boardroom: 50 cities have found otherwise, and abandoned flock. Thank you for listening.

3064
07:57:59.960 --> 07:58:01.189
Boardroom: Next, please.

3065
07:58:06.600 --> 07:58:12.659
Boardroom: I move to extend time an additional half hour. Second.

3066

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07:58:13.790 --> 07:58:20.290
Boardroom: That was Denver and… You can take the vote on that. Councillorwani? Votes.

3067
07:58:20.650 --> 07:58:22.669
Boardroom: To, to 2 a.m.

3068
07:58:23.600 --> 07:58:26.360
Boardroom: Okay, Councilmember Kesarwani? Yes.

3069
07:58:27.310 --> 07:58:28.490
Boardroom: Tap what?

3070
07:58:28.650 --> 07:58:31.830
Boardroom: Is… absent.

3071
07:58:32.500 --> 07:58:34.089
Boardroom: Bartlett? No.

3072
07:58:34.710 --> 07:58:37.400
Boardroom: Tragum? No. O'Keefe?

3073
07:58:37.770 --> 07:58:43.030
Boardroom: Yes. Blackaby? Yes. Lunapara? No.

3074
07:58:43.440 --> 07:58:51.169
Boardroom: Yes. Okay. Catherine Taplin, you're voting yes? Yes.

3075
07:58:53.210 --> 07:58:58.120
Boardroom: Let's see… Councilmember Humbert? Yes.

3076
07:58:58.420 --> 07:58:59.860
Boardroom: Mayor Ishii.

3077
07:59:00.790 --> 07:59:03.120
Boardroom: No. Okay, motion passes.

3078
07:59:05.990 --> 07:59:20.339
Boardroom: Motion fails. Okay, so, I'm sorry. So we have… so we have seven hands raised still for public comment, and then we can talk about what happens next, but go ahead.

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3079
07:59:21.110 --> 07:59:24.189
Boardroom: Okay, Della Luna is next speaker.

3080
07:59:26.910 --> 07:59:35.010
Della Luna (she/her) Huichun: Yes, thank you. First, I wanted to commend the Police Accountability Board for their work. It was an impressive presentation.

3081
07:59:35.280 --> 07:59:40.119
Della Luna (she/her) Huichun: like, up to the par what we would expect from

3082
07:59:40.380 --> 07:59:43.900
Della Luna (she/her) Huichun: our city officials, even though I know it came from you all.

3083
07:59:44.060 --> 07:59:54.589
Della Luna (she/her) Huichun: But hearing that the Police Accountability Board only had 24 hours to review the proposal or the document, this seems like this is dead in the water.

3084
07:59:54.670 --> 08:00:00.699
Della Luna (she/her) Huichun: Also, because there's 4 other supplemental proposals, it also seems that's indicative that

3085
08:00:00.780 --> 08:00:20.309
Della Luna (she/her) Huichun: this is, that the council's not ready to pass this. And I wanted to say that reporting is not a sufficient form of oversight, so increasing the reporting from quarterly to monthly does nothing, unless the reports are going to be fact-checked and audited. So if you're gonna… if the city's not putting the energy into actually reviewing

3086
08:00:20.310 --> 08:00:27.859
Della Luna (she/her) Huichun: what's in the reports, you're just giving people creative writing assignments, and that's what's happening quite a bit right now with the current reporting.

3087
08:00:28.960 --> 08:00:31.960
Boardroom: Thanks, Stella. Alright.

3088
08:00:33.090 --> 08:00:37.340

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Boardroom: Next is a caller with a phone number ending in 405.

3089
08:00:40.120 --> 08:00:41.010
1510****405: Hi.

3090
08:00:41.010 --> 08:01:01.450
1510****405: Berkeley was founded in 1878, and those 148 years, we have not had police surveillance, monitoring our citizens. Let's hope we don't do it for the next 148 years.

3091
08:01:01.450 --> 08:01:11.209
1510****405: Certainly, our police have done a good job, and they can continue to do a good job without a flock, see?

3092
08:01:11.210 --> 08:01:34.560
1510****405: No one's luck. I'm Dirk Naihardt in Berkeley since 1952. Now I'm on the director… I'm a director of four local corporations, and to the best of my knowledge, none of the fellow directors or none of the constituents of these corporations

3093
08:01:34.560 --> 08:01:40.210
1510****405: are gonna be in favor of anybody who votes for Flock.

3094
08:01:40.430 --> 08:01:41.810
1510****405: Thank God.

3095
08:01:41.810 --> 08:01:42.860
Boardroom: Thank you.

3096
08:01:43.600 --> 08:01:47.040
Boardroom: Next is, JL.

3097
08:01:52.030 --> 08:01:57.689
JL: Hello, I cede my minute to Brian Hoffer, if he's still on Zoom and is wanting to speak.

3098
08:01:57.690 --> 08:02:02.150
Boardroom: Oh, sorry, he's already spoken. Thank you. Did you want to speak for yourself?

3099
08:02:04.220 --> 08:02:05.319
JL: Oh, no, thanks.

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3100
08:02:05.320 --> 08:02:06.699
Boardroom: Okay, thank you.

3101
08:02:07.930 --> 08:02:09.030
Boardroom: Alright.

3102
08:02:09.830 --> 08:02:12.830
Boardroom: Next is Michael Solorio.

3103
08:02:20.830 --> 08:02:23.240
Boardroom: Michael, you should be able to unmute.

3104
08:02:28.810 --> 08:02:30.430
Boardroom: Michael Solorio.

3105
08:02:38.820 --> 08:02:41.540
Boardroom: Last call. Michael Solorio.

3106
08:02:41.890 --> 08:02:43.160
Boardroom: Alright.

3107
08:02:43.480 --> 08:02:45.900
Boardroom: Tyler Hall?

3108
08:02:49.240 --> 08:02:50.330
Tyler Hall: Hey, can you hear me?

3109
08:02:50.630 --> 08:02:51.340
Boardroom: Yes.

3110
08:02:52.600 --> 08:02:59.339
Tyler Hall: Yeah, block is a perversion on our daily lives.

3111
08:02:59.610 --> 08:03:04.539
Tyler Hall: Regardless of how you behave out in the public.

3112
08:03:05.430 --> 08:03:13.590
Tyler Hall: For a city as small as Berkeley really is in size, And square mileage, it is…

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3113
08:03:13.760 --> 08:03:16.810
Tyler Hall: Preposterous how much funding goes into

3114
08:03:17.240 --> 08:03:22.300
Tyler Hall: This militarized police and enforcement of the law.

3115
08:03:22.490 --> 08:03:25.730
Tyler Hall: And what isn't even the law sometimes?

3116
08:03:29.530 --> 08:03:32.380
Tyler Hall: Do not continue this contract. Thank you.

3117
08:03:33.180 --> 08:03:34.420
Boardroom: Thank you.

3118
08:03:36.130 --> 08:03:38.560
Boardroom: Next is Anna.

3119
08:03:42.960 --> 08:03:44.559
Ana: Hello, can you hear me?

3120
08:03:44.560 --> 08:03:45.200
Boardroom: Yes.

3121
08:03:47.120 --> 08:03:54.820
Ana: Okay. I am calling in because I am in opposition to extending the flock contract.

3122
08:03:55.040 --> 08:04:00.630
Ana: I find it incredibly important that we don't…

3123
08:04:01.020 --> 08:04:10.940
Ana: That we don't perpetuate these legislations and policies that allow us and our communities to be in constant

3124
08:04:11.060 --> 08:04:19.700
Ana: fear and in constant stress about our well-being. I think that we are not… If… if we're…

3125

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08:04:20.330 --> 08:04:27.330
Ana: We're not representing our community and who we need most, the most vulnerable people.

3126
08:04:27.660 --> 08:04:37.409
Ana: to be protected if we are to, support Flock. So please, Please do not,

3127
08:04:37.850 --> 08:04:41.589
Ana: Vote in… in favor of extending a vote contract.

3128
08:04:41.700 --> 08:04:47.250
Ana: A flock contract, because it is not… Thank you, Rianna.

3129
08:04:47.590 --> 08:04:47.960
Ana: Thank you.

3130
08:04:47.960 --> 08:04:48.900
Boardroom: Okay.

3131
08:04:49.990 --> 08:04:55.220
Boardroom: Next is… squash, Faye?

3132
08:05:00.420 --> 08:05:06.769
Squashfei: Hello, I would also like to urge you to vote no on this flock contract and end all contracts with Flock.

3133
08:05:07.240 --> 08:05:25.620
Squashfei: When the argument is made that surveillance technology like this and increased policing is the future, and that we need this technology, we're saying that the future that we want is increasingly alienated in a society built on surveillance and suspicion and not trust and love, something that we could be building by investing in our communities more. Thank you.

3134
08:05:26.830 --> 08:05:27.900
Boardroom: Alright.

3135
08:05:28.910 --> 08:05:29.870
Boardroom: Thank you.

3136
08:05:30.520 --> 08:05:34.270

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Boardroom: Next is, Heron.

3137
08:05:35.640 --> 08:05:38.850
Boardroom: Aaron, you should be able to… Unmute.

3138
08:05:39.600 --> 08:05:40.790
heron lundeen: Hi, can you hear me?

3139
08:05:40.980 --> 08:05:41.630
Boardroom: Yes.

3140
08:05:41.980 --> 08:05:58.089
heron lundeen: I'm urging the City Council to vote not to renew its flock contract. There's no way around the fact that the data collected by flock is not safe from federal access. Even without direct access from the federal government.

3141
08:05:58.330 --> 08:06:06.910
heron lundeen: to the flock data, it can still be accessed through side door access, where police departments conduct the searches and informally share it with the federal government.

3142
08:06:07.370 --> 08:06:14.010
heron lundeen: Berkeley's flock data has already been accessed through searches using the word… the keywords ICE and CBP.

3143
08:06:14.450 --> 08:06:18.540
heron lundeen: There is also, still, at the moment.

3144
08:06:19.790 --> 08:06:25.839
heron lundeen: backdoor access happening to Flock's data that is currently being reported.

3145
08:06:26.210 --> 08:06:42.829
heron lundeen: No matter how many edits are made to a Flock contract in order to protect the data, or fine Flock for violating contract or withdraw from the contract, Flock has proven time and again that they are sharing data with ICE and CBP directly and indirectly, legally and illegally, and the only way.

3146
08:06:42.830 --> 08:06:44.629
Boardroom: Thank you. Thanks for your comment.

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3147
08:06:44.880 --> 08:06:48.720
Boardroom: X is… Realt?

3148
08:06:52.720 --> 08:07:00.519
Remmelt Ellen: Hi, I'm calling from Hong Kong, so I don't really have a say here, but all I want to say is that you know what happened in Hong Kong.

3149
08:07:00.750 --> 08:07:02.680
Remmelt Ellen: And with the national security law.

3150
08:07:02.830 --> 08:07:07.970
Remmelt Ellen: And… I want to suggest looking at what you want.

3151
08:07:09.440 --> 08:07:12.699
Remmelt Ellen: Your council and your… your lands to look like?

3152
08:07:12.910 --> 08:07:15.999
Remmelt Ellen: In the next few years, and what's actually going to shift that.

3153
08:07:16.420 --> 08:07:17.729
Remmelt Ellen: For the better or worse.

3154
08:07:20.340 --> 08:07:21.500
Boardroom: Thank you.

3155
08:07:23.430 --> 08:07:29.040
Boardroom: Alright, next is… WVC…

3156
08:07:39.000 --> 08:07:39.770
WBC: Hello.

3157
08:07:41.350 --> 08:07:49.400
WBC: Hi. Okay, it's clear some don't understand how insecure and easily accessible and hackable these flock cameras are.

3158
08:07:49.820 --> 08:08:03.369
WBC: As we speak, one of these cameras is livestreaming a children's playground here in the Bay Area to God knows who, likely charging people for access to this livestream. Please sit with that reality for a moment.

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3159
08:08:03.640 --> 08:08:07.369
WBC: Footage of our children and ourselves for sale on the dark web.

3160
08:08:07.540 --> 08:08:11.550
WBC: Respectfully, it is very clear that the folks advocating for this tech

3161
08:08:11.680 --> 08:08:30.450
WBC: either do not understand or care how data is stored or secured. Without proper, very expensive, and continuous investment in cybersecurity, the data will always be vulnerable, and Flock has proven it is not taking those measures on its end. I want everyone to consider how many companies we know of that have had data leaks.

3162
08:08:30.450 --> 08:08:43.099
WBC: These are companies that are incentivized to keep their customer data secure with massive budgets and dedicated cybersecurity teams, and they can't keep their data secure. Who is kidding themselves that the city of Berkeley has the capability or the budget to do so?

3163
08:08:43.100 --> 08:08:47.060
Boardroom: Your time's up. Next is Evan Flores.

3164
08:08:54.060 --> 08:08:54.890
Evan Flores: Hello?

3165
08:08:55.560 --> 08:08:56.750
Boardroom: Yes, go ahead.

3166
08:08:57.070 --> 08:08:57.720
Evan Flores: Hello?

3167
08:08:57.890 --> 08:08:59.340
Boardroom: Yes, we can hear you.

3168
08:08:59.940 --> 08:09:14.090
Evan Flores: Oh, hey! Basically, I am here to talk, to disagree with the, flock proposal. I agree, I think that it is something that will put a danger to our community.

3169
08:09:14.090 --> 08:09:24.459

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Evan Flores: that, it will put a danger to, our immigrant community, and that basically this, this, this deal with flock

3170
08:09:24.540 --> 08:09:30.119
Evan Flores: We'll put… will basically… Endanger our entire communities.

3171
08:09:30.610 --> 08:09:33.070
Evan Flores: Yeah, I think that's it.

3172
08:09:33.680 --> 08:09:35.020
Boardroom: Okay, thank you.

3173
08:09:35.670 --> 08:09:42.260
Boardroom: Still have 7 hands raised. Next speaker is… D.

3174
08:09:44.830 --> 08:09:46.350
D: Hi, can you guys hear me?

3175
08:09:46.540 --> 08:09:47.360
Boardroom: Yes.

3176
08:09:47.850 --> 08:09:55.680
D: I'm calling in, against Flock, and…

3177
08:09:56.230 --> 08:10:03.600
D: there has been some discourse in City Council about crime and what to do about crime, specifically about small businesses.

3178
08:10:05.090 --> 08:10:13.029
D: and about those businesses being PLC-owned, I'm here to tell you that a lot of these small businesses are also immigrant-owned.

3179
08:10:13.160 --> 08:10:25.559
D: And we at Copwatch, and we organizing, like, we have gone door-to-door to these businesses, and I will tell you, a lot of them are scared, and are too scared to talk about Flock, even.

3180
08:10:25.840 --> 08:10:33.629
D: they do not want to get deported, and I promise you, they will rather have a broken window over getting deported.

3181

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08:10:34.350 --> 08:10:37.110
D: Please do not continue this contract.

3182
08:10:37.690 --> 08:10:38.630
Boardroom: Thank you.

3183
08:10:39.060 --> 08:10:41.970
Boardroom: Okay, next is Misha.

3184
08:10:45.740 --> 08:10:54.810
Misha Kesselman: Hi, I would like to, first allow Marisa Oaks English to speak. Hi, I'm Marissa Oaks English, I'm a resident of District 2, and I'd like to yield my minute to Misha.

3185
08:10:55.610 --> 08:11:20.040
Misha Kesselman: Okay. So, I would like to implore the Berkeley City Council to please not renew their contract with Flock, and to not contract with Flock or any surveillance companies in the future, in particular over the fact that Flock has repeatedly lied to municipalities about following local regulations, only to then hand over information to DHS, empowering individuals in DHS, and individuals who would like to use DHS as their personal weapon against

3186
08:11:20.040 --> 08:11:29.959
Misha Kesselman: people in vulnerable situations, be it their partners, their friends, their family, or their employees, as a form of abuse. By allowing Flock to track civilians.

3187
08:11:29.960 --> 08:11:53.820
Misha Kesselman: Be they citizens or not, you would be empowering more people who wish to use their authority over others in harmful ways to track them. You would be empowering people to be tracked as they go about their day-to-day lives. You would be empowering people to be tracked as they simply follow the law. You would be empowering people to be tracked as they want to be nice and law-abiding citizens, and you would be empowering the Trump administration to stalk us

3188
08:11:53.820 --> 08:11:58.650
Misha Kesselman: From our homes, to our schools, to our restaurants, to our grocery stores, wherever else.

3189
08:11:58.650 --> 08:12:18.680
Misha Kesselman: I implore you to think about the consequences of this vote, to think about the fact that by allowing this surveillance, you will be allowing for the stalking behavior to be perpetuated amongst

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these officers, who we have seen abuse their power over and over. We have seen municipalities be lied to over and over.

3190
08:12:18.680 --> 08:12:25.949
Misha Kesselman: Do you think you are special? Do you think the flock can guarantee you things they have not been able to guarantee any other city?

3191
08:12:31.210 --> 08:12:33.080
Boardroom: Okay, thank you for your comments.

3192
08:12:33.590 --> 08:12:42.789
Boardroom: Next is Nikki P. Okay, we're gonna let this person speak, and then we need to talk about what's… what's happening next, because we…

3193
08:12:42.790 --> 08:13:02.389
Nikki P. (she.her): Thank you. I'm Nikki P. I live in District 1. I'm a retired librarian from the City of Berkeley. The citizens of Berkeley do not want to be under surveillance, and they've been saying so for decades. The community has a long tradition of resisting trends and technology that even have the possibility of violating your civil rights.

3194
08:13:02.390 --> 08:13:18.480
Nikki P. (she.her): At the Berkeley Public Library in the City of Berkeley, when RFID, radio frequency identification technology, was introduced in library materials, the people spoke, spoke, and the city proved the library director was fired. This could be you, council members. Same concern?

3195
08:13:18.480 --> 08:13:20.750
Nikki P. (she.her): That was shown for wildlife.

3196
08:13:20.750 --> 08:13:30.010
Boardroom: And I hope that the same concern that was showed for wildlife today in glue traps is shown for the people of Berkeley and the civil rights of the people of Berkeley.

3197
08:13:30.640 --> 08:13:31.759
Boardroom: Thank you.

3198
08:13:33.070 --> 08:13:33.910
Boardroom: Okay.

3199
08:13:35.190 --> 08:13:39.089

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Boardroom: So… There are…

3200
08:13:39.510 --> 08:13:51.750
Boardroom: three different dates that are being brought forward as dates to finish this conversation. They are April 30th, which is a Thursday, May 7th, which is a Thursday, and June 2nd, which is a Tuesday.

3201
08:13:51.920 --> 08:14:04.130
Boardroom: So… Those… yes, those would be special meeting dates to continue to, and so I want to check in with my council colleagues to see…

3202
08:14:04.210 --> 08:14:15.219
Boardroom: If you can check those dates, so I'm gonna read them again. April 30th, which is a Thursday, May 7th, also a Thursday, and June 2nd, which is a Tuesday.

3203
08:14:15.400 --> 08:14:21.759
Boardroom: When is the contract? Yeah, I think we need to do April 30th, or the May 8th.

3204
08:14:22.580 --> 08:14:25.080
Boardroom: The current contract? Yes.

3205
08:14:25.810 --> 08:14:30.799
Boardroom: Can you speak in the mic so that folks can hear you, please? We can't do tune.

3206
08:14:32.910 --> 08:14:44.050
Boardroom: The current contract only covers the ALPR cameras, I believe, but it ends, in July.

3207
08:14:44.590 --> 08:14:46.120
Boardroom: I see, thank you.

3208
08:14:47.250 --> 08:14:56.109
Boardroom: I think those dates were chosen specifically because they were before the LPR contract expired. I got them from our city manager, so…

3209
08:14:56.130 --> 08:15:07.979
Boardroom: Okay, so… Sorry, so can you just… it would be great to know what days that you're available, and I'm just gonna go down the line, 1, 2, 3, 4, 5, because it'll be easier. So, go ahead.

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3210
08:15:08.090 --> 08:15:14.619
Boardroom: Okay, right now. So I'm sorry, can you just repeat the dates? April… April 30th, May 7th, or June 2nd.

3211
08:15:16.030 --> 08:15:21.599
Boardroom: Yeah, I'm available any of those days. I would prefer April 30th. Okay.

3212
08:15:22.240 --> 08:15:23.979
Boardroom: Sorry, I'm writing this down.

3213
08:15:24.720 --> 08:15:25.570
Boardroom: Okay.

3214
08:15:26.680 --> 08:15:29.299
Boardroom: Councilmember Taplin. April 30th.

3215
08:15:29.890 --> 08:15:34.780
Boardroom: Is that the only day you're available? Yes. Okay.

3216
08:15:37.690 --> 08:15:42.200
Boardroom: Okay… Councilmember Trey Gubb.

3217
08:15:43.680 --> 08:15:47.810
Boardroom: June is the only daytime available. Come on.

3218
08:15:48.050 --> 08:15:50.880
Boardroom: You don't pray that.

3219
08:15:51.220 --> 08:15:57.790
Boardroom: Okay… Councilmember O'Keefe. Okay, thank you.

3220
08:15:59.000 --> 08:16:03.589
Boardroom: So… Councilmember Blackaby. All three.

3221
08:16:06.930 --> 08:16:08.680
Boardroom: Okay,

3222
08:16:09.400 --> 08:16:20.030

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Boardroom: Sorry, okay, go ahead. It's hard to write, and… I can do the May or June dates, and I have a preference for the June one, but soft preference. Okay. Councilmember Humbert? Both.

3223
08:16:24.850 --> 08:16:31.220
Boardroom: Okay… I am really only available in the May or June, so…

3224
08:16:31.980 --> 08:16:34.450
Boardroom: I think that puts us in June.

3225
08:16:34.700 --> 08:16:37.980
Boardroom: Because there's only two that can only do April 30th.

3226
08:16:38.600 --> 08:16:41.970
Boardroom: And the rest can do all, or June…

3227
08:16:42.360 --> 08:16:46.050
Boardroom: So, that leaves us with June. So, June 2nd.

3228
08:16:46.220 --> 08:16:49.840
Boardroom: It is 1.26 right now, and we have 4 minutes.

3229
08:16:50.150 --> 08:16:52.879
Boardroom: So, okay, so…

3230
08:16:54.500 --> 08:17:10.420
Boardroom: So we will continue this conversation. We have not yet finished all the public comments, so… but we won't be able to do that. We only have 3 minutes left. We also didn't get a chance to do questions or deliberation. So this item will come back for a special meeting on June…

3231
08:17:10.990 --> 08:17:14.630
Boardroom: Second. Is there a motion? I'll have motion to…

3232
08:17:15.170 --> 08:17:20.219
Boardroom: Sorry, go ahead. I will continue this item to the June 2nd Spec… to a June 2nd special meeting. Second.

3233
08:17:21.060 --> 08:17:32.400
Boardroom: Okay, let's take a vote on that, just so we have it. Councilmember Kesarwani? Yes. Taplin? Yes. Bartlett? Yes. Tregeb? Aye. O'Keefe?

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3234
08:17:32.930 --> 08:17:39.170
Boardroom: Blackaby? Yes. Unopara? Yes. Humbert? Yes. And Mary Ishii? Yes.

3235
08:17:39.450 --> 08:17:42.469
Boardroom: Okay, so we're almost running out of time, so I…

3236
08:17:43.190 --> 08:17:48.799
Boardroom: I'll move to suspend the rules and adjourn the meeting. Second.

3237
08:17:49.050 --> 08:17:53.040
Boardroom: Well, Your Honor, it… motion to adjourn's always in order, so…

3238
08:17:53.290 --> 08:18:00.489
Boardroom: Sorry, say again? Said a motion to adjourn is always in order, so you don't have to suspend the rules. It's just because we didn't do our off-agenda public.

3239
08:18:00.900 --> 08:18:15.119
Boardroom: Yeah, but you can adjourn. Still okay. Yeah, still okay. Yeah. Okay, alright, so there is a motion to adjourn on the, on the floor, so… and I'm sorry, was there a second? Folks, folks, we're not finished yet, hold on.

3240
08:18:15.210 --> 08:18:26.249
Boardroom: Seconded by Taplin. Okay, thank you. Is there any, is there any opposition to adjourning? No. Okay, meeting is adjourned. Thank you, everyone.

3241
08:18:28.930 --> 08:18:34.780
Boardroom: Seeing you!

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